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House of Representatives

The House met at 9 a.m. and was called to order by the Speaker pro tempore (Mrs. MILLER of Michigan).

DESIGNATION OF THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
April 19, 2012.

I hereby appoint the Honorable CANDICE S. MILLER to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

PRAYER

Reverend Gerald Baker, St. Ann Catholic Church, Morganfield, Kentucky, offered the following prayer:

Heavenly Father, we thank You this day for Your many blessings to us as citizens of the United States of America: for our Nation, for our freedom, for our prosperity, for our heritage, for our defenders past and present, for the beauty of our land, for our families, for our faith in You, for all whom we love.

Keep us in Your watchful care. Make us strong as a people. Bless our unity. Bless our diversity. Bless this august body in its deliberations.

May God bless us every one.

Amen.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House her approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

Mr. GENE GREEN of Texas. Madam Speaker, pursuant to clause 1, rule I, I demand a vote on agreeing to the Speaker's approval of the Journal.

The SPEAKER pro tempore. The question is on the Speaker's approval of the Journal.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. GENE GREEN of Texas. Madam Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8, rule XX, further proceedings on this question will be postponed.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentlewoman from New York (Ms. HOCHUL) come forward and lead the House in the Pledge of Allegiance.

Ms. HOCHUL led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

WELCOMING THE REVEREND GERALD BAKER

The SPEAKER pro tempore. Without objection, the gentleman from Kentucky (Mr. WHITFIELD) is recognized for 1 minute.

There was no objection.

Mr. WHITFIELD. Madam Speaker, I am delighted that, today, Father Gerald Baker, pastor of the St. Ann Catholic Church in Morganfield, Kentucky, gave our opening prayer.

He has served as pastor in Morganfield since 2003. Prior to that, Father Baker was also the pastor in my hometown of Hopkinsville, Kentucky, where he was a wonderful community leader.

Among other things, he started the St. Luke's Free Clinic in Hopkinsville. He received his Master of Divinity degree from Mount St. Mary's Seminary in Emmitsburg, Maryland, in 1983, and I might say that was the same year that our chaplain, Father Conroy, received his degree, also. He was ordained in 1983.

We are also delighted to have the eighth-grade class of the St. Ann Catholic Church with us this morning from Morganfield, and they will be taking a tour of the Capitol.

So, once again, I want to thank Father Baker for being with us today, for his leadership in our congressional district as well as in the State of Kentucky, and for the spiritual leadership he provides our citizens.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to 5 requests for 1-minute speeches on each side of the aisle.

IN TRIBUTE TO HERB BRAV

(Mr. WOMACK asked and was given permission to address the House for 1 minute.)

Mr. WOMACK. Madam Speaker, I rise today to remember the life and service of Command Sergeant Major (retired) Herb Brav.

This extraordinary American, who served his country in uniform for over 30 years and another 27 years as waterfront, gymnasium, and physical fitness director for the Multinational Force and Observers, Sinai, Egypt, died March 9, 2012, in St. Augustine, Florida.

Herb was a legend. A former heavyweight boxer, he joined the Army in 1947, served tours in Korea, the Philippines and Vietnam. His iconic service with the MFO impacted thousands of soldiers from many contingent forces. I fondly remember his mantra: ''When the will is strong, everything is easy.'' Soldiering was everything to this patriot. He rarely took a vacation, and never spent a Christmas away from the soldiers at South Camp.

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Madam Speaker, it is a great honor to speak on behalf of MFO veterans worldwide, his wife, Gisela, and his two children in saluting Herb Brav for his service to country and his fellow man.

Let us remember his immortal words: ''When the will is strong, everything is easy.''

SERGEANT WILLIAM WILSON III

(Ms. HOCHUL asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. HOCHUL. I rise today to honor and recognize a true American patriot, Sergeant William Wilson of Amherst, New York, my district, for giving the ultimate sacrifice and service to his country. On March 26 of this year, Sergeant Wilson lost his life defending us in Afghanistan while serving with NATO forces.

Billy, as he was fondly called by his mom and dad and his brothers, served our country for 7 years, and was on his third tour of duty. His commander said:

> Without question, he was my best, most skilled and talented squad leader. That's who Billy was—selfless, dedicated and always putting his heart and soul into his soldiers.

If you ask his family or friends and look into the eyes of his mom and dad, they are overwhelmed with pride of his service. Billy was proud to put on the uniform and to serve our country. His smile would light up a room. Just ask any of the thousands of people who came and paid tribute to him just this past week—a devoted family friend, respected and loved by many. To his brother, he was known as Superman. For his brave efforts, Sergeant Wilson was posthumously awarded the Bronze Star and the Purple Heart.

But my message today is for Billy's parents, Bill and Kim, for his brothers Jeremy and Wesley, for his fiancee, for his entire family, for his grandma. I want them to know from a grateful Nation: your boy did not die in vain. He honored our country with his service, and for that we are forever grateful.

THE VOICE OF TEXAS—THE REGULATORS V. SUSAN

(Mr. POE of Texas asked and was given permission to address the House for 1 minute.)

Mr. POE of Texas. Madam Speaker, it's a new day in Washington, and soon the unelected, unaccountable regulators will be sending out new rules to the people.

The fourth branch of government meddles in every aspect of our lives. In the name of saving us from ourselves, they regulate, regulate, regulate without regard to the consequences of these expensive government mandates. Sometimes they put businesses out of business. Susan, a small business owner in Texas, wrote me this:

> Our small business has operated on a shoestring for several years, and we started in 1978, but I fear we are at an end. We manufacture 400 products, all made from the same materials. The new product safety regulations require that we certify every product to the tune of about $500 per product, even though they're all made from the same materials. Do the math: $175,000 or more just to get these products that we've made since '78 certified. Add on the health care fines and the rising cost of gasoline and the rising property and sales and income taxes—well, you know the rest of the story.

Madam Speaker, the regulators close the doors of small businesses like Susan's, and that ought not to be.

And that's just the way it is.

□ 0910

LANCE CORPORAL ABRAHAM TARWOE

(Mr. CICILLINE asked and was given permission to address the House for 1 minute.)

Mr. CICILLINE. Madam Speaker, I rise today in honor of Lance Corporal Abraham Tarwoe of the United States Marine Corps.

A Liberian American, Lance Corporal Tarwoe elected to serve the United States when he joined the Marine Corps in 2009. He was promoted to the rank of lance corporal just 2 years ago.

As a mortar man with the 2nd Battalion, 9th Marine Regiment, 2nd Marine Division based at Camp Lejeune in North Carolina, Lance Corporal Tarwoe was conducting combat operations as part of Operation Enduring Freedom in Helmand province in Afghanistan when he lost his life on April 12.

Among other awards, Lance Corporal Tarwoe earned the Combat Action Ribbon and Sea Service Deployment Ribbon.

His family is planning to hold a burial service in Liberia, following a memorial service in the United States on April 28.

My thoughts and prayers are with Lance Corporal Tarwoe's wife, their 1-year-old son, and their entire extended family.

As a grateful Nation and with heavy hearts, we remember him today for making the ultimate sacrifice in defense of our freedom and on behalf of our Nation. May we honor his memory always.

ANNIVERSARY OF ARMENIAN GENOCIDE

(Mr. DOLD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DOLD. Madam Speaker, about 97 years ago, the government of the Ottoman Empire killed over 1.5 million people during the Armenian genocide. The Turkish state has never accepted responsibility for the acts of its predecessor government and maintains that the genocide never took place.

For the past 90 years, the Armenian people have sought justice, yet the Turkish Government has continued to actively obstruct any attempt to recognize what has happened to the Armenian people.

The United States can help bring closure to this longstanding moral issue by recognizing the Armenian genocide. That's why I'm proud to be a sponsor of House Resolution 304, which would formally recognize this atrocity. To date, 88 Members of this body have joined me in support of the resolution.

I urge all of my other colleagues to support what is a very important resolution.

If we do nothing, the victims of this horrible genocide may be forgotten. We cannot allow that to happen.

DAN-LOC AND AMERICAN MANUFACTURING

(Mr. GENE GREEN of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GENE GREEN of Texas. Madam Speaker, I rise in support of small business and domestic manufacturing in our district and throughout our country and the need for Congress to support manufacturing and job creation.

Last week, I visited DAN-LOC Bolt & Gasket, a bolt and metal gasket manufacturer located in our district in Houston. DAN-LOC's products are highly regarded for their quality and longevity. They produce for our energy industry the bolt like I'm holding right now.

In recent years, DAN-LOC, like thousands of similar businesses throughout our country, has been under attack from cheap and low-quality competition from overseas that has actually forced businesses to either close their doors or make drastic cuts. These foreign imports are oftentimes cheaper than the raw materials to produce these bolts. They can only do this with illegal subsidies from their governments.

We can no longer ignore this issue; otherwise, our Nation will no longer have a manufacturing sector and the millions of middle class jobs it supports.

Congress needs to remember the hard workers who make these bolts and support their jobs.

CONGRATULATIONS TO THE ILLINOIS MATH AND SCIENCE ACADEMY

(Mr. HULTGREN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HULTGREN. Madam Speaker, I rise to congratulate the Illinois Mathematics and Science Academy on their 25 years of excellent education.

Since opening its doors to students in 1986, the academy has graduated nearly 5,000 students and brought national and global recognition to the State of Illinois.

With a focus on science, technology, engineering, and mathematics, or

STEM, eduction, IMSA has developed the talented workforce our State and Nation needs to compete in the modern world. Furthermore, the academy has provided opportunities to underresourced students, effectively breaking down geographic and socioeconomic barriers.

I am proud to represent the academy here in Washington, and I'm proud of the way IMSA alumni represent Illinois.

I'd like to add a special thanks to Dr. Leon Letterman. His vision helped found the academy; his leadership has helped it to become what it is today, and his presence will be missed after he retires.

Congratulations to the Illinois Math and Science Academy, and good luck to the Titan Robotics Team as they compete in St. Louis.

MILITARY KID OF THE YEAR

(Mr. WALZ of Minnesota asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WALZ of Minnesota. Madam Speaker, I rise today to honor Ms. Sydney Schmidt.

Sydney hails from Hayfield, Minnesota, the First Congressional District of Minnesota, and was recently named the Military Kid of the Year. She is the daughter of Mary Kay and Lieutenant Colonel Brad Schmidt and a sister to Dani Schmidt.

As a high school teacher and a 24-year veteran of our military, I understand how challenging it is for families when parents are deployed overseas. We know that when a parent is called to duty, they aren't the only ones who serve this Nation. The family serves us as well.

Sydney maintains a 4.0 grade average, volunteers as a Big Sister, tutors elementary students, spends time with senior citizens, and, as well, excels at band and sports.

I applaud Sydney's ability to set an example for her peers, not only in Hayfield, but across this country. Sydney's remarkable achievements at such a young age are a testament to her passion for community, her involvement and her love of country. We honor those achievements and the example she has set for others.

Congratulations to Sydney, all the military kids, families, and servicemembers. I and the rest of this Nation thank you for your service to America.

AMERICA'S NATIONAL FORESTS

(Mr. COFFMAN of Colorado asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COFFMAN of Colorado. Madam Speaker, if managed wisely, America's national forests can provide a safe wildlife habitat, recreational opportunities, and thousands of jobs in the timber industry.

Unfortunately, a lack of effective forest management in the United States has led to poor forest health. This can and does cause catastrophic forest fires.

Recently, in Colorado, the North Fork fire destroyed 27 homes and killed 3 homeowners. The fire was caused by a prescribed burn designed to prevent a catastrophic forest fire. Clearly, this incident exemplifies the need for alternative forest management tools, such as increased timber harvesting, to reduce the risk of wildfires in the future.

Through prudent forest management and the ability to access and harvest our timber resources, these communities can support jobs while fostering healthy forests, safeguarding the natural beauty of Colorado and the Nation, and protecting against dangerous wildfires.

ROTARY DAY

(Mr. DEUTCH asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DEUTCH. Madam Speaker, today I rise to recognize the White House's first-ever Rotary Day. Tomorrow, Americans from Rotary Clubs across the Nation will be honored as champions of change in their communities.

Many of us in this House frequent Rotary Clubs throughout our districts. I'm always pleased to meet with constituents so committed to honest discussion, civic engagement, and the betterment of our community.

Last week, at a meeting of a Rotary Club in Coral Springs, Florida, I was reminded of something I would like to share with you today. It's called the Four-Way Test. These principles guide Rotary members in their daily lives, and they read as follows:

Is it the truth?

Is it fair to all concerned?

Will it build goodwill and better friendships?

Will it be beneficial to all concerned?

Madam Speaker, Washington has been paralyzed by partisan politics and a disappointing level of discourse. If we could just approach our Nation's problems a bit more like the Rotary Club's Four-Way Test, we would all be better off. After all, at a time of great challenges facing our Nation, the American people deserve no less than a Congress that operates with honesty, builds bipartisanship, and bases decisions on whether or not they will be beneficial to all our citizens.

Enjoy your visit to the White House tomorrow for Rotary Day. I hope the Rotary's Four-Way Test visits this U.S. Congress very soon.

□ 0920

PROVIDING FOR CONSIDERATION OF H.R. 9, SMALL BUSINESS TAX CUT ACT

Mr. SESSIONS. Madam Speaker, by direction of the Committee on Rules, I call up House Resolution 620 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 620

Resolved, That upon the adoption of this resolution it shall be in order to consider in the House the bill (H.R. 9) to amend the Internal Revenue Code of 1986 to provide a deduction for domestic business income of qualified small businesses. All points of order against consideration of the bill are waived. The amendment in the nature of a substitute recommended by the Committee on Ways and Means now printed in the bill shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means; (2) the further amendment in the nature of a substitute printed in the report of the Committee on Rules accompanying this resolution, if offered by Representative Levin of Michigan or his designee, which shall be in order without intervention of any point of order, shall be considered as read, and shall be separately debatable for 20 minutes equally divided and controlled by the proponent and an opponent; and (3) one motion to recommit with or without instructions.

The SPEAKER pro tempore. The gentleman from Texas is recognized for 1 hour.

AMENDMENT OFFERED BY MR. SESSIONS

Mr. SESSIONS. Madam Speaker, I ask unanimous consent to amend the resolution with an amendment I have placed at the desk.

The SPEAKER pro tempore. The Clerk will report the amendment.

The Clerk read as follows:

Page 2, line 8 strike ''one hour'' and insert ''70 minutes''.

Page 2, line 16 strike ''20'' and insert ''25''.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

Without objection, the resolution is amended.

There was no objection.

Mr. SESSIONS. Thank you, Madam Speaker.

Madam Speaker, for the purpose of debate only, I yield the customary 30 minutes to my friend from Florida (Mr. HASTINGS), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. SESSIONS. Madam Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. SESSIONS. Madam Speaker, I rise today in support of this rule and the underlying bill. House Resolution 620 provides a structured rule for H.R.

9, the Small Business Tax Cut Act. The bill was introduced on March 21, 2012, by our leader, the gentleman from Virginia (Mr. CANTOR), and was ordered reported by the Committee on Ways and Means on April 10.

The rule provides for consideration of an amendment in the nature of a substitute as is standard practice for this legislation when dealing with tax policy.

Madam Speaker, today we will be considering the underlying legislation, which will allow the House of Representatives yet another opportunity to ease the burden on small businesses across America by giving them the economic tools to create jobs and to help grow our economy. It would be an understatement not to recognize that this country, including small business, is under duress.

We are under duress in this country. The economic circumstances, which abound across the entire country, are not only obvious to every one of our citizens but also to this body, and we are here doing our job today following through not just in regular order, but the process to make sure that we are talking about what Congress should be doing to aid small business. I believe that by giving them the economic tools, the free enterprise system and entrepreneurs, men and women, will know exactly what to do because we're allowing them competitive advantages.

Earlier this week, congressional Democrats and President Obama offered their competing plan, and their plan is to raise taxes on small businesses. We disagree with that.

Today, the Republicans in the House of Representatives, under the great tutelage and leadership of our majority leader, ERIC CANTOR, offer a different vision for America. Despite their best effort, congressional Democrats think that we can tax our way to improving our economy. It's really simple logic. Increasing taxes on job creators will not help create jobs. It will place new impediments and roadblocks for not just job creation, but the opportunity for business and small business to be successful.

Congressional Republicans, once again today, will stand with small businesses across the Nation as we demand less government intervention and more marketplace creativity and the opportunity for small business to get what it needs.

Madam Speaker, as this Congress and the American people know, job creators are small businesses. They are the engine of our economy and, as a former chairman of the board for a small chamber of commerce in Dallas, Texas, the Greater East Dallas Chamber of Commerce, I saw firsthand entrepreneurship and the availability of talent that was necessary in small business. That same engine of our economy is what we are trying to restart and ignite today. Congressional Republicans will continue to promote job creation through robust economic growth because we must grow our economy by giving those job creators a chance to get that done.

H.R. 9 will allow small businesses under 500 full-time employees to take a tax deduction equal to 20 percent of their domestic business income. So, no matter how they're organized under the Tax Code, under the bill the size of the tax cut is kept at 50 percent of W–2 wages paid, encouraging increasing hiring. I have been in touch with small businesses across Dallas, Texas, and across that area, and we do understand that small business wants to come and create more jobs to increase the amount of not just employment, but to help them grow their businesses. In return, what happens is that loyalty that comes from entrepreneurship to those employees and obviously, then, Uncle Sam, gets the advantage because taxes are being paid instead of paying for unemployment.

Small business, we know, employs about half of our private sector workforce and generates 65 percent of our new jobs. What we are here on the floor talking about today supports ideas that come straight from these small business job creators, directly from men and women, many minorities, many moms who are in the marketplace who are trying to help their family to make sure that they can perhaps pay for their kids to go to college, ideas that they have.

Entrepreneurship, the American Dream, is what we are talking about today, and we need to keep that dream alive. With an unemployment rate consistently over 8 percent for the past 3 years, it's time that we not only take aggressive action, but that we do the things that are being asked for that will create jobs.

In my home State of Texas, the 14 million citizens who work for 387,000 small businesses and 1.69 million sole proprietorships will see immediate benefits from this bill. They call that relief. They call that competitiveness, and we call it up here giving back to those job creators what they need by listening to them and then offering solutions. Those real Texans are struggling even in the midst of perhaps one of the best economies in this country. Texans are still struggling, and small business needs this opportunity today.

Madam Speaker, just a few weeks ago, Congress and the President came together to pass what was known as the JOBS Act, a bill designed and designated to generate unique sources of new credit for small business. I was proud to manage that rule and for legislation that not only passed on a bipartisan effort, but has become law.

This underlying bill today applies those very same principles. But instead of opening up new avenues of credit, this legislation before us enables the very same small businesses to keep more of what they have earned and to reinvest into their own business and to make sure that that capital that was difficult to achieve is now possible through their own success.

Democrats, quite likely, as we have heard up in the Rules Committee and seen in the press, will oppose this novel concept because they really want Washington lawmakers and bureaucrats, not our hardworking constituents back home, to have the availability to get those dollars. I'm proud to tell the small businesses in the congressional district that I represent in Dallas, Irving, Addison, and Richardson, Texas, that with this bill those small businesses, not just in my congressional district that I am lucky to represent, but all across this country, will be able to see the potential, will be able to grow and succeed and, perhaps most of all, it is a group of people in Washington who are willing to listen to the needs of small business, men and women who are trying to create the avenues of success, not just for them and the American Dream, but also for more employees.

□ 0930

I encourage my colleagues to vote for this fair rule and the underlying bill, and I reserve the balance of my time.

Mr. HASTINGS of Florida. I thank my friend for yielding the time.

I would begin a little bit unusually by asking a few questions of my friend and then yielding to him for any response that he may have.

A gentleman named Bruce Bartlett was the former Department economist for President Ronald Reagan. He makes this comment: The serious point here is that the term ''small business'' casts a very wide net.

Indeed, since the only test for being a small business under the legislation, as my good friend proposes, is the number of employees, the ultimate beneficiaries of the Republican bill will be some large and profitable businesses that just happen to have few employees.

What is my friend's response to that?

Mr. SESSIONS. Thank you for yielding me the time, and I hope that the substance that I provide back is of great measure to the gentleman's request.

First of all, let me say I know Bruce Bartlett. I had a chance to work with Mr. Bartlett when I served as vice president of the National Center for Policy Analysis. Mr. Bartlett was a contributor not just to the NCPA, but of economic terms.

I will completely agree with Mr. Bartlett that there are many out there who have successful businesses. Our point is we want them all to grow. Successful businesses are able to hire new people. Unsuccessful businesses struggle and cannot provide not only an increase in the amount of pay, but also the benefit issue becomes difficult. So we want people to be successful. And I think Mr. Bartlett is correct. It's a wide swath.

I want small business, because of the size, not because of how successful they are, to be able to employ more people. And that's what Republicans are trying to do. Guilty as charged.

Mr. HASTINGS of Florida. Then I ask my friend first to just listen, and then I will ask yet another question.

Mr. Bartlett also said this:

The Republican tax plan will do nothing whatsoever to increase employment. It is nothing more than an election-year giveaway to favored Republican constituencies and should not be taken seriously.

But I ask my friend, after hearing what Mr. Bartlett said, and listening to you, as well, saying that it's suggested that there will be jobs, is there a requirement in the legislation as is proposed that requires the creation of jobs?

Mr. SESSIONS. I thank the gentleman.

Mr. HASTINGS of Florida. Can you give me a ''yes'' or ''no''?

Mr. SESSIONS. Here's what I can give. Mr. Bartlett is wrong, because I know there will be at least one new net job created, and I know that because the testimony and information that I received last week as I was at the North Dallas Chamber, several people told me this is exactly what they need. They needed the jobs bill to get credit. They need this opportunity.

And what's interesting is, on the reverse side, is where Illinois, in January, a full year ago, passed a bill which increased taxes, and they lost 58,000 jobs in Illinois quickly because of high taxes. We're trying to make it easier to grow small business. Mr. Bartlett seems like there will be no new job growth—there will be—and he knows better than that.

Mr. HASTINGS of Florida. Let me offer to my friend a complaint: the fact that this matter didn't go through regular order, did not have hearings. It did have one question period during the Ways and Means Committee markup, and the person that was being questioned on the Committee on Taxation was the chief of staff, Thomas Barthold. And when he was asked about the effects of H.R. 9—and the question was put to him by our colleague, Mr. BECERRA: Is there a requirement that you create jobs? Mr. Barthold says: There's no requirement on the result of the tax relief.

I go back to you and ask you again: Is there a requirement that jobs be created in the measure as offered?

Mr. SESSIONS. The answer is no. And I would reply to the gentleman, I saw in this House of Representatives when former Speaker PELOSI increased the amount of money that we had in our Member reimbursement account, we went out and did more, and I hired an additional person at that rate.

If given an opportunity, small business wants to grow and they want to add employees, and this is what nobody seems to understand in this town.

We are for growing our economy. No one on our side would do something that wouldn't necessarily work. We are doing it because this is what people are asking for to grow the economy.

Mr. HASTINGS of Florida. My friend says that no one would do anything that would not necessarily work. Well, why are we spending the time on this when my friend and I know that this measure is not going to become law for the reason, whether we like it or not, that the United States Senate is not going to pass it?

Last week, contrary to what you said, in the United States Senate the President's plan and the Democrats' plan was offered where there would be an alternative minimum tax for people that pay a million dollars or more in taxes. It's been referred to as the Buffett rule. You said that it didn't pass. It had a majority. But it didn't come up because Republicans didn't allow for it to have a majority. Whereas, had it come up, it likely would have passed because some Republicans would have caused it to pass, also.

You don't create jobs with your 20 percent. And now you need to answer for me: What if somebody, after they get the 20 percent, rather than hiring somebody, fires somebody; do they still get the tax cut?

Mr. SESSIONS. Thank you very much for yielding.

As the gentleman knows quite well from the legislation and from the hearing which we had in the Rules Committee yesterday, that while these are great questions that you ask, the answer is we do not tell them what to do. There are no limitations in this bill that would say that you must or must not do these things. We don't do that.

We try and encourage, on the Republican side, and believe that this is what small business is asking for. I think you will be shocked with not only the success, if we had testimony from these small businesses, but this is what they're asking for.

Let's go to the worthiness of why would we possibly push an agenda that will never be held to the light of day with a vote in the United States Senate—for the same reason that the President will never get a tax increase from JOHN BOEHNER. This Republican House will not increase taxes, and so I don't know why the President is doing what he's doing.

Mr. HASTINGS of Florida. All of what my friend says is most regrettable. One of the things that I'm sure Members in your Conference are concerned about is the fact that this is a 1-year measure.

Am I correct about that?

Mr. SESSIONS. I believe that would be correct.

Mr. HASTINGS of Florida. Tell me then, how many times have we passed anything 1 year that's a tax something or another that cuts taxes? Let's take the Bush tax cuts that lasted 10 years that are soon to expire. How is it then that you expect that this is not going to go beyond 1 year? One year already is going to cost $46 billion.

Now my friend is a deficit and a debt hawk, and I like to think that I'm conservative enough to feel that the deficit and the debt are matters that we should address in order to give Americans opportunity. Toward that end, what is a $46 billion measure going to do, other than blow a hole in the deficit, since it's not paid for?

I yield to my friend.

Mr. SESSIONS. I appreciate that and thank you so much for asking the question.

The gentleman was here in 1997. The exact same arguments took place as we worked with President Clinton, and we were told on this floor a capital gains tax cut will result in $9 million not coming into the Treasury, and $554 million appeared quickly in that same tax year.

I would say to the gentleman, if we encourage people to go do things, they will turn things into great opportunities.

Mr. HASTINGS of Florida. Reclaiming my time, we can point back. I'm talking about what you're trying to do today. What you're trying to do today is blowing a $46 billion hole in the deficit, which will destroy opportunity.

I thank my friend, and let me move on, now that I've had the opportunity to talk with you.

□ 0940

I rise in strong opposition to this rule and its opportunity-destroying under the underlying bill. When it comes to small businesses, Congress should work to create chances for smart, savvy, small business owners to thrive so that hardworking Americans can get a fair shot at a good paying job for an honest day's work and thereby ensure that our economic recovery continues.

Instead, the Republican bill creates only one opportunity, and that is the opportunity for those that are better off, including those of us in the United States Congress, to pay less than we could and can as our fair share in taxes.

Make no mistake: H.R. 9, despite its name, is not going to level the playing field so that American businesses can create the kinds of opportunities that the average American needs. That's because House Republicans have made the benefits of this bill available to a wide range of enterprises owned by wealthy people, including lawyers. I'm one of the lawyers, not one of the wealthy. But when I was a lawyer and had three secretaries as a single practitioner, if you had given me a 20 percent tax cut, I may have shared some of that with those three employees. I assure you I would not have hired anybody. Had you, when I was a lawyer, given me a 20 percent tax cut and required me to hire somebody, then I would have hired somebody, and it may have done some good. But other wealthy people—lobbyists, hedge funds, private equity fund managers, as well as many professional sports teams, without a single requirement to expand employment or invest in the United States.

In fact, under this bill, a business owner could fire, as I asked my friend,

U.S. workers, hire full-time workers in foreign countries and still be eligible for the full deduction.

According to an analysis of the Tax Policy Center, approximately 49 percent of the benefits of H.R. 9 would go to 0.3 percent of people with incomes exceeding $1 million in 2012—each receiving an average tax cut of more than $44,000.

That's not creating an opportunity environment in which small businesses can create jobs. As I've said before and will say again, I have no quarrel with millionaires and billionaires and the wealthiest of us in America. And like my friend from Texas, I want everybody to be able to have significant wealth if that were to be possible. I do, however, have a problem with legislation designed to tip the scales in favor of the best among us in this country masquerading as tax cuts for small businesses.

Furthermore, Madam Speaker, the Republican justifications for this kind of ''trickle down'' tax policy are inaccurate and debunked by history. In actuality, tax rates have little bearing on economic productivity. Some of the fastest economic growth of the postwar period came in the 1950s, when the top tax rate was above 80 percent. The slowest growth came in the 2000s, when the top tax rate was 35 percent—which I pay, and which some of you do not because you are in better circumstances than mine, but all of us in the House of Representatives are better off than the people we want to really help, other than those that are better off like us.

Furthermore, Madam Speaker, the Republican justifications allow that this occurrence, that the change from the 1950s to the 2000s, is easy to explain. Businesses do not make decisions based on tax rates. They make decisions based on factors specific to their business, like their number of competitors and larger macro- and microeconomic factors.

Bills such as the one before us today ignore this reality in favor of pushing Republican pet policies that ignore the actual difficulties facing hardworking small business owners. In the Rules Committee, I cited Betty's Restaurant in Fort Lauderdale, Florida, where I eat breakfast and sometimes lunch or dinner. Betty's doesn't have more than nine employees. If we were to target our relief to 20 percent, Betty would be in better shape. But if Larry Flynt at ''Hustler'' is going to be in better shape because he has less than 500 employees, I'm taking Betty.

I get my clothes cleaned at Spring Cleaners. They've been in business for over 25 years. The owner of that business, after he retired, left it with his daughter. They don't have more than 10 employees in 2 of their cleaning plants. This kind of measure, if targeted to her, would help her. But a law firm here in Washington or a lobbying firm with 49 lawyers that's making $500 million a year will qualify for this tax cut, and I'm taking Spring Cleaners over those lawyers and lobbyists here in this town.

Simply put, what we have before us is the exact opposite of a jobs bill. It's a boon for the rich, the very antithesis of smart tax reform, and does nothing to create opportunities for middle class, let alone, poor Americans. Instead of this misguided legislation before us today, Madam Speaker, we should pass policy initiatives that stimulate economic growth and job creation such as public-private partnerships.

When compared to measures such as infrastructure spending, today's bill would have a relatively small effect on strengthening our economy and helping businesses create even more jobs. In comparison, for every $1 billion invested in infrastructure construction projects, 18,000 jobs—and nobody controverts that, and if you do, say 15,000 jobs—are supported nationwide. And my Governor turned down a billion-plus dollars for a rail project that had been appropriated and that Republicans and Democrats had sought, and it would have created 18,000 jobs. And yet we find ourselves in Florida, just like other places in this country, suffering job diminution. This wasn't money that did not go to Illinois, California, and the Northeast Corridor for rail; it just did not come to Florida.

There are other circumstances. We yesterday passed a measure here to extend the transportation measure for 3 months. Cut me some slack. Jim Oberstar had been begging us before he left Congress to do a $400 billion infrastructure bill that probably would have put us in the position of not having to have done the stimulus had we done it when he asked for it, and we need to do a better bill than the 3-month extension. This was the 10th extension of the transportation measure that we have done. We are better than that, and we could have done what the Senate offered, MAP–21, and we would kick-start this economy rather than kicking this can down the road.

Let me tell you something about the can. It's getting ready to run up against a wall or a cliff, and there ain't going to be nowhere else to kick it. Some day, Republicans and Democrats, liberals and conservatives, are going to have to stand up and face the fact that we must address this in a significant way, and we can't have this gridlock, and we can't have this continuing standoff.

This is supposed to be the ''land of opportunity,'' Madam Speaker. Let's make sure that it's the land of opportunity for rich people. Let's make sure that it's the land of opportunity for middle class and poor people. Let's make sure that it's the land of opportunity for small and large businesses. In short, opportunity for all Americans.

I reserve the balance of my time.

Mr. SESSIONS. Madam Speaker, at this time, I would like to yield 4 minutes to the gentleman from Minnesota (Mr. CRAVAACK) who is a freshman who serves on the Transportation, Homeland Security, and Science Committees, and a man who understands what people back home are asking for.

Mr. CRAVAACK. I rise today in support of this rule and the underlying bill, H.R. 9, the Small Business Tax Cuts Act.

The fact is, Madam Speaker, American small businesses are drowning in red tape, and the National Federation of Independent Business has determined that tax compliance is one of the biggest costs.

American small businesses now spend between 1.7 billion and 1.8 billion hours on tax compliance, with a total estimated cost of between $15- to $16 billion annually. This wasted time and effort would be better invested in creating jobs and manufacturing products instead of handing over hard-earned capital to the government.

I support efforts to reform the Tax Code and make it simpler to reduce those tax compliance costs, and I also support reducing the tax burden on American job creators. That's why I am glad to be cosponsor of H.R. 9, legislation that would reduce the burden faced by small businesses. Since 99.9 percent of all U.S. businesses employ less than 500 people, small businesses are vital to the American economy.

In the Eighth District, 8 out of 10 jobs are due to small businesses. When I return home, I repeatedly listen to the same concerns from small business people in the Eighth District. My constituents are hesitant to expand their businesses as a result of deficient access to capital, complex legal burdens, and Tax Code uncertainty.

□ 0950

The Small Business Tax Cut Act immediately creates access to capital by allowing productive employers to reinvest more of their hard-earned money into their businesses.

The bill will have an immediate impact on every city and town in this country. In fact, more than 22 million small businesses will receive a much-needed infusion of capital.

Several small business owners that I have personally spoken with in my district have already expressed strong support for this proposal. This includes businesses like RC Fabricators in Hibbing, Minnesota, which manufactures precision steel and aluminum construction equipment; Extreme Equipment Repairs in Harris, Minnesota, which specializes in large transport truck repair; and the London Road Rental Center in Duluth, Minnesota, which provides all kinds of equipment and party rentals for the Duluth area.

For example, because of the recent success in northern Minnesota's mining and paper industries, RC Fabricators has been looking for ways to expand, but high taxes have prevented them from accumulating enough capital to grow. This bill will ease that tax

burden and allow them to update machinery, hire workers, and provide high-quality products. These kinds of stories are repeated throughout the country, and this legislation will help them.

Madam Speaker, H.R. 9 is a commonsense, pro-growth bill that will provide immediate assistance to employers and American workers as we labor to jumpstart our economy and ease the burden felt by small businesses and American families.

I urge all of my colleagues to support the rule as well as the underlying bill.

Mr. HASTINGS of Florida. Madam Speaker, if we defeat the previous question, I will offer an amendment to the rule to ensure that the House votes on the Buffett rule, which Representative BALDWIN has introduced—and I'm a cosponsor of—as H.R. 3903, the Paying a Fair Share Act of 2012. This bill would ensure that people making over $1 million a year do not pay a lower tax rate than middle class Americans. To discuss our amendment to this rule, I'm very pleased to yield 3 minutes to my good friend, the gentlewoman from Wisconsin (Ms. BALDWIN).

Ms. BALDWIN. I thank the gentleman from Florida for the time.

I rise today on behalf of the hardworking middle class families in Wisconsin and across the country who have unfairly been paying at a higher tax rate than multi-millionaires and billionaires.

Working Wisconsinites are struggling to find good-paying jobs, pay their mortgages, send their kids to college, and save for a secure retirement; meanwhile, the ultra-rich are reaping benefits unavailable to the rest of us. No wonder middle class Americans have long felt that our tax system is rigged against them. Frankly, it is.

Middle class Americans deserve a Tax Code that is fair. Powerful special interests have manipulated our Tax Code to make sure that the wealthiest Americans don't have to pay their fair share. Loopholes and special provisions have made it so that billionaire Warren Buffett's secretary pays a higher tax rate than he does. In fact, approximately one-quarter of all people who make over $1 million a year pay lower effective tax rates than middle class families.

I introduced the Paying a Fair Share Act, which would make the Buffett rule law and ensure that middle class workers do not pay a higher tax rate than those making over $1 million a year. This is a commonsense solution that would address the disparity that Warren Buffett decried, and it would reduce the deficit by billions of dollars over the next decade.

Now, let's be honest about what the Buffett rule is and what it is not. The Buffett rule is not a comprehensive tax reform bill, which I favor, by the way. The Buffett rule is not going to wipe our Nation's deficit away, something that I agree must be tackled. The Buffett rule is not a tax increase on small businesses. According to the Congressional Research Service, less than one-half of 1 percent of businesses may be impacted by the Buffett rule.

Here is what the Buffett rule is really about: fairness. Plain and simple, this is about fairness. It's high time that we level the playing field between middle class taxpayers and those who make over $1 million per year. The Paying a Fair Share Act will help restore people's faith that if you work hard and play by the rules, you'll have a chance to get ahead.

It's up to Congress to fix this obvious injustice. According to a recent CNN poll, nearly three-quarters of Americans support the Buffett rule. Earlier this week, a bipartisan majority of Senators demonstrated their support for the Buffett rule to institute tax fairness for the middle class.

I urge my colleagues to vote to defeat the previous question so that I may offer the Paying a Fair Share Act, also known as the Buffett rule.

Mr. SESSIONS. Madam Speaker, we're hearing a lot of rhetoric today about all these millionaires that are out there. And I would be for their ideas if they worked, but the facts of the case are what they create is less opportunity.

The IRS, on their Web site, shows that there were 37 percent fewer people who filed as millionaires one year over the next. That's the latest information we have on the IRS Web site—37 percent fewer people reported numbers of $1 million or more. That falls right in line with what's happening as America goes into bankruptcy. Because this is about fairness. Well, it shouldn't be about fairness. It should be about opportunities, creating more opportunities. That's the same reason why this same rhetoric, why 63 percent of our children move back in to our homes when they finish college—lack of opportunities. That's not fair. Fairness is opportunity and the chance for people to go make something better of their lives.

What we're talking about today will help some 54,509 women-owned businesses in the State of Texas alone that account for 483,000 individuals. That's what we're trying to help and save. This is the right thing. I'm very proud of it.

I know what they want to do is raise taxes. I know what they want to do is call it fairness. All it simply does is cause further economic malaise and deficiencies all across this country of small business.

Madam Speaker, at this time I'd like to yield 3 minutes to the gentleman from Florida (Mr. NUGENT), the gentleman who sits on the Rules Committee.

Mr. NUGENT. Thank you, Mr. Chairman. I appreciate the opportunity to be here.

Madam Speaker, we hear so much out here on the House floor. I support the rule and the underlying legislation because it gives the ability to small businesses to create jobs here in America. It allows people to go back to work. Those folks, when they go back to work, actually pay taxes. They start contributing as citizens of this great country.

This small business group tax deduction affects small businesses that are minority-owned, that are women-owned, that are veteran-owned businesses. You hear all this talk about how it affects all these other folks, but this is really about creating jobs in America. It's about allowing people that are entrepreneurs to utilize the resources that they've worked hard for and their employees have worked hard for to create additional jobs.

You've heard a whole lot of stuff down here about transportation. The transportation bill expired back in September of 2009. My good friend from Florida, I agree with you, we should have a long-term transportation bill. But what did you do since 2009? I got up here in 2011. We're still talking about the lack of action by this Congress, by the Senate, and by this President since 2009 to get Americans back to work.

When you talk to those that are small businesses that actually do the work on roads, they said if you do a 90-day, a 2-year extension, we're not going to add jobs. We're going to be able to keep the jobs that we have, but we're not going to add jobs. We're not going to be buying equipment from Caterpillar up in Peoria, Illinois, and putting people to work in Illinois. We've already canceled those jobs.

So, Madam Speaker, this is about America. This is about actually looking people in the eye, those that actually create jobs. Remember, small businesses create over 70 percent of the new jobs in America. We're making them the villain in this instead of returning it back and saying, you know, small businesses and entrepreneurs, they're going to use the money to grow their business. That's why they're in it. That's why they get into this whole thing in regards to putting their risk, their money, and their reputations at stake.

□ 1000

You hear about class warfare. We heard it here today.

And I agree about comprehensive tax reform. I'll give you the best comprehensive tax reform. Why don't we move to the fair tax?

Why don't we move to the fact that we can encourage our small businesses and businesses in America that can compete globally instead of under a tax burden and debt that we have here in America?

We have the ability to move forward and do the right thing. Let's not get caught up in the semantics and the political rhetoric. Let's really stand here and do the right thing for small businesses to allow them, Madam Speaker, to create the jobs that we know they can. I have the utmost confidence in small businesses.

Mr. HASTINGS of Florida. Madam Speaker, I am very pleased to yield 3 minutes to the distinguished gentlewoman from Texas (Ms. JACKSON LEE), my good friend.

Ms. JACKSON LEE of Texas. I thank Judge HASTINGS, I thank him very much for telling us the story of America, from spring cleaners to families that have held their businesses for a long period of time.

And I really wish I could join my friend. I know he's pleading for us to believe that any job will be created, but, frankly, the answer is that there is no requirement for jobs to be created under this tax bill.

What this tax bill does is complicate any manner of tax reform which Americans are begging for. It adds to the already burgeoning, growing Bush tax cuts. Now this added burden, $6 trillion in the combination package of the existing tax cuts under the Bush administration. It adds to the deficit of human life.

And let me just tell you about some young woman, a caretaker, a mother, maybe a mother who's at home and works at home, not only to take care of her children, but has a home business, or maybe a caretaker taking care of an elderly or disabled person. Let me tell you what these tax cuts will do. And this is what it equals.

It equals almost $180 billion in cuts and food stamps, where soldiers' families cannot eat and the caretakers cannot provide for their families. It equals to the increase in the Stafford loans to 6.8 percent in interest, where middle class families are priced out of higher education. It equals the cut in Medicaid to women who need access to health care.

And I don't know why we haven't addressed our good friends in the restaurant industry. These are the people whose doors are open and truly could hire an additional staff, who has the smallest margin of profit.

We're not doing anything for depreciation relief. No, we're sitting around giving the top 3 percent over one-half of this tax break, a big Christmas in the middle of April. 125,000 millionaires will get a check for $58,000, and then it'll cost a budget busting $46 billion.

In my own State of Texas, there's an article that says we're pricing the middle class, Congressman HASTINGS, out of higher education. They're investing in research, but tuition is going up and there's no relief. And the loans that we give from the Federal Government, as I said, will be almost 7 percent in interest in just about 70 days. This is what this tax cut will do.

I'm not afraid to stand up for small businesses, but you absolutely need to look at the framework. Five hundred employees. You could be a big law firm. You could be a big engineering firm. And God bless you; I want you to keep working. That's why I voted on the transportation bill. But what I need to have happen is that there is a requirement for jobs.

The stimulus package created 3 million jobs because we had a mission of shovel-ready projects, and, in addition, we gave monies to people who put the money out on the street.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. HASTINGS of Florida. I yield the gentlewoman an additional 30 seconds.

Ms. JACKSON LEE of Texas. I thank the distinguished gentleman.

But not in this case. No requirement for jobs. You want to sit here and tell at-home moms, working moms like the young woman that I wanted to tell you about who gets up early morning, doesn't get into a car, gets onto a bus, rides that bus to get her child to the school, jumps off the bus, makes sure she can run to the front door of the school, drops the child before the bus turns around to get her back; on the bus to go across town to get a job or to go to her work, you're cutting her access to health care because you're taking $46 billion.

Madam Speaker, all I can say to you: This is a budget buster on top of $6 trillion of which we are paying for the Bush cuts. We're doing nothing for restaurants, nothing for small businesses, and nothing for the working young woman that I've told you about this morning.

Mr. SESSIONS. Madam Speaker, I yield myself such time as I may consume.

By the way, President Obama even admitted that did not work, that shovel-ready proposition that he tried to sell across the country simply did not work. I would be for the President's ideas if they worked. What they're about is the supposed fairness, which diminishes the economic opportunity for this country to grow and have jobs and make small businesses grow.

Madam Speaker, at this time I yield 2 minutes to the gentlewoman from West Virginia (Mrs. CAPITO).

Mrs. CAPITO. I thank my friend from Texas for yielding me the time.

I wanted to come down and talk today. I support the rule, but I really support H.R. 9, the Small Business Tax Cut bill. This tax relief will go to 28,000 small businesses in West Virginia.

I'm from a small State. Small businesses, I heard earlier, the statistics, create 70 percent of the jobs. In my State, it's probably 90 percent of the jobs are small business owners. Entrepreneurship and small businesses are going to drive us to recovery, not more spending and more debt.

I heard the gentlelady talk about restaurants. That's who this is aimed at. Our top three small businesses in West Virginia would be health care and the service industry and the food industry.

I've spent the last 2 weeks traveling in my district and listening to the concerns of families and job creators. They're very frustrated, very frustrated by the high price of gasoline, rising health care costs, and new regulation upon new regulation. It's making it difficult for our job creators to operate and to grow the jobs.

A recent study by the U.S. Chamber found that 80 percent of small businesses reported that taxation, regulation, and legislation from Washington make it harder for them, for their businesses, to hire more employees. This tax cut will have an immediate effect, I believe, on the economy and certainly in my State.

Just several weeks ago the Senate, the House, and the White House, we worked together to pass the JOBS Act; and I've already gotten very positive feedback from several people that they're, number one, glad that we're looking at the real problem in this country, which is the lack of jobs and job creation and, number two, that we did something together, that we worked together to try to get ourselves out of this slow recovery that we're in right now.

I hope we can work in the same bipartisan spirit and pass this tax cut to give our job creators the ability to hire somebody else, buy new equipment, expand their businesses, choose another location, all the things that I think this tax cut bill will provide.

Mr. HASTINGS of Florida. Madam Speaker, I would urge my friend from Texas that I'm going to be the last speaker, and I'm prepared to close if he has no further speakers.

Mr. SESSIONS. Thank you very much. In fact, I would tell the gentleman we have no additional speakers other than myself, and I'll plan to close.

Mr. HASTINGS of Florida. Madam Speaker, I yield myself the balance of the time.

H.R. 9 is not about creating jobs or helping small businesses increase hiring. It is another in a long line of Republican proposals that benefit those of us, including those of us in the House of Representatives, that are the better-off Americans at the expense of the middle class.

My Republican friends rejected an amendment offered by our colleague, Representative CROWLEY, which I offered in the Rules Committee in his stead, which would have prevented businesses from eliminating jobs in the United States while creating jobs overseas under this bill.

Procedurally, it is also disconcerting that, contrary to my Republican colleagues' self-professed commitment to an open process, Democrats have been allowed only one substitute in an otherwise closed process. Nor was H.R. 9 the subject of any hearing before either the full Ways and Means Committee, or the Select Revenue Measures Subcommittee, with the exception of a brief question-and-answer session with Joint Committee on Taxation staff during the markup.

Finally, instead of taking real steps to address the very real need to create opportunities for businesses to succeed in a still nascent economic recovery, House Republicans are more than willing to rush through another tax bill that could, if it were to pass—and it is

not going to, and they know that—only help those of us that are better off in society, while sticking middle- and lower-income families with the bill and creating exactly zero jobs.

□ 1010

And you call this opportunity?

Madam Speaker, I ask unanimous consent to insert the text of the amendment to the rule in the RECORD along with extraneous material immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

Mr. HASTINGS of Florida. Madam Speaker, I urge my colleagues to vote ''no'' on this opportunity-destroying measure and to defeat the previous question. I urge a ''no'' vote on the rule, and I yield back the balance of my time.

Mr. SESSIONS. I appreciate the gentleman from Florida, not only for his vigorous defense of the Democrat position to increase taxes, but I would like to, if I can, state what really are the facts of the case and what is in this bill.

The claim is that tax cuts will be available for small businesses even if they ship jobs overseas. Well, the fact is this legislation allows the 20 percent deduction for qualified domestic business income. Domestic. That's here. Domestic business. It would not be allowed to include money that was earned overseas. So I think that that is a good part of this bill. I think what Mr. CANTOR did is understand that we are trying to grow American jobs.

There have also been a lot of statements made by our friends, but I think the American people need to hear this about the bill and the substitute, which will be allowed and which was allowed in the Rules Committee, and that is, similar to H.R. 9, which is this bill, the Levin amendment, which would be the substitute, does not include any provision addressing companies that continue to make foreign investment. It's devoid of that. Both proposals do tie the small business tax deduction to domestic wages. Both bills do that exact same thing. So to accuse us of not doing something or something that would create or stop business from having jobs overseas, that's devoid of that in both bills. They are both consistent. It's about domestic works.

Similar to H.R. 9, the Levin amendment does not require job creation to benefit from the tax deduction. No one says you have to go and create jobs. We understand enough about business to know this is what they're asking for so they can grow jobs.

The Levin amendment does deviate from H.R. 9 in one very significant way, and that is the amount of money that would be available to small business so that they can expand the economy, grow jobs, and create opportunities for Americans. Obviously, what we're here today to do is to grow the economy.

Madam Speaker, I would like to include in the RECORD an article which is from The Wall Street Journal, June of 2011. I would like to read just a little bit of this:

This past January, Illinois Governor Pat Quinn signed into law a 67 percent increase in the State personal income tax rate and a 45 percent increase in corporate taxes.

By the way—and it's off what is here—this was done for fairness. It is the same proposal that Barack Obama, as our President who was just elected, was trying to push in the campaign. Illinois thought it sounded really, really great. So let's see what happened, what the fairness resulted in, and I go back to the article, that between its passage and June—6 months later—Illinois lost 56,223 jobs according to statistics released by their own departments there in the State of Illinois. But here is what's really amazing. It's not just that they lost the jobs, but it's the hysteria that ensued therein. I continue to read:

To combat the job losses caused by the higher taxes on businesses, the Illinois Department of Commerce ''has already shelled out some $230 million in corporate subsidies to keep more than two dozen companies from fleeing the State.''

So they were not even going to get $230 million worth of additional revenue. They put this tax on, and now they're having to beg people to stay. Madam Speaker, I would be for what President Obama and our friends, the Democrats, are for if it worked the way they said it would. The facts of the case are simple.

The Republicans understand business, but we understand the ability to listen and give small business what it's asking for. They'll do their job. I know small business and I know it well. They'll get their job done, and they'll do it quite well. They will add employment. They will hire their neighbors. They will hire more women and minorities who can come in. They will provide real dreams for people and give them not just that entrepreneurship angle but the angle to make sure that we're adding revenue in this country.

Republicans get it and Democrats, too. We are for fairness in a different way. Fairness comes from a job and job creation and the American Dream, not losing jobs and explaining to people, I'm sorry, we just had to do this just to make things fair.

Fairness and not having a job is not fairness. We're aiming for job creation and the development of that, and that's why we're asking people to make sure that we pass this bill today. I applaud Republican Majority Leader ERIC CANTOR for introducing this legislation. It comes from his listening to people across this country.

I encourage a ''yes'' vote on the rule.

Over the last few weeks, President Barack Obama has adamantly supported raising taxes on corporations and small businesses that employ millions of American workers as a precondition for cutting our bloated federal spending.

To see the real world effect of this proposal on jobs and the economy, President Obama's home state provides a useful, cautionary example.

This past January, Illinois Governor Pat Quinn signed into law a 67 percent increase in the state personal income tax rate and a 45 percent increase in corporate taxes. Between its passage and June, Illinois lost 56,223 jobs according to statistics released last week.

To combat the job losses caused by the higher taxes on businesses, the Illinois Department of Commerce ''has already shelled out some $230 million in corporate subsidies to keep more than two dozen companies from fleeing the state.''

So not only is Illinois bleeding productive jobs, but it's now allowing the government to pick winners (large, politically-connected companies) and losers (everyone else).

Extracting an ever-increasing toll from job creators is simply the wrong answer for American jobs. Just ask the 56,000 Illinoisans who have lost their jobs since January. Spreading this failure nationwide is simply not an option.

We are in a debt crisis not because we tax too little, but because Democrat-led Washington spends beyond its means. House Republicans have been focused on encouraging and providing certainty (not new burdens) to our job creators—and paying down our nation's debt for our children.

The rest of America simply cannot afford more of the failed policies of the President's home state, and House Republicans will fight against tax hikes so that we may ensure a brighter future for generations to come.

The material previously referred to by Mr. HASTINGS of Florida is as follows:

AN AMENDMENT TO H. RES. 620 OFFERED BY MR. HASTINGS OF FLORIDA

At the end of the resolution, add the following new sections:

SEC. 2. Immediately upon adoption of this resolution the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 3903) to reduce the deficit by imposing a minimum effective tax rate for high-income taxpayers. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 3. Clause 1(c) of rule XIX shall not apply to the consideration of the bill specified in section 2 of this resolution.

(The information contained herein was provided by the Republican Minority on multiple occasions throughout the 110th and 111th Congresses.)

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the opposition, at least for the moment, to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R–Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

Because the vote today may look bad for the Republican majority they will say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. SESSIONS. I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. HASTINGS of Florida. Madam Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on ordering the previous question will be followed by 5-minute votes on adopting House Resolution 620, if ordered; and agreeing to the Speaker's approval of the Journal.

The vote was taken by electronic device, and there were—yeas 234, nays 179, not voting 18, as follows:

[Roll No. 172]

YEAS—234

Adams
Aderholt
Akin
Alexander
Amash
Amodei
Austria
Bachmann
Bachus
Barletta
Bartlett
Barton (TX)
Benishek
Berg
Biggert
Bilbray
Bilirakis
Black
Blackburn
Bonner
Bono Mack
Boren
Boustany
Brady (TX)
Brooks
Broun (GA)
Buchanan
Bucshon
Buerkle
Burgess
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Davis (KY)
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Herger
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Marchant
Matheson
McCarthy (CA)
McCaul
McClintock
McCotter
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Pence
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (AR)
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (IN)

NAYS—179

Ackerman
Altmire
Andrews
Baca
Baldwin
Barrow
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Boswell
Brady (PA)
Brown (FL)
Butterfield
Capps
Capuano
Cardoza
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Donnelly (IN)
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Frank (MA)
Fudge
Garamendi
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Neal
Olver
Owens
Pallone
Pascrell
Pastor (AZ)
Pelosi
Perlmutter
Peters
Peterson
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sherman
Sires
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Towns
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Woolsey
Yarmuth

NOT VOTING—18

Bass (NH)
Bishop (UT)
Braley (IA)
Burton (IN)
Filner
Flake
Gosar
Guinta
Manzullo
Marino
Napolitano
Paul
Rangel
Sewell
Slaughter
Walsh (IL)
Young (AK)
Young (FL)

□ 1041

Mr. PETERS changed his vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

Stated against:

Mr. FILNER. Mr. Speaker, on rollcall No. 172, I was away from the Capitol due to prior commitments to my constituents. Had I been present, I would have voted ''nay.''

Ms. SEWELL. Mr. Speaker, on rollcall No. 172, had I been present, I would have voted "nay."

Mrs. NAPOLITANO. Mr. Speaker, on Thursday, April 19, 2012, I was absent during rollcall vote No. 172 due to a family medical emergency. Had I been present, I would have voted "nay" on Ordering the Previous Question to H. Res. 620, Providing for consideration of H.R. 9, Small Business Tax Cut Act.

The SPEAKER pro tempore. The question is on the resolution, as amended.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. HASTINGS of Florida. Madam Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 234, noes 178, not voting 19, as follows:

[Roll No. 173]

AYES—234

Adams
Aderholt
Akin
Alexander
Amash
Amodei
Austria
Bachmann
Bachus
Barletta
Bartlett
Barton (TX)
Benishek
Berg
Biggert
Bilbray
Bilirakis
Black
Blackburn
Bonner
Bono Mack
Boren
Boustany
Brady (TX)
Brooks
Broun (GA)
Buchanan
Bucshon
Buerkle
Burgess
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Davis (KY)
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Donnelly (IN)
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Herger
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kissell
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Marchant
Matheson
McCarthy (CA)
McCaul
McClintock
McCotter
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Pence
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (AR)
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (IN)

NOES—178

Ackerman
Altmire
Andrews
Baca
Baldwin
Barrow
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Boswell
Brady (PA)
Brown (FL)
Butterfield
Capps
Capuano
Cardoza
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Frank (MA)
Fudge
Garamendi
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kildee
Kind
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Neal
Olver
Owens
Pallone
Pascrell
Pastor (AZ)
Pelosi
Perlmutter
Peters
Peterson
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Sires
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Thompson (MS)
Tierney
Tonko
Towns
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Woolsey
Yarmuth

NOT VOTING—19

Bass (NH)
Bishop (UT)
Braley (IA)
Burton (IN)
Filner
Flake
Gosar
Griffith (VA)
Guinta
Manzullo
Marino
Napolitano
Paul
Rangel
Schock
Slaughter
Walsh (IL)
Young (AK)
Young (FL)

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There is 1 minute remaining.

□ 1050

So the resolution, as amended, was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Mr. FILNER. Mr. Speaker, on rollcall 173, I was away from the Capitol due to prior commitments to my constituents. Had I been present, I would have voted "no."

Mrs. NAPOLITANO. Mr. Speaker, on Thursday, April 19, 2012, I was absent during rollcall vote No. 173 due to a family medical emergency. Had I been present, I would have voted "no" on agreeing to the resolution, as amended, to H. Res. 620, providing for consideration of H.R. 9, Small Business Tax Cut Act.

THE JOURNAL

The SPEAKER pro tempore. The unfinished business is the question on agreeing to the Speaker's approval of the Journal, on which the yeas and nays were ordered.

The question is on the Speaker's approval of the Journal.

This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 290, nays 118, answered ''present'' 3, not voting 20, as follows:

[Roll No. 174]

YEAS—290

Ackerman
Aderholt
Akin
Alexander
Amodei
Austria
Baca
Bachmann
Bachus
Barletta
Barrow
Bartlett
Barton (TX)
Becerra
Berg
Berkley
Berman
Bilbray
Bilirakis
Bishop (GA)
Black
Blackburn
Blumenauer
Bonamici
Bonner
Bono Mack
Boren
Boustany
Brady (TX)
Brooks
Broun (GA)
Brown (FL)
Buchanan
Bucshon
Buerkle
Butterfield
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Capps
Carnahan
Carney
Carson (IN)
Carter
Cassidy
Chabot
Chaffetz
Cicilline
Clarke (MI)
Clay
Coble
Cole
Connolly (VA)
Conyers
Cooper
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Davis (CA)
Davis (IL)
DeGette
DeLauro
Denham
Deutch
Diaz-Balart
Dicks
Dingell
Doggett
Doyle
Dreier
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers
Emerson
Engel
Eshoo
Farenthold
Farr
Fincher
Fleischmann
Fleming
Flores
Fortenberry
Frank (MA)
Franks (AZ)
Frelinghuysen
Gallegly
Garamendi
Gibbs
Gingrey (GA)
Gonzalez
Goodlatte
Gowdy
Granger
Graves (GA)
Green, Al
Griffith (VA)
Grimm
Guthrie
Hahn
Hall
Hanabusa
Harper
Harris
Hastings (FL)
Hastings (WA)
Hayworth
Heinrich
Hensarling
Herger
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (GA)
Johnson (IL)
Johnson, E. B.
Johnson, Sam
Jones
Jordan
Kaptur
Kelly
Kildee
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kissell
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Larsen (WA)
Larson (CT)
LaTourette
Latta
Levin
Lewis (CA)
Lipinski
Loebsack
Lofgren, Zoe
Long
Lowey
Lucas
Luján
Lummis
Lungren, Daniel E.
Mack
Maloney
Marchant
Matsui

McCarthy (CA)	Posey	Smith (NE)
McCarthy (NY)	Price (GA)	Smith (NJ)
McCaul	Price (NC)	Smith (TX)
McClintock	Quigley	Smith (WA)
McCollum	Rehberg	Southerland
McGovern	Reyes	Speier
McHenry	Richardson	Stearns
McIntyre	Rivera	Stutzman
McKeon	Roby	Sullivan
McKinley	Roe (TN)	Sutton
McMorris Rodgers	Rogers (AL)	Thompson (PA)
	Rogers (KY)	Thornberry
Mica	Rogers (MI)	Tiberi
Michaud	Rohrabacher	Tierney
Miller (MI)	Rokita	Tipton
Miller (NC)	Roskam	Tonko
Miller, Gary	Ross (AR)	Towns
Moore	Ross (FL)	Tsongas
Moran	Rothman (NJ)	Turner (NY)
Mulvaney	Roybal-Allard	Turner (OH)
Murphy (CT)	Royce	Upton
Murphy (PA)	Runyan	Van Hollen
Myrick	Ruppersberger	Walden
Nadler	Ryan (WI)	Walz (MN)
Neugebauer	Scalise	Wasserman Schultz
Noem	Schiff	
Nunes	Schmidt	Watt
Nunnelee	Schwartz	Waxman
Olson	Schweikert	Webster
Palazzo	Scott (SC)	Welch
Pascrell	Scott (VA)	West
Pearce	Scott, Austin	Westmoreland
Pelosi	Scott, David	Whitfield
Pence	Sensenbrenner	Wilson (FL)
Perlmutter	Serrano	Wilson (SC)
Petri	Sessions	Wolf
Pingree (ME)	Sewell	Womack
Pitts	Sherman	Woolsey
Platts	Shimkus	Yarmuth
Polis	Shuster	Young (IN)
Pompeo	Simpson	

NAYS—118

Adams	Gerlach	Olver
Altmire	Gibson	Pallone
Andrews	Graves (MO)	Pastor (AZ)
Baldwin	Green, Gene	Paulsen
Bass (CA)	Griffin (AR)	Peters
Benishek	Grijalva	Peterson
Biggert	Gutierrez	Poe (TX)
Bishop (NY)	Hanna	Quayle
Boswell	Hartzler	Rahall
Brady (PA)	Heck	Reed
Burgess	Herrera Beutler	Reichert
Capuano	Honda	Renacci
Cardoza	Hoyer	Ribble
Castor (FL)	Huelskamp	Richmond
Chandler	Israel	Rigell
Chu	Jackson (IL)	Rooney
Clarke (NY)	Jackson Lee (TX)	Ros-Lehtinen
Cleaver		Rush
Clyburn	Johnson (OH)	Ryan (OH)
Coffman (CO)	Keating	Sánchez, Linda T.
Cohen	Kind	
Conaway	Kucinich	Sanchez, Loretta
Costa	Langevin	Sarbanes
Costello	Latham	Schakowsky
Courtney	Lee (CA)	Schilling
Cravaack	Lewis (GA)	Schock
Critz	LoBiondo	Shuler
DeFazio	Luetkemeyer	Sires
Dent	Lynch	Stark
DesJarlais	Markey	Stivers
Dold	Matheson	Terry
Donnelly (IN)	McCotter	Thompson (CA)
Duffy	McDermott	Thompson (MS)
Fattah	McNerney	Velázquez
Fitzpatrick	Meehan	Visclosky
Forbes	Meeks	Walberg
Foxx	Miller (FL)	Waters
Fudge	Miller, George	Wittman
Gardner	Neal	Woodall
Garrett	Nugent	Yoder

ANSWERED ''PRESENT''—3

Amash	Gohmert	Owens

NOT VOTING—20

Bass (NH)	Flake	Rangel
Bishop (UT)	Gosar	Schrader
Braley (IA)	Guinta	Slaughter
Burton (IN)	Manzullo	Walsh (IL)
Cummings	Marino	Young (AK)
Davis (KY)	Napolitano	Young (FL)
Filner	Paul	

□ 1057

So the Journal was approved.

The result of the vote was announced as above recorded.

Stated against:

Mr. FILNER. Mr. Speaker, I was away from the Capitol due to prior commitments to my constituents. Had I been present, I would have voted "no."

SMALL BUSINESS TAX CUT ACT

Mr. CAMP. Mr. Speaker, pursuant to House Resolution 620, I call up the bill (H.R. 9) to amend the Internal Revenue Code of 1986 to provide a deduction for domestic business income of qualified small businesses, and ask for its immediate consideration.

The Clerk read the title of the bill.

The SPEAKER pro tempore (Mr. LATOURETTE). Pursuant to House Resolution 620, the amendment in the nature of a substitute recommended by the Committee on Ways and Means, printed in the bill, is adopted. The bill, as amended, is considered read.

The text of the bill, as amended, is as follows:

H.R. 9

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Small Business Tax Cut Act''.

SEC. 2. DEDUCTION FOR DOMESTIC BUSINESS INCOME OF QUALIFIED SMALL BUSINESSES.

(a) IN GENERAL.—Part VI of subchapter B of chapter 1 of the Internal Revenue Code of 1986 is amended by adding at the end the following new section:

''SEC. 200. DOMESTIC BUSINESS INCOME OF QUALIFIED SMALL BUSINESSES.

''(a) ALLOWANCE OF DEDUCTION.—In the case of a qualified small business, there shall be allowed as a deduction an amount equal to 20 percent of the lesser of—

''(1) the qualified domestic business income of the taxpayer for the taxable year, or

''(2) taxable income (determined without regard to this section) for the taxable year.

''(b) DEDUCTION LIMITED BASED ON WAGES PAID.—

''(1) IN GENERAL.—The amount of the deduction allowable under subsection (a) for any taxable year shall not exceed 50 percent of the greater of—

''(A) the W–2 wages of the taxpayer paid to non-owners, or

''(B) the sum of—

''(i) the W–2 wages of the taxpayer paid to individuals who are non-owner family members of direct owners, plus

''(ii) any W–2 wages of the taxpayer paid to 10-percent-or-less direct owners.

''(2) DEFINITIONS RELATED TO OWNERSHIP.—For purposes of this section—

''(A) NON-OWNER.—The term 'non-owner' means, with respect to any qualified small business, any person who does not own (and is not considered as owning within the meaning of subsection (c) or (e)(3) of section 267, as the case may be) any stock of such business (or, if such business is other than a corporation, any capital or profits interest of such business).

''(B) NON-OWNER FAMILY MEMBERS.—An individual is a non-owner family member of a direct owner if—

''(i) such individual is family (within the meaning of section 267(c)(4)) of a direct owner, and

''(ii) such individual would be a non-owner if subsections (c) and (e)(3) of section 267 were applied without regard to section 267(c)(2).

''(C) DIRECT OWNER.—The term 'direct owner' means, with respect to any qualified small business, any person who owns (or is considered as owning under the applicable non-family attribution rules) any stock of such business (or, if such business is other than a corporation, any capital or profits interest of such business).

''(D) 10-PERCENT-OR-LESS DIRECT OWNERS.—The term '10-percent-or-less direct owner' means, with respect to any qualified small business, any direct owner of such business who owns (or is considered as owning under the applicable non-family attribution rules)—

''(i) in the case of a qualified small business which is a corporation, not more than 10 percent of the outstanding stock of the corporation or stock possessing more than 10 percent of the total combined voting power of all stock of the corporation, or

''(ii) in the case of a qualified small business which is not a corporation, not more than 10 percent of the capital or profits interest of such business.

''(E) APPLICABLE NON-FAMILY ATTRIBUTION RULES.—The term 'applicable non-family attribution rules' means the attribution rules of subsection (c) or (e)(3) of section 267, as the case may be, but in each case applied without regard to section 267(c)(2).

''(3) W–2 WAGES.—For purposes of this section—

''(A) IN GENERAL.—The term 'W–2 wages' means, with respect to any person for any taxable year of such person, the sum of the amounts described in paragraphs (3) and (8) of section 6051(a) paid by such person with respect to employment of employees by such person during the calendar year ending during such taxable year.

''(B) LIMITATION TO WAGES ATTRIBUTABLE TO QUALIFIED DOMESTIC BUSINESS INCOME.—Such term shall not include any amount which is not properly allocable to domestic business gross receipts for purposes of subsection (c)(1).

''(C) OTHER REQUIREMENTS.—Except in the case of amounts treated as W–2 wages under paragraph (4)—

''(i) such term shall not include any amount which is not allowed as a deduction under section 162 for the taxable year, and

''(ii) such term shall not include any amount which is not properly included in a return filed with the Social Security Administration on or before the 60th day after the due date (including extensions) for such return.

''(4) CERTAIN PARTNERSHIP DISTRIBUTIONS TREATED AS W–2 WAGES.—

''(A) IN GENERAL.—In the case of a qualified small business which is a partnership and elects the application of this paragraph for the taxable year—

''(i) the qualified domestic business taxable income of such partnership for such taxable year (determined after the application of clause (ii)) which is allocable under rules similar to the rules of section 199(d)(1)(A)(ii) to each qualified service-providing partner shall be treated for purposes of this section as W–2 wages paid during such taxable year to such partner as an employee, and

''(ii) the domestic business gross receipts of such partnership for such taxable year shall be reduced by the amount so treated.

''(B) QUALIFIED SERVICE-PROVIDING PARTNER.—For purposes of this paragraph, the term 'qualified service-providing partner' means, with respect to any qualified domestic business taxable income, any partner who is a 10-percent-or-less direct owner and who materially participates in the trade or business to which such income relates.

''(5) ACQUISITIONS AND DISPOSITIONS.—The Secretary shall provide for the application of this subsection in cases where the taxpayer acquires, or disposes of, the major portion of a trade or business or the major portion of a separate unit of a trade or business during the taxable year.

''(c) QUALIFIED DOMESTIC BUSINESS INCOME.—For purposes of this section—

''(1) IN GENERAL.—The term 'qualified domestic business income' for any taxable year means an amount equal to the excess (if any) of—

''(A) the taxpayer's domestic business gross receipts for such taxable year, over

''(B) the sum of—

''(i) the cost of goods sold that are allocable to such receipts, and

''(ii) other expenses, losses, or deductions (other than the deduction allowed under this section), which are properly allocable to such receipts.

''(2) DOMESTIC BUSINESS GROSS RECEIPTS.—

''(A) IN GENERAL.—The term 'domestic business gross receipts' means the gross receipts of the taxpayer which are effectively connected with the conduct of a trade or business within the United States within the meaning of section 864(c) but determined—

''(i) without regard to paragraphs (3), (4), and (5) thereof, and

''(ii) by substituting 'qualified small business (within the meaning of section 200)' for 'nonresident alien individual or a foreign corporation' each place it appears therein.

''(B) EXCEPTIONS.—For purposes of paragraph (1), domestic business gross receipts shall not include any of the following:

''(i) Gross receipts derived from the sale or exchange of—

''(I) a capital asset, or

''(II) property used in the trade or business (as defined in section 1231(b)).

''(ii) Royalties, rents, dividends, interest, or annuities.

''(iii) Any amount which constitutes wages (as defined in section 3401).

''(3) APPLICATION OF CERTAIN RULES.—Rules similar to the rules of paragraphs (2) and (3) of section 199(c) shall apply for purposes of this section (applied with respect to qualified domestic business income in lieu of qualified production activities income and with respect to domestic business gross receipts in lieu of domestic production gross receipts).

''(d) QUALIFIED SMALL BUSINESS.—For purposes of this section—

''(1) IN GENERAL.—The term 'qualified small business' means any employer engaged in a trade or business if such employer had fewer than 500 full-time equivalent employees for either calendar year 2010 or 2011.

''(2) FULL-TIME EQUIVALENT EMPLOYEES.—The term 'full-time equivalent employees' has the meaning given such term by subsection (d)(2) of section 45R applied—

''(A) without regard to subsection (d)(5) of such section,

''(B) with regard to subsection (e)(1) of such section, and

''(C) by substituting 'calendar year' for 'taxable year' each place it appears therein.

''(3) EMPLOYERS NOT IN EXISTENCE PRIOR TO 2012.—In the case of an employer which was not in existence on January 1, 2012, the determination under paragraph (1) shall be made with respect to calendar year 2012.

''(4) APPLICATION TO CALENDAR YEARS IN WHICH EMPLOYER IN EXISTENCE FOR PORTION OF CALENDAR YEAR.—In the case of any calendar year during which the employer comes into existence, the number of full-time equivalent employees determined under paragraph (2) with respect to such calendar year shall be increased by multiplying the number so determined (without regard to this paragraph) by the quotient obtained by dividing—

''(A) the number of days in such calendar year, by

''(B) the number of days during such calendar year which such employer is in existence.

''(5) SPECIAL RULES.—

''(A) AGGREGATION RULE.—For purposes of paragraph (1), any person treated as a single employer under subsection (a) or (b) of section 52 (applied without regard to section 1563(b)) or subsection (m) or (o) of section 414 shall be treated as a single employer for purposes of this subsection.

''(B) PREDECESSORS.—Any reference in this subsection to an employer shall include a reference to any predecessor of such employer.

''(e) SPECIAL RULES.—

''(1) ELECTIVE APPLICATION OF DEDUCTION.—Except as otherwise provided by the Secretary, the taxpayer may elect not to take any item of income into account as domestic business gross receipts for purposes of this section.

''(2) COORDINATION WITH SECTION 199.—If a deduction is allowed under this section with respect to any taxpayer for any taxable year—

''(A) any gross receipts of the taxpayer which are taken into account under this section for such taxable year shall not be taken into account under section 199 for such taxable year, and

''(B) the W–2 wages of the taxpayer which are taken into account under this section shall not be taken into account under section 199 for such taxable year.

''(3) APPLICATION OF CERTAIN RULES.—Rules similar to the rules of paragraphs (1), (2), (3), (4), (6), and (7) of section 199(d) shall apply for purposes of this section (applied with respect to qualified domestic business income in lieu of qualified production activities income).

''(f) REGULATIONS.—The Secretary shall prescribe such regulations as are necessary to carry out the purposes of this section, including regulations which prevent a taxpayer which reorganizes from being treated as a qualified small business if such taxpayer would not have been treated as a qualified small business prior to such reorganization.

''(g) APPLICATION.—Subsection (a) shall apply only with respect to the first taxable year of the taxpayer beginning after December 31, 2011.''.

(b) CONFORMING AMENDMENTS.—

(1) Section 56(d)(1)(A) of such Code is amended by striking ''deduction under section 199'' both places it appears and inserting ''deductions under sections 199 and 200''.

(2) Section 56(g)(4)(C) of such Code is amended by adding at the end the following new clause:

''(vii) DEDUCTION FOR DOMESTIC BUSINESS INCOME OF QUALIFIED SMALL BUSINESSES.—Clause (i) shall not apply to any amount allowable as a deduction under section 200.''.

(3) The following provisions of such Code are each amended by inserting ''200,'' after ''199,''.

(A) Section 86(b)(2)(A).

(B) Section 135(c)(4)(A).

(C) Section 137(b)(3)(A).

(D) Section 219(g)(3)(A)(ii).

(E) Section 221(b)(2)(C)(i).

(F) Section 222(b)(2)(C)(i).

(G) Section 246(b)(1).

(H) Section 469(i)(3)(F)(iii).

(4) Section 163(j)(6)(A)(i) of such Code is amended by striking ''and'' at the end of subclause (III) and by inserting after subclause (IV) the following new subclause:

''(V) any deduction allowable under section 200, and''.

(5) Section 170(b)(2)(C) of such Code is amended by striking ''and'' at the end of clause (iv), by striking the period at the end of clause (v) and inserting '', and'', and by inserting after clause (v) the following new clause:

''(vi) section 200.''.

(6) Section 172(d) of such Code is amended by adding at the end the following new paragraph:

''(8) DOMESTIC BUSINESS INCOME OF QUALIFIED SMALL BUSINESSES.—The deduction under section 200 shall not be allowed.''.

(7) Section 613(a) of such Code is amended by striking ''deduction under section 199'' and inserting ''deductions under sections 199 and 200''.

(8) Section 613A(d)(1) of such Code is amended by redesignating subparagraphs (C), (D), and (E) as subparagraphs (D), (E), and (F), respectively, and by inserting after subparagraph (B) the following new subparagraph:

''(C) any deduction allowable under section 200,''.

(9) Section 1402(a) of such Code is amended by striking ''and'' at the end of paragraph (16), by redesignating paragraph (17) as paragraph (18), and by inserting after paragraph (16) the following new paragraph:

''(17) the deduction provided by section 200 shall not be allowed; and''.

(c) CLERICAL AMENDMENT.—The table of sections for part VI of subchapter B of chapter 1 of such Code is amended by adding at the end the following new item:

''Sec. 200. Domestic business income of qualified small businesses.''.

The SPEAKER pro tempore. After 70 minutes of debate on the bill, as amended, it shall be in order to consider the further amendment in the nature of a substitute printed in House Report 112–447, if offered by the gentleman from Michigan (Mr. LEVIN) or his designee, which shall be considered read and shall be separately debatable for 25 minutes equally divided and controlled by the proponent and an opponent.

The gentleman from Michigan (Mr. CAMP) and the gentleman from Michigan (Mr. LEVIN) each will control 35 minutes.

The Chair recognizes the gentleman from Michigan (Mr. CAMP).

GENERAL LEAVE

Mr. CAMP. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and to include extraneous material on H.R. 9.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Michigan?

There was no objection.

□ 1100

Mr. CAMP. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 9, the Small Business Tax Cut Act. This legislation will allow small businesses with fewer than 500 employees to take a 20 percent tax deduction.

Small businesses are the engine of job creation, and while we pursue comprehensive tax reform that will give all businesses certainty to invest and hire, this bill will help small businesses to reinvest, hire new workers, or provide a raise to an employee.

The policies put forth by President Obama and congressional Democrats have yielded more government spending but have failed to generate strong income growth and the jobs Americans need. Instead of lowering unemployment, we got a lower credit rating; instead of massive job creation, we got massive and unprecedented levels of debt; and instead of higher wages for working families, we got higher gas prices.

This bill provides real relief to American small businesses and the workers they employ, and it treats every small business equally. Contrary to the political cronyism we've seen time and time again, this bill does not pick winners and losers. It provides relief to all small businesses, including those in my

home State of Michigan. Michigan has been hit especially hard over the last 3 years with some of the highest unemployment rates in the Nation. And while small business owners in my district need and want comprehensive tax reform, they also agree that we must take steps to spur investment and hiring today as well. These business owners are the real experts who know what they need to add jobs back to our communities.

Take, for example, Bob Yackel, president of Merrill Tool. As part of the 400-employee Merrill Technologies Group, Mr. Yackel says:

As a manufacturing business in mid-Michigan, we know firsthand the ramifications of the recent economic turmoil. The best way Washington can help energize economic growth is by making sure business owners are spending less on tax payments and more on creating jobs.

Bob Yackel is a larger small business owner, but there are smaller businesses that feel the same way.

Jim Holton, owner of Mountain Town Station in Mount Pleasant, has served the central Michigan community as a restaurant owner for more than 15 years. He is especially pleased with the simplicity and ease of this legislative approach. He says:

The beauty of the Small Business Tax Cut Act is its simplicity. If you're earning profits and contributing to the economy, then you can take 20 percent off your tax bill. No hoops to jump through. This is a great way for business owners like myself in the Great Lakes Bay region and across America to help jump-start our economy.

Those are just two examples in Michigan's Fourth District, but they echo small businesses and small business owners across the country.

Throughout our history, we've depended upon these industrious and innovative risk-takers to help us move through tough economic times. While we work to provide them the long-term comprehensive tax reform they need, we can also take steps today to unlock new opportunities for them immediately. Passing this bill will provide these much-needed, immediate opportunities.

I urge my colleagues to join me in supporting small business and to demonstrate that they support them as well by voting ''yes'' on H.R. 9.

Mr. Speaker, I ask unanimous consent that the gentleman from Virginia (Mr. CANTOR) be permitted to control the balance of the time, and I reserve the balance of my time.

The SPEAKER pro tempore. Without objection, Mr. CANTOR will control the time and have the authority to dispense time.

There was no objection.

Mr. LEVIN. Mr. Speaker, I yield myself such time as I may consume.

This bill needs to be graded, and the grade it gets is F, a fat F grade. It fails all tests of sound tax policy.

Let me start with truth in advertising, a grade F. This is not a small business bill. It's small business in name only. It's totally untargeted, totally. It applies as long as an entity has under 500 employees—law firms, sports teams, financial consultants, lobbyists, corporate farmers—and regardless of what their annual receipts are. They can be tens of millions, hundreds of millions of dollars.

Interestingly, when the SBA looks at its loan program, it has what's called a common standard. What that is is that generally the businesses it serves cannot have more than $7 million in average annual receipts for most nonmanufacturing firms. This bill has no limits—none—as to function or amount of receipts, so really this bill mocks the use of the title ''small business.'' This isn't about mom and pop. It's about popping the cork for wealthy taxpayers.

Secondly, graded on tax fairness, F. According to the most cautious estimate, 56 percent of the tax break under this bill goes to taxpayers making $250,000 or more annually. It provides 125,000 taxpayers making $1 million a year with a tax break of over $58,000. Another model says that 49 percent of this $46 billion revenue loss goes to people with incomes over $1 million. This is Bush tax cuts on steroids.

Thirdly, in terms of job creation, another grade F. Listen to the Joint Tax Committee analysis. It says this bill's economic impact ''is so small as to be incalculable.'' The only thing calculating about this bill is its political nature.

We've looked at the Web site of the majority leader. He uses Mr. Robbins, who was the one who advised Herman Cain on 9–9–9. Here's what Mr. Robbins says about this bill: He estimates that a 1-year tax cut would create 39,000 jobs. This is on the majority leader's Web site. So, according to the analysis that the leader is touting on its own Web site, H.R. 9 would increase the Federal deficit by $1.1 million for every job supposedly created. So, another big F.

Now let's talk about where these jobs would be created. The bill is so untargeted to require that the jobs that are created here would really be created, because a company would get this benefit if it sheds jobs or if it uses the deduction to hire workers overseas.

Let's next go to fiscal irresponsibility, another fat F in terms of responsibility. This bill adds a whopping $46 billion to the deficit in 1 year; if it's made permanent, one-half trillion dollars over the next 10 years. So I say this to anybody who votes for this bill and then goes home and utters the word, once, ''Federal deficit.'' They will sell short the intelligence of their constituents, because they will know when someone is selling them a pig in a poke.

Now let's talk about tax reform, another fat F. This bill is the antithesis of tax reform. What it does is ridicule supporters who claim their fealty to tax reform. It doesn't simplify tax structures; it complicates it. That's why I quote The Wall Street Journal this morning. This is what they say about your bill: It's another tax gimmick.

□ 1110

Just earlier today somebody got up here and read from The Wall Street Journal. It was some months ago. Again, The Wall Street Journal says: ''The U.S. economy does not need another tax gimmick.'' So this is tax policy gone haywire.

I'm going to offer a substitute, after we finish debate here on general debate, that's targeted; that will help create jobs; that's fair; that is fiscally responsible and continues a policy that both Republicans and Democrats have supported in the past.

This flies in the face of anything bipartisan. It flies in the face of anything that is truthful in advertising. It flies in the face of anything that is fair. It flies in the face of anything that creates jobs. It flies in the face of fiscal responsibility, and it flies in the face of tax reform.

So I more than urge people to vote ''no'' and vote ''yes'' on our substitute. I really urge that they exercise their responsibility to try to get this country moving in the right direction, not with policies that deserve a total F on the test of sound tax policy.

I reserve the balance of my time.

Mr. CANTOR. Mr. Speaker, I yield myself as much time as I may consume.

Mr. Speaker, we know jobs won't come back until small businesses recover. Small businesses have generated over 65 percent of the new jobs in this country; but the economic downturn, red tape, and higher taxes coming from Washington have simply made it harder for small business to create jobs.

Tax policies should encourage economic growth, investment, and job creation, not stifle it. We need to stop and think about what kind of country we want to be. Do we want to be one with lower taxes, more growth, and more jobs; or do we want to be one of more government control and fewer opportunities?

This week, when every American filed their tax returns, the other party in the Senate voted to increase taxes. We should not be taking money out of the hands of those we are counting on to create jobs. We need to let small business owners keep more of their hard-earned money so they can start hiring again.

Today, Mr. Speaker, we'll vote on the Small Business Tax Cut Act to give every small business with fewer than 500 employees a 20 percent tax cut. Our bill puts more money into the hands of small business owners so they can reinvest those funds to retain and create more jobs and grow their businesses, plain and simple.

According to a study, the Small Business Tax Cut Act will help create more than 100,000 new jobs a year once fully in place. One-third of the firms that benefit from our tax cut are owned by

women. One-fifth are owned by minorities. And our legislation won't just benefit small business owners; it benefits current workers by boosting wages.

Mr. Speaker, when I talk with small business owners across the country, I hear they need more opportunity to grow. I hear that taxes are siphoning away their income. I hear they can't access capital.

One small business owner in Spotsylvania, Virginia, called the small business tax cut a win-win for him and other small business owners in the economy. He said that with more money to invest in his businesses he could afford to hire more staff, buy new equipment and expand.

Mr. Speaker, while we continue to work toward tax reform that broadens the base, brings down the rates for everybody, and gets rid of loopholes, Washington assumes the role of picking winners and losers. We need to take incremental steps to give job creators tax relief right away. This Small Business Tax Cut Act is a step in that right direction.

President Obama called small businesses the anchors of our Main Streets. We agree. I hope we can all unite around helping the small businesses which are the engines of job creation in our country.

Mr. Speaker, I'd say in response to the gentleman's assertion towards the definition of small business in this bill, this is the Small Business Administration definition of small business. This is what every program that comes out of this government aimed to help small businesses is premised upon. The SBA definition of a small business is one of 499 or fewer.

As far as the gentleman's allegations about the potential for abuse under this bill, if he'd read the language of the bill, Mr. Speaker, it caps the ability to benefit from the tax cut to 50 percent of the W–2 wages that that small business paid out. This is, straight up, something to help small businesses keep more of their money while they're having so much difficulty keeping the lights on and, instead, giving them the ability to grow, to grow, invest, and create more jobs.

As far as the gentleman's allegations that somehow this bill only affects those millionaires, billionaires and the rest, I think he will see the studies have shown that just 18.3 percent of those people are in the categories of income he suggests, with 80-some percent in the middle class—80-some percent, the true small business owners who we're relying on to create jobs for the middle class to come back.

And I would say to the gentleman, as far as the allegation of gimmickry, the essence of supply-side economics, the centrality issue on taxes is the reduction of marginal rates. That's exactly what this bill does.

Does it provide it for long enough? Does it provide permanency? No. But what we want to do in a permanent way is effect broader tax reform. But since we can't see eye to eye on that, since we've still got work to do, let's give the small businesses some help now.

With that, I reserve the balance of my time, Mr. Speaker.

Mr. LEVIN. I yield myself 30 seconds.

We have a Statement of Administration Policy in total opposition to this. The Small Business Administration would not provide a loan for innumerable people who benefit from this. They have a $7 million limit.

Supply-side economics, we tried that for a number of years, and we were losing 700,000 jobs a month when this administration took over—700,000, and you raise supply-side economics as something we should embrace? No way. No way.

I yield 3 minutes to the distinguished gentleman from Washington, Dr. JIM MCDERMOTT, a member of our committee.

(Mr. MCDERMOTT asked and was given permission to revise and extend his remarks.)

Mr. MCDERMOTT. Mr. Speaker, Members of the House, in 5 hours we're going to get on planes and go home, so we have to get the press releases ready to go. And that's what this is about.

This bill will be dead in the Senate the minute it hits the desk. It's not going anywhere. It is a press release, and it is the most wasteful bill of the season so far. Now, I'm sure that Mr. CANTOR and others will find worse things to do down the way as we get closer to the election.

This week has been a disaster in here. We started on Tuesday by deeming the budget passed, here and in the Senate. It's a fiction. It never happened. That's how this week started.

Then we went to the Ways and Means Committee yesterday, and we cut $68 billion out of health, children's services, social services, foster care, in reconciliation to balance the budget.

And then we get up this morning and here we have a bill that borrows $46 billion from the Chinese, or whoever, to give it to small business. The fact is that 125,000 millionaires in this country will get an average tax cut of $58,000.

That's what this bill does. It does not create jobs. It's supposed to create jobs. In fact, the job creation is so small, as you heard, it's incalculable.

Now, that wouldn't satisfy the majority leader. He had to go and find an economist somewhere who'd give him a better number.

□ 1120

So he found Herman Cain's guy, the guy who had the 9–9-9 tax deal. Now, there's a solid citizen. He really knows what's going. Well, he comes up with 39,000 jobs will be created. 39,000 jobs. It sounds like quite a bit, doesn't it? Until you figure how many billions of dollars are going to create them. The figure is that each job will cost $1.1 million in tax cuts. This is to get one job. Do you think they're hiring somebody for $1.1 million? They're hiring them for $6 or $8 an hour.

This is not a job creation bill. It is simply a press release. The Republicans have not brought out a serious job creation bill. Yesterday was as close as we came when we finally did the highway bill so that we could at least keep highway infrastructure being created. Otherwise, there has been nothing solid that has gotten through the Congress. The highway bill will get through because everybody knows it creates jobs, but this kind of stuff is simply sinking us.

What's really interesting, though, is that, as I look at that $1.1 million per job, I remember when they came up with the phony claim—never proven—that the Recovery Act would cost $278,000 for a job. This costs us four times as much, and it's from his own economist. Vote ''no'' on this bill.

Mr. CANTOR. Mr. Speaker, I now yield 1 minute to the gentlewoman from Washington (Ms. HERRERA BEUTLER).

Ms. HERRERA BEUTLER. Last week, I met with more than 70 small businesses throughout southwest Washington, so I am here to support a bill today that would give every one of those businesses a much-needed, positive injection of capital.

What my friends on the other side of the aisle seem to have a hard time understanding is that 7 out of 10 jobs in this country over the last 20 years have come from small businesses. If we create an environment where they can grow and succeed, more people are going to find work, and that's what this is all about. They need it. My district has endured multiple years of double-digit unemployment, and job-providing small businesses haven't seen much from their government to give them hope or to encourage them to grow their workforces.

For example, many small businesses that I've met with are really worried about hitting that 50-employee threshold that is going to trigger the health care law's burdensome cost. They're staying under it. Imagine that: a government rule that is deterring small businesses from hiring. This is a terrible time to send that message. Another business owner talked to me about how he is exasperated by the government reaching out to him, saying he had 4 days to put together a mountain load of paperwork or face a fine.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. CANTOR. I yield the gentlelady an additional 30 seconds.

Ms. HERRERA BEUTLER. We need to remove those barriers. Today, the bill that we get a chance to pass is going to send a different signal that says, Government wants you to grow. We want you to hire. You're not Uncle Sam's piggy bank. We want you to succeed and prosper.

These businesses are going to put moms, dads, and hardworking taxpayers to work. Let's allow them to do

more of that. On behalf of small business owners in southwest Washington, I stand in strong support of this bill.

Mr. LEVIN. I yield myself 5 seconds.

Is it worth $1.1 million a job in Washington?

I now yield 2 minutes to the very distinguished gentleman from Oregon, an active member of our committee, Mr. BLUMENAUER.

Mr. BLUMENAUER. I listened to my good friend and colleague from the other side of the river from my hometown of Portland, Oregon, talking about trying to assist small business and encourage economic development.

But the facts are that the vast majority of this aid, as we've talked about, is going to be unfocused. It's going to go to people whether they need it or not, including some of the wealthiest individuals and partnerships—accountants, lobbyists—and to companies regardless of whether or not they add employment or reduce it.

At this very time, we have people on Capitol Hill who are begging us to get real about infrastructure investment. We finally are getting a bill to conference, but we're hung up on funding it. The Republican budget would cut transportation funding 46 percent, $6.5 billion less than is necessary to keep current obligations. This week, small business people, including a number who visited my office, came in, imploring us to stop the games and to get on with the reauthorization of the Surface Transportation Act.

If we really are going to borrow $46 billion from China or from whomever and add to the deficit, if we have that capacity, for heavens sakes, we should invest it in rebuilding and renewing America.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. LEVIN. I yield the gentleman an additional 30 seconds.

Mr. BLUMENAUER. With this $46 billion, added to the bipartisan Senate bill that passed with 74 votes—half the Republicans—we could have a robust reauthorization of the Surface Transportation Act and create hundreds of thousands of family-wage jobs. Not by picking winners and losers, but by going back to the day when we used to work together on a bipartisan basis to fund infrastructure and to help strengthen every community around the country.

Reject this gimmick. If we have an extra $46 billion we're going to borrow, invest it in rebuilding and renewing America—really helping small business and strengthening the environment in every community across America.

Mr. CANTOR. I now yield 1 minute to the gentlewoman from Kansas (Ms. JENKINS).

Ms. JENKINS. I thank the leader for yielding.

Job growth is my top priority, and no one can deny that small business is the engine that drives our economy and our job market. Since 1980, small businesses have accounted for 60 percent of job creation. Their success is vital to the strength of this economy and to the availability of jobs for all Americans.

As a CPA and a legislator, I've heard from small business owners throughout my career, and their message has been remarkably consistent: They need relief from the burdensome Tax Code, and they need capital to hire and expand, which is exactly what the Small Business Tax Cut Act provides.

While our colleagues in the Senate are devising new and creative ways to raise taxes, here in the House we have the opportunity to pass legislation that supports our small businesses, encourages growth and job creation, and lifts our economy out of the current economics of the day. We can and should do all of this by passing the Small Business Tax Cut Act today.

Mr. LEVIN. I now yield 3 minutes to another very active member of our committee, the gentleman from California, XAVIER BECERRA.

Mr. BECERRA. I thank the gentleman for yielding.

When you hear of small business, what comes up in your mind first? The corner drug store? The tech troubleshooting startup? My daughter's martial arts instructor? How about Donald Trump? How about Trump Sales and Leasing, or Paris Hilton Entertainment? What about Larry Flynt Publications? Not that any of these latter companies have volunteered to show me their tax returns, but by all accounts, these are the businesses that will devour the lion's share of the tax breaks in this legislation.

Mr. Speaker, 3 percent of the businesses in America will get 56 percent of the tax breaks provided. The rich and famous will get most of the money. 125,000 millionaires in America will get $58,000 in tax breaks this year alone, which is the first year of this tax break. That's how targeted this particular bill is.

More than that, what we find is that most Americans don't believe that our tax system is fair. They believe that it is skewed towards the very wealthy. H.R. 9 proves that they are right. Seventy percent of Americans believe that the tax system is skewed against them and favors the very wealthy. If Paris Hilton, who has what we understand are about five employees based in Beverly Hills, can take advantage of this tax cut, or if Donald Trump or Larry Flynt or Kim Kardashian or Oprah Winfrey—all small business people—can take advantage and get, maybe, $58,000 in tax breaks while most small businesses will get barely anything, then I think the American public is correct.

□ 1130

Remember, most businesses in America are sole proprietorships. Most of those sole proprietorships have no employees. Under this bill, if you're a sole proprietor and have no employees, you get zero of the tax break benefits.

I have another example. Two companies, both have 500 employees. One company decides to hire more Americans; 10 more Americans are put on the payroll. The other company of 500 employees decides, I think it's easier for me to make more money if I take some of those jobs and put them overseas, so I'm going to fire 10 Americans here in America, and I'm going to start those jobs overseas, outsource those jobs.

Guess who gets the tax break—the company that hires 10 new American employees? No. They get nothing. The firm that fires 10 American employees here and outsources those jobs to another country, that company will get the benefits of this tax break.

The American public is correct. Today's tax system is skewed towards the wealthy, and that's why we have to vote against this legislation. Let us have job creation legislation. Let us focus on small businesses. This does neither.

I urge my colleagues to vote against H.R. 9.

Mr. CANTOR. I yield myself 30 seconds just in response, Mr. Speaker, to the allegation about those who benefit from the Small Business Tax Cut Act. I would ask the gentleman to perhaps look at the language of the Democrat alternative on the motion to recommit because it, as well, provides the same benefit it's trying to provide to others. All those people, the so-called ''rich and famous'' that he says are the only ones that benefit, also benefit under their alternative.

Mr. BECERRA. Will the gentleman yield?

Mr. CANTOR. I will not yield.

Mr. Speaker, we are here to provide the kind of relief to the small business men and women that will benefit from this.

With that, I yield 2 minutes to the gentlewoman from Tennessee (Mrs. BLACK).

Mrs. BLACK. Thank you, Mr. Leader, for allowing me to be here today.

I have spent the last year and a half traveling throughout the Sixth Congressional District that I represent talking to small-, medium-, and large-size businesses. What I have asked them across the board is, what is it that would help you to be able to grow your business.

What I hear from them is that there's a lot of uncertainty out there, and they are concerned already about large burdens of increasing taxes, more regulations, more mandates. They really fear what Washington will do to them next.

What if we said to small businesses, that really are the engine of our economic growth, that we're going to do something for you instead of to you? What if Washington encouraged growth instead of causing small businesses to live in fear that one more tax might sink them?

Over 20 years ago, my family started a small business, and I can tell you that if the conditions were like they are today then we probably would not

have taken the risk to put everything on the line and start our small business. That's why I'm supporting Leader CANTOR's 20 percent small business tax cut that would allow small business owners to, one, retain more capital; two, invest in their business; and three—this is the key—to hire more workers.

In the State of Tennessee, we have over 96,000 small businesses that employ over 1.38 million individuals. In particular, we have 12,000 small women-owned businesses, which have been, until recently, the fastest growing sector of our small business economy.

So it's not just a cliche that getting small business growing again is the key to our economic growth; it's a fact.

Mr. LEVIN. Mr. Speaker, I yield myself 1 minute.

What the leader said is not correct. The substitute provides some help to those who invest in property, plant, and equipment. That's not Paris Hilton.

Mr. CANTOR. Will the gentleman yield?

Mr. LEVIN. Let me finish.

You didn't yield at all to us, so let me finish.

It has to be a factory that's built here.

I yield to the gentleman from California.

Mr. BECERRA. What the gentleman Mr. LEVIN is saying is correct, and I want to correct Mr. CANTOR because he misspoke about the Democratic alternative.

The Democratic alternative requires that a small business make an investment in a plant or small machinery. If Paris Hilton wishes to invest in a plant and machinery, then perhaps she will qualify. If Larry Flynt would want to invest in plants and machinery for his business, perhaps he would qualify. Otherwise, this is a giveaway. Ours requires you to make investments in America.

Mr. LEVIN. Mr. Speaker, I yield 2 minutes to another distinguished member of our committee, the gentleman from Massachusetts (Mr. NEAL).

Mr. NEAL. Thank you, Mr. LEVIN.

Mr. Speaker, I stand in opposition to this proposal today.

I have just a couple of thoughts, having had long-term membership here.

This is not the way to write legislation, and the Members on the other side know this.

The chairman of the Ways and Means Committee should be here with us today to discuss this. This should have been vetted into the full committee. This should have had an active markup with full participation.

I revere this institution, and I revere that committee. Members spend their careers trying to become members of the Ways and Means Committee. To bring this legislation to the floor today without a hearing is ill-considered.

From a historic perspective, why don't we talk about how we got into this situation?

This bill today adds $46 billion to the deficit. Without a hearing? Why don't we just do these proposals by unanimous consent and bring them to the floor? We missed the point of what the vetting process does, where people stand in front of that committee and they offer expert testimony. But our friends on the Republican side, they call this a small business tax cut. This is about the theater of the election year, and everybody knows it.

This is the same group that would have you believe, incidentally, that tax cuts pay for themselves, even though you can't find an economist who will adhere to that position.

They have run up the deficits in this country recklessly, and in the name of a political campaign, they're prepared to do it again. They want to pour syrup on the plate and not even bother to serve pancakes with it. In our current fiscal situation, to have not vetted this sort of proposal in front of the committee is a mistake.

You want to talk about helping small business with tax policy? Count me in. We've worked on some good bipartisan legislation over the last 20 years to help small business, not to do it in this manner where this legislation has been brought to the floor.

We had a markup in the committee yesterday where cuts are being proposed to senior citizens, to low-income families, eliminate funding for Meals On Wheels, and yet they bring this proposal up today with a straight face.

Mr. CANTOR. I yield myself 30 seconds.

I just want to set the record straight, Mr. Speaker.

The Ways and Means Committee had two small business hearings on the implications of tax reform in which this proposal was raised. In addition, the gentleman well knows that there was a markup.

Mr. NEAL. Will the gentleman yield?

Mr. CANTOR. If I could finish. No.

There was a markup in committee in which even the gentleman offered an amendment and then withdrew it because it was ruled nongermane. Of course there was a markup. Of course this idea has been the subject of discussion in committee.

Again, I just wanted to set the record straight, Mr. Speaker.

With that, I yield 1 minute to the gentlewoman from Illinois (Mrs. BIGGERT).

Mrs. BIGGERT. I thank the majority leader for yielding.

Mr. Speaker, Tuesday was Tax Day, when Americans everywhere were reminded just how much Uncle Sam takes out of our pockets each and every year. But it was also a reminder that not all of our tax policies are created equal.

Some in Washington want to raise taxes simply to feed the Federal Government's spending addiction, even when higher taxes on things like capital gains and investments would only discourage growth and shrink revenue in the long term.

I think our Tax Code should be designed to promote simplicity, competition, and economic growth. We can do this by reducing the burden on small American businesses that are responsible for the majority of new jobs created in our country every day.

This bill will provide an immediate 20 percent deduction for millions of small businesses, one-third of which, by the way, are owned by women and one-fifth of which are minority-owned.

□ 1140

Let's allow small businesses to reinvest in new jobs, new opportunities, and new products that will grow our economy. Mr. Speaker, I urge my colleagues to listen, as I have done, to the voices of their small business owners and operators back home.

Mr. LEVIN. May I ask the distinguished gentleman from the State of Ohio how much time remains on both sides?

The SPEAKER pro tempore. The gentleman from the State of Michigan has 15½ minutes, and the gentleman from Virginia, the majority leader, has 20½ minutes remaining.

Mr. LEVIN. I yield 2 minutes to the gentleman from Texas (Mr. DOGGETT), another active member of our committee.

Mr. DOGGETT. I thank the gentleman.

You know, the Republicans are always so much better in the names they give these bills than what's in them. I think in considering this one we have to look at what it is and what it is not.

It is not an economic recovery measure. A nonpartisan analysis has shown that the economic benefits are considered to be so small as to be incalculable.

It is not helpful to sole proprietors, who do not benefit at all from this bill.

It is not a way to reduce the deficit or the national debt. Indeed, this is a measure that will add $46 billion to the national deficit.

We were told only yesterday that because of a pressing national debt, we can no longer provide one source of federal funding for hot meals for seniors through the Meals on Wheels program in Texas, that we could not afford to provide Federal resources that are necessary there on child abuse or on keeping a child with disability at home, or helping seniors maintain their independence, that there just aren't the resources to do that. But today we are told there is $46 billion we can add to the debt for a nice-sounding bill.

What is this bill? It is another failed Republican retread. It is a measure that will help those at the top rather than those who are really struggling to get to the top. I'm concerned about the icehouse on the west side of San Antonio, about the beauty shop in Lockhart, about the auto repair shop in San Marcos. But those are not the places that will receive the principal benefits of this measure.

Indeed, 125,000 millionaires in this country will get more in tax benefits

out of this than many of the owners of those businesses earn during an entire year, in fact, more than the median income throughout San Antonio, Austin, and central and south Texas.

What this measure is is a boon.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. LEVIN. I yield the gentleman an additional 30 seconds.

Mr. DOGGETT. It will be a boon to highly paid professionals, private equity firms, hedge fund managers, and professional sports teams. I think they've received enough economic benefit in the past with the Bush tax cuts.

We ought to be focusing our support for small businesses not on those who are already at the top and should be contributing a little to the shared sacrifice necessary to get our national debt under control and meet basic human needs.

Mr. CANTOR. Mr. Speaker, I yield myself 30 seconds.

Again, Mr. Speaker, just to correct the record, the gentleman from Texas indicated that this bill doesn't benefit sole proprietors. Sole proprietors are, in fact, the disproportionate beneficiaries under this bill. According to the Committee on Joint Taxation, 17.9, almost 18 million sole proprietors benefit under this bill, again, to set the record straight, Mr. Speaker.

I yield 2 minutes to the gentleman from Texas (Mr. BRADY), not only the chairman of the Subcommittee on Trade but, as well, the vice chairman of the Joint Economic Committee.

Mr. BRADY of Texas. I want to first thank Leader CANTOR for his leadership on economic issues, especially those along Main Street. That's what this is about. This isn't about Paris Hilton, Larry Flynt, or even Hilary Rosen, the President's top adviser, who recently denigrated women who choose to work at home. It's not about celebrities. It's about small business people. They're the ones who have been left behind in the Obama economy.

Think about this. We have tens, literally, tens of millions of Americans who can't find a full-time job. There are millions more who have just given up. They don't even look for work anymore. Here we are. It's hard to believe there are fewer Americans working today than when the President took office. Bailouts, stimulus, Cash for Clunkers, housing bailout, Solyndra bailout, all of that, fewer Americans working, 700,000 fewer women with a job.

Small businesses have borne the brunt of this terrible recovery. It is time we help them instead of raising taxes on those who succeed. Why don't we let them keep 20 percent more of the income they earn, the sales they make, the weekends they work, the charges they put on their credit cards, all they do to survive and succeed in this economy? Republicans are determined to give them a chance to succeed until this economy can get back to work, to hire new workers, to keep new workers.

I have to tell you, I remember in Ways and Means Committee the debate on ObamaCare, the Republicans offered an amendment to shield small businesses from tax increases, and our Democrat friends said they can't do that because small businesses have had it too easy all these years—small businesses have had it too easy all these years.

It's time to give our small businesses a break, time to get this economy back on track. It's time to let them keep what they have worked so hard to earn.

Mr. LEVIN. I yield 2 minutes to another very active member of our committee, the gentleman from New Jersey (Mr. PASCRELL).

Mr. PASCRELL. Mr. Speaker, we are really in the middle of the theater of the absurd. I'm not opposed, and apparently the other side is not opposed, to stimulus spending for the economy. I don't know where they have been for the last 18 months. Let's make effective stimulus.

Since you mentioned the CBO, Mr. CANTOR, through the Chair, they rank this bill next to last in bang for the buck in job creation. You didn't quote CBO about that.

Through the Speaker, the Joint Committee on Taxation said the economic impact is so small as to be incalculable—your own analysis on your Web site. It's very clear it's going to cost, add, $1.1 million, for every job created, to the deficit.

I rise in strong opposition to this legislation. Just yesterday, in order to comply with the majority's budget that violates the deal Speaker BOEHNER agreed to last year—that deal is clear, public—the Ways and Means Committee cut $53 billion in health care tax credits, child tax credits, social services block credits. You cut it yesterday for the disabled, for the elderly who are most vulnerable. In New Jersey, they could lose millions of dollars for Meals on Wheels, foster care.

This is unacceptable. We are voting to add $47 billion to the deficit today with a giveaway to professional sports teams—oh, you didn't know that—or hedge fund operators or managers or whatever they call themselves, and multimillion-dollar partnerships and corporations.

Yes, $47 billion goes to 125,000 millionaires.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. LEVIN. I yield the gentleman an additional 30 seconds.

Mr. PASCRELL. But each of them gets a tax cut, Mr. Speaker, $60,000. This is wrong.

The same report found that the best options for job growth include aid to States and increased safety net spending, something I know that the other side opposes.

In fact, the Agriculture Committee just voted yesterday to cut food stamps, get this, by $34 billion; like all of those people on food stamps want to be on food stamps, all those people that are poor want to be poor. And that's your anthem. But it can't find reality. It has no foundation, and it is immoral—immoral.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair asks all Members to heed the gavel.

Mr. CANTOR. Mr. Speaker, I yield 1 minute to the gentlewoman from South Dakota (Mrs. NOEM).

Mrs. NOEM. I thank the leader for yielding.

You know, it never ceases to amaze me the misleading claims that will come from my colleagues on the other side of the aisle at times. One of them that has been talked about a lot here today is the fact that only the rich and famous would benefit from this piece of legislation. Well, I have been sitting back here, and I have been trying to think of even a handful of famous people in South Dakota that are going to benefit from this.

□ 1150

I can't come up with it; but I've got over 20,000 jobs in the State of South Dakota, and 20,000 different businesses that are going to benefit from this piece of legislation. That's why I'm supporting it. My constituents in South Dakota so many times only look at government as an entity that costs them money and makes it very detrimental and hard for them to succeed. When the government can actually step in and do something that makes it easier for them to succeed and help drive that success, then that is something we should be behind, and that's why the Small Business Tax Cut is a perfect example of that situation.

Small businesses create jobs, and they also employ almost half of all the private sector employees in this country. This bill is going to free up the cash so that those small businesses can keep people employed when they've hit tough times and maybe reinvest in their businesses. It's the key to what we need to do, and I hope we can all come together and support this good legislation before us.

Mr. LEVIN. I yield 2 minutes to another distinguished member of our committee, the gentleman from New York (Mr. CROWLEY).

Mr. CROWLEY. I thank the gentleman, my friend from Michigan, for yielding me this time.

Mr. Speaker, I rise in strong opposition to this bill. There are a number of reasons to oppose this legislation.

One, this bill is not targeted towards job creation. Frankly, it is not targeted at all. It will provide 99.6 percent of all businesses with a tax break, regardless of whether or not they create one American job or not.

Two, this bill does not prevent businesses from taking a tax cut even when they lay off workers.

Three, this bill fails to help the businesses most in need, such as new businesses or start-ups. They're not eligible for any provisions in this bill.

Fourth, this bill will add billions to the deficit, which will hurt economic growth in America.

Five, and most egregiously, this bill provides companies who are in the midst of offshoring jobs with a tax break.

During committee consideration of this legislation, I offered an amendment to deny this tax deduction to any company that reduces the number of American workers and jobs while correspondingly increasing its foreign workforce. Additionally, the amendment stated if a company offshores U.S. jobs next year, after this 1-year tax expenditure expires, the funds would be recaptured or taken back by the Treasury. This is so a company cannot take the money this year and run away with American dollars and jobs next year and put them overseas.

My amendment enjoyed the support of every Democrat on the Committee of Ways and Means. Unfortunately, it was not supported by one Republican on that committee. Americans and their taxpayer dollars should not be subsidizing the destruction of American jobs.

Let me state: Democrats recognize we live in a global economy. We recognize that many of our companies need to operate internationally to remain competitive and expand their markets and market share. But Americans should not have their hard-earned tax dollars—$46 billion in this case, Mr. Speaker—taken away and used to subsidize this kind of business activity.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. LEVIN. I yield the gentleman an additional 15 seconds.

Mr. CROWLEY. Democrats worked hard while in the majority to end the practice of incentivizing the offshoring of U.S. jobs in the Tax Code. We killed a number of perverse tax loopholes and reinvested the revenue into initiatives focused on creating U.S. jobs and assisting America's small businesses.

Defeat this bill. It is immoral. We should not be spending U.S. tax dollars in this way.

Mr. CANTOR. Mr. Speaker, I yield myself 30 seconds just to respond to the gentleman. I think he put his finger on the problem here. The problem with his kind of amendment is the problem with the Tax Code today, because it means that if you're a business, under his rule, you would have to come to Washington to seek eligibility for a tax break or seek eligibility for a tax favor. And if you're on the approved list in Washington, then you can go and benefit and have an advantage over others.

That's not what we believe. We believe in helping all small businesses.

With that, I yield 2 minutes to the gentleman from Missouri (Mr. GRAVES), the Small Business Committee chairman.

Mr. GRAVES of Missouri. Mr. Speaker, tax season reminds us that small businesses are disproportionately affected by tax compliance and high tax rates. The Small Business Administration reports that the average tax compliance cost per employee for small businesses is almost three times the cost of larger firms. And according to the NFIB, tax issues are the single most significant set of regulatory burdens for most small firms. The Small Business Tax Deduction Act is simple, fair, and gives small businesses access to badly needed capital to invest in their companies while providing a little more certainty to help them plan for the future.

As chairman of the Small Business Committee, I hear from small business owners every single week about their regulatory and tax burdens. Through our interactive Web page, ''Small Biz Open Mic,'' we have heard that tax policies may drive some small firms out of business.

On Tuesday, Wendy Koller, owner of Koller Moving and Storage in Fort Smith, Arkansas, said:

> We are hesitant to hire new employees for fear of what new tax burdens await us with the expiration of the older tax law and the new health care laws coming. We are concerned that these new issues may be the ones that push us out of business.

Last Saturday, Debbie Peacock, owner of a fabricating distributor in Mesa, Arizona, wrote:

> Any additional taxes will only stop any chance of a recovery, and the government needs to realize we need every penny to increase staff, which puts people back to work.

I can go on and on and on with examples like these.

Yesterday, our committee held a hearing on the flood of new taxes that are just around the corner, such as new taxes from the health care law and the massive tax increase that's going to occur if the 2001 and 2003 tax cuts expire. All of these measures could send the economy into a tailspin, costing thousands of jobs.

That's why the Small Business Tax Deduction Act is necessary and is going to provide that tax relief for America's most robust job creators.

With that, Mr. Speaker, I would ask that my colleagues support this bill.

Mr. LEVIN. I yield 3 minutes to the ranking member of the Budget Committee, the gentleman from Maryland (Mr. VAN HOLLEN).

Mr. VAN HOLLEN. Thank you, Mr. LEVIN.

Mr. Speaker, here we go again. This bill provides a windfall tax break to hedge fund owners, to big Washington law firms, to the very wealthy, even if they don't hire a single person—not one. In fact, in a cruel hoax and twist on this, wealthy individuals can qualify for this tax break even if they fire people this year. And in some cases they can also get a bigger tax break if they do not make their investments this year.

Mr. Speaker, this place sometimes gets to be a fact-free zone. We have the nonpartisan Joint Tax Committee say, The economic activity generated by this is so small as to be incalculable. That's why Bruce Bartlett, former economic adviser to President Reagan said, It will do nothing whatsoever to increase employment.

So what's this all about? It gives a big tax break to the wealthiest individuals while adding $50 billion to our deficit and debt.

Now, Mr. Speaker, this week highlights the unfortunate doublespeak from our Republican colleagues when it comes to the deficit. On the Senate side, a majority of Republicans voted against a bill to apply the Buffett rule, meaning that we were going to ask millionaires to pay the same effective tax rate as many of their employees paid and use that $50 billion toward deficit reduction. Here in the House, we're providing a $50 billion tax break that adds to the deficit, and this one is targeted disproportionately to very wealthy individuals.

There's another sort of strange irony. When we were debating the payroll tax cut for a year that would benefit 160 million Americans, our Republican colleagues dragged their feet and then said this was all a gimmick, it was a 1-year thing, it was a sugar high. Well, at least the nonpartisan Congressional Budget Office said that it would generate economic activity. In fact, they ranked it near the top.

This is a 1-year thing that's going to give a great sugar high to the wealthiest individuals. They are going to be floating on this. But it's ranked near the bottom by the nonpartisan Congressional Budget Office in terms of economic activity.

You want to know another irony? When it came to providing a tax break for 160 million Americans, payroll tax cut, we paid for it. We offset the cost of that. When it comes to providing a sugar high, $50 billion tax cut that disproportionately benefits the wealthy, we don't offset it. We put it on our national credit card. We increase the debt. Who pays for that? We've heard on a bipartisan basis that's our kids, our grandkids. We're all going to be paying for that debt.

□ 1200

So Mr. Speaker, this is worse than a gimmick. It's not good for the economy, it adds to the deficit, and I urge that we reject this bill.

Mr. CANTOR. I ask unanimous consent that the gentleman from Michigan (Mr. CAMP) be permitted to control the balance of the time.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

The SPEAKER pro tempore. The Chair would advise that the gentleman from Michigan (Mr. CAMP) now controls 14½ minutes, and the gentleman from Michigan (Mr. LEVIN) has 5¼ minutes.

The Chair recognizes the gentleman from Michigan (Mr. CAMP).

Mr. CAMP. I yield 1 minute to the distinguished gentleman from Louisiana (Mr. SCALISE).

Mr. SCALISE. I thank the gentleman for yielding.

Mr. Speaker, I rise in support of the Small Business Tax Cut. Louisiana alone will see 80,000 small businesses that will be able to benefit from this and over 890,000 workers that will benefit from this. Yet my colleagues on the Democrat side maybe think that it's their money. They don't want those small businesses to be able to keep it, and they think that Washington can spend it better than the small businesses.

How has that worked, by the way? They don't want small businesses to be able to keep some more of the hard-earned money that they make so they can invest it in their business. They'd rather keep it up here for critical Washington spending like the $535 million they blew on Solyndra, or maybe the $850,000 that Obama's GSA blew on the Vegas junkets. Those are the kind of things that they would rather see, and so they don't want those small businesses to be able to keep more of their hard-earned money. They want to keep taxing businesses. They've added over $1.9 trillion of new taxes in President Obama's own budget.

We've tried it their way. More than 2 million Americans have lost their jobs since President Obama took office. How about we actually try letting small businesses keep more of their hard-earned money so they can create good jobs for hardworking taxpayers?

Mr. LEVIN. I yield 3 minutes to our distinguished whip, the gentleman from Maryland (Mr. HOYER).

Mr. HOYER. Mr. Speaker, ladies and gentlemen of this House, it is hard to call us to responsibility, but that's what our public wants. Our public wants it on the right, they want it on the left, and they want it on the middle. This is fiscally a totally irresponsible piece of legislation, and you know it. And I know you know it, and America ought to know you know it.

Ladies and gentlemen, what this bill does is blow a $46 billion hole in the deficit this year alone. But ladies and gentlemen, Mr. Speaker, the people of America need to know that we use 10-year figures for the most part, so this means $460 billion.

Now, I know all of you on your side of the aisle—because I've been here for a substantial period of time—are next year going to say we're going to raise taxes on small businesses and put that 20 percent back. Bet me. You're going to say if we did that, it would be the largest tax increase in the history of small business. So you're going to do it year after year.

One of the previous speakers said that we're taking money from small businesses. Well, let me tell you who you're taking money from today: my children, your children; my grandchildren, your grandchildren; and, yes, my two great-grandchildren. That's who's going to pay this $46 billion hole that you're creating today.

And what does Bruce Bartlett, economic adviser to Ronald Reagan—not a Democrat, a Republican—an economic adviser, somebody who advised Ronald Reagan how to get this economy moving—unlike George Bush, I might add—and what did he say? What did he say about this bill that you have brought to the floor—which, by the way, The Wall Street Journal today called ''a tax gimmick.'' The Wall Street Journal called this bill that you are offering today a tax gimmick. And so what did Bruce Bartlett say? ''It will do nothing whatsoever to increase employment.''

Point number one, this is not a jobs bill. It will not grow the economy, and it will not do what all of us think needs to be done.

And they went on to say that ''it is nothing more than an election-year giveaway to a favored Republican constituency,'' a political gimmick, a tax gimmick that will cost us $46 billion this year alone and $460 billion—let me say, round that to half a trillion as inflation pushes it up, a half-a-trillion-dollar hole adding to the budget deficit that confronts this country that all Americans know we must address.

My colleagues, it takes no courage to vote for this bill. What takes courage is to pay for things. What takes courage is to say we have an obligation. What took courage was to make sure that we paid our debts. We didn't do it. So what happened? We almost took this country to the brink of default.

Ladies and gentlemen of this House, summon the responsibility, judgment, and intellectual honesty that our public expects. Vote against this bill.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair would again ask all Members to heed the gavel and also to address their remarks to the Chair and not to other Members in the second person.

Mr. CAMP. Mr. Speaker, I yield 3 minutes to the distinguished majority whip, the gentleman from California (Mr. MCCARTHY).

Mr. MCCARTHY of California. I thank the distinguished chairman of Ways and Means. It's an honor to be able to speak on this floor. It's an honor to listen to the debate on both sides. And what's so ironic is that when you listen to the debate, you wonder, what happens here becomes law, but more importantly, do we ever measure, do we ever measure what creates jobs? Do we ever measure in America who creates jobs?

Now, some of you know my story. I actually grew up in a family of Democrats. I got rather fortunate. I didn't have great grades, so I went to junior college. The family didn't have enough money to send me away. I worked through the summer, I took my money, and I created a small business. At the end of 2 years, I then had enough money to pay my whole way through college, so I sold my business.

I applied for a summer internship with my local Congressman, and he turned me down. But today on this floor, I sit elected to the seat I couldn't even get an internship to. That small business paid my way through college. But when I sit and measure and talk and listen to my constituents, they talk about jobs.

They know that there have been 11 recessions since World War II, and every other recession we've come out of it stronger and faster. Even the greatest recession of '82, when interest rates were double digit, and you measured until today, we'd have 13 million more jobs. But the policy holds it back.

So I thought I would go back and I would analyze just the nearest time in America's culture of where we created jobs. So I went back to the end of the last recession, 2001, to the beginning of this recession in 2007. When people look at America, they think that was a pretty good time in America. The jobs grew, the economy was strong, and people were able to buy houses. And I analyzed who created the jobs. Do you realize during that time in America, small business added 7 million jobs? Large corporations cut a million.

So to hear somebody on the floor, Mr. Speaker, say they're some special constituency? Well, I'm very proud to stand with the constituency that will grow jobs. I'm very proud to stand today to cut 20 percent to put people back to work in America.

Mr. Speaker, I will stand proudly behind this bill because statistics, the facts, and the history of America have proven we are the strongest when small business is strongest, we are strongest and create jobs through small business, not through more politics.

Policy matters, small business matters, and jobs in America matter. That's why I tell Members on both sides of the aisle, this is an American bill for American jobs, for small business to be strong again in America, and America will be strong again.

Mr. LEVIN. I reserve the balance of my time.

Mr. CAMP. At this time, I yield 2 minutes to the distinguished gentlewoman from Washington (Mrs. MCMORRIS RODGERS).

Mrs. MCMORRIS RODGERS. Thank you, Mr. Chairman.

Mr. Speaker, I rise in strong support of the legislation before us today.

Small businesses are the foundation of our economy. It's the small businesses that drive job creation in America. And every time I'm home in eastern Washington, it is such a privilege to sit down with small business owners. I'm always inspired by these people who have an idea to improve our lives and they turn it into a reality.

One such business that I recently toured was called Made Naturally. Two stay-at-home moms had an idea to come up with natural cleaning products 2 years ago. They put together a business plan, and they have now executed it, hired 13 employees, and they are doing well in Spokane, Washington. And when I toured their business, what they told me was that it is the tax burden and the regulatory uncertainty

that is preventing them from hiring any new employees right now.

Just like these two business owners in Spokane, Washington, there are men and women all across this country that face the same challenges when it comes to growing businesses. As someone who worked in a family business for more than 13 years, I can say they are certainly right.

So I'd like to shed some light, especially on the women, the entrepreneurial women right now whose businesses are hurting because of this administration's policies. It's important because two out of three businesses right now are being started by women in America. They're actually the fastest-growing segment in our U.S. economy, and every dollar they save in taxes is one more dollar they can spend in hiring a new employee.

The current path is both unacceptable and unsustainable. It's time to change course. It's time to give America's small business owners tax breaks, not tax burdens.

□ 1210

It's time to give them relief, not just rhetoric. It's time to give them the flexibility and freedom they need to create jobs. So it's time to move forward with the legislation that will do just that. I strongly support this bill.

Mr. LEVIN. I reserve the balance of my time.

Mr. CAMP. Mr. Speaker, I yield 1 minute to the distinguished gentlewoman from North Carolina (Ms. FOXX).

Ms. FOXX. I thank the gentleman for yielding time.

I want to say that our colleagues reveal their attitude toward taxpayer money when they say this will cost us. The attitude of our colleagues on the other side of the aisle, Mr. Speaker, is that all the money that hardworking taxpayers earn belongs to the government. This doesn't cost us; this allows some people to keep more of their money.

I rise today in support of H.R. 9, the Small Business Tax Cut Act, which would provide America's private sector with the resources needed to help supercharge desperately needed hiring.

It's worth mentioning how this bill will benefit women since one-third of the firms directly benefiting from the act are owned by women. In North Carolina, small businesses with between one and 500 employees employ 205,490 individuals; 23,348 of those businesses are women-owned. Mr. Speaker, it's for these reasons I urge my colleagues to support H.R. 9.

Mr. LEVIN. Mr. Speaker, how much time is remaining, please?

The SPEAKER pro tempore. The gentleman from Michigan (Mr. CAMP) has 7½ minutes remaining. The gentleman from Michigan (Mr. LEVIN) has 2¼ minutes remaining.

Mr. LEVIN. I reserve the balance of my time.

Mr. CAMP. Mr. Speaker, I yield 1 minute to the distinguished gentleman from Illinois (Mr. SCHILLING).

Mr. SCHILLING. I thank Leader CANTOR for giving me the opportunity to be here today and speak in favor of the Small Business Tax Cut Act.

As Illinoisans filed their tax returns, folks in my district felt the pinch of the tax increases imposed on them by our State's lawmakers, who last year raised personal income taxes by 66 percent and corporate taxes by 45 percent.

State lawmakers told us that taxes would be used to pay Illinois debt and prevent budget deficits down the line; but the truth, as many of us feared, is that these tax hikes have done nothing to help our State. In fact, Illinois unemployment has remained above 9 percent for 36 straight months, since March of 2009. And thanks to Illinois tax hikes, rising gas prices, and Federal tax rates as high as 35 percent, our small businesses are strapped for cash.

As a small business owner, I know the pain all too well. Rather than advancing partisan and un-serious show votes—votes that don't lower gas prices, don't encourage economic growth, and don't impact our deficit—we in the House want to ensure more opportunities for job seekers and job creators.

Mr. LEVIN. I now yield 30 seconds to the distinguished gentleman from New York (Mr. ISRAEL).

Mr. ISRAEL. I thank my friend. Mr. Speaker, we keep hearing that this is a small business tax cut. It is not. It is a bait and switch. One-half of this so-called ''small business tax cut'' will go to millionaires. So you call it a small business tax cut, and they give away the store to millionaires, Mr. Speaker.

They are saying that we have to dismantle Medicare because they say we can't afford it on the one hand, and on the other hand they are lavishing millionaires with a $46 billion tax cut. If you're one of 125,000 millionaires in America, you get $58,000 from this bill. If you're a senior on Medicare, it costs you an additional $6,000 for your medicine. I oppose this bill.

Mr. CAMP. I yield 1 minute to the distinguished gentlewoman from North Carolina (Mrs. ELLMERS).

Mrs. ELLMERS. Thank you, Mr. Chairman.

Mr. Speaker, I would like to speak today on the intellectual responsibility of H.R. 9.

Back in my home town of Dunn, I have friends who are pharmacists. They own and run an independent pharmacy started by their father 60 years ago. I'm speaking of Paige Houston and Cathy Blackman.

Paige told me the other day that initially in this recession they were missed because people were afraid to go without their medications, and they were willing to pay the money even though the economy was starting to take a turn. Today, things are so bad that people are going without their medications, which as a result is a decrease in the number of customers they have and the amount of revenue coming in. Now their accountant has told them that they have no choice but to cut contributions to their employees' 401(k) plans and their health insurance premiums or be forced to lay off employees. Paige told me this 20 percent tax cut will keep more money in their business, allowing her to maintain benefits for her employees.

Mr. LEVIN. I reserve the balance of my time.

Mr. CAMP. I yield 1 minute to the distinguished gentlewoman from Michigan (Mrs. MILLER.)

Mrs. MILLER of Michigan. Mr. Speaker, we all understand that American small businesses are the engine of job creation. I think the Democrats are waging a war on small business.

I have spoken with so many small business job creators in my district, and they all share the same message: government overregulation and government overtaxation is stifling their ability to grow. This House has already acted decisively to address government overregulation, and today we're going to act decisively to give small businesses the tax relief that they need to grow.

Allowing small businesses with fewer than 500 employees a 20 percent tax cut to free up capital and to allow those businesses to invest in and to grow their businesses to create the jobs that we so desperately need in this economy is the right thing to do. So I was very disappointed to see that President Obama threatened to veto this bill, because, Mr. Speaker and Mr. President, I would respectfully tell you that hundreds of small manufacturing firms in Michigan that are struggling to buy new equipment, to pursue new customers and grow their businesses are not among the corporations with the biggest profits; and those small businesses would benefit from this bill. You can contrast that with General Electric, which made over $14 billion in profits in 2010 and yet paid no Federal income tax.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. CAMP. I yield the gentlewoman an additional 15 seconds.

Mrs. MILLER of Michigan. We need to remember that the CEO of General Electric is actually the head of President Obama's Jobs Council.

So, Mr. Speaker, I would say that we can trust the American small businesses to spend their money more wisely than government will ever do. Again, it's mystifying to me that the Democratic Party seems to be waging a war on the small business community of America.

Mr. CAMP. Mr. Speaker, I yield 1 minute to the distinguished gentleman from Illinois (Mr. KINZINGER).

Mr. KINZINGER of Illinois. You all know the saying, ''money is power,'' right? I think we all can agree in this Chamber that the one thing that we want to do is empower small business. How do you empower small business? You let them keep more of the money they earn so they can go out and they

can invest in new products so they can hire people. I'd love to get people back to work. I'd love to empower small business. That's why we want to let them keep more of what they earn.

I did an initiative in my district called the One More Jobs Initiative, where it asks small business owners, What do you need from the Federal Government to create just one more job? A pretty noble concept: instead of pontificating here, let's actually ask those who create jobs. The number one answer I got, Mr. Speaker, was: let us keep more of the money we earn and let us hire people. Give us tax certainty.

That's why I rise in support today of this tax cut package, because this is exactly what small business needs to continue to be successful, to pull this country out of this recession we're in, and continue to reclaim our mantle as the most powerful country in the world.

Mr. CAMP. At this time, I yield 1 minute to the distinguished gentleman from North Carolina (Mr. MCHENRY).

Mr. MCHENRY. I thank the chairman for yielding.

Our Nation is at a crossroads. This President wants to take more money from the private sector and continue the exponential growth of the Federal Government. We want to make sure that job creators are able to reinvest their hard-earned money back into their businesses to expand and grow the economy and get this job creation cycle going again. That's why we support a 20 percent tax cut for small businesses. The President, on the other hand, wants to raise taxes on small businesses and job creators.

There are 22 million small businesses helped by this bill, and I think it's necessary that we pass this bill today. I urge my colleagues to support a 20 percent tax cut for small businesses so we can create jobs and make a more prosperous America.

□ 1220

The SPEAKER pro tempore. The Chair would advise both sides, the gentleman from Michigan (Mr. CAMP) has 2¼ minutes, and the gentleman from Michigan (Mr. LEVIN) has 1¾ minutes.

Mr. CAMP. At this time, I have two additional speakers. One of them will close, so I have one speaker before closing.

Mr. LEVIN. I reserve the balance of my time.

Mr. CAMP. At this time, I yield 1 minute to the distinguished gentleman from Alabama (Mr. BACHUS).

Mr. BACHUS. Mr. Speaker, this recession is different, and the difference is there's no recovery. And that is a historic difference.

Now, what is different about this recession and all our other recessions when we had a recovery is government policy. Government policy has stifled job creation. Normally, at this time in a recovery, 65 percent of the jobs are being created by small businesses. But 2 million jobs aren't there because of Obama's health care policies alone, regulatory policies, tax policies. Small business is struggling.

Now, let me tell you, Congress cannot create jobs. We're not going to create jobs with this bill. We're going to allow small businesses to create jobs.

You'll either choose government or you'll choose the people. You'll choose government to continue to create jobs like with Solyndra, and we saw the disaster there, or you'll allow the people to create those jobs. I'm putting my trust in the people.

Mr. CAMP. Mr. Speaker, at this time, we're prepared to close.

Mr. LEVIN. I yield the balance of my time to a distinguished member of the committee, the gentleman from California (Mr. THOMPSON).

Mr. THOMPSON of California. I thank the gentleman for yielding.

Mr. Speaker, I rise in opposition to this bill today—a $46 billion price tag, and it's unpaid for. Moreover, 1 year is not tax certainty if you're a small business person.

I rise also as a small business person. Equally as troubling as this bill, unpaid for, $46 billion bill, is the fact that yesterday, in the Ways and Means Committee, the majority passed a bill that they said was to reduce the deficit. But instead, what they did is they cut programs that were incredibly important to the elderly, to children, to the disabled, programs that allowed people help with their daycare so they could go to work. If those people don't have daycare, they're not going to be able to go to work. And, at the same time, the Ag Committee passed a bill to cut food stamps.

These actions are hard to understand, even in these most difficult times. But even harder to understand is, in light of this fiscally irresponsible bill today, those bills were passed.

I said yesterday that it was a bad day to be poor. Well, today is a bad day to be fiscally responsible, because this bill is anything but fiscally responsible.

And it's wrong to claim on Wednesday that you have to cut daycare for low-income people or put seniors at risk, disabled people at risk, and children at risk to cut the deficit but then turn around on Thursday and add $46 billion to the deficit. That's just wrong.

The Joint Committee on Taxation said that this bill's economic impact is ''so small as to be incalculable.'' I can tell you, the people that will be hurt across this country, that hurt won't be incalculable.

I strongly oppose this bill.

Mr. CAMP. I yield the balance of my time to the distinguished gentleman from Oregon (Mr. WALDEN).

Mr. WALDEN. Mr. Speaker, my wife and I were small business owners for more than two decades, and we still retain part of that business, so I know what it's like to meet a payroll. I know what it's like to employ people. We only had 15 to 20 people on our payroll over the course of 20 years, but I worked a lot with small businesses. And in small business it really is about how do you grow, how do you have the positive cash flow, Mr. Speaker, to grow your business, to invest in new technology, new equipment, to take your ideas and spin them forward and grow jobs. That's your whole nature as an entrepreneur in America, and as it should be.

In Oregon, we've got 86,000 small businesses employing more than three-quarters of a million people. This legislation will help those small businesses have what is called ''positive cash flow.'' That is from whence jobs flow.

If you have the money and you can retain it rather than have to give it all up to the government, then you're going to make wise choices in your business to grow your business, because it's your competitive nature to grow your business, which means to create jobs in the economy.

My friends on the other side of the aisle had no problem a few years ago spending $1 trillion to have the government borrow the money and pick winners and losers and waste it.

This is a good way to spur jobs and growth in our economy. I urge its passage.

Mr. STARK. Mr. Speaker, I rise today in opposition to H.R. 9, the Small Business Tax Cut Act, a bill that provides a $46 billion tax break for the wealthy paid for by ordinary working people. This bill will send half of the tax cuts to those with annual incomes over $1 million and 80 percent of benefits to those earning more than $200,000. Once again, Republicans are extending a helping hand to those who need it least, including professional sports teams, law firms, lobbying firms, and accounting firms.

The Republican Leadership claims that we need this legislation to create jobs, yet the non-partisan Joint Committee on Taxation, JCT, tells us that this bill will do no such thing. The Congressional Budget Office, CBO, ranks broad business tax deductions like this bill as one of the least effective proposals for promoting economic growth. This is not surprising. H.R. 9 gives a tax deduction to any business, even those that don't hire workers or even lay off workers.

Today's bill caps off another banner week for House Republicans that once again laid bare their priorities: hand tax breaks to those who don't need them, and cut the programs that help the middle class, the poor, the sick, and the elderly. Yesterday, the Ways and Means Committee passed partisan legislation that would take away the child tax credit for 3 million children, weaken health coverage for 350,000 middle class Americans, and eliminate funding for the Social Services Block Grant that provides child care for 4.4 million children and serves 1.7 million low-income seniors through programs like Meals on Wheels. That's a total of $53 billion in cuts to the safety net so Republicans can pay for more take cuts for the rich. This is class warfare and one side is clearly winning.

If we want to commemorate Tax Day with a vote on a tax bill, we should be voting on the Buffett Rule, a bill that promotes tax fairness.

The Buffett Rule is targeted—it will only impact taxpayers who have income over $1 million and are not paying their fair share of taxes. Nearly 65 percent of taxpayers who earn more than $1 million pay lower tax rates for those who make less than $100,000. There is something wrong with our tax system when ordinary working families are paying higher tax rates than some of the wealthiest individuals.

According to CBO, the Buffett Rule would generate $47 billion over the next decade. We could use this $47 billion to create jobs, revitalize the middle class, and sustain a safety net for the poor, the sick, the elderly, and other groups who are being abused by the Republican Majority.

It is time we got our priorities straight and stopped providing handouts to the most fortunate at the expense of lower income Americans. I strongly oppose this legislation and urge my fellow members to join me in voting ''no''.

Mr. MORAN. Mr. Speaker, I rise today in strong opposition to H.R. 9, an irresponsible bill that, in the name of cutting taxes for small business and spurring job growth, would provide a windfall for those who need them least. This one-year measure would increase our federal deficit to the tune of $46 billion.

H.R. 9 provides qualifying businesses with less than 500 employees a 20 percent tax deduction for domestic business income which could be taken during the current tax year. Instead of supporting local small businesses though, this bill inordinately benefits wealthy business owners. Half of the tax cuts in the bill would go to the four percent of small business owners earning over $1 million a year. The 55 percent of small-business employers that have incomes below $100,000 would receive only 6 percent of the benefit from this bill. Struggling small business owners who are operating at an annual loss will not benefit from this bill in any way.

The Center for American Progress reports that professional sports franchises such as the Los Angeles Dodgers, Donald Trump's Trump Tower Sales & Leasing, and Paris Hilton Entertainment, Inc. are among the businesses owned by millionaires that would enjoy this tax break.

This one-time windfall simply will not change incentives for hiring. According to the Congressional Budget Office (CBO): ''[T]he one-year of tax savings provided by the bill is unlikely to make the costs of much investment in physical capital or labor recruitment and training worthwhile.'' In fact, this will incentivize qualifying business to delay investment in order to maximize taxable income in 2012. Additionally, H.R. 9 does not require a company to create any jobs or invest in the U.S. economy. In fact, if a company reduces their workforce or sends jobs overseas, they would still qualify for this 20 percent tax break.

H.R. 9 borrows billions in order to create a new tax expenditure yet fails to address the primary issue facing American small business, lack of consumer demand. This bill chooses anti-tax orthodoxy over fiscal and economic logic. Given our current fiscal situation we cannot afford another reckless giveaway to the wealthy. I urge my colleagues to reject H.R. 9.

Ms. VELÁZQUEZ. Mr. Speaker, I rise in opposition to this legislation. There is nothing in this bill specifically for small businesses. Instead, this is another attempt to award tax breaks to the wealthy. In fact, millionaires will receive nearly half of the benefit from this legislation, while true small businesses accrue only 10 percent. Once again, as the largest corporations get fatter, small businesses have to struggle for scraps.

Small, fast growing startups, which often have little tax liability, would see no tax savings—yet these are the firms most likely to create jobs. Even worse, this plan would give tax breaks to companies shedding employees—exactly the wrong incentive. Finally, this bill does nothing to address small business owners' top concern—a lack of demand for their goods and services. A real small business bill would tackle that problem.

This is not a small business bill—it is a millionaire's tax break bill. Vote no so we can focus on real solutions to small businesses' needs.

Mr. FLAKE. Mr. Speaker, I rise in support of this provision to get construction of Keystone XL pipeline underway.

For months, Members from both sides of the aisle have worked tirelessly to impress upon the Administration the urgent need for the Keystone XL pipeline project to proceed.

The justification for Keystone as a safe and critical boon to private sector job creation and American energy security has not changed. This project will still create thousands of jobs. It will still increase the nation's capacity to transport crude oil by 830,000 barrels per day; and the State Department is still on record stating that Keystone ''poses little environmental risk'' and will lead to ''no significant impacts to most resources.''

Unfortunately, the Administration's reluctance to proceed with the Keystone XL pipeline has left some other figures unchanged since debate on Keystone began. The unemployment is still above 8 percent. The U.S. still relies on the same sources of foreign energy; and American's are still asking why?

Yet thousands remain out of work because the President refuses to pick up his pen. Americans want more jobs and greater energy security. Construction of the Keystone XL Pipeline will help to ensure both. I urge support for this provision.

Mr. WILSON of South Carolina. Mr. Speaker, today, the House is expected to vote on the Small Business Tax Cut Act, legislation allowing for job creation promoting economic growth by cutting taxes for small business owners.

In an opinion piece published Tuesday in Politico, Steve Forbes writes ''Real economic growth has been pathetic during the Obama Presidency. Last year, the economy grew 1.7 percent. By comparison, the Reagan recovery was spectacular, growing at 4.5 percent in 1983, with nearly 3.5 million jobs. In just one month, September 1983, the Reagan economy added more than a million jobs, nearly as many as the economy grew for all of 2011.''

In order for our nation to recover from the economic recession, small businesses must be given the opportunity to grow and create jobs. The President and the liberal-controlled Senate continue to stall dozens of bills which would promote jobs. I urge my colleagues to vote in favor of this bill and help American families create jobs.

In conclusion, God Bless our troops and we will never forget September 11th in the Global War on Terrorism.

Mr. GENE GREEN of Texas. Mr. Speaker, I rise in opposition to H.R. 9, the legislation before this chamber today that would provide a one-time tax windfall in the tens of thousands of dollars to entertainers, sports franchises, smut peddlers, and other wealthy business owners, while doing little to create jobs for struggling middle-class America and adding $46 billion to the national deficit.

My colleagues on the other side of the aisle are bringing this legislation before the House in the name of tax relief for small businesses and job creation.

I would happily vote in favor of legislation that provided targeted relief to small businesses and spurred much-needed job creation in my district and throughout the country.

Unfortunately, H.R. 9 would do no such thing. In fact, the Joint Committee on Taxation stated, ''the effects of the bill on economic activity are so small as to be incalculable.''

Similarly, a report last year by the Congressional Budget Office rated the approach taken in H.R. 9 to be one of the least cost-effective ways to encourage growth or create jobs in a weak economy. CB0 estimated that this legislation's approach would create one job or fewer per $1 million of budgetary cost.

However, H.R. 9, if enacted, would be a boon to wealthy taxpayers. Nearly half of the benefit would go to individuals with incomes of over $1 million.

Seventy-six percent of small business employers have incomes below $200,000, but this group only received 16 percent of the benefit under H.R. 9. And 55 percent of small business employers have incomes below $100,000 but this group receives only six percent of the total benefit.

At a time when our Nation must tackle its growing deficit, and push further job creation, the last thing this Congress ought to do is give expensive handouts to the richest individuals in our society.

Instead, this Congress ought to be debating on how to deliver targeted job creation legislation and protect essential safety net programs, like the Supplemental Nutritional Assistance Program and Medicaid, which this House recently voted to cut in the hundreds of billions of dollars over the next decade in the name of ''deficit reduction.''

I call on my colleagues on both sides of the aisle today to stand for commonsense fiscal principles and targeted job creation and vote against H.R. 9.

Mr. POE of Texas. Mr. Speaker, our small businesses are hurting.

In the past year, only one in five small businesses has hired.

This is a problem because if small businesses aren't hiring, we don't recover.

According to a survey from the U.S. Chamber of Commerce, they are not hiring because they don't know what Washington, DC is going to do to them next.

Four in five small-business owners said that the taxes, regulations and legislation coming from Washington made it more difficult for them to hire additional workers.

In other words, our government is getting in the way of economic recovery.

H.R. 9 will be a breath of fresh air to them.

For every $100 of income, small businesses will save $7 in federal taxes.

That's 7 percent they can put towards hiring a veteran back from Iraq or someone who hasn't been able to find a job for years.

Washington needs to get out of the way and let our small businesses do what they do best: hire new workers.

And that's just the way it is.

Mr. RAHALL. Mr. Speaker, I support tax and regulatory policies that help small businesses attract investment and create jobs, but I also believe that we in the Congress must be responsible stewards of taxpayer funds.

I voted against H.R. 9 because it would spend an enormous amount of money without any requirements that the funds be invested in job creation or even invested in the American economy. Any company that receives the tax benefit provided by this bill could use it to bolster profits while laying off workers and shipping American jobs overseas. Half of the tax breaks would go to only 0.3 percent of taxpayers, those with incomes exceeding $1 million, costing $46 billion while the rest of our Nation is forced to endure the impact of painful spending cuts in programs important to working middle-class families. That's hardly fair and certainly not right.

This measure is more about scoring political points in an election year—trying to play gotcha—when we should be trying to move forward on measures that would give a real boost to job creation and economic growth.

Mr. WOLF. Mr. Speaker, I have been consistent in my support for comprehensive tax reform that lowers rates for individuals and businesses by eliminating the types of carve outs and deductions in the tax code that, as recently reported by The Hill, have let 26 Fortune 500 companies pay a negative tax rate over a four-year span. To be clear, that means these companies are getting paid by the government while hard-working men and women pay their taxes.

Something is very wrong with this picture. That is precisely the reason why we need real, long-term comprehensive tax reform. Last year, Senator TOM COBURN identified nearly $1 trillion in annual spending through the tax code through tax earmarks that benefit special interests such as video game developers, hedge fund managers, NASCAR, dog and horse tracks and ethanol producers. Unlike an earmark in an annual appropriations bill, these tax earmarks are far worse because once enacted they typically exist in perpetuity.

Using these extensive tax loopholes, General Electric (GE) paid no federal taxes in 2010. Yet, the Congressional Research Service has found that GE was honored by a Chinese newspaper for ranking 32nd among commercial service sector companies that paid taxes to China.

Let me repeat: GE paid no taxes to the United States, but was a significant source of tax revenue for China. China? China, a country that is spying on us, persecutes people of faith and has a long record of horrific human rights abuses.

Rather than putting forth true comprehensive tax reform—the type that would bring stability to the economy by providing certainty for job creators and families—both parties in both chambers have pushed political agendas instead of what is best for America.

The so-called ''Buffett rule'' the Senate attempted to pass earlier this week was defeated, and rightly so. Washington Post columnist Ruth Marcus points out President Obama's pursuit of this policy ''is pure political stunt. . . . It won't pass. And even if that happened, it would have a negligible impact on the exploding debt—$4.7 billion a year, or less than four-tenths of 1 percent of this year's deficit—and take a tiny nibble out of income inequality.''

At a time when strong leadership is needed to address our nation's crippling debt, it is unfortunate that President Obama has continually failed to lead by example. He even walked away from the recommendations of his own bipartisan fiscal commission.

Unfortunately, the House today has done no better than the Senate or president. The Wall Street Journal, in an editorial today headlined Bipartisan Tax Gimmickry, candidly described the proposal before us as a ''gimmick'' and went on to say that Republicans ''would do more for the economy and their political prospects if they began to educate the country about sensible tax policy.''

The bill before us is a temporary, one-year proposal that will increase our debt by $46 billion, without an offset to pay for this additional deficit spending. I want to stress: $46 billion for a temporary, one-year proposal.

I want to remind my colleagues that two months ago Congress essentially wiped out the $95 billion in savings cut from the 2011 and 2012 appropriations bills when it approved extending the payroll ''holiday'' for another year at a cost of $93 billion.

We are now talking about adding to this spending for a total of $139 billion in temporary, one-year stimulus spending with no offsets; no way to pay for it.

We are already running trillion dollar deficits for the fourth straight year. We are $15.6 trillion in debt. We have unfunded obligations and liabilities of $65 trillion. Republicans on the Senate Budget Committee earlier this month posted a chart on its Web site showing that our debt at the end of 2011 was greater than the combined debt of the United Kingdom and the entire Eurozone.

We need look no further than the riots in Europe to see the destructive impact that results from the crushing reality of a government unable to deliver promised entitlements to its citizens. There have been riots in Belgium, Spain, France, Ireland, England, Italy, Latvia, and Greece. And yet we are considering another proposal that moves us closer to Europe's instability.

We are now spending $4.3 billion a week simply on interest to service the debt. And this is at historically low interest rates.

The Congressional Budget Office (CBO) projects that by 2022 we're going to be sending $11.6 billion out the door each week to nations such as China, which is spying on us, where human rights are an afterthought, and Catholic bishops, Protestant ministers and Tibetan monks are jailed for practicing their faith, and oil-exporting countries such as Saudi Arabia, which funded the radical madrasahs on the Afghan-Pakistan border, resulting in the rise of the Taliban and al Qaeda.

And, unless we change course, according to the CBO's long term estimate, every penny collected of the federal budget will go to interest on the debt and entitlement spending by 2025.

Every penny. That means no money for national defense. No money for homeland security. No money to fix the nation's crumbling bridges and roads. No money for medical research to find a cure for cancer or Alzheimer's or Parkinson's disease.

Quite frankly this borrowing is unsustainable, dangerous and irresponsible.

Given our nation's fiscal obligations, one must ask: Can we really afford another costly, one-year policy absent the needed comprehensive reform?

Why are we spending time on a policy that everyone knows has no chance of being signed into law as currently drafted? Could it be because, as recently reported by Politico, ''Congress is readying for a political fight with dueling tax votes this week that will define each party's priorities in this election year''?

The final paragraph of today's Wall Street Journal editorial noted that ''[t]he economy works best when investors and companies can operate under predictable policies that allow them to better judge their risks for the long term. Reagan-era officials understood this, but too many Republicans have forgotten. The U.S. economy doesn't need another tax gimmick. It needs a tax reform that includes a permanent cut in individual and business tax rates for everyone.''

The president and some on the other side of the aisle say that our debt crisis is because Americans are under-taxed. Like President Reagan said, and I believe, ''the problem is not that people are taxed too little, the problem is that government spends too much.'' There is no question that the real problem is overspending, especially on runaway entitlement costs and through hundreds of billions of so-called tax expenditures.

It is no secret that our inefficient and burdensome tax code is undermining consumer and business confidence, further weakening our fragile economic recovery. Comprehensive tax reform is needed now more than ever to rid our tax code of earmarks and loopholes that promote crony capitalism and let Washington pick winners and losers.

Two weeks ago I was one of 38 members to vote for the bipartisan Cooper-LaTourette substitute amendment to the budget, which was modeled on the work of the Simpson-Bowles Commission. The Simpson-Bowles Commission produced a credible plan that gained the support of a bipartisan majority of the commission's 18 members. Called ''The Moment of Truth,'' the commission's report made clear that eliminating the debt and deficit will not be easy and that any reform must begin with entitlements. Mandatory and discretionary spending also has to be addressed as well as other ''sacred cows,'' including tax reform and defense spending.

The Cooper-LaTourette substitute was a balanced and ambitious plan, that, while not perfect, was the type of bitter medicine necessary to address our deficit. There is never a convenient time to make tough decisions, but the longer we put off fixing the problem, the worse the medicine will be. Unfortunately, the amendment failed.

For nearly six years I have pushed bipartisan legislation to set up an independent commission to develop a comprehensive deficit reduction package that would require an up-or-down vote by the Congress. I have said that the enormity of the crisis we face demands that everything must be on the table for discussion—all entitlement spending, all domestic discretionary spending, and tax policy; not tax increases, but reforms to make the tax code simpler and fairer and free from special interest earmarks.

I have supported every serious effort to resolve this crisis: the Bowles-Simpson recommendations, the ''Gang of Six'' effort, and the ''Cut, Cap and Balance'' bill—including the Balanced Budget Amendment. None of these solutions were perfect, but they all took the steps necessary to rebuild and protect our economy.

But powerful special interests continue to hold this institution hostage and undermine every good faith effort to change course. And that's why we have these actions on the floor of the House and Senate instead of the much-needed proposal to enact comprehensive reform.

Mr. Speaker, I do not sign political pledges to special interest groups. My only pledge is the oath of office I take on the first day of each Congress. And that is why I cannot partake in this political vote that would further add to the deficit without dealing with the underlying drivers of our deficit and debt.

As The Hill reported this week: ''Republicans and Democrats are hurtling toward a fiscal cliff, but neither side wants to take the plunge.

''In less than nine months, Bush-era tax rates are scheduled to expire, hiking rates for the middle class as well as top income earners. At the same time, automatic spending cuts will kick in. The combination, coupled with the expiration of the payroll tax cut and other factors, would constitute a blow that analysts say could imperil the economic recovery and send America crashing back into recession.''

We need to simplify the tax code to lower tax rates. But we need to do it through real, comprehensive reform, not through a piecemeal approach that makes it too politically easy to ignore our overall finances. I vote ''present'' to bring attention to this point.

Mr. PENCE. Mr. Speaker, I rise today in strong support of the Small Business Tax Cut Act (H.R. 9), which will provide tax relief to Hoosier small businesses and help them to grow and create jobs.

In Indiana there are more than 100,000 small businesses that employ more than a million Hoosiers. Nearly 14,000 of these small businesses are owned by women. As I travel across Indiana and hear from these hard-working Hoosier entrepreneurs and taxpayers, one thing is clear: Washington, DC needs a new approach to fostering job growth. With unemployment in Indiana at a disheartening 8.4 percent, Hoosiers are looking for tax relief that will help their friends and neighbors get back to work.

The Small Business Tax Cut Act reduces the heavy burden of taxes on Hoosier small businesses by allowing them to deduct 20 percent of their active income this year. In all, this important measure would reduce taxes on job creators by $46 billion, freeing up capital for small businesses to grow and take on new employees.

This pro-growth, pro-taxpayer legislation will help to foster new investment in our economy and spur job growth. I urge my colleagues to support the Small Business Tax Cut Act.

Mrs. MALONEY. Mr. Speaker, I rise in strong opposition to H.R. 9, the so-called Small Business Tax Cut Act, which, instead of helping small businesses or growing the economy, is merely another tax giveaway to the rich.

Americans are demanding that we take action to create jobs and spur economic growth, but this legislation before us today adds $46 billion to the deficit in the next year alone, fails to create jobs and actually discourages the investments our economy needs.

Now is the time to support American small businesses and grow the economy, as Democrats would do in an alternative proposal, by allowing companies to deduct 100% of the cost of capital, or ''bonus depreciation,'' in the first year for new investment in machinery and equipment—a proposal even conservative economists consider one of the most productive ways to boost economic growth.

This is not the time to hand another tax cut to our nations' wealthiest as H.R. 9 proposes, and I urge my colleagues to oppose this misguided legislation.

The SPEAKER pro tempore. All time for debate on the bill has expired.

AMENDMENT IN THE NATURE OF A SUBSTITUTE OFFERED BY MR. LEVIN

Mr. LEVIN. Mr. Speaker, I offer an amendment in the nature of a substitute.

The SPEAKER pro tempore. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Small Business Tax Cut Act''.

SEC. 2. DEDUCTION FOR DOMESTIC BUSINESS INCOME OF QUALIFIED SMALL BUSINESSES.

(a) IN GENERAL.—Part VI of subchapter B of chapter 1 of the Internal Revenue Code of 1986 is amended by adding at the end the following new section:

''SEC. 200. DOMESTIC BUSINESS INCOME OF QUALIFIED SMALL BUSINESSES.

''(a) ALLOWANCE OF DEDUCTION.—In the case of a qualified small business, there shall be allowed as a deduction an amount equal to 20 percent of the lesser of—

''(1) the qualified domestic business income of the taxpayer for the taxable year, or

''(2) taxable income (determined without regard to this section) for the taxable year.

''(b) DEDUCTION LIMITED BASED ON WAGES PAID.—

''(1) IN GENERAL.—The amount of the deduction allowable under subsection (a) for any taxable year shall not exceed 50 percent of the greater of—

''(A) the W–2 wages of the taxpayer paid to non-owners, or

''(B) the sum of—

''(i) the W–2 wages of the taxpayer paid to individuals who are non-owner family members of direct owners, plus

''(ii) any W–2 wages of the taxpayer paid to 10-percent-or-less direct owners.

''(2) DEFINITIONS RELATED TO OWNERSHIP.—For purposes of this section—

''(A) NON-OWNER.—The term 'non-owner' means, with respect to any qualified small business, any person who does not own (and is not considered as owning within the meaning of subsection (c) or (e)(3) of section 267, as the case may be) any stock of such business (or, if such business is other than a corporation, any capital or profits interest of such business).

''(B) NON-OWNER FAMILY MEMBERS.—An individual is a non-owner family member of a direct owner if—

''(i) such individual is family (within the meaning of section 267(c)(4)) of a direct owner, and

''(ii) such individual would be a non-owner if subsections (c) and (e)(3) of section 267 were applied without regard to section 267(c)(2).

''(C) DIRECT OWNER.—The term 'direct owner' means, with respect to any qualified small business, any person who owns (or is considered as owning under the applicable non-family attribution rules) any stock of such business (or, if such business is other than a corporation, any capital or profits interest of such business).

''(D) 10-PERCENT-OR-LESS DIRECT OWNERS.—The term '10-percent-or-less direct owner' means, with respect to any qualified small business, any direct owner of such business who owns (or is considered as owning under the applicable non-family attribution rules)—

''(i) in the case of a qualified small business which is a corporation, not more than 10 percent of the outstanding stock of the corporation or stock possessing more than 10 percent of the total combined voting power of all stock of the corporation, or

''(ii) in the case of a qualified small business which is not a corporation, not more than 10 percent of the capital or profits interest of such business.

''(E) APPLICABLE NON-FAMILY ATTRIBUTION RULES.—The term 'applicable non-family attribution rules' means the attribution rules of subsection (c) or (e)(3) of section 267, as the case may be, but in each case applied without regard to section 267(c)(2).

''(3) W–2 WAGES.—For purposes of this section—

''(A) IN GENERAL.—The term 'W–2 wages' means, with respect to any person for any taxable year of such person, the sum of the amounts described in paragraphs (3) and (8) of section 6051(a) paid by such person with respect to employment of employees by such person during the calendar year ending during such taxable year.

''(B) LIMITATION TO WAGES ATTRIBUTABLE TO QUALIFIED DOMESTIC BUSINESS INCOME.—Such term shall not include any amount which is not properly allocable to domestic business gross receipts for purposes of subsection (d)(1).

''(C) OTHER REQUIREMENTS.—Except in the case of amounts treated as W–2 wages under paragraph (4)—

''(i) such term shall not include any amount which is not allowed as a deduction under section 162 for the taxable year, and

''(ii) such term shall not include any amount which is not properly included in a return filed with the Social Security Administration on or before the 60th day after the due date (including extensions) for such return.

''(4) CERTAIN PARTNERSHIP DISTRIBUTIONS TREATED AS W–2 WAGES.—

''(A) IN GENERAL.—In the case of a qualified small business which is a partnership and elects the application of this paragraph for the taxable year—

''(i) the qualified domestic business taxable income of such partnership for such taxable year (determined after the application of clause (ii)) which is allocable under rules similar to the rules of section 199(d)(1)(A)(ii) to each qualified service-providing partner shall be treated for purposes of this section as W–2 wages paid during such taxable year to such partner as an employee, and

''(ii) the domestic business gross receipts of such partnership for such taxable year shall be reduced by the amount so treated.

''(B) QUALIFIED SERVICE-PROVIDING PARTNER.—For purposes of this paragraph, the term 'qualified service-providing partner' means, with respect to any qualified domestic business taxable income, any partner who is a 10-percent-or-less direct owner and who materially participates in the trade or business to which such income relates.

''(5) ACQUISITIONS AND DISPOSITIONS.—The Secretary shall provide for the application of this subsection in cases where the taxpayer acquires, or disposes of, the major portion of a trade or business or the major portion of a separate unit of a trade or business during the taxable year.

''(c) LIMITATION BASED ON INVESTMENT IN QUALIFIED PROPERTY.—

''(1) IN GENERAL.—The amount of the deduction allowable under subsection (a) for

any taxable year shall not exceed the allowance which would be determined under section 168(k)(1)(A) with respect to the taxpayer for the taxable year if such section were applied—

''(A) by substituting '100 percent' for '50 percent', and

''(B) without regard to paragraph (2).

''(2) ADJUSTMENT OF BASIS.—No deduction shall be allowed to the taxpayer under subsection (a) for any taxable year unless the adjusted basis of property taken into account under paragraph (1) is reduced by the amount of the deduction allowed under subsection (a) before computing the amount otherwise allowable as a depreciation deduction under this chapter (including any allowance otherwise determined under section 168(k)) for such taxable year and any subsequent taxable year.

''(d) QUALIFIED DOMESTIC BUSINESS INCOME.—For purposes of this section—

''(1) IN GENERAL.—The term 'qualified domestic business income' for any taxable year means an amount equal to the excess (if any) of—

''(A) the taxpayer's domestic business gross receipts for such taxable year, over

''(B) the sum of—

''(i) the cost of goods sold that are allocable to such receipts, and

''(ii) other expenses, losses, or deductions (other than the deduction allowed under this section), which are properly allocable to such receipts.

''(2) DOMESTIC BUSINESS GROSS RECEIPTS.—

''(A) IN GENERAL.—The term 'domestic business gross receipts' means the gross receipts of the taxpayer which are effectively connected with the conduct of a trade or business within the United States within the meaning of section 864(c) but determined—

''(i) without regard to paragraphs (3), (4), and (5) thereof, and

''(ii) by substituting 'qualified small business (within the meaning of section 200)' for 'nonresident alien individual or a foreign corporation' each place it appears therein.

''(B) EXCEPTIONS.—For purposes of paragraph (1), domestic business gross receipts shall not include any of the following:

''(i) Gross receipts derived from the sale or exchange of—

''(I) a capital asset, or

''(II) property used in the trade or business (as defined in section 1231(b)).

''(ii) Royalties, rents, dividends, interest, or annuities.

''(iii) Any amount which constitutes wages (as defined in section 3401).

''(3) APPLICATION OF CERTAIN RULES.—Rules similar to the rules of paragraphs (2) and (3) of section 199(c) shall apply for purposes of this section (applied with respect to qualified domestic business income in lieu of qualified production activities income and with respect to domestic business gross receipts in lieu of domestic production gross receipts).

''(e) QUALIFIED SMALL BUSINESS.—For purposes of this section—

''(1) IN GENERAL.—The term 'qualified small business' means any employer engaged in a trade or business if such employer had fewer than 500 full-time equivalent employees for either calendar year 2010 or 2011.

''(2) FULL-TIME EQUIVALENT EMPLOYEES.—The term 'full-time equivalent employees' has the meaning given such term by subsection (d)(2) of section 45R applied—

''(A) without regard to subsection (d)(5) of such section,

''(B) with regard to subsection (e)(1) of such section, and

''(C) by substituting 'calendar year' for 'taxable year' each place it appears therein.

''(3) EMPLOYERS NOT IN EXISTENCE PRIOR TO 2012.—In the case of an employer which was not in existence on January 1, 2012, the determination under paragraph (1) shall be made with respect to calendar year 2012.

''(4) APPLICATION TO CALENDAR YEARS IN WHICH EMPLOYER IN EXISTENCE FOR PORTION OF CALENDAR YEAR.—In the case of any calendar year during which the employer comes into existence, the number of full-time equivalent employees determined under paragraph (2) with respect to such calendar year shall be increased by multiplying the number so determined (without regard to this paragraph) by the quotient obtained by dividing—

''(A) the number of days in such calendar year, by

''(B) the number of days during such calendar year which such employer is in existence.

''(5) SPECIAL RULES.—

''(A) AGGREGATION RULE.—For purposes of paragraph (1), any person treated as a single employer under subsection (a) or (b) of section 52 (applied without regard to section 1563(b)) or subsection (m) or (o) of section 414 shall be treated as a single employer for purposes of this subsection.

''(B) PREDECESSORS.—Any reference in this subsection to an employer shall include a reference to any predecessor of such employer.

''(f) SPECIAL RULES.—

''(1) ELECTIVE APPLICATION OF DEDUCTION.—Except as otherwise provided by the Secretary, the taxpayer may elect not to take any item of income into account as domestic business gross receipts for purposes of this section.

''(2) COORDINATION WITH SECTION 199.—If a deduction is allowed under this section with respect to any taxpayer for any taxable year—

''(A) any gross receipts of the taxpayer which are taken into account under this section for such taxable year shall not be taken into account under section 199 for such taxable year, and

''(B) the W–2 wages of the taxpayer which are taken into account under this section shall not be taken into account under section 199 for such taxable year.

''(3) APPLICATION OF CERTAIN RULES.—Rules similar to the rules of paragraphs (1), (2), (3), (4), (6), and (7) of section 199(d) shall apply for purposes of this section (applied with respect to qualified domestic business income in lieu of qualified production activities income).

''(g) REGULATIONS.—The Secretary shall prescribe such regulations as are necessary to carry out the purposes of this section, including regulations which prevent a taxpayer which reorganizes from being treated as a qualified small business if such taxpayer would not have been treated as a qualified small business prior to such reorganization.

''(h) APPLICATION.—Subsection (a) shall apply only with respect to the first taxable year of the taxpayer beginning after December 31, 2011.''.

(b) CONFORMING AMENDMENTS.—

(1) Section 56(d)(1)(A) of such Code is amended by striking ''deduction under section 199'' both places it appears and inserting ''deductions under sections 199 and 200''.

(2) Section 56(g)(4)(C) of such Code is amended by adding at the end the following new clause:

''(vii) DEDUCTION FOR DOMESTIC BUSINESS INCOME OF QUALIFIED SMALL BUSINESSES.—Clause (i) shall not apply to any amount allowable as a deduction under section 200.''.

(3) The following provisions of such Code are each amended by inserting ''200,'' after ''199,''.

(A) Section 86(b)(2)(A).

(B) Section 135(c)(4)(A).

(C) Section 137(b)(3)(A).

(D) Section 219(g)(3)(A)(ii).

(E) Section 221(b)(2)(C)(i).

(F) Section 222(b)(2)(C)(i).

(G) Section 246(b)(1).

(H) Section 469(i)(3)(F)(iii).

(4) Section 163(j)(6)(A)(i) of such Code is amended by striking ''and'' at the end of subclause (III) and by inserting after subclause (IV) the following new subclause:

''(V) any deduction allowable under section 200, and''.

(5) Section 170(b)(2)(C) of such Code is amended by striking ''and'' at the end of clause (iv), by striking the period at the end of clause (v) and inserting '', and'', and by inserting after clause (v) the following new clause:

''(vi) section 200.''.

(6) Section 172(d) of such Code is amended by adding at the end the following new paragraph:

''(8) DOMESTIC BUSINESS INCOME OF QUALIFIED SMALL BUSINESSES.—The deduction under section 200 shall not be allowed.''.

(7) Section 613(a) of such Code is amended by striking ''deduction under section 199'' and inserting ''deductions under sections 199 and 200''.

(8) Section 613A(d)(1) of such Code is amended by redesignating subparagraphs (C), (D), and (E) as subparagraphs (D), (E), and (F), respectively, and by inserting after subparagraph (B) the following new subparagraph:

''(C) any deduction allowable under section 200,''.

(9) Section 1402(a) of such Code is amended by striking ''and'' at the end of paragraph (16), by redesignating paragraph (17) as paragraph (18), and by inserting after paragraph (16) the following new paragraph:

''(17) the deduction provided by section 200 shall not be allowed; and''.

(c) CLERICAL AMENDMENT.—The table of sections for part VI of subchapter B of chapter 1 of such Code is amended by adding at the end the following new item:

''Sec. 200. Domestic business income of qualified small businesses.''.

The SPEAKER pro tempore. Pursuant to House Resolution 620, the gentleman from Michigan (Mr. LEVIN) and a Member opposed each will control 12½ minutes.

The Chair recognizes the gentleman from Michigan.

Mr. LEVIN. I yield myself such time as I may consume.

The Democratic amendment in the nature of a substitute offers a 1-year extension of 100 percent bonus depreciation for certain U.S. businesses.

Most importantly, the amendment offers a stark contrast to the majority's untargeted giveaway to the very wealthy Americans.

First, bonus depreciation is available only to businesses that make investments in depreciable property. As a result, most of the benefit from the bonus depreciation provision will flow to businesses such as manufacturers that make significant investments in property, plant, and equipment. These are the types of businesses that create good jobs here in our country.

In contrast to the majority's mistaken bill, very little, if any, benefit would go to lawyers, lobbyists, hedge fund managers, and entertainers, to mention just a few. These service professionals simply do not make large investments in depreciable property.

Second, bonus depreciation is only available for property used in our country. So a business that builds a new factory only gets the deduction if the factory is built in this country.

In contrast, the majority's bill provides a benefit to businesses regardless of where they're expanding or investing. Businesses that cut jobs in the U.S. and expand overseas could get the benefit of H.R. 9. In practice, they would get no benefit from this amendment.

Third, the incentive to purchase depreciable property provides a benefit to all of the businesses that produce the property. The result is a more general and widespread economic stimulus.

Fourth, and finally, bonus depreciation is a proposal that has had bipartisan support, unlike H.R. 9. H.R. 9 is going nowhere—nowhere—and it should not.

Vote for and pass this substitute. It is sound policy and can become the law of the land.

I reserve the balance of my time.

Mr. CAMP. Mr. Speaker, I rise to claim the time in opposition.

The SPEAKER pro tempore. The gentleman from Michigan (Mr. CAMP) is recognized for 12½ minutes.

Mr. CAMP. I yield such time as he may consume to a distinguished member of the Ways and Means Committee, the gentleman from Illinois (Mr. SCHOCK).

Mr. SCHOCK. Mr. Speaker, I appreciate my distinguished chairman yielding time.

I can understand why the American people are frustrated. We have a President who, from day one, campaigned on raising taxes, raising taxes, then became the President of the United States, and his party in the House and his party in the Senate, they've talked about raising taxes. All the while, we've had a down economy. All the while, we've had unemployment above 8 percent. Yet the interesting thing is that, when the same Democratic Party controlled the House of Representatives and controlled the United States Senate for 2 years, they decided not to implement the Buffett tax.

□ 1230

They decided not to increase taxes on Americans.

Why? Because they know what we know and they know the truth, and that is that raising taxes will hurt the economy, that raising taxes is not what you do when you want to put people back to work. It's bad policy. It's why a year ago, despite all the rhetoric against the Bush tax cuts, despite all the rhetoric against the '01 and '03 rates, this same majority in the United States Senate and this same President said—what? President Obama said, Now is not the time to increase taxes on any American. A year ago.

If that were good policy a year ago, I might submit to you that it's good policy today. I don't know many Americans who believed a year ago that the economy was in any worse of a situation than it is in today. Raising taxes is not good policy on any American. If ever there were a starker contrast between the two visions for America, if ever there were a starker contrast between the Republican Party and the Democratic Party's visions on how to get the economy going, it is what's happening today in Washington, D.C.

Across this hallway, in the United States Senate, they are attempting to raise taxes on America's small businesses—yes, pass-through entities that pay a rate and take that capital away from them and their ability to invest in capital, in their ability to hire workers. Here in the House of Representatives, we are trying to do the opposite. We're saying that we're listening to these job creators, that we're listening to these people who actually do the hiring.

Do you know what they're saying? Their access to capital is drying up, and the cash in their bank accounts doesn't quite meet their needs each month. They need more capital to be able to go out and hire people. They need more capital to be able to go out and buy equipment.

So that's what this targeted tax cut is. It's not for the big corporations. It's targeted at people who have fewer than 500 employees. And guess what? You can have whatever opinion you want on the political ideology. You can't have your own facts, and the facts are these:

Over the last 2 years, seven out of 10 jobs created in this country were created by people who employ fewer than 500 people, the very people this tax bill is targeted at. Second, you can't throw up your hands and wonder why America's job creators are not hiring, why unemployment continues to be above 8 percent for the longest time in our country's history while at the same time advocating policies that will drive a stake into the heart of our economy and our small businesses.

This tax policy targeted at America's small businesses will give them the capital they need to stay in business, to hire those additional workers, to invest in additional capital, and maybe even to prevent layoffs, maybe even to prevent somebody from having to go on the unemployment line. It is the right policy. I wish that our friends on the other side of the aisle would embrace the policy that they had a year ago, which is that tax increases on any American is a bad policy in a down economy.

Mr. LEVIN. I yield myself 30 seconds.

The gentleman is correct in that the contrast is very stark. They've tried to raise taxes on millionaires in the Senate so they pay like the people who work for them. This bill would provide a tax break of $58,000 to those who make over $1 million, which are 125,000 taxpayers. That is a stark contrast. Have people very wealthy pay a fair share on the one side, and have this House give them a big break.

I now yield 2 minutes to another distinguished member of our committee, the gentlelady from Nevada, SHELLEY BERKLEY.

Ms. BERKLEY. I thank the gentleman for yielding.

I rise in support of the Levin substitute and on behalf of the middle class families of Nevada, who are struggling to make ends meet. I'm talking about the housekeepers and the card dealers, the teachers, the nurses, the cops on the beat, the ones who work hard to take care of their families—to put food on the tables, to fill their cars with gas, to buy new sneakers for their kids, and to make the mortgage payments on time.

Yet, in spite of these challenges, Washington asks them to give a little more. Washington Republicans ask them to make additional sacrifices and ask them to carry the extra burden for wealthy Wall Street millionaires who are not paying their fair share. Why on Earth should a waitress in Nevada pay a higher tax rate than a yacht owner? Why should a janitor pick up the slack for a Big Oil executive? Why should a card dealer sacrifice more than a Wall Street hedge fund manager? That doesn't make sense. It's not fair. Wall Street corporations shipping American jobs overseas and big oil companies making record profits don't need our help. Working men and women in this country do.

This piece of legislation would be destructive to them, their futures, and their families. It is time we started siding with middle class families, who most definitely do need our help, and that starts by passing the Buffett rule.

Mr. CAMP. I yield 2 minutes to the distinguished gentleman from Oregon (Mr. WALDEN).

Mr. WALDEN. Thank you, Mr. Chairman.

Mr. Speaker, I am intrigued by my colleague's comments a few minutes ago about how we need to support this substitute to help small businesses and all.

Yet what troubles me is, first of all, it's highly complicated. It further complicates the Tax Code. The real beneficiary will be your accountant because you've got to go through all of these machinations to figure out which side of this you qualify for. At the end of the day, according to the Joint Committee on Taxation, because of the imposition of the additional restrictions called for by the Democrats in their substitute, which we're debating at this moment, the entire relief would be something on the order of $287 million nationwide to small businesses.

So there is your alternative.

You've got the Democrats saying, boy, according to Joint Tax, $287 million. Oh, that's going to solve the problem this year. That's really going to help. We're saying, no, we want to do something that really affects small businesses, middle class small businesses—people like my wife and me when we were in small business and worked with other small businesses in small communities. They are small

businesses that want to keep some of their cash flow home, where they can invest it in their businesses, in their employees, chase these ever-rising costs of health insurance and all of these other things that you do in small business—the added government costs of regulation, all of the things that drive up your costs you need cash to pay for.

We want to help those small businesses because that is the heartbeat, the growth of where innovation comes from—from jobs in America. It is small business. This is targeted specifically at small businesses in America that can keep some of their money.

By the way, it's not the government's money first. The government wasn't your best business partner. You went out and you earned it. You ought to be able to keep more of it. That's the difference in philosophy working out here on the floor; and those of us who have met payrolls, who have paid bills, who have dealt with government regulation get that. Those who haven't have a hard time understanding why, at the beginning, this is the business's money, the individual's money, the individual who has worked hard. It is not the government's money. It is the individual's money.

I urge the defeat of the substitute.

Mr. LEVIN. I yield 1½ minutes to the gentleman from Virginia (Mr. CONNOLLY).

Mr. CONNOLLY of Virginia. Mr. Speaker, I support the substitute amendment, and I oppose the underlying bill.

I think my Democratic friends actually have it all wrong about this bill. I could be mistaken, but I think there was a drafting error in this legislation. When introducing this bill, the sponsor said, It will put more money into the hands of small business owners to reinvest those funds in order to retain, create jobs and grow their businesses, plain and simple.

This bill does nothing of the sort.

For starters, it does not target small businesses as the title claims. Rather than maximizing assistance for those employers who need it most, fewer than half the tax cuts go to legitimate small businesses. What's more, there is no requirement that this taxpayer subsidy should be used to hire new workers or expand facilities to grow the economy. I am also puzzled, Mr. Speaker, when looking at the bill before us today and previous drafts. You see, earlier drafts excluded certain businesses like liquor stores, casinos and strip clubs from receiving any tax relief; but the current draft does not have such exclusions. Further, this bill is not offset and would actually increase the deficit by $46 billion, which I know runs contrary to the intent of the sponsor, who believes that even in emergencies Federal assistance should be offset.

So you see, Mr. Speaker, I know my colleagues are very busy and are, perhaps, distracted with issues like compromising women's reproductive health rights, which is why I can only assume that these simple drafting errors have come to characterize this bill. I urge its rejection. Let's start over.

□ 1240

Mr. CAMP. Mr. Speaker, how much time is remaining?

The SPEAKER pro tempore. There are 6½ minutes remaining on both sides.

Mr. CAMP. Thank you.

At this time, I yield 2 minutes to the distinguished gentleman from Illinois, a Member of the Ways and Means Committee, Mr. ROSKAM.

Mr. ROSKAM. Mr. Speaker, I thank the gentleman for yielding.

I want to speak for just a minute on the substitute.

Speaking of drafting errors, you can only assume that there was a drafting error on the substitute. Look, that happens. If it was a drafting error, the best thing to do is take the bill out of the record and start again. I think the notion of comparing $287 million in tax relief to $47 billion in tax relief is simply a nonstarter. It's as if the minority is saying, We sort of accept part of the premise of this tax cut, but we're going to cut it down. And then we're going to cut down the tax relief a little more. And then we're going to cut down the tax relief a little more and a little more and a little more and a little more until finally it's this obscure little bit of nonsense that isn't going to do anything.

Here's what we need to do. We need to give relief to the small business in my district. I was touring a plant, and the owner/entrepreneur who started the company said, Look, the smart move for me, Congressman, is to put three-quarters of a million dollars into this new production line. It would mean that I would expand production, bring in more people, and so forth, and have a very simple ripple effect, but I'm not going to do it. The reason I'm not going to do it is because Washington, D.C., tells me I'm rich. I'm not rich. I'm just a prudent businessman who's built a successful business.

What we need to do, Mr. Speaker, is to create an environment where that business owner, that entrepreneur says to himself or herself, I'm willing to invest.

They need relief. They're begging for relief in suburban Chicago from their tax liability, and this is an opportunity now with this language that is authored by the majority leader and that is on the House floor.

I urge its passage, and I urge rejection of the substitute.

Mr. LEVIN. I yield 2 minutes to another distinguished member of our committee, the gentleman from Wisconsin (Mr. KIND).

Mr. KIND. I want to thank the ranking member for yielding me this time.

Mr. Speaker, just to set the record straight, the amendment that was offered by Mr. MCDERMOTT at the Rules Committee, and what our Ranking Member LEVIN and we Democrats in the Ways and Means Committee supported, offered immediate expenses, a bonus depreciation for capital investment for small businesses that was fully offset and fully paid for by eliminating the tax breaks that large oil companies are receiving today, who are sitting on record profits, with record high prices. And it wouldn't add a nickel to the deficit.

That's why I adamantly oppose the underlying bill before us today. It's the here-we-go-again syndrome around here. How deep are we going to create this hole? It's a $46 billion tax cut that's not offset, that's not paid for, will go straight to deficit, close to half of it going to millionaires. An average tax savings of over $58,000 is not the way to get this economy out of the hole that it's in. In fact, when the Joint Committee on Taxation and the Congressional Budget Office analyzed the Republican underlying bill, they said this is probably the worst thing for the buck that we can invest in the economy to create the jobs that we need today. Yet, this is a syndrome that happens over and over again from the other side. They support huge tax cuts without paying for them, driving our Nation deeper into debt.

If they think it's worthwhile enough and important enough to invest in, then pay for it. Find offsets in the spending, and let's have that discussion as far as our priorities. But don't go down the easy route of trying to offer this illusion of tax relief to all Americans, especially the iconic small business owner out there, without paying a nickel for it and adding to the budget deficits that are accumulating today.

I tried to explain to folks back home how we got into this hole. Certainly, the most important driving factor is the underperforming economy and the huge recession that we're trying to climb out of right now. But you can also look back at previous policies not so long ago supported by the other side: two huge tax cuts that weren't paid for; two wars that weren't paid for; the largest expansion of entitlement spending in the prescription drug bill that wasn't paid for. It's little wonder we're facing huge deficits.

I reject the underlying bill and support the Levin amendment.

Mr. CAMP. I reserve the balance of my time.

Mr. LEVIN. I yield 1½ minutes to the gentleman from New York (Mr. CROWLEY).

Mr. CROWLEY. Mr. Speaker, I think it needs to be reiterated once again that the sponsor of the underlying bill, the gentleman from Virginia (Mr. CANTOR), believes that we need to find payfors. We need to pay for it and not add to the deficit when it comes to disaster relief.

Let's put that in perspective. A hurricane hits, wipes out a town. The American government cannot go and rescue and help those people and pay

for that without finding a pay-for in order to substitute for that payment.

When tornados hit middle America and peoples' lives are destroyed, their homes are destroyed, and cities and towns are eviscerated, the Congress has to come up with pay-fors in order to help in that disaster relief, but not when it comes to a tax break for companies that will offshore American jobs.

Those tax breaks we don't have to pay for. Mr. CANTOR doesn't believe you have to pay for those. But for disasters that hit America and cities and towns that are annihilated, they must be paid for. I just think that needs to be pointed out to the American people.

The Levin bill is a far superior bill. It incentivizes growth within small businesses without burdening the American taxpayer at the same time.

Whose money are we talking about? This is not the small business person's money. This is money that otherwise would be revenue to the country. This is the American taxpayer's money that we're just giving back to millionaires, hardworking Americans who work and toil every day to give a tax break to millionaires.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair would again ask Members to heed the gavel.

The Chair recognizes the gentleman from Michigan (Mr. CAMP).

Mr. CAMP. I continue to reserve the balance of my time.

Mr. LEVIN. Does the gentleman from Michigan have any other speakers?

Mr. CAMP. No.

Mr. LEVIN. I now yield 1 minute to the gentleman from Oregon (Mr. BLUMENAUER).

Mr. BLUMENAUER. Mr. Speaker, I heard my good friend from Chicago talking about people begging for investment. Well, business is looking for our assistance, but nobody has come seeking an inefficient effort like this that will dig ourselves deeper into debt and not have impact. We have offered alternatives that would not have added to the deficit and would have helped business right away.

I'm honored to be joined on the floor by a young friend, Johnny Hammer, who in looking at this assessment, said, This is going to be adding to the deficit. That's right, and we didn't need to do that. Instead, we should be focusing on things that are deficit neutral that will give American business things that will add productivity right now.

I strongly urge my colleagues to reject this proposal and think about the young Johnny Hammers of this world investing in our future in a way that is responsible and sustainable.

Mr. CAMP. Mr. Speaker, I am prepared to close.

I believe the gentleman from Michigan (Mr. LEVIN) has the right to close.

The SPEAKER pro tempore. The gentleman from Michigan (Mr. CAMP) has the right to close. It is Mr. LEVIN's amendment, and Mr. CAMP is a manager in opposition.

The Chair recognizes the gentleman from Michigan (Mr. LEVIN).

Mr. LEVIN. I yield myself the balance of my time.

The SPEAKER pro tempore. The gentleman is recognized for 2 minutes.

Mr. LEVIN. There is a criticism that the bonus depreciation provision doesn't go far enough. My answer to that is: let's pass this and then join together. You have supported bonus depreciation in the past. You haven't acted on it. We do.

Let me just say what's at stake. This bill isn't going anywhere—it's going nowhere, but it says everything about the majority's priorities.

They oppose raising taxes on the very wealthy, they take a pledge that applies to the very wealthy, and they end up with a bill they won't pay for. They make empty rhetoric about the deficit. Essentially what they're coming here today to do is to make it worse, by giving a tax break to the very wealthy through this bill.

□ 1250

We've said it many times, nobody refutes it. You're stuck on a pledge not to raise taxes even for the very wealthy, and you come today with a proposal for a tax break for 125,000 taxpayers making more than a million dollars with a tax break of 58,000. Then to make it still worse, you cut necessary programs for lower- and middle-income families, from child care and Meals On Wheels. Where's your conscience?

The SPEAKER pro tempore. The time of the gentleman from Michigan (Mr. LEVIN) has expired, and the gentleman from Michigan (Mr. CAMP) has 4½ minutes remaining.

Mr. CAMP. Mr. Speaker, I yield myself such time as I may consume.

I appreciate at least hearing some of the new-found fiscal responsibility from my friends on the other side, since the Obama administration has come into office with help from Democrats on the other side of the aisle who increased the debt by $5 trillion, with a ''t.''

Let me just comment on this substitute. It's not that the bonus depreciation in this legislation doesn't go far enough. It's that it doesn't provide bonus depreciation. It does limit the bill based on the concept of bonus depreciation, but this bill has been analyzed by the Joint Committee on Taxation.

Rather than providing the $46 billion of tax relief, this bill only provides a small fraction of that, 6 percent. Under the underlying legislation, millions of small businesses would be able to make investments, be able to buy equipment, would be able to hire workers. This substitute guts the bill and will result in no economic impact in this country.

I would urge a ''no'' vote on the substitute. I would urge support for the underlying bill, and I yield back the balance of my time.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair would note that it is not in order during debate to refer to persons on the floor of the House as guests of the House.

Pursuant to the rule, the previous question is ordered on the bill, as amended, and on the amendment offered by the gentleman from Michigan (Mr. LEVIN).

The question is on the amendment offered by the gentleman from Michigan (Mr. LEVIN).

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. LEVIN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 175, nays 236, not voting 20, as follows:

[Roll No. 175]

YEAS—175

Ackerman
Altmire
Andrews
Baca
Baldwin
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Boswell
Brady (PA)
Brown (FL)
Butterfield
Capps
Capuano
Cardoza
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Donnelly (IN)
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Frank (MA)
Fudge
Garamendi
Gonzalez
Green, Al
Green, Gene
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Neal
Olver
Owens
Pallone
Pascrell
Pastor (AZ)
Pelosi
Perlmutter
Peters
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Reyes
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Sires
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Tierney
Tonko
Towns
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Watt
Waxman
Welch
Wilson (FL)
Woolsey
Yarmuth

NAYS—236

Adams
Aderholt
Akin
Alexander
Amash
Amodei
Austria
Bachmann
Bachus
Barletta
Barrow
Bartlett

Barton (TX)
Benishek
Berg
Biggert
Bilbray
Bilirakis
Black
Blackburn
Bonner
Bono Mack
Boren
Boustany
Brady (TX)
Brooks
Broun (GA)
Buchanan
Bucshon
Buerkle
Burgess
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Davis (KY)
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Herger
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
Lamborn
Lance
Landry
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Marchant
Matheson
McCarthy (CA)
McCaul
McClintock
McCotter
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Pence
Peterson
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (AR)
Ross (FL)
Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuler
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (IN)

NOT VOTING—20

Bass (NH)
Bishop (UT)
Braley (IA)
Burton (IN)
Filner
Flake
Gosar
Guinta
Manzullo
Marino
Napolitano
Nunes
Paul
Rangel
Schrader
Slaughter
Thompson (MS)
Walsh (IL)
Waters
Young (FL)

□ 1317

Mrs. ROBY and Messrs. MCCARTHY of California and REICHERT changed their vote from ''yea'' to ''nay.''

Messrs. CARSON of Indiana, COURTNEY, and CAPUANO changed their vote from ''nay'' to ''yea.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

Stated for:

Mrs. NAPOLITANO. Mr. Speaker, on Thursday, April 19, 2012, I was absent during rollcall vote No. 175 due to a family medical emergency. Had I been present, I would have voted ''yea'' on agreeing to the Levin Substitute Amendment to H.R. 9, Small Business Tax Cut Act.

Mr. FILNER. Mr. Speaker, on rollcall 175, I was away from the Capitol due to prior commitments to my constituents. Had I been present, I would have voted ''yea.''

□ 1320

The SPEAKER pro tempore (Mr. WOMACK). The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mr. DEUTCH. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentleman opposed to the bill?

Mr. DEUTCH. I am opposed.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mr. Deutch moves to recommit the bill H.R. 9 to the Committee on Ways and Means with instructions to report the same back to the House forthwith with the following amendments:

At the end of paragraph (2) of section 200(c) of the Internal Revenue Code of 1986, as proposed to be added by section 2 of the bill, add the following:

''(C) DENIAL OF DEDUCTION FOR CERTAIN BUSINESSES.—The term 'domestic business gross receipts' shall not include any gross receipts attributable to any of the following:

''(i) ILLEGAL ACTIVITIES.—Any illegal activity, including trafficking in illegal drugs and prostitution.

''(ii) PORNOGRAPHY.—Any property with respect to which records are required to be maintained under section 2257 of title 18, United States Code.

''(iii) DISCRIMINATORY GOLF COURSES AND CLUBS.—Golf courses or clubs that discriminatorily restrict membership on the basis of sex or race.

''(iv) LOBBYING.—Activities described in section 162(e)(1).

''(v) BUSINESS ACTIVITIES OF PERSONS IN VIOLATION OF THE IRAN SANCTIONS ACT OF 1996.—Any activity of any person (including any successor, assign, affiliate, member, or joint venturer with an ownership interest in any property or project any portion of which is owned by such person) that is in violation of the Iran Sanctions Act of 1996 (50 U.S.C. 1701 note) or the Comprehensive Iran Sanctions, Accountability, and Divestment Act of 2010 (22 U.S.C. 8501 et seq.).

''(D) DISCLOSURE BY MEMBERS OF CONGRESS.—No amount shall be taken into account as domestic business gross receipts by any Member of Congress unless the amount of the deduction allowed under this section and a description of the business activities giving rise to such deduction are publicly disclosed (in such manner and form as the Secretary may prescribe) not later than the date on which the return of tax is filed.''.

Add at the end of the bill the following:

SEC. 3. DENIAL OF DEDUCTION FOR MOVING UNITED STATES JOBS OVERSEAS.

(a) IN GENERAL.—Subsection (e) of section 200 of the Internal Revenue Code of 1986, as added by section 2 of this Act, is amended by adding at the end the following new paragraph:

''(4) DENIAL OF DEDUCTION FOR MOVING UNITED STATES JOBS OVERSEAS.—

''(A) IN GENERAL.—No deduction shall be allowed under this section with respect to any employer—

''(i) which has fewer full-time equivalent employees in the United States for the taxable year beginning in calendar year 2012 as compared to the preceding taxable year, and

''(ii) which has more full-time equivalent employees outside the United States for the taxable year beginning in calendar year 2012 as compared to the preceding taxable year.

''(B) EMPLOYEES OUTSIDE THE UNITED STATES.—For purposes of this paragraph, an employee shall be treated as employed by the employer outside the United States whether employed directly or indirectly through a controlled foreign corporation (as defined in section 957) or a pass-through entity in which the taxpayer holds at least 50 percent of the capital or profits interest.

''(C) EXCEPTION FOR EMPLOYEES SEPARATED VOLUNTARILY OR FOR CAUSE.—For purposes of this paragraph, the number of full-time equivalent employees shall be determined without regard to any employee separated from employment voluntarily or for cause.

''(D) AGGREGATION RULE.—Subsection (d)(5)(A) shall apply for purposes of this paragraph.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2011.

Mr. DEUTCH (during the reading). Mr. Speaker, I ask unanimous consent to dispense with the reading of the amendment.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

Mr. CAMP. I object.

The SPEAKER pro tempore. Objection is heard.

The Clerk will continue to read.

The Clerk continued to read.

Mr. CAMP (during the reading). Mr. Speaker, I ask unanimous consent to suspend the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Michigan?

Mr. CROWLEY. I object.

The SPEAKER pro tempore. Objection is heard.

The Clerk will continue to read.

The Clerk continued to read.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Florida is recognized for 5 minutes in support of his motion.

Mr. DEUTCH. Mr. Speaker, this debate has revealed deep differences between the majority and minority when it comes to how to grow our economy. We object to how Leader CANTOR's bill borrows $47 billion from China for tax cuts designed to benefit millionaires. That's why the CBO ranked this proposal second to dead last in a long list of things we could do to create jobs.

Now, Americans have learned by now that there is no such thing as a temporary Republican tax cut for the wealthy. They're all permanent. Let's acknowledge the real price tag here, a half a trillion dollars in deficit spending over the next decade—not for education, not for infrastructure, another $500 billion in windfall for the wealthy.

As I said before, our disagreements run deep. The fact that we are outnumbered means that this misguided

legislation will likely pass. Given that reality, we should at least be able to come together and agree on which businesses should be excluded from this new windfall. That's what my amendment aims to do.

My changes are relatively small. In fact, Leader CANTOR's legislation remains largely the same. For example, pass my amendment, and H.R. 9 will still uphold the GOP plan to take $46 billion from China and give half of it to millionaires. H.R. 9 will still count oil speculators, professional sports teams, and corporate lobbyists as small businesses. H.R. 9 will still pick and choose winners and losers by arbitrarily adding new loopholes to our already overcomplicated Tax Code. And, of course, Leader CANTOR's massive tax cut will remain available to businesses even if they create no jobs at all.

So let me be crystal clear about what my bill changes. It better safeguards our taxpayer dollars.

First, my amendment will stop businesses engaging in illegal activity, from drug trafficking to prostitution, from receiving this deduction. This is a no-brainer, and I have no idea why it's not in the bill already. We should all agree, given the recent news from South America, that there is no such thing as being too careful with American tax dollars.

Second, this amendment ensures that no company that outsources American jobs will qualify for this windfall. Certainly our constituents don't want us borrowing money from China to give to companies that outsource jobs to China. Certainly we can all agree that cutting taxes for businesses that are American in name only, that choose foreign workers over American workers, do not deserve another giveaway.

Third, my amendment prevents companies that do business with Iran from being eligible for this tax cut. As Iran pursues an illicit nuclear weapons program, we should not reward businesses that threaten the security of the United States and our treasured ally Israel.

Mr. Speaker, my amendment also stops this bill from cutting taxes for pornographic empires that somehow qualify as small businesses under this bill. It also requires Members of Congress who are owners of small businesses to disclose any benefits that they get under this bill. It excludes golf courses that discriminate based on race and gender. Finally, my amendment bans lobbyists from cashing in on this deduction.

Now, look, I know as soon as I sit down a colleague from the other side of the aisle will come forward and claim that I'm pursuing some procedural ploy and attempting to kill the bill. That's simply not true. Adopt these changes so we can vote on the final bill right here and right now.

Join me and prevent Americans' hard-earned tax dollars from subsidizing Iranian nucs, cutting costs for criminals, and padding the pockets of pornographers. And let's make sure that this bill does not reward companies that ship jobs overseas. It is the right thing to do. It's up to us to make these changes. We can make them right here and right now.

I ask all of my colleagues to protect the American taxpayers and support these final protections to the bill.

I yield back the balance of my time.

□ 1330

Mr. CAMP. Mr. Speaker, I seek time in opposition to the motion.

The SPEAKER pro tempore. The gentleman from Michigan is recognized for 5 minutes.

Mr. CAMP. I would just say to my friend that I'm not going to stand up and say that this is a procedural ploy. But I will stand up and say it is a political ploy.

We should not be picking winners and losers. The fact is small businesses are hurting because of the failed policies of the Obama administration. It's time to stand up for small business and the people they employ.

Let's get America back to work. I urge defeat of this motion to recommit and support for H.R. 9, the Small Business Tax Cut Act.

I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

RECORDED VOTE

Mr. DEUTCH. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, the Chair will reduce to 5 minutes the minimum time for any electronic vote on passage.

The vote was taken by electronic device, and there were—ayes 179, noes 229, not voting 23, as follows:

[Roll No. 176]

AYES—179

Ackerman
Altmire
Andrews
Baca
Baldwin
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Boren
Boswell
Brady (PA)
Brown (FL)
Butterfield
Capps
Capuano
Cardoza
Carnahan
Carney
Carson (IN)
Castor (FL)
Chandler
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cuellar
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Donnelly (IN)
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Frank (MA)
Fudge
Garamendi
Gonzalez
Green, Al
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Hochul
Holden
Holt
Honda
Hoyer
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kildee
Kind
Kissell
Kucinich
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis (GA)
Lipinski
Loebsack
Lofgren, Zoe
Lowey
Luján
Lynch
Maloney
Markey
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Michaud
Miller (NC)
Miller, George
Moore
Moran
Murphy (CT)
Nadler
Neal
Olver
Owens
Pallone
Pascrell
Pastor (AZ)
Pelosi
Perlmutter
Peters
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Reyes
Richardson
Richmond
Ross (AR)
Rothman (NJ)
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Shuler
Sires
Smith (WA)
Speier
Stark
Sutton
Thompson (CA)
Tierney
Tonko
Towns
Tsongas
Van Hollen
Velázquez
Visclosky
Walz (MN)
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Woolsey
Yarmuth

NOES—229

Adams
Aderholt
Akin
Alexander
Amash
Amodei
Austria
Bachmann
Bachus
Barletta
Barrow
Bartlett
Barton (TX)
Benishek
Berg
Biggert
Bilbray
Bilirakis
Black
Blackburn
Bonner
Bono Mack
Boustany
Brady (TX)
Brooks
Broun (GA)
Buchanan
Bucshon
Buerkle
Burgess
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Culberson
Davis (KY)
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Herger
Herrera Beutler
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jordan
Kelly
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
Lamborn
Lance
Lankford
Latham
LaTourette
Latta
Lewis (CA)
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lungren, Daniel E.
Mack
Marchant
McCarthy (CA)
McCaul
McClintock
McCotter
McHenry
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mulvaney
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Pence
Peterson
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Ribble
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (FL)

Royce
Runyan
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (AK)
Young (IN)

NOT VOTING—23

Bass (NH)
Bishop (UT)
Braley (IA)
Burton (IN)
Clyburn
Filner
Flake
Gosar
Green, Gene
Guinta
Landry
Manzullo
Marino
Napolitano
Nunes
Paul
Rangel
Sewell
Sherman
Slaughter
Thompson (MS)
Walsh (IL)
Young (FL)

□ 1345

Mrs. EMERSON changed her vote from ''aye'' to ''no.''

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

Stated for:

Mrs. NAPOLITANO. Mr. Speaker, on Thursday, April 19, 2012, I was absent during rollcall vote No. 176 due a family medical emergency. Had I been present, I would have voted ''aye'' on the Motion to Recommit to H.R. 9, Small Business Tax Cut Act.

Mr. GENE GREEN of Texas. Mr. Speaker, on rollcall No. 176, the Democratic Motion to Recommit H.R. 9, had I been present, I would have voted ''aye.''

Mr. FILNER. Mr. Speaker, on rollcall 176, I was away from the Capitol due to prior commitments to my constituents. Had I been present, I would have voted ''aye.''

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. LEVIN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 235, nays 173, answered ''present'' 1, not voting 22, as follows:

[Roll No. 177]

YEAS—235

Adams
Aderholt
Akin
Alexander
Amodei
Austria
Bachmann
Bachus
Barletta
Barrow
Bartlett
Barton (TX)
Benishek
Berg
Biggert
Bilbray
Bilirakis
Bishop (NY)
Black
Blackburn
Bonner
Bono Mack
Boren
Boswell
Boustany
Brady (TX)
Brooks
Buchanan
Bucshon
Buerkle
Burgess
Calvert
Camp
Campbell
Canseco
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Chandler
Coble
Coffman (CO)
Cole
Conaway
Cravaack
Crawford
Crenshaw
Cuellar
Culberson
Davis (KY)
Denham
Dent
DesJarlais
Diaz-Balart
Dold
Donnelly (IN)
Dreier
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emerson
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Foxx
Franks (AZ)
Frelinghuysen
Gallegly
Garamendi
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Hayworth
Heck
Hensarling
Herger
Herrera Beutler
Hochul
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (IL)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kissell
Kline
Lamborn
Lance
Lankford
Latham
Latta
Lewis (CA)
LoBiondo
Loebsack
Long
Lucas
Luetkemeyer
Lungren, Daniel E.
Mack
Marchant
Matheson
McCarthy (CA)
McCaul
McCotter
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meehan
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Murphy (PA)
Myrick
Neugebauer
Noem
Nugent
Nunnelee
Olson
Owens
Palazzo
Paulsen
Pearce
Pence
Petri
Pitts
Platts
Poe (TX)
Pompeo
Posey
Price (GA)
Quayle
Reed
Rehberg
Reichert
Renacci
Rigell
Rivera
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross (AR)
Ross (FL)
Royce
Runyan
Ruppersberger
Ryan (WI)
Scalise
Schilling
Schmidt
Schock
Schweikert
Scott (SC)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stearns
Stivers
Stutzman
Sullivan
Sutton
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner (NY)
Turner (OH)
Upton
Walberg
Walden
Walz (MN)
Webster
West
Westmoreland
Whitfield
Wilson (SC)
Wittman
Womack
Yoder
Young (AK)
Young (IN)

NAYS—173

Ackerman
Altmire
Amash
Andrews
Baca
Baldwin
Bass (CA)
Becerra
Berkley
Berman
Bishop (GA)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Broun (GA)
Brown (FL)
Butterfield
Capps
Capuano
Cardoza
Carnahan
Carney
Carson (IN)
Castor (FL)
Chu
Cicilline
Clarke (MI)
Clarke (NY)
Clay
Cleaver
Cohen
Connolly (VA)
Conyers
Cooper
Costa
Costello
Courtney
Critz
Crowley
Cummings
Davis (CA)
Davis (IL)
DeFazio
DeGette
DeLauro
Deutch
Dicks
Dingell
Doggett
Doyle
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Fortenberry
Frank (MA)
Fudge
Gonzalez
Green, Al
Grijalva
Gutierrez
Hahn
Hanabusa
Hastings (FL)
Heinrich
Higgins
Himes
Hinchey
Hinojosa
Hirono
Holden
Holt
Honda
Hoyer
Israel
Jackson (IL)
Jackson Lee (TX)
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kildee
Kind
Kucinich
Labrador
Langevin
Larsen (WA)
Larson (CT)
LaTourette
Lee (CA)
Levin
Lewis (GA)
Lipinski
Lofgren, Zoe
Lowey
Luján
Lummis
Lynch
Maloney
Markey
Matsui
McCarthy (NY)
McClintock
McCollum
McDermott
McGovern
McNerney
Meeks
Michaud
Miller (NC)
Miller, George
Moore
Moran
Mulvaney
Murphy (CT)
Nadler
Neal
Olver
Pallone
Pascrell
Pastor (AZ)
Pelosi
Peters
Peterson
Pingree (ME)
Polis
Price (NC)
Quigley
Rahall
Reyes
Ribble
Richardson
Richmond
Rothman (NJ)
Roybal-Allard
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell
Sherman
Shuler
Sires
Smith (WA)
Speier
Stark
Thompson (CA)
Tierney
Tonko
Towns
Tsongas
Van Hollen
Velázquez
Visclosky
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Woodall
Woolsey
Yarmuth

ANSWERED ''PRESENT''—1

Wolf

NOT VOTING—22

Bass (NH)
Bishop (UT)
Braley (IA)
Burton (IN)
Clyburn
Filner
Flake
Gosar
Green, Gene
Guinta
Landry
Manzullo
Marino
Napolitano
Nunes
Paul
Perlmutter
Rangel
Slaughter
Thompson (MS)
Walsh (IL)
Young (FL)

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1355

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Mr. GENE GREEN of Texas. Mr. Speaker, on rollcall No. 177, final passage of H.R. 9, had I been present, I would have voted ''nay.''

Mrs. NAPOLITANO. Mr. Speaker, on Thursday, April 19, 2012, I was absent during rollcall vote No. 177 due to a family medical emergency. Had I been present, I would have voted ''nay'' on final passage of H.R. 9, Small Business Tax Cut Act.

Mr. FILNER. Mr. Speaker, on rollcall 177, I was away from the Capitol due to prior commitments to my constituents. Had I been present, I would have voted ''nay.''

PERSONAL EXPLANATION

Mr. MANZULLO. Mr. Speaker, I missed votes today to attend to official government business in Illinois. If I had been here, I would have voted ''yea'' on rollcall No. 172; ''yea'' on rollcall No. 173; ''yea'' on rollcall No. 174; ''no'' on rollcall No. 175; ''no'' on rollcall No. 176; and ''yea'' on rollcall No. 177.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 2341

Mr. LANGEVIN. Mr. Speaker, I ask unanimous consent to withdraw my name as a cosponsor of H.R. 2341.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Rhode Island?

There was no objection.

□ 1400

LEGISLATIVE PROGRAM

(Mr. HOYER asked and was given permission to address the House for 1 minute.)

Mr. HOYER. Mr. Speaker, I yield to the majority leader, the gentleman

from Virginia (Mr. CANTOR), for the purpose of inquiring about the schedule for the week to come.

Mr. CANTOR. Mr. Speaker, I thank the gentleman from Maryland, the Democratic whip, for yielding.

Mr. Speaker, on Monday, no votes are expected in the House. On Tuesday, the House will meet at noon for morning-hour and 2 p.m. for legislative business. Votes will be postponed until 6:30 p.m. On Wednesday and Thursday, the House will meet at 10 a.m. for morning-hour and noon for legislative business. On Friday, the House will meet at 9 a.m. for legislative business. Last votes of the week are expected no later than 3 p.m.

Mr. Speaker, the House will consider a number of bills under suspension of the rules, a complete list of which will be announced by the close of business tomorrow.

Among next week's suspensions will be a noteworthy bill, H.R. 2146, authored by Congressman DARRELL ISSA and known as the DATA Act. This is an important step in our continuing effort to make government more accountable, accessible, and transparent, especially when it comes to the expenditure of taxpayer dollars.

It is also possible that the House will consider a motion to go to conference and motion to instruct conferees on the surface transportation authorization bill.

In addition, Mr. Speaker, we expect a full debate next week on the importance of our Nation's cybersecurity. The House will consider a number of bipartisan bills to reduce obstacles to voluntary information sharing between the private sector and government, secure our Nation's infrastructure, better protect government systems and combat foreign threats.

A number of committees have been involved in this effort, Mr. Speaker, including the Intelligence Committee, Homeland Security, Oversight and Government Reform, Science, Judiciary, and Energy and Commerce.

Of the bills coming to the floor, we will consider H.R. 3523, the Cyber Intelligence Sharing and Protection Act, under a rule. This important legislation is authored by Chairman MIKE ROGERS and cosponsored by Ranking Member DUTCH RUPPERSBERGER.

I thank the gentleman for yielding.

Mr. HOYER. I thank the gentleman for his information.

The gentleman, in his comments, indicates that we might go to conference on the surface transportation bill. As the gentleman knows, the Senate surface transportation bill passed overwhelmingly and with a very substantial bipartisan vote and a vote led by Senator BOXER and Senator INHOFE of Oklahoma. There were 22 Republican Senators. About half of the Republican Senators voted for it, and so it passed overwhelmingly.

I am wondering, given the timeframe in which we are dealing, whether or not the gentleman feels comfortable with some assurance that we are going to move to go to conference so that we can get a conference under way. I know the majority indicated it wanted a bill so that it could, in fact, go to conference. I have had discussions with, I think, you but I know Mr. BOEHNER, the Speaker, and Mr. MCCARTHY, that that was the intent to go to conference.

What would preclude us, I suppose would be the better way to phrase the question, from having a motion to go to conference next week? As the gentleman knows, we are going to be out the week following so that we will not be back until May, into May; and to the extent that we delay going to conference, we are going to delay the resolution of what I think is a very, very important bill. I know the gentleman does as well. We believe this is a real job creator.

As you know, Mr. LaHood is the Secretary of Transportation, your former colleague on your side of the aisle. He has made it very clear that this is a very substantial jobs bill. To the extent that we could move quickly, I think it would be in the best interests of our country, of infrastructure investment, and the creation of jobs.

I yield to my friend.

Mr. CANTOR. I thank the gentleman.

Mr. Speaker, I will tell the gentleman we have every intention of going forward, and, at this point, I don't know what could come up and preclude us from doing so. But we look forward to working with the gentleman over the course of the next two-plus months to come to resolution so that we can provide some certainty to States, industries, private sector, public, and the rest with regard to our transportation infrastructure.

Mr. HOYER. I thank the gentleman.

And in light of the fact that he looks forward to my help, I want to tell him that if he brings a motion to go to conference next week, I will bring the overwhelming majority of my caucus to a vote with that motion to go to conference so that we can get that done. I will be glad to help in that respect.

Will that help him?

Mr. CANTOR. I thank the gentleman.

Mr. HOYER. I didn't know whether those votes would help you get the job done that I think needs to be done. I don't say that facetiously. I think we want to go to conference. I have been told you want to go to conference, and I would hope we could move forward on that. As a matter of fact, the chairman of your committee, Representative MICA, said yesterday we should go to conference immediately, and we would be very interested in helping you towards that process.

Mr. Leader, the Appropriations Committee has started to mark up its bills and has dealt with the reconciliation instructions. My understanding is the reconciliation instructions, the result of those instructions will be coming to the floor probably the first month, the month of May.

Is that accurate?

Mr. CANTOR. That is correct, Mr. Speaker.

Mr. HOYER. With respect to the appropriations bills, much was made of the fact that you wanted to bring appropriations bills to the floor one at a time and under open rules. I think that's a good practice. Frankly, I would have liked to have done that when we were in charge, and we didn't get that done. I said then that I didn't think it was good for the institution for the consideration of appropriation bills, and you, I think, rightfully criticized us for that—not you, personally, but the Republican side of the aisle.

Is it your intention to bring the appropriations bills to the floor singly, individually, with an open rule as Speaker BOEHNER indicated would be the case, and, if so, when will that occur?

I yield to my friend.

Mr. CANTOR. Mr. Speaker, I would say to the gentleman that, as he knows, working through the committee at this point are the CJS bill and the energy and water bill. It is our intention to bring one of those forward the week that he indicates, May 7, to be debated.

The Speaker has consistently come down on the side of wanting there to be an open process. I think that, given the House's track record on appropriations bills and the debates surrounding them, we are hoping that we can have a deliberate debate around the substance and policy of the issues and set as a model for going forward.

But I would say to the gentleman, as far as we go right now, we are looking at May 7 to be the time in which we bring one of those bills to the floor for deliberation and a vote.

Mr. HOYER. I thank the gentleman for his comments.

I make the additional observation that we passed a budget. Many of us voted against that budget, as you know, that passed. We voted for our alternative. But the American people, I think, have an interest and, frankly, a right to know what the ramifications of that budget that was passed are; and obviously they will find that out as the appropriation bills move forward, are considered on this floor, open to debate and open to amendment. That will educate the American people on what the consequences are of passing budget A over budget B, your budget, our budget, or an alternative budget.

It's really in the appropriations bill. The budget doesn't really do anything, as we all know, other than set a 302(a) allocation. That is the amount of discretionary dollars that can be applied in the appropriations process. What that means is that the only thing it does is set that limit and does not apportion resources to particular objectives in the appropriations bill or, for that matter, in the Ways and Means Committee bill in terms of actions that might occur with reference to taxes and revenues.

□ 1410

So I say to my friend that the importance of bringing the appropriation bills to the floor is to give that transparency to the American public so they can make a judgment on which priorities they support. We think it's going to be very difficult, frankly, to bring appropriation bills to the floor under the constraints that have been imposed. And we regret, as the gentleman knows, very much that we did not follow the agreement that was reached when we precluded the country's going into default. We agreed on a figure of $1.048 trillion to be the figure that the Appropriations Committee would mark to.

I don't know whether the gentleman had an opportunity to see, but 12 out of the 14 Senators on the Appropriations Committee voted to honor the agreement that was reached today, including Senator MCCONNELL. Regrettably, we did not do that in the House. We reduced that figure very substantially, and we also shifted some of the resources from one object—nondefense to defense—which cuts even further the nondefense portion of the budget by about $8 billion.

So I ask the gentleman, in that context, is the committee going to mark to the House-passed budget, which we have deemed adopted? Notwithstanding the fact it has not been adopted, is the House going to mark to those figures, and will it mark to those figures knowing full well what dollars are left for bills that are to follow? In other words, are you going to front-load and make those appropriation bills sweeter? That will then not leave resources for bills that will come after.

Mr. CANTOR. Mr. Speaker, I would say to the gentleman, first of all, the gentleman knows that we did pass a budget in the House. We didn't have a conference committee report to vote on because the Senate did not pass a budget, which has then forced us to have to deem what the House passed—again, the Senate having gone way past a thousand days without a budget.

So I would say to the gentleman it is our perception that what the deal was in August, the BCA, was a ceiling. And that we want to try in every way we can to save taxpayer dollars, and that is a rule which we're continuing to follow. The Appropriations Committee has taken up its obligations and is working on the bills, and we will be bringing up those bills consistent with that rule.

Again, I say to the gentleman, we look forward to a robust, policy-oriented debate on the spending issues facing this country throughout the appropriations process and look forward to a deliberative civil process so that we can get our work done and deliver on what the people expect—and that is to begin to shave the spending that has gotten out of control in Washington over the last several decades.

Mr. HOYER. I know the gentleman doesn't like to relitigate history, but when he says spending got out of control over the last two decades, I may agree with him on the last decade we went deeply into debt, but certainly the decade preceding that my friend surely remembers that we ran 4 years of surplus and a net surplus over 8 years during the Clinton administration. A $62.9 billion net surplus after 8 years. And we had 4 years of surplus. Two of those were actual surpluses—and we counted Social Security's revenues, which obviously were borrowed money from the Social Security trust fund. So we swapped Social Security money for IOUs. But 2 of those years of actual balance.

So I would agree with him on the last decade, but I would not agree with him on the decade before that because, frankly, working from both sides of the aisle and an exploding economy, we created those deficits essentially together.

I want to say to my friend that in that context, yes, the American people want to see us use their money wisely. We all agree on that. They need to know how we intend to use their money. And if they don't have appropriation bills on the floor—because the gentleman talks about the fact that the Senate hasn't passed a budget in a thousand days. It has had no effect, none, zero on what we are doing. Why? Because all the budget does, as the gentleman well knows, is not allocate money. It sets a ceiling—as the gentleman likes, apparently, ceilings and not agreements—a ceiling on what discretionary spending will be. Other than that, it doesn't do anything. Therefore, it sets forth a plan.

But the key is going to be how you carry out that plan and let the American people know how you're going to carry it out. We do that in appropriation bills and the Ways and Means tax bills.

Does the gentleman have an idea of when a Ways and Means tax bill carrying out the budget might come to the floor?

Mr. CANTOR. As the gentleman knows, Ways and Means is continuing in their mission to conduct hearings as far as tax reform is concerned. They just had a hearing on retirement provisions and what comprehensive tax reform means when it comes to retirement provisions.

The gentleman knows that tax reform doesn't come easy in this town. And we are all, I think, bound by the commitment to try and simplify the code with the differences that we have. And we're going to continue to look to see what Chairman CAMP and the committee's work produces. But with maintaining our commitment that we believe, as you do—Mr. Speaker, I would say the gentleman joins me in wanting to simplify the code, bring down rates, get rid of loopholes, and the rest.

Again, I would say we're looking to our committees to continuing their work. They're doing good work toward that end exposing the issues and identifying them so that we can get this in a way that is responding to what the public really wants to see, which is a simplified Tax Code and a much fairer way.

Mr. HOYER. We passed—if I can go to another subject briefly—we passed a bill today which the gentleman was a principle advocate of which cost $46 billion in terms of revenues in effect forgone, if you will, that otherwise were being expected, if that bill passes. Does the gentleman believe that if that bill passes and is signed by the President, that in light of the fact it's a 1-year bill, does the gentleman believe that it will be only 1 year or does the gentleman intend, if his party happens to be in charge in the next Congress, to see that lapse and that tax increased again on small businesses? What is the gentleman's thought on that? I ask him that question, if I might, in light of The Wall Street Journal's observation today that certainly this did not give small businesses much certainty.

Mr. CANTOR. First of all, I'd say the gentleman has a very interesting question if we're talking about the scheduling of the floor and how we're going forward, but I'll be delighted to answer the question.

The bill that we passed today in a bipartisan way is a bill that responds to the urgency that small business is feeling and, frankly, the people of this country are feeling that the economy is not growing quickly enough.

Is it a panacea? No. Do we want to see comprehensive overall tax reform? Absolutely. But as the gentleman knows, our side and his have big differences when it comes to tax reform.

Unfortunately, the discussions that ensued last year were hung up on the notion that your side really, really continues to advocate higher taxes. You want to start with a baseline that's just higher than ours. We don't believe right now that we ought to assume Washington has a revenue problem. Instead, we ought to fix the spending problem before you start jacking up more taxes, if at all.

So this measure that we passed is something that is a first start towards a pro-growth outlook to empower businesses and allow men and women who are out there taking risks starting businesses and creating jobs a little easier time in doing so, allowing them to keep more of the money to put back into their business and allocate the capital the best way they see of doing so, not Washington.

Again, I know the gentleman knows we have a difference of opinion when it comes to that. But, again, it is a small step in a bridge toward what we all would like to see but are unable to accomplish right now, which is overall tax reform.

Mr. HOYER. I thank the gentleman, and he is correct, we do have a very substantial difference of opinion. The indication is this is a start. Frankly, we were told it was a start in 2001. We

were told it was a start in 2003 when we cut taxes very substantially. Unfortunately, we didn't cut revenues very substantially. And when you don't cut revenues after you cut taxes, what happens is you have deficit. And that's why we went from a $5.6 trillion projected surplus after the Clinton administration, projected by the Bush administration, to an $11 trillion deficit at the end of the Bush administration—because we cut revenues and we increased spending.

□ 1420

We were not in charge for 75 percent of that time. In fact, we weren't in charge of ultimately passing legislation any of that time because the President, of course, had an 8-year term. So I say to my friend, we dug another $46 billion hole.

My belief is that your side of the aisle will not want to reinstate that tax next year no matter what the economy is doing, no matter how good the economy is. That's my suspicion. But it's based upon 30 years of experience, I tell my friend. And if that's the case, then we're not talking about $46 billion, we're talking about a half trillion dollars, which is $46 billion times 10 with escalation for inflation, so about a half-a-trillion-dollar additional hole in the deficit unless the gentleman is prepared to say, look, if the economy recovers, we're going to reinstate that revenue.

The difference between us is you want to talk about tax increases, and I want to talk about paying our bills. And I believe that if we don't want to buy, then we don't have to tax. But if we buy, we have a moral responsibility to have the courage to ask people to pay for it.

Very frankly, I think you've taken the discipline out of the system. I think supply-side economics takes the discipline out of the system. What supply-side economics does is, we can cut revenues but don't have to cut spending because magically we're going to get more revenues.

Very frankly, Mr. Greenspan thought for a while that that worked. He said 3 years ago, no, he was wrong. I think he was right the second time. He was demonstrably, graphically not right the first time when he rationalized the 2001 and 2003. We cut revenues, they did not raise sufficient additional dollars and growth in the economy.

As a matter of fact, whether there was a direct result, we had the worst economy I've experienced in my adult lifetime at the end of the Bush term and at the beginning of the Obama term as responsibility for the economy went over to President Obama.

Now, there's a lot of debate during this bill about how we've lost jobs. That's true. Those jobs were lost in the early part of the Obama administration. As the gentleman knows, over the last 24 months, we've had 4 million new jobs created, 10 quarters of economic growth in our country, and the Dow has doubled. The Dow has doubled since March of 2009. It's hard for me to see how that was a failure. It certainly hasn't been the success we'd like, but not a failure.

I tell my friend that, yes, we have a difference, and the public needs to come to grips with that difference and that debate, and that is whether or not we're going to pay for things we buy. And if we don't want to buy them, we won't have to pay for them, and we can cut taxes.

Unless the gentleman wants to say something further, I yield back the balance of my time.

ADJOURNMENT TO MONDAY, APRIL 23, 2012

Mr. CANTOR. Mr. Speaker, I ask unanimous consent that when the House adjourns today, it adjourn to meet at 11 a.m. on Monday next.

The SPEAKER pro tempore (Mr. KINZINGER of Illinois). Is there objection to the request of the gentleman from Virginia?

There was no objection.

THE GSA SCANDAL

(Mr. CRAWFORD asked and was given permission to address the House for 1 minute.)

Mr. CRAWFORD. Mr. Speaker, the recently discovered GSA spending scandal is a prime example why Americans have lost faith in their government.

This week, I questioned GSA officials about the now infamous conference hosted in Las Vegas. This one lavish conference left American taxpayers with an $822,000 tab.

Let me list just a few of the expense items from Las Vegas that are sure to enrage the American taxpayers: $75,000 was spent on a bicycle-building exercise to encourage team building; $3,200 was spent on mind readers to entertain the attendees. Guess what I'm thinking now. The average cost for breakfast per attendee, $44—that's $44 per person per day. And I save the worse for last, a $30,000 pool party.

Adding insult to injury, the chief organizer of the 2010 Las Vegas conference was approved for a bonus by senior Obama officials for his work in organizing the conference.

Officials who organize and authorize wasteful spending must be held responsible. This body must work to end the culture of waste at GSA and other government agencies and ensure that taxpayer dollars are respected.

NATIONAL DAY OF SILENCE

(Mr. FARR asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. FARR. Mr. Speaker, I rise today in honor of the National Day of Silence, which is tomorrow. This is the 15th year we've commemorated the National Day of Silence, a time when students across the country remain silent for the whole day to draw attention to discrimination toward their LGBT peers.

Lesbian, gay, bisexual, transgender, questioning youth and their allies face verbal and physical bullying on a daily basis just for being who they are.

In a time when these teens are at a greater risk of suicide and self-harm, we cannot afford to be silent.

I'm proud to say that in my district, queer youth and allies work together to make life better. Many of our middle schools and high schools in my district host student-run gay-straight alliances which create a supportive space so that queer youth do not feel isolated.

I'm proud of my constituents for calling for a stop to harassment of GLBT individuals, and I encourage all Americans to do the same.

I am particularly proud of two high school seniors from my district:

Joaquin Garcia, from Pacific Collegiate School, and Lucy Walters, from Harbor High School, are two of 14 recipients of eQuality Scholarships in honor of their service and leadership within the LGBT community. Joaquin and Lucy are already making a difference in their communities, and I know they will continue making a difference at college.

Though many lesbian, gay, bisexual, or transgender youth advocates and their straight allies are silent tomorrow, we in Congress must never be silent. It is our job to speak for those who cannot speak for themselves.

SMALL BUSINESSES CREATE NEW JOBS

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, over the past two decades, our Nation's small businesses have generated 65 percent of new jobs. According to a recent small business survey from the U.S. Chamber of Commerce, today 64 percent of small businesses stand idle at current staffing levels, with 52 percent not hiring because they aren't confident in our Nation's recovery, and another 33 percent pointing to uncertainty driven by Washington.

These concerns are justifiable, Mr. Speaker, with the Senate continually choosing to ignore our jobs crisis in favor of advancing an agenda that will only grow government, not our economy.

The latest proposal surely wasn't about economic growth, for it takes private investment away from small businesses and turns it over to bureaucracies. It wasn't even about fairness, because it was fair to no one—not to the wealthy who pay even more taxes instead of investing in our economy, and not to the rest of us who need jobs, growth, and greater opportunity.

With economic uncertainty still pervasive, every decision made by government must pass the simple test of

whether or not it aids the Nation's recovery. Senate Democrats either fail to understand our economic problems or have, as troubling as it may be, chosen to ignore them.

THE HOLOCAUST

(Mr. COHEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

GENERAL LEAVE

Mr. COHEN. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks on the topic of my 1-minute.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Tennessee?

There was no objection.

Mr. COHEN. Thank you, Mr. Speaker.

Today, there was a Yom HaShoah service held in the United States Capitol, and they were held in State Capitals throughout the Nation. It's the remembrance of the Holocaust that occurred in Europe. Six million lives were lost.

What the Yom HaShoah program is about is never to forget the Holocaust and never to forget what caused it to occur, to remember the outstanding military and people that helped Jews survive, the military that liberated the camps and the hundreds of thousands of righteous gentiles who helped and risked their own lives to save Jews. I wear a button for Raoul Wallenberg. The Swedish Government sent people over here, and he was a diplomat that saved 100,000 Jews, and they participated today.

There was testimony about how Treasury Secretary Morgenthau and two people in his administration, Mr. Pehle and Mr. DuBois, implored the President to help rescue Jews, and they did so. Many, many were lost because we didn't get involved soon enough. Never be silent to evil and remember the victims of the Holocaust.

I urge you to visit the United States Holocaust Memorial Museum.

Mr. VAN HOLLEN. Mr. Speaker, I rise today to join with people in the U.S., in Israel and around the world in recognition of International Holocaust Remembrance Day. On this day we honor the memory of the six million Jews and the many millions of others who perished during the Holocaust and we celebrate the strength and perseverance of the survivors. By stopping each year to recognize the significance of this day, we also rededicate ourselves to the principles of individual freedom and to a just society and we renew our pledge to Never Forget.

Ms. RICHARDSON. Mr. Speaker, today I rise to recognize Yom Hashoah, or Holocaust Remembrance Day, which is the official Israeli Day of Remembrance for victims of the Holocaust. During the Holocaust, six million European Jews were systematically annihilated by the Nazi Regime. Today, I rise to pay tribute to those whose lives were irreparably affected by the Holocaust and to reaffirm my commitment to human rights.

The extermination of the Jewish people during World War II is greatest crime against humanity committed by a nation state in the history of the world. The Holocaust was initiated by members of the National Socialist (Nazi) Party, led by Adolf Hitler, who took control of Germany in 1933 and began increasing assaults on the rights and properties of German Jewish citizens.

During World War II, the Nazi party went even further and implemented their ''Final Solution'' which sought to eliminate the entire Jewish people. Of the nine million Jews who had resided in Europe before the Holocaust, approximately two-thirds perished. In particular, over one million Jewish children were killed in the Holocaust.

Holocaust Remembrance Day, observed on the 27th day of Nisan on the Hebrew Calendar is observed internationally by the Jewish community. This day of remembrance was established in 1953, by a law signed by the Prime Minister of Israel, David Ben-Gurion, and the President of Israel, Yitzhak Ben-Zvi. Although the date was established by the Israeli government, it has become a day observed by Jewish communities and individuals worldwide. Today, many commemorate Yom Hoshoah with candle lighting, speakers, poems, prayers, and singing. Often, six candles are lighted to represent the six million lives lost.

Holocaust Remembrance Day is a day of public observance and education. Public observation is important because it serves as tribute to those who perished. It is up to us to learn and share their stories on their behalf.

Further, the Holocaust was the ultimate disregard for human rights. Education is the best way to prevent these human rights abuses in the future. By encouraging educational programs about the Holocaust, we can help prevent future acts of genocide.

Mr. Speaker, I ask my colleagues to join with me in observing Yom Hashoah and in doing all we can to teach our children and future generations to work together to prevent bigotry, hatred, and prejudice. Let us commit ourselves to combating intolerance wherever it might exist.

Ms. SCHAKOWSKY. Mr. Speaker, I rise to honor the six million European Jews murdered by the Nazi regime during the Holocaust. Today, we join together to remember the victims who perished. We stand in solidarity with the people of Israel and around the world to honor Holocaust Remembrance Day, Yom Hashoah.

Six million Jews were killed at the hands of the Nazis as a part of the ''Final Solution'' to eradicate all of Europe's Jews, and countless others were brutalized, raped, dehumanized, and robbed. It is essential to listen and learn from the stories of the past, and to ensure that the experiences of the Holocaust are preserved as a permanent part of our history.

Too many times in history, people have stood by and allowed the targeting, brutalization, and massacre of an innocent civilian population. The 2012 theme of these Days of Remembrance, Choosing to Act: Stories of Rescue, highlights the actions of several witnesses who risked severe punishment to help Jews to safety. These actions serve to remind us of the amazing power of individual choice to act in the face of injustice. The principle ''Never Forget, Never Again.'' is a commitment to fighting hatred, intolerance, and brutality through education, dialogue, and determination. We can honor those who died in the Holocaust by countering similar atrocities in the future.

Holocaust remembrance is even more crucial today, given recent events in the Middle East and around the world. In the past year, there has been an increase in statements of holocaust denial throughout Europe, Asia, South America and the Middle East. The world has also witnessed an alarming increase in anti-Semitic attacks, coupled with harsh criticism of Israel that is tinged with anti-Semitism. As tensions escalate in the Middle East, Iranian President Mahmoud Ahmadinejad has alluded to the goal of the annihilation of Israel. It is continuously important to strengthen the U.S.-Israel relationship, and to focus on the goal of achieving lasting peace in the Middle East.

The annual Days of Remembrance are particularly meaningful to my community and to me, as a Jew. My district, the 9th Congressional District of Illinois, is home to one of the largest concentrations of Holocaust survivors in the country. Skokie, located in my district, attracted many Jewish families in the wake of WWII, and remains a vibrant Jewish community today. There are currently 1,000–2,000 Holocaust survivors living in Skokie, and this community understands the importance of preserving memories and honoring history.

In 2009, the Illinois Holocaust Museum and Education Center in Skokie opened in Skokie, assisted by active involvement of the community, and welcomes over 250,000 visitors annually. The Holocaust Memorial Foundation of Illinois has been educating school and community groups since 1981, and due largely to these efforts, Illinois was the first state to make Holocaust education mandatory. This center for education and preservation of history was made possible by the hard work and dedication of the community, and its commitment to combating intolerance.

Later this month, I will have the pleasure to visit with the remarkable students from McCracken Middle School in Skokie, who founded a student group to help prevent child labor around the world, Aiding Children Together, or A.C.T. On March 22, 2012, McCracken students involved in A.C.T. had the opportunity to visit the Illinois Holocaust Museum for their Student Leadership Day. The day included discussions, a chance to explore the museum, and then students were able to sit with survivors of the Holocaust at lunch and hear their stories. Students were deeply affected by guest speaker Nadja Halibegovich, and her account of living through the Bosnian War and genocide as a child. One student reflected, ''Just seeing all of the people who were killed in his horrible time just really made me want to push through, and make sure this would never happen again''. Another student mentioned, ''We should never forget what happened. I want to help and change the future; I won't be a bystander!''

Throughout these days of remembrance, we look back on the atrocities of the Holocaust, and we honor and mourn those who perished. It is equally important to remember the survivors and to learn from their experiences. As we move forward, it is imperative to preserve the past and to continue teaching the history of the Holocaust. We must commit today to fighting hatred and indifference in a world where genocide is an ever-present problem.

Mr. WAXMAN. Mr. Speaker, today is Yom Hashoah U'Gvurah. It is a day to remember

the Holocaust heroes and martyrs—those who fought and those who resisted; those who survived and those who perished.

In Israel, the day is marked with the piercing wail of sirens that stops traffic and calls the nation to attention. Those sirens evoke the cries of loss, the cries of families torn asunder, the cries for vibrant Jewish communities reduced to memories and the cries of resolve that the State of Israel exists today as haven for Jews fleeing persecution.

In the United States, Yom Hashoah is observed with events in cities and states around the country. This week, the L.A. Museum of the Holocaust held a Walk of Remembrance and a day of activities at its memorial in Pan Pacific Park.

In Washington, DC, Yom Hashoah is commemorated as part of the Days of Remembrance sponsored by U.S. Holocaust Memorial Museum in Washington, DC.

This year, the U.S. Holocaust Memorial Museum's events have the theme, ''Choosing to Act: Stories of Rescue.'' It is especially appropriate as we mark the 100th birthday of Raoul Wallenberg, a Swedish Diplomat who used his post to save as many as 100,000 Hungarian Jews. His legacy is profound and this nation is proud to have made him an honorary citizen of the United States. With the Raoul Wallenberg Centennial Celebration Act that passed the House this week, he is also one of the next awardees of the Congressional Gold Medal of Honor.

Jewish tradition teaches that for one who saves a life, it is as if they have saved the whole world.

People like Wallenberg, Irena Sendler, Miep Gies and the thousands of others recognized by Yad Vashem as ''Righteous Among the Nation'' risked their lives over and over again for the Jewish people they saved. In doing so, they restored humanity in a place where there was no value for human life. They brought dignity to a time in history that is measured in shame. They helped save the world from being eclipsed by the evil of Nazism.

It is an honor to rise and pay tribute to the survivors of the Holocaust, the rescuers, and the liberators. At a time when fewer and fewer survivors are alive to tell their stories, we must all bear witness to their tremendous legacy.

Mr. CROWLEY. Mr. Speaker, I rise today to solemnly recognize Holocaust Remembrance Day—Yom Hashoah. This date marks the anniversary of the Warsaw Ghetto Uprising, when thousands of Polish Jews, faced with deportation and certain death, launched the first urban-uprising in Nazi-occupied Europe.

Surprised by the makeshift, yet effective, resistance they encountered, German troops systematically leveled the ghetto building-by-building and killed or deported to death camps tens of thousands of innocent men, women and children. We look back with sadness at the terror and despair these victims must have felt and with admiration at the courage and strength they summoned. And from their heroics, we are called to remember how much we lost, as well as what we gained, from this unprecedented tragedy.

The Nazi killing machine slaughtered millions of people—law-abiding and productive members of society—because they were Jewish. We will never know what scientific discoveries these people or their children would have made, what businesses they would have started, what books they would have written, what music they would have composed and what trophies they would have won. Their loss has left a void not only in Europe, but throughout the world, and our lives are diminished because of it.

Let us honor the memory of those who perished in the Holocaust by remembering their suffering and bravery, standing by our friend and ally Israel, and fighting for justice and peace.

ANTIETAM NATIONAL BATTLEFIELD MEMORIAL ILLUMINATION

(Mr. BARTLETT asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BARTLETT. Mr. Speaker, Baltimore, Maryland, was site of the first blood that was shed in our Civil War on April 19, 1861. The next year, on September 17, 1862, the bloodiest one-day military battle in America's history took place on farms along Antietam Creek near the small town of Sharpsburg in Washington County, Maryland.

The 24th Antietam National Battlefield Memorial Illumination will take place on Saturday, December 1, 2012. At twilight, 23,110 luminaries prepared by 1,400 volunteers will be lit, one for each soldier who fell there. Twenty thousand people will personally witness 23,110 individual lights not divided into camps, one Union, the other Confederate, but one unbroken formation across peaceful, rolling farmland on a silent winter night.

The first illumination in 1988 was spearheaded by Georgene Charles, the event's founder, who continues each year to coordinate this monumental effort. Local Girl and Boy Scouts, the Hagerstown-Washington County Convention and Visitors Bureau, and others take pride in preparing North America's largest memorial illumination.

I highly recommend you make time to attend the 24th Antietam National Battlefield Memorial Illumination on December 1, 2012. It powerfully reminds us of the true costs of war and the sacrifices by generations of the members of our military and their families. It is a truly moving event. Please come.

□ 1430

TRIBUTE TO ''HUMAN EVENTS''

(Mr. ROKITA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROKITA. Mr. Speaker, I rise today to commend a publication that has played a central role in shaping the ideas that have powered the conservative movement for decades.

Launched in 1944, Human Events is the Nation's oldest conservative newsweekly. In 1961, a rising star by the name of Ronald Reagan began reading Human Events. He enjoyed it so much that throughout his Presidency he would receive the very first issue each week hot off the presses.

Back in 1992, I was honored to serve as an intern for Human Events, where I worked closely with political editor John Gizzi, whom I consider a good friend. This week, Human Events relaunched its print edition with a new format and expanded Washington coverage.

Conservatives have long depended upon Human Events to carry out its mission, which is to analyze events through the eyes that favor limited constitutional government, local self-government, free enterprise, and individual freedom. That is a mission I wholeheartedly support.

I commend Human Events to you, Mr. Speaker, and to this entire body.

SMALL BUSINESS TAX CUT ACT

(Mr. MCCLINTOCK asked and was given permission to address the House for 1 minute.)

Mr. MCCLINTOCK. Mr. Speaker, the House just passed H.R. 9, purporting to give a temporary tax cut to small businesses. I say ''purporting'' because it doesn't cut spending at the same time, and thus it merely shifts current taxes into the future. Once a dollar has been spent, it has already become a tax, taken either from today or from tomorrow to pay off deficits.

Nor does H.R. 9 do much to promote economic growth because it does little to reward new productivity at the margin. At best, it produces a 1-year sugar high until the bills come due.

Tax cuts without either spending reductions or real economic growth are an illusion. Real tax reform would permanently reduce the marginal tax rate for all businesses and cut government spending concurrently. This would encourage and reward growth, shift investment decisions from politicians to entrepreneurs, and not rob our economy of its future. I hope before the end of this session that we will do so.

PROGRESSIVE CAUCUS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 5, 2011, the gentleman from Minnesota (Mr. ELLISON) is recognized for 60 minutes as the designee of the minority leader.

Mr. ELLISON. Mr. Speaker, my name is KEITH ELLISON, and I will claim the time on behalf of the Progressive Caucus. This is the Progressive Caucus' moment where we come together and talk about our ideals, our values, the things that are critically important, we believe, to all Americans.

This week, I'm joined by two outstanding leaders in the Progressive Caucus and in the Congress and in America, HANK JOHNSON of Georgia and LYNN WOOLSEY of California. I want to invite both of my colleagues to jump in as they feel inspired to do so, but let me just set the groundwork a little bit.

This week, we saw a number of things occur. One of the things that we saw this week is the Buffett rule that

was taken up in the Senate. The Senate voted on the Buffett rule on a policy that requires millionaires and billionaires to pay the same tax rates as middle class families and working people.

I want to make it clear: we don't begrudge anybody for doing well; but we do believe, in a country as great as America, if you have been privileged enough to do well, that maybe you should do something for America. This wildly popular measure was filibustered and therefore defeated in the Senate. According to the CNN international poll, nearly three-fourths of Americans support the Buffett rule and believe it should be law. Despite this, Republicans in the Senate blocked the bill from even getting a majority vote.

I mention this particular situation this way as I begin our dialogue that we'll have tonight over the course of this hour because I think that this is emblematic of the problem that we're facing today. We're going to talk tonight about Citizens United; we'll talk about a lot of things. But one of the things that I think is emblematic of the problem we're facing here in the U.S. Congress today is that what the overwhelming majority of Americans want the overwhelming majority of Americans don't get, something like the Buffett rule. The reason why is the pernicious and corrosive effect of money in politics today.

So, we are the Progressive Caucus. We're honored to be before the American people today, Mr. Speaker. We are the caucus that, yes, will stand up for civil and human rights for all people without regard to your color, your culture, your sex, your gender, your sexual preference, your religion, wherever you were born—national origin. We believe that all Americans are valued and believe in liberty and justice for all.

Yes, the Progressive Caucus is the caucus that's going to say that if you work hard every day, you ought to be able to make enough money to feed your family in America. And, yes, we believe that if you've been able to be in this great country of ours and do well in this environment, you ought to do something, you ought to pay enough taxes so that the needs and the costs of our society can be paid for. And, absolutely, we believe we have a duty and obligation, a responsibility to the environment and our natural world.

Now, we're not ashamed to stand up for these values: peace, working-class prosperity and fairness, environmental sustainability, and civil and human rights for all people. We care about these things and we're going to. But today, we're going to discuss a number of issues, including the Buffett rule, Citizens United, ALEC, the budget, the Ryan budget, and a whole range of issues.

At this point I'm going to hand it over to my colleague and friend, LYNN WOOLSEY of California.

Ms. WOOLSEY. I'd like to thank the chairman of the Progressive Caucus for bringing this together today to talk about what's so important to the people of the United States of America, our country, and in turn the world.

I want to say a few things about the Buffett rule just to fill out that discussion. There are some things we know: the Buffett rule is fiscally responsible. According to the Joint Committee on Taxation, the Buffett rule could reduce the deficit by anywhere from $47 billion to $162 billion over the next decade. The Buffett rule is widely supported, as the chairman just said. The Buffett rule would restore the principled fairness of the Tax Code because it ensures that millionaires can't game the system to pay a lower rate than middle class families.

Overwhelming majorities of Americans across the political spectrum believe millionaires should pay their fair share. An overwhelming 76 percent of Americans support increasing the taxes paid by people who make more than $1 million per year, which includes 75 percent of Independents and 56 percent of Republicans.

□ 1440

The majority of millionaires themselves support the Buffett rule. In a recent poll of millionaires, an overwhelming 68 percent support the Buffett rule. Millionaires support the Buffett rule.

And remember, it's taxation above $1 million and it's stepped up. It isn't the minute you hit $1 million you're taxed at a much greater rate. It's over. From $1 million up, the taxes will go up.

Seven thousand millionaires paid no individual income taxes in the year 2011. Seven thousand millionaires didn't pay any personal taxes in 2011. According to the Tax Policy Center, 7,000 millionaires—it was that tax center that told us that.

The Republican budget would shower even more tax breaks on millionaires while putting more of the burden on the middle-class families. While Democrats are fighting to restore fairness in the Tax Code, the Republican budget offers extreme right-wing alternatives—that's my opinion—that would shower millionaires and billionaires with tax breaks at the expense of the middle class, and that would further skew the system in favor of the wealthiest Americans.

So we've got a lot of statistics. We know the facts. We're ready to support the Buffett rule. Millionaires, themselves, support it. So the question is: Why can't we get the people we work with in the U.S. Congress to support the Buffett rule?

Mr. ELLISON. Well, I would say this to the gentlelady. You know, much of it has to do with the fact that we have a disproportionate percentage of wealthy interests. The fact is you've got money coming in, lobbyists paid for, campaign donations, all this stuff, and now we've got the onset of the super PAC and we have the Citizens United decision.

And if you ask yourself why can't we pass the Buffett rule, why can't we pass the public option, which is wildly popular, why can't we get environmental regulations we need to protect our lungs and our health and our Earth, why can't we do these things, and the reason why is because of the disproportionate corrosive effect of money in our government.

This is why earlier this week we were able to pass something, a Declaration for Democracy, which reads:

> I declare my support for amending the Constitution of the United States to restore the rights of people undermined by Citizens United and related cases, to protect the integrity of our elections and limit the corrosive influence of money on the democratic process.

We have a lot of people who signed this particular document. But not just Members of Congress signed it. Some people who signed it were city council members, were community citizen activists. There are people from a broad cross section of American life, because they asked the same question you ask, Congresswoman WOOLSEY: Why can't we pass the Buffett rule? Why can't we pass environmental protections? Why can't we pass the public option? Why can't things that Americans want get through?

The reason they can't get through is because you've got the lobbyist money being poured in. You've got campaign donations here. You're about to see a whole plethora of ugly, nasty, divisive, corrosive attack ads in this upcoming Presidential election.

The bottom line is, if we get this money out, what will happen is that citizens' voices will emerge past the money. Citizens' voices will come up, and citizens will have their will reflected in the Congress more so.

It was an awesome lift to pick up health care, and we didn't even get all the things we wanted in there, but we got a lot of things we wanted.

But why didn't we get all the things we wanted even though they were popular? The corrosive, divisive effect of money.

I think the health care industry was putting in, like, $14 million a day to lobby against the Affordable Care Act. And of course you know with all that kind of pushing and shoving and cajoling, it just gets incredibly difficult.

So I want to yield back to the gentleman from Georgia, who has some important information about a number of things.

Mr. JOHNSON of Georgia. I'd first like to address, Congressman, the issue of taxes and fair taxes. Yesterday, or, actually, the day before yesterday, I stood with a group of ''Fair Taxers,'' people who are recommending the fair tax as an alternative to our current system. And I stood with them and I spoke to them, told them that I was not there to endorse the fair tax; I was there to tell them that I believed that it was something that Congress should definitely study. We shouldn't just put it aside.

There's no doubt that we need fundamental tax reform in this country, and the fair tax is a vehicle to open the door for Congress to start reviewing other possibilities, including the fair tax, as a way of fixing our inherently unequal Tax Code. And our policies—if we can't pass the Buffett rule, which simply says that a millionaire would not pay a less effective rate than working people, and so, in other words, the maids and the butlers and everyone else who—the secretary——

Mr. ELLISON. The police officers.

Mr. JOHNSON of Georgia. Cops who patrol the area, the security guards——

Mr. ELLISON. Teachers, nurses.

Mr. JOHNSON of Georgia.—that control the estate of these rich folks, the firefighters, ambulances that will come pick them up, they don't pay the same tax rates as those people.

And 70,000 of the millionaires in the country didn't pay a dime in income tax, and enjoying all of those benefits—police, fire. It's truly amazing to me that we are still not at the point in this country where we are willing to consider redoing our complicated Tax Code.

It's just ridiculous that it's not working. And we can't even pass a bill in this Congress which mandates that common people pay at a rate that is not in excess of those that the millionaires enjoy. That's just an issue of fairness. It's not fair. It's not right.

I would suggest to you, Congressman and Congresswoman, that perhaps the reason why we're seeing this kind of favorable treatment afforded to millionaires by this Congress is because almost half of the incoming freshmen, I understand, are millionaires. I think the figure is about 43 percent. And if someone can correct me on that, I'd stand corrected. But my information is 43 percent of the Tea Party freshmen are millionaires, and so they benefit from these laws, these trickle-down economics laws, and they've been enjoying them since 1980. That's when voodoo economics, as George Herbert Walker Bush called it, trickle-down economics, voodoo economics, or whatever you want to call it, it has not worked. But we still have proposals today to make it work.

And it's evident by what we did today, with a $46 billion tax cut for what's called ''small businesses,'' but, actually, a small business with 500 employees, when we only have about 1,000 businesses in the country with 1,000 or more employees. So we're actually talking about big business when we talk about 500 employees.

It's a one-time, 1-year, $46 billion tax cut that they get, according to this legislation that we passed today, and it's totally unpaid for.

□ 1450

Ms. WOOLSEY. I want to add a couple of things about the Buffett rule. There is so much to talk about that, I'm sure, our C–SPAN viewers and probably most of the Members of Congress really don't realize.

The 400 highest-earning Americans in 2008, who made an average each of $271 million, paid an average effective Federal tax rate of just 18.1 percent. At the same time, a married couple earning $70,000 a year paid a rate of 25 percent. Is that just unbelievable?

Mr. ELLISON. Amazing.

Ms. WOOLSEY. The Buffett rule seeks to restore balance to families, and the Tax Code would make sure that no millionaire would pay a lower tax rate than middle class Americans. In fact, the Buffett rule is targeted. The legislation will only impact taxpayers with a taxable income of over $1 million who are not paying a minimum tax rate of 30 percent. So realize that. Of the 144 million tax returns filed in 2010, fewer than 500,000 of them—0.1 percent of the taxpayers—had taxable incomes of over $1 million. Remember, these are taxable incomes because there are lots of write-offs.

Mr. ELLISON. So the people who have the kind of money you just described are actually a small part of the population, but I think they're punching above their weight because they have an inordinate influence in the political process.

Ms. WOOLSEY. You're right. They have an influence in the political process, and average working Americans don't realize that that's not them. The families who earn $70,000 a year are taxed on that at a rate of 25 percent.

Mr. ELLISON. So, if you're making 70k a year, paying 25 percent of your income in income taxes, that means, if there is an increase in your property taxes, you're really going to feel that. That's going to punch you right in the stomach. That's going to make a difference in whether the kids can get braces or not. That's going to make a difference as to whether or not you can put a roof on the house. It will make a huge difference. $70,000 is actually doing pretty well, but small variations can change your life.

If you're a two-income household and are making $70,000 and if one of the partners in the relationship gets sick or dies, that means catastrophic expenses on the family because, if you're spending at a $70,000-a-year level and you lose a household member, you've got all those bills with just the one person, and then you're going to be in bankruptcy. This is why we know 56 percent of all bankruptcy filings are driven by medical debt. This is how this happens even to middle class people. But the Buffett rule and putting Americans to work and doing a lot of things are really what the Progressive Caucus is all about. It's about addressing these systemic problems we're talking about today.

So I just want to let everybody know, if you want to check out what the Progressive Caucus says about the Buffett rule, you should know that we have the Buffett rule contained in our budget.

We put America back to work by front-loading jobs in our budget. We invest in America's future by investing in infrastructure, and we reduce the deficit, in part, by asking the wealthiest and most privileged Americans to do the patriotic thing and pony up a little bit more to help America.

Mr. JOHNSON of Georgia. It's disturbing to me, with all that the Congressional Progressive Caucus has done to try to level the playing field in this country for working men and women, that we would all be lumped together and called names.

I want you to comment about one of our colleagues who, in response to a question asked of him—how many Communists are there in the United States Congress?—this Congressman stepped up to the mike in a calm and polite manner—thoughtful-looking, with a pensive look on his face—and he said, I believe that there are between 78 and 81 members of the Communist Party who are Members of Congress.

Now, can you respond to that, Congressman?

Mr. ELLISON. Do you know what? I have to demur and say that I'm not that excited to respond. I've responded on Ed Schultz. I've responded on Wolf Blitzer. I've responded on Martin Brashir, and I've just said it's not true. It's a false statement. It's untrue. It's unfair. It's unkind. It raises the level of vitriol and insult in this body, and of course, it's tough enough around here already. We don't need to hurl false accusations against each other.

I would just urge the public to remind Members of Congress that we need to have a little bit more civility around here and that, if you do want to make an ugly comment or a negative comment about your colleagues, at least try to make it somewhere within 10,000 miles of being true. This is absolutely false.

Mr. JOHNSON of Georgia. Sir, the next day, a statement was released by the gentleman. The statement was to the effect that the entire membership of the Congressional Progressive Caucus are card-carrying members of the Communist Party. I just think that it's important that we say, first of all, that that's not true and, secondly, that it has no place in the rational dialogue and in the honest dialogue that we seek to have here amongst us on both sides of the aisle. It has no place.

Mr. ELLISON. One thing I don't want to do—and I'm just speaking for me. If he calls us names, I'm not going to call him names. If he calls us names, I'm not going to call them ugly names like that. There are a lot of ugly names that you could call someone who has a right-wing perspective on the extreme. We don't engage in tit for tat, because that's childlike. We're adults. We're here to discharge a responsibility on behalf of the American people. We swore an oath to uphold and defend the U.S. Constitution, and that is what I'm going to do. I'm not going to be distracted by somebody who is not clear on what we're supposed to be doing here. I'm going to stay focused on what we're here to do.

Ms. WOOLSEY. I would like to say, by caring about American workers, by caring about women and children, by caring about our seniors, by wanting to put food on the tables of all Americans and help them with clean air and good food and clean water, if that labels us, so be it. All that says to me is somebody is very frightened about the good things we do. I think we should move on now.

Mr. JOHNSON of Georgia. Congresswoman, I agree.

I also want to point out that to label folks as Communists and Socialists just because they believe in fairness for the working people of this country is not true, and I think that it should be called out because, if it's left unaddressed, then some folks will think it's true.

With that, I certainly would love for us to get into a discussion about Citizens United, Congresswoman.

Ms. WOOLSEY. Thank you.

I believe that it's evermore important that we do something about the Supreme Court's decision in Citizens United v. FEC, which overturns nearly 100 years of campaign finance laws in this country which limit corporation involvement in political campaigns.

□ 1500

The SPEAKER pro tempore. The gentlewoman will suspend.

Under the Speaker's announced policy of January 5, 2011, the gentleman from Georgia (Mr. JOHNSON) will control the remainder of the hour as the designee of the minority leader.

Ms. WOOLSEY. In that action by the Supreme Court, big business was given a louder voice than the individual in this country. If we want to protect our democracy, that's what we have to bring an end to, all that money coming into the political system without transparency and making the average citizen feel like their voice means nothing.

Mr. JOHNSON of Georgia. Congresswoman, I believe that you have hit the nail on the head. This Citizens United ruling by the United States Supreme Court definitely puts corporations in a position of superiority over just the regular working people of this country. The reason why is because corporations have now been afforded the same rights that individuals have, to speak freely and with no regulation. Congress refuses to even consider any regulations on that speech for purposes of campaigning and affecting the outcome of campaigns.

This is a decision that is devastating to the working people of this country, the people who don't have a voice like the U.S. Chamber of Commerce or like some unknown super PAC that is formed on the eve of an election, funded anonymously, and used to affect an election and used in such a way that you can't even mount a response to it because the cascade of money is in that PAC and you have the slightest ability to raise the requisite amount of money to match it. They control the outcome of these elections with the money, and that is a devastating blow to our democracy.

Ms. WOOLSEY. HANK, the entire time I've been in the Congress—I mean, I've been here for 20 years now, and we've had a Republican majority and we've had a Democrat majority. But when the Republicans have been in the majority, they use as part of their mantra that they are returning government to the people.

Excuse me. Citizens United takes government away from the people. I don't hear them trying to change that. They—the other side of the aisle, the party in the majority right now—seem to be defending Citizens United.

The other thing they are doing at this moment is they are trying to upend the Presidential campaign finance system. They want to drown out the voice of the people and give more power to the well-heeled special interests in the Presidential elections as well. Those elections go quite well with public financing. People choose on their tax form whether or not they want to give to the Presidential elections.

Mr. JOHNSON of Georgia. Congresswoman, that was something that has happened this year that perhaps not a lot of people know about is that, under this Republican-controlled 112th Congress, the House has voted to do away with or abolish the $1 checkoff on a tax form that you send in. You can check the box and it will automatically deduct a dollar from the amount that you owe or the amount of whatever refund you're entitled to. That $1 then goes into a pot to be distributed among the candidates who applied for this funding.

So everything that had been put in place to try to make everything equal, along with giving people their rights to invest to a certain amount in campaign-related donations, everything is being dismantled systematically. It certainly does not help the people on our side of the aisle, the Democratic side of the aisle, who traditionally have depended on workers unions and labor organizations to be the deep pockets for our campaign contributions.

I had a visit from one of my good friends in labor the other day back in my district, and this gentleman has grown to be a good friend of mine. He's a good man. He is a full-time union worker, works for the union, the administrative part of the union, not just represented by the union. He told me that with all of the people in the union who are out of work today—and we've got a few jobs in the Atlanta area that are near completion. After completion, even those workers who are able to work won't have any more work, and then there's nothing else on the agenda that these people can go and get jobs at.

He said it's gotten so bad with the attacks on labor and the unemployment to where the workers represented by the union can't pay the dues, and then the moneys having been drawn down by the unions to take care of the workers to assist them during this extended period of unemployment are on the decline and almost exhausted. After telling me that, he said, Today is my last day employed at the union because they had to let me go. We both sat there and we cried.

It was really touching, because that gentleman is in the same boat that many other workers are in, and the union which represents those workers is suffering greatly. They won't be able to do what they have done in the past for campaigns. But these super PACs and wealthy individuals who fund them—anonymously, much of the time—can afford to actually put millions in and billions in. This is a very serious situation that we face in this country.

Who's going to win, is it money or is it the people?

Ms. WOOLSEY. Congressman, the one beacon of light in the system is the public financing of Presidential campaigns. I have to remind everybody, that's voluntary. People volunteer $1 a year out of their tax return to support the public financing of the Presidential races. They have to opt to do that. They don't have to. It's served our country well, and it's a very limited expense. It needs updating. It doesn't need dismantling. We need more public financing of our Federal election, not less.

Actually, if I had my way, we would have public financing, we would have a much shorter campaign season, and we would also publicly finance advertising as well as set spending limits and not turn campaigns—it's an industry in this country now that certainly employs thousands and thousands of people. But it spends a lot of our time and individual money in order to get people elected.

□ 1510

Mr. JOHNSON of Georgia. Yes. I would echo those comments, Congresswoman. You know, Members around here, some folks spend 60, 70 percent of their time, instead of being in committee meetings, they are out making phone calls trying to raise money for their next election. It's not, it doesn't augur well for the country's future for us to have, you know, this kind of leadership, in other words, leadership that depends on others to make the decision. They come in, vote on it, and then go back to the phones making calls.

Ms. WOOLSEY. Right. I have been so fortunate because I represent a district that I fit. You know I'm retiring, but I have represented this district for 20 years, and I have fit so well that I have not had to raise millions of dollars.

I have watched my colleagues who are in these districts that could go either way and where now Citizens United has brought this super-PAC

money in against them, and I don't know how they do it. I mean, what a way to ruin our democracy, to have the people you elect to represent you spend much of their time raising money instead of raising consciousness, instead of raising issues, instead of fighting for what we know needs to be done in this country.

This corrupt campaign finance system we have, with the special interest money, is going to actually corrode our democracy. If we don't step up to it on both sides of the aisle, everybody is going to be affected by it, not just Democrats.

Mr. JOHNSON of Georgia. Well, I am going to tell you, Congresswoman WOOLSEY, that's why I am going to hate to see you leave, and I know you have been here for 20 years. That's a long time to be anywhere. You have certainly been an unrelenting spokesperson for equity and fairness for all, and you have been a voice for peace, and you have been a voice for telling the truth. You are, indeed, a rare breed in Congress, and I'm personally going to miss you, and I know many others will too.

But I'll tell you, Congresswoman, there are people on the other side of the aisle and some, I know, feel the same way that we do. They don't like the way or the route that our country is going. We've even had some good people over there who have already been defeated for reelection based on that special interest money coming in at the last minute, shaking things up and telling a bunch of lies, and then the public votes a good Representative out.

I think people on both sides of the aisle are being hurt by what's happening in America right now, and I'm hopeful that this next election will see the kind of change that needs to come here. We need to take care of the people's business. This is their Congress, this is not the corporations' Congress. We should be of, by and for the people, not of, by and for the corporate special interests.

You know, I'm afraid that's where we are now. I, myself, have been fortunate so far to be in sync with the people of my district and so, consequently, I've not been forced to go out there and raise a billion dollars, but I still have to raise money.

I would prefer a system where I could just be a legislator and we could have a fairness in our elections, everyone starting with the same amount of money to spend; and that way it's not the money, it's your message that counts.

Ms. WOOLSEY. Right. If everybody has a certain amount of time on air, they can spend it putting down their opponent, or they can spend that time letting their constituents know who they are. If they want to be negative, they can do it the way they want to, but they will probably find out it's much more wholesome and people will like them a lot better when they know them for who they are and not as put-down artists.

When you say there's folks from the other side of the aisle, and I'm sure there are, I think that it's our job now to pull together a core here in the Congress who are willing to limit the influence of contributors and who are willing to curb the power of political action committees and impose spending limits and not let corporate America have a bigger voice than the average voter.

Somehow or another, I think it's going to be possible, but it's going to take leaders like yourself, HANK, to make that happen, so I'll be cheering for you.

Mr. JOHNSON of Georgia. Well, I believe you are right about that. But I will say, though, those moderates on the other side of the aisle who I am referring to are the prime targets of the interests that want to get rid of them and go to an extreme. So folks over here on the Republican side of the aisle are forced to comply with the party line or else they'll suffer the consequences.

Even when they follow the party line here, they think, okay, well, we don't trust this person over here because there's some new blood over here that talks much more extremely, and so we want to get rid of that person here and put this new person in.

Ms. WOOLSEY. Well, if we eliminate special interest money, if we have the Declaration for Democracy and have a constitutional change, the United States Constitution regarding this Citizens United action of the Supreme Court, I think we can help turn that around.

Mr. JOHNSON of Georgia. Well, you know, Congresswoman, you lead into the Declaration for Democracy, which I had the pleasure to sign yesterday, along with many of my other colleagues; and I am sure that the longer that this is around, the more that people will sign up. Have you had an opportunity to sign?

Ms. WOOLSEY. I signed the little card. I haven't signed that one, but I'm looking why aren't I on there. I mean, that's how much I support it.

Actually, Leader PELOSI has signed the declaration. It's very well received in the Congress.

Mr. JOHNSON of Georgia. I'm going to read it. It's the Declaration for Democracy, and it reads as follows:

I declare my support for amending the Constitution of the United States to restore the rights of the American people undermined by Citizens United and related cases, to protect the integrity of our elections, and limit the corrosive influence of money in our democratic process.

Anytime we start talking about putting limits on any activity and creating more fairness, then we get labeled as socialists and communists and we're just people that care. I don't care what you call it, we're in support of this Declaration for Democracy, which would put the reins of government back into the hands of working people, poor people, everyone. Even the corporations would have a seat at the table, but they would not speak any louder than you or I; and I think it's very important. So I was proud to sign the Declaration for Democracy.

We are in a climate where we have an organization that is set up to connect the corporate influence, the corporate money, the special interests. We have an organization that is set up to pair those special interest corporations with legislators from the various State legislatures of the Nation.

□ 1520

About 60 percent of the legislators in the United States—the State legislators—have joined this organization. It's called ALEC. ALEC is the American Legislative Exchange Council. And what ALEC does is it's funded, of course, by business interests, billionaires and millionaires, and companies. What it does is it invites the legislators to join. It really entices them to join by offering them for a mere $50 a year—and the taxpayers, of course, pay that—as a professional fee or professional cost. And so the legislators join. Then he or she gets to go off on these 2- and 3-day weekends at some location like Hilton Head or Jekyll Island or Martha's Vineyard, Los Angeles, Las Vegas, wherever they can be alone and with some anonymity and in a luxurious setting.

So these legislators who join go to these locations for the retreats. The business interests are there because they're underwriting it. And then they get together in committees, and the committees work out various model laws that are produced before the folks even get there. They're told about these model laws in the committees that they work on—the committees being the legislators and the business interests. And the public's interest is not there. It's all done in secret.

And so the result is that the legislators come home, and they have legislation which they can claim as, This is my legislation and I'm introducing it. And, By the way, this is my 80th piece of legislation that I have introduced and it has passed and I'm a busy substantive legislator.

So it makes them look good out there on the campaign trail. Nobody knows what the substance of that legislation is and what it actually does and how much it costs. And then, for introducing that legislation, the legislator is rewarded with a campaign contribution also from the same corporations and individuals associated with those corporations.

So based on that formula right there you've got business being done behind closed doors to benefit folks other than the people who elect these legislators, and then you never know who those legislators are because that's private information. They keep it private. But if you're a member, you can log into

the Web site and then go to a page and find out who all of the corporate and who all the legislative members are. You can only get access to that if you're a member. And to become a member you have to be prescreened in advance to make sure that you are like-minded. And if you can pass that muster, they will let you in.

So this is the same organization that announced yesterday that they would not be involving themselves—they're disbanding their committee that had to do with social issues, as they call them, including voter rights. And so the Trayvon Martin killing, the shooting and killing of Trayvon Martin and then the claim of self-defense, stand your ground, but, really, shoot to kill legislation, that legislation was produced by an ALEC committee.

I'm glad to know that committee will no longer be in action, but the damage has already been done. As a result of that, you have had some corporations that have decided that this is not—we didn't buy into this. We didn't buy into this social thing. We just joined ALEC because we wanted to deal on the committees that deal with our issues—taxes, FDA, whatever. We wanted to deal on those things, but instead ALEC has gone to an extreme.

Now we have corporations that are threatened with boycotts of their goods and services jumping off the ALEC bandwagon, and that caused ALEC to announce yesterday that, We're not going to deal in any more social issues.

So I think that is instructive of the power of the people. If the people only know what is happening, the people will come together, despite the differences that we have. We can look at each other and say, Okay, you are older than I am. Plus, you are a white woman. And so, therefore, we don't have anything in common. Or I could say that this person over here doesn't have the same sexual orientation as I think they should and so therefore I'm going to condemn them to purgatory just on that basis alone. Or we can look at somebody and say Well, they've got a hoodie on. He's wearing a hoodie, and it's a black guy in a neighborhood. He can be 9 years old, he can be 15, or he can be 17; but he's still threatening me just by his mere presence. We size people up like that.

But when we really get down to it, our interests are the same. And if we can get past the fear that we have of each other and the misunderstanding that we have about each other, we can come together and we can reclaim this country so that it will be a government run by, of, and for the people. And so that is my goal, to continue to work towards that, if my citizens think that I'm worthy of continuing to do that.

With that, I yield back the balance of my time.

CLEARING THE NAMES OF JOHN BROW AND BROOKS GRUBER

The SPEAKER pro tempore (Mr. NUNNELEE). Under the Speaker's announced policy of January 5, 2011, the gentleman from North Carolina (Mr. JONES) is recognized for 60 minutes as the designee of the majority leader.

Mr. JONES. I am coming to the floor again to clear the names of two marine pilots who crashed in Arizona April 8, 2000. Not only two pilots, but there were 17 marines in the back.

The V–22, which is the plane that goes from a helicopter mode to a plane mode, at that time was really an experimental plane. Major Gruber and Colonel Brow in the cockpit had no idea of what was happening when the plane went into what's called ''vortex ring state.''

I would like to go through this 10-year journey for the record, Mr. Speaker.

It so happened that in November 2002, Major Gruber's wife, who lives in my district in Jacksonville, North Carolina, wrote me a letter that I would like to read. Her husband, Brooks Gruber, was the copilot.

□ 1530

I contact you in hopes that leaders of integrity, free of bias, would have both the intelligence and the courage it takes to decide the facts for themselves. If you do that, you will agree the ''human factor/pilot error'' findings should not stand as it is in the marine military history. Again, I respectfully ask for your support. Please do not simply pass this matter along to General Jones without offering the support my husband and his comrades deserve. Please remember, these 19 marines can no longer speak for themselves. And I certainly am not afraid to speak for them and I believe someone has to. Even though it's easier to put to rest and forgotten, please join me in doing the right thing by taking the time to address this important issue.

Mr. Speaker, on March 9 of this year, The Hill magazine—and I would like to thank a new young man on the staff named Jeremy Herb, who did an article in the magazine about this 10-year journey that started with Connie Gruber's letter to me.

Mr. Speaker, over the 10-year journey, I have spoken to many, many experts. One that I would like to quote today for the RECORD is a former Assistant Secretary of Defense, Phil Coyle, and he states: Major Gruber should not be blamed for an accident caused by loss of lift due to the aircraft entering ''vortex ring state,'' a phenomena which no one in the Marine Corps adequately understood in relation to the Osprey at the time of the accident.

Secretary Coyle further states: Not only did the Marine Corps not understand Osprey performance under VRS, the root cause of the accident, but neither did the contractor nor the Marine Corps had not tested the aircraft near VRS—vortex ring state—conditions, something which, following the accident, it later took the Marine Corps years to accomplish. Surely Major Gruber and Colonel Brow could not be blamed for something that the Marine Corps, itself, did not grasp until years after the accident and after the death of the 19 marines. Considering that it was ignorance on the part of the Marine Corps that caused the April 2000 accident, the Marine Corps should make it clear to the Gruber and Brow families, with no ifs, ands, or buts, that Gruber and Brow were not responsible for the accident.

He further stated: I don't suppose the Marine Corps ever apologizes, but considering that the accident was their fault and not Major Gruber's and Colonel Brow's fault, an apology to the family would be in order also.

Mr. Speaker, I read that because this 10-year journey—and I will continue to add names in the next few minutes of people trying to help me. These two marines were the very best of the pilots, Major Brooks Gruber and Colonel John Brow. They gave their life for this new plane known as the V–22 Osprey. And those young marines sitting in the back, 19, 21, 23, 24, and 25, were selected from other marines to sit in the back of that plane. Those in the Marine leadership that created the mission in Arizona should join me in clearing the names of these two pilots.

Mr. Speaker, I further read for the RECORD, a former adviser to the Secretary of Defense, Rex Rivolo, stated in a letter trying to clear these names, and I read:

The failure of the manufacturer, Bell-Boeing, and the Navy to characterize the slow speed, high rate of descent handling qualities of the V–22 through flight testing, to describe them for the aircrew in the NATOPS, and to provide an adequate warning system were the causes of the mishap—not aircrew error.

With the passing of 10 years, and the future of the aircraft now secure, I sincerely hope that the names of Lieutenant Colonel Brow and Major Gruber can now be exonerated and cleared for posterity. I strongly support any and all measures to this end and request this letter be included in any official record regarding the causes of the MV–22 mishap at Marana, Arizona, on April 8, 2000, or any resolution attempting to clear the names of Lieutenant Colonel Brow and Major Gruber.

Mr. Speaker, what has been so ironic about this 10-year journey of everyone that was part of reviewing the accident, or maybe it was in the air like Lieutenant Colonel Jim Schaeffer who is joining this effort. Colonel Schaeffer was a friend of John Brow and Brooks Gruber, and Colonel Schaeffer was in a third airplane that night, a V–22, and he saw his friends and the 17 marines in the back flip, crash, and burn. And there is no reason that the Marine Corps will not give the wives what they're asking, and I'll explain that in just a moment, Mr. Speaker.

In this 10-year journey, Mr. Speaker, I've gotten to know the two attorneys, Jim Furman in Arizona, who defended the families of John Brow and Brooks Gruber before Bell-Boeing—it was a major suit—and then Brian Alexander in New York, who defended the 17 families of the marines sitting in the back of the plane. They have all joined in this effort to clear the names of John Brow and Brooks Gruber.

Mr. Speaker, what is so ironic in their effort, Jim Furman and Brian Alexander, to see the names cleared, they have given letters to the commandant that clearly state there can be no future lawsuits. It has all been settled. There can be no more lawsuits.

I must say that along this journey, at one time I had the Marine Corps to take the findings of the experts and put it into the personnel jacket of Colonel John Brow and Major Brooks Gruber. But, Mr. Speaker, I knew at that time that was not enough because the press continues to put articles about the crash in Arizona, and they say pilot error, human factors.

The JAGMAN report, which was the official report that was written by and signed by Colonel Mike Morgan, Colonel Ron Radich and Major Phil Stackhouse—they were the three investigators sent from Camp Lejeune, North Carolina, to Arizona the day after the crash, and they were given the responsibility, Mr. Speaker, of determining what caused the crash. Mr. Speaker, in the JAGMAN report that I just made reference to, on Page 77, those three men that I just named wrote this:

During this investigation, we found nothing that we would characterize as negligence or deliberate pilot error.

Mr. Speaker, all the two wives are asking the Marine Corps is a letter from the commandant on his stationery that clearly states one paragraph: Lieutenant Colonel John Brow, pilot, and copilot, Major Brooks Gruber, were not at fault for the accident that occurred on April 8 of the year 2000.

□ 1540

Mr. Speaker, the three investigators have joined in this effort, and I'd like to read from retired Lieutenant Colonel Ron Radich, one of the three investigators that I just named:

Despite the fact procedures were in the NATOPS for vortex ring state, there was no discussion concerning the aircraft flight characteristics during high rates of descent at slow airspeeds. No mention was made of a possible asymmetric condition that could lead to an uncontrolled and unrecoverable situation. With no knowledge, training, or warning concerning the possible consequences of VRS, the pilots of Nighthawk 72 were essentially on their own in unchartered territory.

These two pilots did not know what was happening, and it was the fault of Bell-Boeing and the Marine Corps. He further stated:

It was through their misfortune that the MV22 VRS hazard was identified.

Because of the accident, they learned so that nothing like this would ever happen again to a pilot. Colonel Radich further stated:

The Marana mishap of April 8, 2000, represents a monumental discovery that enhanced the overall safety and effectiveness of this highly capable weapon system. May the marines of Nighthawk 72 rest in peace knowing that the ultimate sacrifice they made for their country also led to a critical advancement in V22 safety and capability, and overall readiness of the United States Marine Corps. My thoughts and prayers go out to the families who continue to cope with the loss of their loved one and search for some form of closure.

Mr. Speaker, I further would like to add some comments from Lieutenant Colonel Mike Morgan. Again, he was the lead investigator of this crash that happened in Arizona. And I read:

I applaud and fully support the extraordinary effort you have undertaken in support of John Brow, Brooks Gruber, and the families who lost loved ones in the tragic crash of Nighthawk 72. One merely needs to look at what has transpired in the years since this tragic accident. After a second MV22 crashed just 8 months later, a blue ribbon panel closely examined the MV22 program. NAVAIR also aggressively pursued a test program to understand VRS and develop safety measures to educate and protect future MV22 pilots from the dangers. This was such a monumental undertaking that the lead developmental test pilot, Mr. Tom McDonald, was awarded the Society of Experimental Test Pilots Kinchloe Award for outstanding professional accomplishment in the conduct of flight testing.

Colonel Morgan further states:

John Brow and Brooks Gruber did their job and did it well. I look forward to the day when DoD officials accurately recognize the sacrifice made by them and all the marines of Nighthawk 72.

Mr. Speaker, I'd like to read the third letter from the third investigator, Major Phillip Stackhouse. It states:

I do not believe that it would be a surprise to anyone that it is in my opinion the mishap was not a result of pilot error, but was the result of a perfect storm of circumstances. During the conduct of the investigation, we collected some 20 binders of evidence—including, among other things, maintenance records, training records, telemetry records, operational and testing records, and dozens of photographs.

I do not feel that our investigation reflects that the mishap was a result of pilot error and if the investigation was interpreted that way, it was misinterpreted. For any record that reflects the mishap was the result of pilot error, it should be corrected. For any publication that reflects the mishap was a result of pilot error, it should be corrected and recanted.

Mr. Speaker, the problem has always been that after the JAGMAN report, which I just made reference to, if the Marine Corps in 2001, 2002 had issued a press release stating that new evidence has shown and proven that Colonel John Brow, pilot, and copilot Brooks Gruber were not at fault, Mr. Speaker, I wouldn't be on the floor today. But the Marine Corps has never, in a press release, corrected the misinformation that happened shortly after the Osprey crash when the Marine Corps' original press release indicated possible pilot error.

Mr. Speaker, that's why all these names that I have read today have joined me in asking the United States Marine Corps—who I have great respect for; they're among the best—to give the families, Connie Gruber and her daughter Brooks, to give Trish Brow and her two sons, Matthew and Mark, one letter on the commandant's heading on his stationery, clearly state to the Brow family that your husband, John Brow, a true American hero, was not responsible for the crash on April 8, 2,000. The same for Connie Gruber and her daughter Brooks down in Jacksonville, North Carolina, one paragraph with the same language that I just mentioned for Colonel John Brow, the same language for Major Brooks Gruber.

Mr. Speaker, I can assure you that as long as I have the privilege to serve in the United States Congress, and with all these experts that I've quoted today that are willing to join me, that the right thing must be done for the family, and the right thing is that letter from the commandant.

Mr. Speaker, I would not be the kind of person that I am without the faith that I have in my God. My mom and dad taught me the Bible. They taught me right from wrong, and they taught me that truth does matter. I have, with the help of God and the many experts, we have the truth. The truth is that these two outstanding pilots were put into an impossible situation without any training to understand how to react to vortex ring state. So, therefore, Mr. Speaker, we will continue to speak out on the floor of the House.

I have told the families that when this clarification comes through and their husbands are cleared, I would like to go with the Brow family to Arlington Cemetery and stand there with Trish, Matthew, and Mark and salute the colonel and say, Colonel, rest in peace. You're not blamed for this accident any longer.

I want to do the same thing with Connie Gruber down in Jacksonville, North Carolina, where her husband is buried. I want to walk with Connie and Brooks, and I want to stand at the grave and say the same thing to Major Gruber: Rest in peace. You no longer will be blamed for the accident on April 8, 2000.

Mr. Speaker, before closing, there's a quote that someone sent me in this 10-year journey to clear these names by Voltaire that says:

To the living we owe respect. To the dead we owe the truth.

That's what this is all about, Mr. Speaker, is the Marine Corps could issue one paragraph to the two families so that never again will they have to read in the paper the accident in Marana, Arizona, on April 8, 2000, was due to pilot error. Because as the families have said to me, help us get this clarification, and we will make sure that any print about the pilot error on April 8, we will ask and demand that it be retracted because it is not the truth.

□ 1550

I ask God to please bless our men and women in uniform. I ask God to please bless the families of our men and women in uniform. I ask God to hold in

His loving arms the families who've given a child dying for freedom in Afghanistan and Iraq.

I ask God to please bless the Brow family and the Gruber family. Bring peace to these families, God, by helping us get this misinformation corrected.

And I'll ask God to please bless the House and Senate that we will do what is right in the eyes of God for God's people.

I will ask God to bless the President that he will do what is right in the eyes of God for God's people.

And I'll ask three times, God, please, God, please, God, please continue to bless America.

I yield back the balance of my time.

BUDGET AUTONOMY FOR THE DISTRICT OF COLUMBIA

The SPEAKER pro tempore. Under the Speaker's announced policy of January 5, 2011, the Chair recognizes the gentlewoman from the District of Columbia (Ms. NORTON) for 30 minutes.

Ms. NORTON. Mr. Speaker, I've come to the floor today to inform the Congress of exciting new developments about the major priority for the District of Columbia for this year's Congress. These developments have come very quickly, both in the Congress and in the Nation.

We now have unprecedented momentum, both in the country and here in the Congress, to allow the District to spend its own local funds without coming to the Congress of the United States. That will seem very strange to Members of the public since they've never heard of a local jurisdiction having to bring its own local funds to a national legislature, which had nothing to do with raising those funds, for approval to spend them.

It is an anomaly whose time has passed. And I'm very pleased at the response we are getting in the Congress, and that we have gotten in very little time, less than 6 months.

We see it culminating in a national poll that, in essence, blesses the momentum we are seeing in the Congress for budget autonomy for the District of Columbia. This poll was released just this week, and it's been an important week for the District of Columbia, because the District has just celebrated Emancipation Day. The slaves who lived in the District of Columbia were emancipated 9 months before slaves in the rest of the United States. And there's some analogy here, my friends, because what was not emancipated was the budget of the District of Columbia. And that's what we're trying to free now.

And that's what the American people seem to want, by a very large majority. A polling organization that is bipartisan, called Purple Insights, using the traditional methodologies that you see in all the national polls, asked this question of Americans in all parts of the country, from both parties and Indepedents.

The question was preceded by the following: The budget of the city of Washington, DC, is funded by local residents' tax dollars. Do you think that decisions about Washington, DC's local budget should be made by Washington, DC, taxpayers and their own elected officials, or should those budget decisions be made by the U.S. Congress?

And here are the results. Seventy-one percent of the American people said the DC budget should be decided exclusively by the DC government. Only 23 percent said that the decisions should be made by the U.S. Congress.

What is most gratifying is the way in which these numbers reflect both parties. The polling organization broke down these numbers, and they were careful to ask people from both parties. For Democrats, the notion that the budget should be decided only by the DC government was 71 percent. But Independents were at 75 percent, and Republicans were at 72 percent. So, no matter where my colleagues come from, their constituents support the bedrock principle—no principle is more American—that if you raise the money, you get to decide how to use it. And you certainly don't go to a national body for approval.

And they looked at men and women. 68 percent of men, and 72 percent of women believe that the local government should decide the local budget and be the final decisionmakers.

If you look at regions of the country, Mr. Speaker, they had the same kind of virtually even breakdown in support of local control. If you look at the Northeast, it's 69 percent. You look at the Midwest, it goes up to 74 percent. You look at the South, it's 68 percent. You look at the West, it's 72 percent.

No red-blooded American is going to say, with a straight face, that you can take my local budget with my money in it and make the Congress the final decision-maker on that budget. That's what this poll shows.

The Republicans and the Democrats are virtually even. But more Republicans say that DC budgets should be made by the local DC government; that's 72 percent, 71 percent Democrats.

If you look at those who oppose, the opposition shows the same breakdown. You have 24 percent of Democrats saying Congress should control the DC budget, and you have 22 percent of Republicans.

Where's your majority here?

The majority is where I think most people would have expected it to be. But I am grateful for a local organization called DC Vote for commissioning this poll. And DC Vote realized that the poll might come under some scrutiny, so it went to a polling organization which is known for its bipartisan reputation in polling.

□ 1600

That, of course, should be all we need to hear, but the fact is we have a parallel development right here in the Congress.

This week, Senator JOE LIEBERMAN announced that he was preparing his own budget autonomy bill for the District of Columbia. Now, Senator LIEBERMAN, who works in a very bipartisan way in the Senate—I am so sorry to see that he has decided to retire—has long been the foremost Senate champion of equal rights for residents of the District of Columbia.

The momentum for budget autonomy began with a Republican chairman in the House, DARRELL ISSA. I will have something to say about how that happened. We then had two more Republican leaders—House Majority Leader ERIC CANTOR and the Republican Governor of Virginia, Bob McDonnell—weigh in for budget autonomy for the District of Columbia. This week, citizens from the organization DC Vote were here in the Congress, speaking to Members about the latest poll results. But let me say something about the Members because it's the Members who have the last say here.

As chairman of the House Oversight and Government Reform Committee, DARRELL ISSA is responsible in the House for matters that involve the District of Columbia. His committee, and I've been here more than 20 years, had never had a hearing on the DC budget. He decided to have one. He listened to his witnesses, and he listened to the chief financial officer of the District of Columbia and to other District of Columbia officials.

What he heard was that the District of Columbia had the largest budget surplus in the United States, here in the middle of a recession, and that its budget and finances were in better shape than those of virtually any State in the United States. He heard the witnesses from his side as well as our side—the Republican side as well as the Democratic side—and from objective witnesses from the outside saying that the major problem the District faces are the inefficiencies and the premiums it pays on Wall Street because its local budget cannot be implemented until it is approved by the Congress of the United States. This creates huge uncertainty, of course, among bondholders and on Wall Street not of the making of our citizens but due to the fact that the Congress has to approve the City's budget.

Now, I can tell you that no one can remember when the Congress of the United States has changed the City's budget itself, and you can imagine why. A budget is a very delicate document to put together, and Congress does not have the kind of hearings you would have here to know what to take out and what to put in and how to sew it back together again. So what's the point of bringing it over here except tradition? The chairman listened to the problems with bringing the D.C. budget to the Congress and heard even more problems than he expected.

School begins in September, but by the time Congress finishes with the Federal budgets, even the earliest

point is September 30. The reason that most jurisdictions are on a July 1 fiscal year and not a fiscal year that begins on October 1, as the Federal Government does, is precisely because of the importance of schools in every jurisdiction. But in the District, our schools and our city are handicapped by the fact that the budget isn't approved by the time school opens.

That impressed the chairman, apparently, and he was impressed by the fact—and I will soon get to this issue—that the District government has faced shutdowns because its budget was here during fights over the Federal budget, which has resulted in the possibility of the shutdown of the D.C. government.

Chairman ISSA listened at the hearing and did something I've never seen a chairman of a committee do before in my years in the Congress. He listened so intently, heard so well that he announced as the hearing ended that he intended to write a bill for DC budget autonomy. Everyone was surprised. His staff told us they had no idea in advance. Mr. ISSA decided upon hearing the witnesses at his hearing.

That is, I must say to my colleagues and to members of the public, a civics lesson in committee work at its best. The chairman listened. The chairman made a decision. The chairman then went to work.

He worked on several versions of a budget autonomy bill, and exchanged them with me, with the mayor, and with other officials in the city. There were some issues, and we indicated what those difficulties would be operationally. Then, he announced his final proposal for a DC budget autonomy bill. I can tell you that, while it has its own form that clearly bears his signature, in many ways it mirrors my own DC Budget Autonomy Act.

You can imagine how thrilled we were that the chairman of the full committee had, indeed, decided that it was in the best interest of the District of Columbia and in the best interest of the Congress for the District's budget to remain in the District and to be implemented in the same way that the budgets of every other jurisdiction in the United States, except the budget of the District, are implemented. June 30 comes. On July 1, other jurisdictions begin to implement their budget. They prepare for school, and they are ready when school begins.

Mr. ISSA's bill came to the attention of the President of the United States. The President had weighed in the year before for budget autonomy, but upon hearing of Mr. ISSA's bill, he included in his own budget, which was submitted this year, the following language:

Consistent with the principle of home rule, it is the administration's view that the District's local budget should be authorized to take effect without a separate annual Federal appropriation bill. The administration will work with Congress and the mayor to pass legislation to amend the D.C. Home Rule Act to provide the District with local budget autonomy.

That's the President's statement, inspired by the Republican chairman's proposal for budget autonomy. I know that there are many in this Chamber and in the public who see rare instances—perhaps none—of bipartisan ideas from this Congress. There you see one. You see a Democratic President. You see a strong Republican chairman.

Mr. Speaker, that is not all.

Mr. ISSA was moved, in part, to address budget autonomy because of the problems the District has had with Federal shutdown threats. Most of America is aware of the shutdown threats. By the skin of our teeth, we barely missed a shutdown a year ago. No one believes, of course, that the underlying issues had anything to do with the District of Columbia budget. Those issues are well-known. They involve disagreements between Democrats and Republicans over Federal issues like the Federal deficit. The District has long had a balanced budget, and as I indicated before, beyond its balanced budget, it has the highest surplus in the United States.

So why is the District of Columbia caught in Federal fights that lead to the possibility of shutdowns of the Federal Government?

□ 1610

If the D.C. budget is here, if the budget of the District of Columbia is here and has not been passed by the Congress—and it usually is not passed until, of course, the Federal budgets are passed, or certainly no sooner than September 30—then the District of Columbia's local budget gets thrown in the pot with a budget of—for instance—Health and Human Services, the Department of Defense, all of the Federal agencies that get shut down, though there's nothing that the District can do to extricate itself from this fight, because this fight does not involve any concession that the District can make—it involves only Federal issues—nevertheless, the District government will get shut down with the Federal Government.

There were three shutdown threats in 2011. The Federal Government didn't get shut down, although I can tell you it came so close to being shut down I don't even like to think about it. The problem is that every time there is the threat of a Federal shutdown, the local government of the District of Columbia has to spend time and money preparing to shutdown, whether or not it occurs.

Imagine your county, imagine your city pulling people together three times to prepare for a shutdown, to prepare for which agencies can keep going and which agencies to shut down. Because in the event of a shutdown, the only agencies that can be kept in operation are essential agencies. Three times the District of Columbia government had to do that. The District of Columbia is going through the same problems that every local jurisdiction is having as we climb out of the Great Recession. You can imagine what a waste of time and energy that was.

That was one of the issues that made Chairman ISSA think through the notion of budget autonomy. I myself have had several bills to keep the District government from shutting down in the case of a Federal Government shutdown. I put in a bill each fiscal year saying that if the Federal Government shuts down, the District can spend its own local funds, no other funds, no Federal funds, nobody can spend those, but its own local funds. Those bills have not passed.

Just 2 months ago, I warned the mayor that we could be headed for a shutdown this year because the Senate and the House have different budgets. An agreement was reached between the two Chambers in the Budget Control Act about the level of spending in 2013. While the Senate has stuck to that number, the House is using another number. So if the two don't agree, and they each come forward with different appropriation bills, the country could be faced again with the possible shutdown of the Federal Government.

That's bad enough for the country, but suppose you were the mayor of the District of Columbia or a member of the city council and had to consider that there could be a shutdown of the District government over the fact that the House and the Senate are using different budget numbers this year? That would be enough to make you, I think, tremble, as I'm sure the District is now as it considers what to do. Of course, Congress is going to try to reach some agreement. But at the moment, they're going in absolutely divergent directions, despite having reached an agreement on what the number would be for the budget this year.

The President, noting these shutdown threats and the cost to the taxpayers of the District of Columbia, did something quite unusual. He not only submitted his views on budget autonomy—that he favored it—he submitted actual language that would keep the District open in case of a shutdown. I would like to submit that language for the record.

The language referred to is as follows:

Consistent with the principle of home rule, it is the Administration's view that the District's local budget should be authorized to take effect without a separate annual Federal appropriations bill. The Administration will work with Congress and the Mayor to pass legislation to amend the D.C. Home Rule Act to provide the District with local budget autonomy.

When the President submits the language to the Congress, that puts a very special emphasis on the need for what he is asking for.

Mr. Speaker, not only have you had the President and Mr. ISSA; the majority leader of this body, Mr. CANTOR, has indicated that he supports budget autonomy. His spokesman said that ''he is certainly willing to work with the District toward its goal of budget autonomy.'' That's the first time that a leader of my friends on the other side of the aisle has indicated public support for budget autonomy.

This afternoon, I want to thank Mr. CANTOR personally for doing so. Mr. CANTOR may have been moved by his own Governor. The Republican Governor of Virginia, Governor Bob McDonnell, wrote to Majority Leader CANTOR indicating that he supports budget autonomy for the District.

One of the reasons he gave was that 100,000 Virginians come to the District of Columbia to work every day in the private and Federal sector, and that if the District government shuts down, those 100,000 residents from Virginia, who had nothing to do with this fight—just as the District of Columbia had nothing to do with the Federal fight—are seriously inconvenienced.

The fact that these two Virginians from our region have spoken out speaks to the practical reality behind budget autonomy. In addition, the Governor of Virginia made it clear he did not see how the mayor of the District of Columbia could run his city when he could not be certain when his budget would be passed. Here you have one chief executive speaking to another, and both from different parties.

The case we think, Mr. Speaker, has been made. It has been made here by the leadership of this body and the leadership of the Senate, and it has been made in the country as leaders have stepped forward to indicate that the rational thing to do, the American thing to do, if you will, is to respect the right of a local jurisdiction to spend its own local money without coming to a national body which has had nothing to do with raising those funds.

If I could inquire, Mr. Speaker, how much time I have remaining?

The SPEAKER pro tempore. The gentlewoman has 4 minutes remaining.

Ms. NORTON. I want to summarize how much on the same page Democrats and Republicans are on the proposition that D.C. should control D.C.'s local budget. There's nothing radical about that one, my friends. It would be hard to go out in the street of your city or your county and get a different response.

So it's not surprising, but it's very important to have these poll figures, which back up where Chairman ISSA is trying to take us, where Mr. CANTOR is trying to take us, where the Governor of Virginia is trying to take us, where D.C. officials, and, I hope, the Congress will come this year. The polls show very gratifying numbers, but they are numbers that reflect where Americans always are. Americans are, first, local people. They want to do as much locally as possible. They understand that there are national issues. They know that one of those issues is not their own local money.

Mr. Speaker, this week, the District of Columbia celebrated D.C. Emancipation Day, and, of course, it's worthy of celebration, when this city was the first jurisdiction whose slaves were freed by Abraham Lincoln. Isn't it amazing that the Nation's capital had slavery in 1862?

□ 1620

But it is very hard to celebrate Emancipation Day in the District of Columbia when your own local funds cannot be spent by your own local people. We raise about $6 billion in local funds. It is a very diverse city of people from all walks of life with all levels of income, and there is absolute agreement across all political lines that the one thing we deserve is budget autonomy.

This year was the 150th anniversary of the liberation of slaves by Abraham Lincoln in the District of Columbia. We noted that the slaves had to be very grateful to be liberated because there was nothing they could do to liberate themselves. Armed struggle was certainly not possible for slaves here or anywhere else. Peaceful opposition to slavery would have brought armed struggle against their peaceful opposition, so they had to wait to be liberated.

The people of the District of Columbia understand it is up to them to liberate themselves, but they, too, cannot free themselves entirely. They do not have a Member who has a vote on the floor of the United States Congress. I vote in committee. I do not have the right to vote for final passage of any legislation.

Yet my residents have been in every war the Nation has fought since the Nation was created. We pay federal income taxes at the highest levels. We're second per capita in federal income taxes among the 50 States and the District of Columbia. So you can imagine that it is with some anguish that we send our own local budget to people we respect but people who have contributed nothing to the money we have raised in our city.

I thank all who have supported us here in the Congress, and I look forward to the day, which I hope will be this year, when there will be budget autonomy for the District of Columbia.

I yield back the balance of my time.

''The following is the actual proposal the president included in his fiscal year 2013 budget to prevent a D.C. government shutdown in the event of a federal government shutdown:''

SEC. 817. Section 446 of the Home Rule Act (D.C. Official Code sec. 1–204.46) is amended by adding the following at the end of its fourth sentence, before the period '': Provided, That, notwithstanding any other provision of this Act, effective for fiscal year 2013, and for each succeeding fiscal year, during a period in which there is an absence of a federal appropriations act authorizing the expenditure of District of Columbia local funds, the District of Columbia may obligate and expend local funds for programs and activities at the rate set forth in the Budget Request Act adopted by the Council, or a reprogramming adopted pursuant to this section.'' (Financial Services and General Government Appropriations Act, 2012.)

PURPLE INSIGHTS POLL, APRIL 5–9, 2012

Q: The budget of the city of Washington, D.C. is funded by local residents' tax dollars. Do you think that the decisions about Washington, D.C.'s local budget should be made by Washington, D.C. taxpayers and their own elected officials OR should those budget decisions be made by the U.S. Congress?

71% of Democrats believe D.C. should control D.C. local budget

72% of Republicans believe D.C. should control D.C. local budget

75% of Independents believe D.C. should control D.C. local budget

68% of Males believe D.C. should control D.C. local budget

73% of Females believe D.C. should control D.C. local budget

60% with High School or Less believe D.C. should control D.C. local budget

78% with Some College believe D.C. should control D.C. local budget

80% of College Graduates believe D.C. should control D.C. local budget

69% in the Northeast believe D.C. should control D.C. local budget

74% in the Midwest believe D.C. should control D.C. local budget

68% in the South believe D.C. should control D.C. local budget

72% in the West believe D.C. should control D.C. local budget

24% of Democrats believe Congress should control D.C. local budget

22% of Republicans believe Congress should control D.C. local budget

20% of Independents believe Congress should control D.C. local budget

26% of Males believe Congress should control D.C. local budget

20% of Females believe Congress should control D.C. local budget

33% with High School or Less believe Congress should control D.C. local budget

18% with Some College believe Congress should control D.C. local budget

13% of College Graduates believe Congress should control D.C. local budget

26% in the Northeast believe Congress should control D.C. local budget

19% in the Midwest believe Congress should control D.C. local budget

25% in the South believe Congress should control D.C. local budget

6% in the West believe Congress should control D.C. local budget

5% of Democrats do not know whether D.C. or Congress should not control D.C. local budget

6% of Republicans do not know whether D.C. or Congress should not control D.C. local budget

6% of Independents do not know whether D.C. or Congress should control D.C. local budget

5% of Males do not know whether D.C. or Congress should control D.C. local budget

7% of Females do not know whether D.C. or Congress should control D.C. local budget

7% with High School or Less do not know whether D.C. or Congress should control D.C. local budget

4% with Some College do not know whether D.C. or Congress should control D.C. local budget

7% of College Graduates do not know whether D.C. or Congress should control D.C. local budget

5% in the Northeast do not know whether D.C. or Congress should control D.C. local budget

7% in the Midwest do not know whether D.C. or Congress should control D.C. local budget

7% in the South do not know whether D.C. or Congress should control D.C. local budget

6% in the West do not know whether D.C. or Congress should control D.C. local budget

METHODOLOGY

National omnibus interviews of 1,007 adults age 18 and older in the continental United States on April 5–9, 2012 conducted via a random digit dialing methodology telephone and cell phone methodology.

The sample consisted of:
—757 interviews from the landline sample
—250 interviews from the cell phone sample
—504 men
—503 women
The data is weighted to reflect the geographic, demographic, and socioeconomic information that are known for the population as well as measured in the survey.

HEALTH CARE

The SPEAKER pro tempore. Under the Speaker's announced policy of January 5, 2011, the Chair recognizes the gentleman from Georgia (Mr. BROUN) for 30 minutes.

Mr. BROUN of Georgia. Mr. Speaker, this afternoon I'm going to talk about health care. I'm a medical doctor. I'm a primary care physician. As a medical doctor, I'm very concerned about where we are going as a Nation.

Back during the debate over the Patient Protection and Affordable Care Act, otherwise known as ObamaCare, I presented several alternatives to that bill. Most people know in this country that the U.S. Supreme Court a couple of weeks ago, 3 weeks ago, had hearings about the constitutionality of the individual mandate, whether the Federal Government, under the Constitution, can demand that every single person in this country buy health insurance that's dictated by the Federal Government, that the Federal Government actually puts out all the parameters for that health insurance.

We recently saw Kathleen Sebelius, the Secretary of Health and Human Services, say that everybody's health insurance in this country is going to have to provide free birth control pills, free pills that are designed for nothing but to cause an abortion and free sterilization for everybody in the country. That's whether you are male or female. Who pays for that? Well, we all will.

Mr. Speaker, this is not about birth control. It's about government control. Because, you see, under ObamaCare, if it stays in place, it's going to be a tool where the Federal Government can mandate every aspect of our lives, what we eat. In fact, Justice Scalia, during the hearings a few weeks ago, said, if it stays in place, couldn't the Federal Government demand everybody in the country eat broccoli? I love broccoli and I eat a lot of it, but it's not the Federal Government's business to mandate that I eat broccoli—or anybody else, for that matter—and he's absolutely right.

In fact, under the auspices of health care, the Federal Government could control every aspect of our lives, could tell us what kinds of cars that we drive. The Federal Government could basically say, We believe everybody should drive a Chevy Volt or a Ford Focus, and if you don't, we're going to fine you.

There are already doctors that are associated with the CDC in my home State of Georgia that say it's a health hazard for people to have private ownership of firearms and it's a particular health hazard to children. They could outlaw private ownership of firearms. They could outlaw anything that the Federal Government decided to do.

ObamaCare is going to be a destroyer. It's going to destroy the doctor-patient relationship. It will destroy the quality of health care, because the Federal Government is going to decide who can get care and who is not. It can decide whether a person is fit to receive surgery or go in the hospital or not. Age is going to be a determining factor, and it's all going to be based on economics, on cost. The high cost of health care today is because of government intrusion into the health care system. In fact, I will just give you two quick examples.

Back when I was practicing medicine down in rural southwest Georgia, in my little office I had a fully automated, quality-controlled laboratory. If a patient came in to see me that had a fever, aching all over, sore ribs, swollen throat, coughing, nose running, I would do a complete blood count, a CBC, to see if they had a bacterial infection which needs to be treated with antibiotics or whether they had a viral infection which is not helped by antibiotics, the patient doesn't need to go spend the money on those antibiotics. The best practice is it is not a good standard of care to treat viral infections with antibiotics. I would do a CBC. I could do it in 5 minutes. I charged 12 bucks.

Congress, in its infinite wisdom, decided that I might make a few pennies off of doing CBCs and, thus, would have an incentive to do too many. Well, they passed CLIA, the Clinical Laboratory Improvement Act. Instead of being able to do the test in 5 minutes, 12 bucks, I had to send patients over to the hospital. It took 3 to 4 hours, $75 for one test—from 12 bucks to $75—because of a law that Congress passed.

What do you think that did to everybody's insurance all across this country? What do you think it did to the cost of Medicaid as well as Medicare? It markedly elevated the cost.

The second issue, Congress passed and is now law, HIPAA. It's a totally unneeded act. It has cost the health care industry, alone, billions—billions with a B—billions of dollars, but a totally unneeded act, and it has not paid for the first aspirin to treat the headaches it has created. There are other industries—like the insurance industry, legal industry, accounting industry, and a whole lot of others—that are affected by HIPAA also. It's government intrusion in the health care system.

The President promised us that ObamaCare would not cost over a trillion dollars. They went through a whole lot of budgetary gimmicks to try to get it under a trillion dollars. Just recently, CBO said that ObamaCare is going to cost $1.75 trillion.

The President promises, if you have insurance and you like it, you can keep it.

□ 1630

Nobody is going to be able to afford it. I talked to a businessman, and his insurance went up this year over last year by 43 percent because of the mandates in ObamaCare. Hopefully, the Supreme Court is going to throw out ObamaCare because it's going to destroy the doctor-patient relationship and the quality of medicine. It's also going to destroy budgets. As I've already mentioned, it's very, very expensive. The expansion of Medicaid is going to destroy State budgets. The whole bill is going to destroy the Federal budget and destroy our economy. And as I've already mentioned, it's going to destroy our freedom.

So what's the alternative? What happens if the Supreme Court throws out ObamaCare, as hopefully they will—and they should—because it's blatantly unconstitutional. Well, the first thing, this chart shows us what ObamaCare is like. And this isn't all of the new bureaus and agencies that are created under the plan. Right in the middle is the Secretary of Health and Human Services. Kathleen Sebelius, if she's still in office a year from now, has the potential to be the greatest tyrant to take away our freedom because of this law.

We must get rid of ObamaCare and replace it with something that makes sense economically and we put patients and doctors in the business of making their own decisions.

Well, I introduced a bill a few weeks ago called the Patient Option Act. It's H.R. 4224. What would it do? The first thing, it repeals ObamaCare completely. Gets rid of it, as we should. It also makes health care cheaper for everybody. It will lower your cost of insurance. It makes all health care expenses cheaper for everyone. It will provide coverage for all Americans, and also it will save Medicare from going broke.

Today, I heard some of my Democrat colleagues talk about Republicans want to destroy Medicare as we know it. And that's what their mantra keeps being. But their policy is characterized by four Ds. The first D is that they deny that Medicare and Social Security has any problem whatsoever. The actuaries of both Social Security and Medicare say they're going to go broke within just a few short years—within the life span of almost every American, except for the extreme elderly. So they deny there's a problem.

The second D, they're delaying fixing the problem. Their mantra of let's save Medicare as we know it is going—they deny the problem.

The third D is they're going to destroy Medicare as we know it because it's just totally not feasible to go forward and not fix it. That's what Republicans have been trying to do.

And the fourth thing that my Democrat colleagues do is they demonize all of us who want to try to fix it. The Patient Option Act will fix it, and that's what we need to do. We need to have

policies to give patients, give people a whole lot more options, and that's exactly what I'm trying to do with my Patient Option Act.

So how does it make it cheaper for everyone? The first thing it does is it provides 100 percent tax deductibility for all health care expenses, including insurance. What's this do? Well, most people in this country get their health insurance through their employer—at least working people do. And what this does is it will allow a business to just give the money to their employees and let the employees go out and buy the health insurance that makes the most sense for them and their families. So the employer is not dictating what kind of insurance the employee gets. It's a normal business expense to the employer to give that money to the employee, and then the employee can go out and buy whatever kind of insurance that they want to. In doing so, they can buy health insurance across State lines.

What this will do is it will get rid of all the State mandates because somebody in Georgia can go to Ohio and buy a basic policy without State mandates that are given to the insurance companies in Georgia. Plus, this issue breaks up the monopolies. In every State there are only just a very few health insurance companies that are providing health insurance within that State. They have what's tantamount to a monopoly. By allowing people to work with the insurance agents, they can buy health insurance anywhere in the country and can have a whole lot more options in health insurance—those kind of insurance policies that fit their families' needs the very best at a much lower cost.

It also increases the contribution limits and does patient reforms to the health savings accounts. What my bill does is it allows everybody to contribute up to $10,000 a year into their health savings account, and the employer can help provide the funds so that the employee can fund their health savings accounts. Actually, the employee will own that health savings account, manage it themselves.

Now, my Democrat colleagues seem to think that nobody can manage their own health insurance or their own economic affairs, that we have to have the Federal Government telling all of us how to manage all of our affairs. That seems to be their philosophy. But I trust the American people. I think people can manage their own affairs if we give them the ability to do so, and expanding health savings accounts will do just that. It's not a use-it-or-lose-it situation under the Patient Option Act. That can continue to grow over the lifetime of the individual. And when they die, when they pass it, that health savings account will actually go into their estate and go to their heirs.

So this puts competition into the health insurance industry. It takes away all those mandates and lets patients have multiple options where they can purchase the health insurance at a lower cost that makes sense to them, and their employer will not dictate it and neither will the Federal Government. So it will be a whole lot cheaper for everyone.

Now, it also offers coverage for all Americans. Well, in repealing ObamaCare, the thing about ObamaCare is we were told we need to have health care for everybody. Well, the thing is what is confusing to most Americans is we haven't been talking about health care. We're just talking about health insurance. When ObamaCare says ''provide health care for everybody,'' what they're saying is health insurance for everyone that is mandated by the Federal Government. In fact, the President went on a national address over TV just prior to passing ObamaCare, where he said he wants everybody in this country in one pool. One insurance pool.

What's that mean? That means the Federal Government provides all health care coverage and all health care for everybody. That's socialized medicine. Socialized medicine. And that's exactly what ObamaCare is all about. It's geared towards forcing people out of their private insurance—we already see that happening today—and forcing everybody into a national pool run by the Federal Government, which in itself is going to destroy the quality of health care, and Federal bureaucrats are going to be making decisions for everybody about the kind of surgery that everybody can or cannot have, whether you can get a certain medication or not, whether you can go in the hospital or not. The doctor will not be able to make those decisions.

Already, as a physician, a primary care doctor, the health management corporations as well as the government entity, CMS, determine today whether a patient can go in the hospital or not or whether they can get a certain treatment or not. We've got to stop that. We've got to put patients in control, where they can work with their doctors and get the kind of health care that they need without some bureaucrat—insurance company bureaucrat or government bureaucrat—making the decisions.

But what this does, my Patient Option Act, H.R. 4224, allows businesses or individuals to come together and form an association and have huge insurance pools all across the country. That association could offer multiple insurance products—a Cadillac plan or bare-bones plan or something in between. Whatever the members of that association want to purchase, the association can offer multiple products. Since you will have such huge pools across the land, then the cost is much lower. It spreads the liability across many more people, and so health insurance is a whole lot less expensive for all of us.

□ 1640

In doing so, it will help cover a lot of people who are uninsured today because they can't afford it, and it will also allow people who have preexisting conditions to join those associations and be able to buy health insurance at a price where they can afford it, so it will help cover those people with preexisting conditions. So this will allow those groups to make these associations as well as individuals or businesses to buy the health insurance across State lines. It will provide coverage for virtually everybody.

Well, what about Medicare? And I'm going to come back to coverage for particularly poor people that can't afford insurance even with the lower prices. And I'll tell you what the bill, the Patient Option Act, H.R. 4224, does.

My bill will save Medicare. It will save it from going broke and make it so that our senior citizens not only today, but these children that I see, young people I see in the gallery today, they'll be able to have insurance in the future through Medicare if that's what they want to do. It allows seniors to opt out of Medicare if they want to.

I've got a constituent that worked for a large cable company here in this country. When he retired, the cable company wanted to provide health insurance for him for the rest of his life as an executive of the cable company. But they couldn't do it and he couldn't do it because, under the current law, everybody has to go into Medicare once you turn 65, at least part A. You don't have any option about that. It's mandated.

Of course, mandates like that, I don't think that's freedom, frankly, Mr. Speaker. Everybody is mandated to go into Medicare when they turn 65. Well, my bill will allow them to say, No, I want to buy private insurance; I don't want Medicare; I don't want to be involved in it. So they can use their own insurance, whether it's provided through a company or whether it's something they've bought all along, and it moves Medicare into a more flexible program.

It actually sets up a Medicare health savings account that Medicare will fund. The patient will own that health savings account and will manage the dollars. It won't be managed by some Federal bureaucrat. And if the patient doesn't utilize all those funds before they pass away, those funds actually go into the Medicare recipient's estate and the heirs will get the dollars.

The Medicare recipient will control the money, will control the decisions, can work with their doctor, and it gives the Medicare recipient a lot of options. And it also gives premium support on top of the Medicare health savings account so that the Medicare patient will have comprehensive coverage for any medical emergency or even very costly medical treatments.

So it takes care of Medicare patients. It gives them good quality care. It puts the Medicare patient in control of those decisions, and it will save Medicare from going broke, which it's going to in just a very few short years.

The other thing my bill does, and this will help with those poor people who can't even buy the much-reduced-cost health insurance, even bare-bone policies, and, unfortunately, there are some people in this country that are in that category. In my over four decades of practicing medicine, I have literally given away hundreds of thousands of dollars of my services. That's what most doctors do, particularly in my generation. A lot of the younger doctors aren't doing that as much because of the government diktats to them and because of the requirements that CMS puts upon their practices that they don't have time to give to their patients. They don't have time to try to develop relationships with their patients. They don't have time to give good quality care anymore because of the Federal Government.

If I was accepting Medicare as a physician and I was a preferred provider—that's the providers that are accepting Medicare as a payment. And Medicare, by the way, sets the prices but says you cannot publish those prices. There's no transparency because of Federal diktats, by the way, Federal law.

If I was a preferred provider and a patient came in to see me that was really struggling and trying to make ends meet, they didn't have health insurance, they're trying to pay their bills, and they came in to see me, and I said, Don't worry about the bill—and I have done that to thousands of patients over my four decades of practicing medicine. I said, Don't worry about it. Forget it. I'm glad to give you these services for free. If I did that and I was a preferred provider, Medicare could literally throw me in jail for treating somebody for free. They could throw me in jail and they could fine me.

Doctors today cannot give away their services to somebody who needs, desperately, to get their services. So what my bill does is it stops that, and it gives a physician a tax credit between $2,000 and $8,000 a year for giving away their services. It gives them a tax credit.

I talked to a lot of doctors throughout Georgia and asked them, if we did this, how many doctors would actually see patients for free. Every single one in every single doctors' meeting has held up their hands. And I'll give you an example.

I talked to a urologist who basically practices in a very upscale, wealthy community. He's in his office 4 days a week. It's a retirement community with high-price real estate and homes. And he told me, if I would do this in a bill, he would set aside 2 of the 4 days he's in his office to see nothing but indigent patients. Let me repeat that. This doctor who is working in this area will give half of his time to see indigent patients in his office if we would just give him this tax credit.

And that's what we did in this bill so that doctors are no longer under the threat of being fined and being jailed for just having compassion on poor people, as the Federal Government has stopped that, prevented that and said it's against the law to have compassion on poor people. You have to charge them. You have to try to collect, and you cannot give away your services. This stops all that.

Medicare has no compassion. Medicaid has no compassion. It's all about money and government control.

Another thing that my bill does is it reforms EMTALA, the Emergency Medical Treatment and Active Labor Act. This is another law that Congress passed that requires every emergency room in this country to see whoever comes in and to treat them. In my area in Georgia, throughout my Tenth Congressional District in Georgia, a person can walk into any emergency room in my district and they will find the emergency room filled with patients who do not need to be in the emergency room, should not be in the emergency room.

I worked for 2 years before I moved to northeast Georgia. I was working at a hospital down in southwest Georgia as the director of emergency services. For 2 years, I worked full-time as an ER doc and directing those emergency services. Way over 90 percent of the patients that came in that emergency room, as they do in most emergency rooms, had no emergency. And, actually, emergency rooms all across this country are filled with illegal aliens that are going there and getting services, utilizing the emergency room in the hospital as their primary care provider; in other words, they're going to see doctors in the emergency room for stumped toes or colds, sore throats, headaches, any medical problem. And they don't have to pay because of EMTALA.

The Federal Government has required the emergency rooms to see and treat everybody who walks in. Whether they can pay or not, whether they are here legally or not, whether they are a citizen or they are an illegal alien, it requires them to do so.

What's happening with EMTALA is there is a tremendous economic burden upon hospitals. We have hospitals, particularly rural hospitals, going broke today so that nobody in their community gets services because of EMTALA.

□ 1650

It's not fair. It's not fair to the people in that community. It's not fair to people who really need to be in the emergency room. It's not fair particularly that we are forcing emergency rooms and hospitals to see illegal aliens. Actually, it's hurting people who have true emergencies because emergency rooms are filled with people who don't need to be there. People can come in with severe injuries or severe medical problems. If it's not blatantly apparent, then people have delayed administering of treatment that they desperately need to keep them well or to save their lives.

What my bill does is it allows hospitals to set up a basic screening process so that the hospital can set up somebody with basic medical knowledge and can screen patients and say to the patient, this is not an emergency, go see your doctor, go to a free clinic, we can't see you. So it reforms EMTALA and makes it so that hospitals don't have this economic burden that's been placed on them because of Federal law and Federal dictate.

I presented this bill to a lot of groups. In fact, I'm very pleased, I did an interview with Forbes magazine recently. They wrote up a blog and this article about my health care bill, the Patient OPTION Act, H.R. 4224.

They said this: Now a new plan has come forth, backed by one of the most influential Tea Party groups—that I'll mention in just a second—that contains some intriguing and original ideas for bringing cheaper health care to more people. This is from Forbes magazine.

BROUN's plan would revolutionize the insurance market by incentivizing companies, particularly smaller ones and startups, to pay their workers directly their wages—so that the wage earner will control their own money. They're earning it, they should get it, and they should make their own health care insurance decisions themselves—and let those workers decide how to pay for their own care.

Forbes magazine. It's not a Tea Party magazine; it's a magazine that I think most Americans know.

The Tea Party group—which a lot of people don't understand Tea Parties and what it's all about, but Freedom Works is a grassroots group, and it's been dubbed a Tea Party group. Actually, Freedom Works has been around for some time. But Freedom Works has endorsed my Patient OPTION Act, and this is what they said:

Congressman BROUN has authored a bold, timely, and principled plan that offers exactly what a majority of Americans want, a patient-centered health care so that patients can make their own decisions, along with their doctors. It makes health care cheaper for everybody. It provides coverage for all Americans. And it will save Medicare from going broke.

Americans need to contact their Senators and Congressmen and the leadership of the House and Senate and demand that we pass the Patient OPTION Act, H.R. 4224.

With that, I yield back the balance of my time.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Members should not refer to occupants of the gallery.

MESSAGE FROM THE PRESIDENT

A message in writing from the President of the United States was communicated to the House by Mr. Brian E. Pate, one of his secretaries.

NATIONAL DRUG CONTROL STRATEGY—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 112–98)

The SPEAKER pro tempore laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committees on Armed Services, Education and the Workforce, Energy and Commerce, Financial Services, Foreign Affairs, Homeland Security, Judiciary, Natural Resources, Oversight and Government Reform, Transportation and Infrastructure, Veterans' Affairs, Ways and Means, and ordered to be printed:

To the Congress of the United States:

I am pleased to transmit the 2012 *National Drug Control Strategy*, which follows through on the commitment made by my Administration to chart a new course in our efforts to reduce illicit drug use and its consequences in the United States. The balanced approach outlined in the Administration's inaugural *National Drug Control Strategy* has yielded significant results, which are detailed in the following pages.

Our Nation still faces serious drug-related challenges, however. Too many Americans need treatment for substance use disorders but do not receive it. Prescription drug abuse continues to claim American lives, and those who take drugs and drive threaten safety on our Nation's roadways. Young people's perceptions of the risks of drug use have declined over the past decade, and research suggests that this often predicts future increases in drug use. There is still much left to do to reform our justice system and break the cycle of drug use and crime. Our commitment to work with partner nations must remain steadfast to reduce drug production, trafficking, and related transnational threats.

Based upon the progress we have achieved over the past three years, I am confident we can address these challenges through concerted action along the entire spectrum of prevention, early intervention, treatment, recovery support, criminal justice reform, law enforcement, and international cooperation. However, we must match our commitment with the appropriate resources.

Illicit drug use in America contributed to an estimated $193 billion in crime, health, and lost productivity costs in 2007, the year for which the most recent estimate is available. In today's challenging economic environment, we cannot afford such a drain on our economy and public resources. While difficult budget decisions must be made at all levels of government, we must ensure continued support for policies and programs that reduce drug use and its enormous costs to American society. In doing so, we will not only strengthen our economy but also sustain the national character and spirit that has made the United States a world leader.

I look forward to continuing to work with the Congress and Federal, state, local, tribal, and territorial leaders, international partners, and the American people in this important endeavor.

BARACK OBAMA.

THE WHITE HOUSE, *April 19, 2012.*

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. BASS of New Hampshire (at the request of Mr. CANTOR) for today on account of attending a funeral service.

ADJOURNMENT

Mr. BROUN of Georgia. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 4 o'clock and 57 minutes p.m.), under its previous order, the House adjourned until Monday, April 23, 2012, at 11 a.m.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

5689. A letter from the Secretary, Commodity Futures Trading Commission, transmitting the Commission's ''Major'' final rule — Customer Clearing Documentation, Timing of Acceptance for Clearing, and Clearing Member Risk Management (RIN: 3038-0092, -0094) received April 10, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Agriculture.

5690. A letter from the Secretary, Commodity Futures Trading Commission, transmitting the Commission's final rule — Commodity Pool Operators and Commodity Trading Advisors: Compliance Obligations (RIN: 3038-AD30) received March 26, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Agriculture.

5691. A letter from the Acting Congressional Review Coordinator, Department of Agriculture, transmitting the Department's final rule — Tuberculosis in Cattle and Bison; State and Zone Designations; NM; Correction [Docket No.: APHIS-2008-0124] received March 26, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Agriculture.

5692. A letter from the Administrator, Risk Management Agency, Department of Agriculture, transmitting the Department's final rule — Common Crop Insurance Regulations; Onion Crop Insurance Provisions [Docket No.: FCIC-11-0004] (RIN: 0563-AC29) received March 26, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Agriculture.

5693. A letter from the Acting Under Secretary, Department of Defense, transmitting the National Defense Stockpile (NDS) Annual Materials Plan (AMP) for Fiscal Year 2013, along with proposed plans for FY 2014 through 2017, pursuant to 50 U.S.C. 98h-2(b); to the Committee on Armed Services.

5694. A letter from the Acting Under Secretary, Department of Defense, transmitting the Department's report on activities under the Secretary's personnel management demonstration project authorities for the Department of Defense Science and Technology Reinvention Laboratories for Calendar Year 2011; to the Committee on Armed Services.

5695. A letter from the Acting Under Secretary, Department of Defense, transmitting a letter on the approved retirement of Lieutenant General Frank G. Helmick, United States Army, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

5696. A letter from the Director, Directorate of Standards and Guidance, Occupational Safety and Health Administration, transmitting the Administration's final rule — Revising Standards Referenced in the Acetylene Standard [Docket No.: OSHA-2011-0183] (RIN: 1218-AC64) received March 19, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Education and the Workforce.

5697. A letter from the Director, Directorate of Standards and Guidance, Occupational Safety and Health Administration, transmitting the Administration's ''Major'' final rule — Hazard Communication [Docket No.: OSHA-H022K-2006-0062] (formerly Docket No.: H022K) (RIN: 1218-AC20) received April 4, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Education and the Workforce.

5698. A letter from the Correspondence and Regulations Assistant, Department of Health and Human Services, transmitting the Department's final rule — Student Health Insurance Coverage [CMS-9981-F] (RIN: 0938-AQ95) received March 20, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

5699. A letter from the Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — Terrestrial Environmental Studies For Nuclear Power Stations, Regulatory Guide 4.11, Revision 2, received March 26, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

5700. A letter from the Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — Leakage Tests on Packages for Shipment of Radioactive Material, Regulatory Guide 7.4, Revision 1, received March 16, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

5701. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting notification of intent to use FY 10 Nonproliferation, Anti-terrorism, Demining, and Related Programs (NADR) funds for Global Threat Reduction (GTR) activities in Libya; to the Committee on Foreign Affairs.

5702. A communication from the President of the United States, transmitting notification that the national emergency with respect to Somalia originally declared on April 12, 2010, by Executive Order 13536, is to continue in effect beyond April 12, 2012, pursuant to 50 U.S.C. 1622(d); (H. Doc. No. 112—97); to the Committee on Foreign Affairs and ordered to be printed.

5703. A letter from the Chairman, Council of the District of Columbia, transmitting Transmittal of D.C. ACT 19-343, ''Tenant Security Deposit Clarification Amendment Act of 2012''; to the Committee on Oversight and Government Reform.

5704. A letter from the Chairman, Council of the District of Columbia, transmitting Transmittal of D.C. ACT 19-344, ''South Capitol Street Memorial Amendment Act of 2012''; to the Committee on Oversight and Government Reform.

5705. A letter from the President and CEO, Overseas Private Investment Corporation, transmitting the Department's Fiscal Year 2011 Annual Notification and Federal Employee Antidiscrimination and Retaliation (No FEAR) Act of 2002 Report; to the Committee on Oversight and Government Reform.

5706. A letter from the Director, Peace Corps, transmitting a copy of the Peace Corps' Fiscal Year 2011 Notification and Federal Employee Anti-Discrimination and Retaliation (No FEAR) Act Annual Report; to

the Committee on Oversight and Government Reform.

5707. A letter from the Secretary, Railroad Retirement Board, transmitting the Board's annual report for FY 2011 prepared in accordance with Section 203 of the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act), Public Law 107-174; to the Committee on Oversight and Government Reform.

5708. A letter from the Regulations Coordinator, Department of Health and Human Services, transmitting the Department's ''Major'' final rule — Medicare Program; Changes to the Mediare Advantage and the Medicare Prescription Drug Benefit Programs for Contract Year 2013 and Other Changes [CMS-4157-FC] (RIN: 0938-AQ86) received April 19, 2012, pursuant to 5 U.S.C. 801(a)(1)(A); jointly to the Committees on Energy and Commerce and Ways and Means.

5709. A letter from the Chairman, U.S.-China Economic and Security Review Commission, transmitting the Commission's record of the public hearing on ''Chinese State-Owned and State Controlled Enterprises''; jointly to the Committees on Ways and Means, Armed Services, and Foreign Affairs.

5710. A letter from the Chairman, U.S.-China Economic and Security Review Commission, transmitting the Commission's record of the public hearing on ''China's Global Quest for Resources and Implications for the United States''; jointly to the Committees on Ways and Means, Armed Services, and Foreign Affairs.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 1335. A bill to revise the boundaries of the Gettysburg National Military Park to include the Gettysburg Train Station, and for other purposes; with an amendment (Rept. 112–449). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 2240. A bill to authorize the exchange of land or interest in land between Lowell National Historical Park and the city of Lowell in the Commonwealth of Massachusetts, and for other purposes; with an amendment (Rept. 112–450). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 2362. A bill to facilitate economic development by Indian tribes and encourage investment by Turkish enterprises (Rept. 112–451). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 3452. A bill to provide for the sale of approximately 30 acres of Federal land in Uinta-Wasatch-Cache National Forest in Salt Lake County, Utah, to permit the establishment of a minimally invasive transportation alternative for skiers, called ''SkiLink'', to connect two ski resorts in the Wasatch Mountains, and for other purposes; with an amendment (Rept. 112–452). Referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. MARKEY (for himself, Mr. FRANK of Massachusetts, Mr. NEAL, Mr. OLVER, Mr. MCGOVERN, Mr. TIERNEY, Mr. CAPUANO, Mr. LYNCH, Ms. TSONGAS, Mr. KEATING, and Ms. PELOSI):

H.R. 4400. A bill to designate the Salt Pond Visitor Center at Cape Cod National Seashore as the ''Thomas P. O'Neill, Jr. Salt Pond Visitor Center'', and for other purposes; to the Committee on Natural Resources.

By Mr. POSEY:

H.R. 4401. A bill to direct the Secretary of Defense to work with non-Federal entities and accept non-Federal funding under strict implementation guidelines to promote efficiencies of the space transportation infrastructure of the Department of Defense in commercial space activities; to the Committee on Armed Services.

By Mr. AMODEI:

H.R. 4402. A bill to require the Secretary of the Interior and the Secretary of Agriculture to more efficiently develop domestic sources of the minerals and mineral materials of strategic and critical importance to United States economic and national security and manufacturing competitiveness; to the Committee on Natural Resources, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GOSAR:

H.R. 4403. A bill to suspend subchapter IV of chapter 31 of title 40, United States Code, commonly known as the Davis-Bacon Act, through the end of fiscal year 2023, and for other purposes; to the Committee on Education and the Workforce.

By Mr. CRAWFORD:

H.R. 4404. A bill to create a centralized website on reports issued by the Inspectors General, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. MCGOVERN (for himself, Mr. WOLF, Mr. LEVIN, Ms. ROS-LEHTINEN, Mr. HASTINGS of Florida, Mr. ROYCE, Mr. MCDERMOTT, Mr. BURTON of Indiana, Mr. CONNOLLY of Virginia, Mr. SMITH of New Jersey, Mr. TOWNS, Mr. ROSKAM, Mr. MICHAUD, Mr. PITTS, Mr. RANGEL, and Mr. TURNER of Ohio):

H.R. 4405. A bill to impose sanctions on persons responsible for the detention, abuse, or death of Sergei Magnitsky, and for other gross violations of human rights in the Russian Federation, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committees on the Judiciary, and Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CAMP (for himself and Ms. SLAUGHTER):

H.R. 4406. A bill to compel the Secretary of the Army to complete the Great Lakes Mississippi River Interbasin Study within 18 months and to focus particular attention on the permanent prevention of the spread of aquatic nuisance species between the Great Lakes and the Mississippi River Basins; to the Committee on Transportation and Infrastructure.

By Mr. YOUNG of Indiana:

H.R. 4407. A bill to amend the indemnification responsibilities applicable to the Secretary of Defense when Department of Defense property at military installations closed pursuant to a base closure law is conveyed to expand such indemnification responsibilities to include all military installations closed since October 24, 1988; to the Committee on Armed Services.

By Ms. BORDALLO:

H.R. 4408. A bill to amend the Sikes Act to promote the use of cooperative agreements under such Act for land management related to Department of Defense installations and to amend title 10, United States Code, to facilitate interagency cooperation in conservation programs; to the Committee on Armed Services, and in addition to the Committee on Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BARROW:

H.R. 4409. A bill to provide for reforming and consolidating agencies of the Federal Government to improve efficiency and save money, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. BISHOP of Georgia:

H.R. 4410. A bill to extend the temporary reduction of duty on acrylic or modacrylic staple fibers; to the Committee on Ways and Means.

By Mr. BISHOP of Georgia:

H.R. 4411. A bill to extend the temporary reduction of duty on certain polyacrylonitrile tow; to the Committee on Ways and Means.

By Mr. BISHOP of Georgia:

H.R. 4412. A bill to extend temporarily the reduction of duty on certain dyed acrylic staple fibers; to the Committee on Ways and Means.

By Mr. BISHOP of Georgia:

H.R. 4413. A bill to extend temporarily the reduction of duty on certain undyed acrylic staple fibers; to the Committee on Ways and Means.

By Mr. BISHOP of Georgia:

H.R. 4414. A bill to extend temporarily the reduction of duty on certain dyed polyacrylonitrile staple; to the Committee on Ways and Means.

By Mr. BISHOP of Georgia:

H.R. 4415. A bill to extend temporarily the reduction of duty on certain undyed polyacrylonitrile staple; to the Committee on Ways and Means.

By Mr. BISHOP of Georgia:

H.R. 4416. A bill to suspend temporarily the duty on certain acrylic filament tow; to the Committee on Ways and Means.

By Mr. BISHOP of Georgia:

H.R. 4417. A bill to suspend temporarily the duty on certain acrylic filament tow; to the Committee on Ways and Means.

By Mr. BISHOP of Georgia:

H.R. 4418. A bill to suspend temporarily the duty on certain acrylic staple fibers; to the Committee on Ways and Means.

By Mr. BISHOP of Georgia:

H.R. 4419. A bill to suspend temporarily the duty on certain acrylic filament tow; to the Committee on Ways and Means.

By Mr. BISHOP of Georgia:

H.R. 4420. A bill to suspend temporarily the duty on certain acrylic filament tow; to the Committee on Ways and Means.

By Ms. BROWN of Florida:

H.R. 4421. A bill to amend the Internal Revenue Code of 1986 to eliminate the separate income tax return form for the earned income credit, to require the information required by that form to be included on the appropriate income tax return forms, and to require the Internal Revenue Service to compute the earned income credit for taxpayers; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4422. A bill to extend the temporary suspension of duty on certain staple fibers of

viscose rayon; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4423. A bill to suspend temporarily the duty on cyan 854 inkjet printing ink; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4424. A bill to suspend temporarily the duty on cyan 1 RO inkjet printing ink; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4425. A bill to suspend temporarily the duty on black 661 inkjet printing ink; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4426. A bill to suspend temporarily the duty on black 820 inkjet printing ink; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4427. A bill to extend the temporary suspension of duty on Phenyl (4,6-dimethoxypyrimidin-2-yl) carbamate; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4428. A bill to extend the temporary suspension of duty on certain mixtures of methyl 2-[[[[[4-(dimethylamino)-6-(2,2,2-trifluoroethoxy)-1,3,5- triazin-2-yl]amino]carbonyl]amino]-sulfonyl]-3-methylbenzoate; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4429. A bill to temporarily suspend the duty on certain lamps used in liquid chromatographs or spectrophotometry; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4430. A bill to extend the temporary reduction of duty on Pyrithiobac-sodium; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4431. A bill to extend the temporary suspension of duty on Ethyl 2-(Isocyanatosulfonyl)benzoate; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4432. A bill to extend temporarily the suspension of duty on Flutolanil; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4433. A bill to suspend temporarily the duty on Buprofezin; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4434. A bill to suspend temporarily the duty on Pyraflufen-ethyl; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4435. A bill to extend the suspension of duty on Triasulfuron; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4436. A bill to extend the suspension of duty on Phosphoric acid; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4437. A bill to reduce temporarily the duty on Thiamethoxam; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4438. A bill to extend the suspension of duty on trifloxysulfuron-sodium; to the Committee on Ways and Means.

By Mr. CARNEY:

H.R. 4439. A bill to suspend temporarily the duty on Fenpyroximate; to the Committee on Ways and Means.

By Mr. CASSIDY:

H.R. 4440. A bill to suspend temporarily the duty on Glyoxylic acid; to the Committee on Ways and Means.

By Mr. CASSIDY:

H.R. 4441. A bill to suspend temporarily the rate of duty on Triflic Anhydride; to the Committee on Ways and Means.

By Mr. CASSIDY:

H.R. 4442. A bill to suspend temporarily the rate of duty on Triflic acid; to the Committee on Ways and Means.

By Mr. CHABOT (for himself and Mrs. SCHMIDT):

H.R. 4443. A bill to reduce temporarily the rate of duty on parts of frames and mountings for spectacles, goggles, or the like; to the Committee on Ways and Means.

By Mr. CHABOT (for himself and Mrs. SCHMIDT):

H.R. 4444. A bill to reduce temporarily the rate of duty on frames and mountings for spectacles, goggles, or the like, the foregoing of plastics; to the Committee on Ways and Means.

By Mr. COBLE:

H.R. 4445. A bill to extend the temporary suspension of duty on certain acrylic staple fibers; to the Committee on Ways and Means.

By Mr. COBLE:

H.R. 4446. A bill to extend the temporary suspension of duty on certain modacrylic staple fibers; to the Committee on Ways and Means.

By Mr. COBLE:

H.R. 4447. A bill to extend the temporary suspension of duty on certain acrylic staple fibers; to the Committee on Ways and Means.

By Mr. COBLE:

H.R. 4448. A bill to extend the temporary suspension of duty on certain acrylic staple fibers; to the Committee on Ways and Means.

By Mr. COBLE:

H.R. 4449. A bill to extend the temporary suspension of duty on certain acrylic staple fibers; to the Committee on Ways and Means.

By Mr. COBLE:

H.R. 4450. A bill to suspend temporarily the duty on certain acrylic staple fibers; to the Committee on Ways and Means.

By Mr. COBLE:

H.R. 4451. A bill to suspend temporarily the duty on certain acrylic staple fibers; to the Committee on Ways and Means.

By Mr. COBLE:

H.R. 4452. A bill to suspend temporarily the duty on certain acrylic staple fibers; to the Committee on Ways and Means.

By Mr. COBLE:

H.R. 4453. A bill to suspend temporarily the duty on certain acrylic staple fibers; to the Committee on Ways and Means.

By Mr. FLEISCHMANN:

H.R. 4454. A bill to require the approval by the head of an agency for any conference costing more than $25,000, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. HIGGINS:

H.R. 4455. A bill to extend the temporary suspension of duty on certain bags for toys; to the Committee on Ways and Means.

By Mr. HIGGINS:

H.R. 4456. A bill to suspend temporarily the duty on certain infants' products; to the Committee on Ways and Means.

By Mr. HINCHEY (for himself, Mr. CICILLINE, Mr. GRIJALVA, Mr. BOSWELL, Mr. COHEN, Mr. COURTNEY, Mr. DEFAZIO, Ms. DELAURO, Ms. ESHOO, Mr. FARR, Mr. FILNER, Mr. GUTIERREZ, Mr. HONDA, Mr. JACKSON of Illinois, Ms. ZOE LOFGREN of California, Mr. MARKEY, Mr. MCINTYRE, Mr. RANGEL, Ms. LINDA T. SÁNCHEZ of California, Ms. TSONGAS, Mr. VAN HOLLEN, Mr. WELCH, Ms. BONAMICI, Mr. KISSELL, Ms. BALDWIN, Mr. YARMUTH, Mrs. DAVIS of California, Mr. MICHAUD, and Mr. MCGOVERN):

H.R. 4457. A bill to require the Commodity Futures Trading Commission to take certain actions to reduce excessive speculation in energy markets; to the Committee on Agriculture.

By Mr. KIND:

H.R. 4458. A bill to promote Department of the Interior efforts to provide a scientific basis for the management of sediment and nutrients in the Upper Mississippi River Basin, and for other purposes; to the Committee on Natural Resources.

By Mr. LUETKEMEYER:

H.R. 4459. A bill to suspend temporarily the duty on Thidiazuron; to the Committee on Ways and Means.

By Mr. LUETKEMEYER:

H.R. 4460. A bill to extend the suspension of duty on Fenamidone; to the Committee on Ways and Means.

By Mr. LUETKEMEYER:

H.R. 4461. A bill to extend the suspension of duty on Spirodiclofen; to the Committee on Ways and Means.

By Mr. LUETKEMEYER:

H.R. 4462. A bill to extend the suspension of duty on 2,4-dichloroaniline; to the Committee on Ways and Means.

By Mr. LUETKEMEYER:

H.R. 4463. A bill to suspend temporarily the duty on Thiacloprid; to the Committee on Ways and Means.

By Mr. LUETKEMEYER:

H.R. 4464. A bill to extend the suspension of duty on Pyrimethanil; to the Committee on Ways and Means.

By Mr. LUETKEMEYER:

H.R. 4465. A bill to suspend temporarily the duty on Pyrasulfotole; to the Committee on Ways and Means.

By Mr. LUETKEMEYER:

H.R. 4466. A bill to suspend temporarily the duty on Fosetyl-Al; to the Committee on Ways and Means.

By Mr. BACA:

H.R. 4467. A bill to amend section 520E of the Public Health Service act to require States and their designees receiving grants for development or implementation of statewide suicide early intervention and prevention strategies to consult with each Federally recognized Indian tribe, tribal organization, and urban Indian organization in the State; to the Committee on Energy and Commerce.

By Mr. THOMPSON of Mississippi:

H.R. 4468. A bill to extend the authority to make grants for specified energy property in lieu of tax credits; to the Committee on Ways and Means, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. TIPTON (for himself, Mr. COFFMAN of Colorado, and Mr. POLIS):

H.R. 4469. A bill to provide certain counties with the ability to receive television broadcast signals of their choice; to the Committee on the Judiciary, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. WATERS (for herself, Ms. LEE of California, Mrs. CHRISTENSEN, and Ms. BORDALLO):

H.R. 4470. A bill to amend the Public Health Service Act, the Employee Retirement Income Security Act of 1974, the Internal Revenue Code of 1986, and title 5, United States Code, to require individual and group health insurance coverage and group health plans and Federal employees health benefit plans to provide coverage for routine HIV screening; to the Committee on Energy and Commerce, and in addition to the Committees on Ways and Means, Education and the Workforce, and Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. DENHAM (for himself and Ms. NORTON):

H. Con. Res. 117. Concurrent resolution authorizing the use of the Capitol Grounds for the National Peace Officers' Memorial Service; to the Committee on Transportation and Infrastructure.

By Mrs. MYRICK (for herself, Mr. COOPER, and Mr. LANKFORD):

H. Res. 623. A resolution amending the Rules of the House of Representatives to prevent duplicative and overlapping government programs; to the Committee on Rules.

By Mr. CRAWFORD (for himself and Mrs. DAVIS of California):

H. Res. 624. A resolution expressing support for the designation of the first Saturday in May as National Explosive Ordnance Disposal Day and for the designation of ''Initial Success or Total Failure'' as the official motto of the Explosive Ordnance Disposal organizations in the United States Armed Forces; to the Committee on Armed Services.

By Mr. FATTAH:

H. Res. 625. A resolution honoring the members of the United States Armed Forces who served in Vietnam; to the Committee on Veterans' Affairs, and in addition to the Committee on Armed Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. FUDGE:

H. Res. 626. A resolution expressing support for designation of the week of April 16 through April 20, 2012, as National Assistant Principals Week; to the Committee on Education and the Workforce.

By Mrs. MALONEY (for herself, Mr. BILIRAKIS, Mr. PALLONE, Mr. SARBANES, Ms. LEE of California, and Mr. SIRES):

H. Res. 627. A resolution expressing the sense of the House of Representatives that the former Yugoslav Republic of Macedonia should work within the framework of the United Nations process with Greece to achieve longstanding United States and United Nations policy goals of finding a mutually acceptable composite name, with a geographical qualifier and for all uses for the former Yugoslav Republic of Macedonia; to the Committee on Foreign Affairs.

By Mr. MCCAUL (for himself and Mr. LANGEVIN):

H. Res. 628. A resolution expressing the sense of the House of Representatives that the United States should preserve, enhance, and increase access to an open, global Internet; to the Committee on Foreign Affairs.

By Mr. SCHIFF (for himself, Mr. PENCE, Mr. WOLF, and Mr. BERMAN):

H. Res. 629. A resolution condemning violence by the Government of Syria against journalists, and expressing the sense of the House of Representatives on freedom of the press in Syria; to the Committee on Foreign Affairs.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. LARSEN of Washington:

H.R. 4302.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section. 8. Clause 3: To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

By Mr. MARKEY:

H.R. 4400.

Congress has the power to enact this legislation pursuant to the following:

Article IV, section 3 of the United States Constitution, which states in relevant part that, ''The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States,'' grants Congress the authority to enact this legislation.

By Mr. POSEY:

H.R. 4401.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8, clause 1.

By Mr. AMODEI:

H.R. 4402.

Congress has the power to enact this legislation pursuant to the following:

Article IV, Section 3, Clause 2 of the Constitution.

By Mr. GOSAR:

H.R. 4403.

Congress has the power to enact this legislation pursuant to the following:

Because this legislation adjusts the formula the federal government uses to spend money on federal contracts, it is authorized by the Constitution under Article 1, Section 8, Clause 1, which grants Congress its spending power.

By Mr. CRAWFORD:

H.R. 4404.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 and 3 of Section 8 of Article I of the Constitution of the United States.

By Mr. MCGOVERN:

H.R. 4405.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

By Mr. CAMP:

H.R. 4406.

Congress has the power to enact this legislation pursuant to the following:

According to Article I, Section 8, Clause 3 of the Constitution: The Congress shall have the power to enact this legislation to regulate commerce with foreign Nations, among the several States, and with Indian tribes;

By Mr. YOUNG of Indiana:

H.R. 4407.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 in which Congress has the explicit authority to provide for the common Defense and general Welfare of the United States and Article I, Section 8, Clause 14 to make Rules for the Government and Regulation of land and naval forces.

By Ms. BORDALLO:

H.R. 4408.

Congress has the power to enact this legislation pursuant to the following:

Clause 14 of section 8 of Article I of the United States Constitution

By Mr. BARROW:

H.R. 4409.

Congress has the power to enact his legislation pursuant to the following:

The constitutional authority on which this bill rests is Section 8 of Article I of the Constitution of the United States.

By Mr. BISHOP of Georgia:

H.R. 4410.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Mr. BISHOP of Georgia:

H.R. 4411.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Mr. BISHOP of Georgia:

H.R. 4412.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Mr. BISHOP of Georgia:

H.R. 4413.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Mr. BISHOP of Georgia:

H.R. 4414.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Mr. BISHOP of Georgia:

H.R. 4415.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Mr. BISHOP of Georgia:

H.R. 4416.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Mr. BISHOP of Georgia:

H.R. 4417.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Mr. BISHOP of Georgia:

H.R. 4418.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Mr. BISHOP of Georgia:

H.R. 4419.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Mr. BISHOP of Georgia:

H.R. 4420.

Congress has the power to enact this legislation pursuant to the following:

Article I, sec. 8

By Ms. BROWN of Florida:

H.R. 4421.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 and Amendment XVI

By Mr. CARNEY:

H.R. 4422.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4423.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4424.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4425.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4426.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4427.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4428.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4429.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4430.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4431.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4432.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4433.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4434.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4435.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4436.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4437.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4438.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CARNEY:

H.R. 4439.

Congress has the power to enact this legislation pursuant to the following:

Clauses 1 & 3 of Section 8 of Article I of the Constitution.

By Mr. CASSIDY:

H.R. 4440.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the United States Constitution, the Taxing and Spending Clause: ''The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States . . .''

By Mr. CASSIDY:

H.R. 4441.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the United States Constitution, the Taxing and Spending Clause: ''The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States . . .''

By Mr. CASSIDY:

H.R. 4442.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the United States Constitution, the Taxing and Spending Clause: ''The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States . . .''

By Mr. CHABOT:

H.R. 4443.

Congress has the power to enact this legislation pursuant to the following:

The U.S. Constitution, Article I, Section 8, Clause 1, The U.S. Constitution, Article I, Section 8, Clause 3 and The U.S. Constitution, Article I, Section 8, Clause 18: The Congress shall have Power to lay and collect Taxes, Duties, Imposts and Excises[,] To regulate Commerce with foreign Nations [and] To make all laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. CHABOT:

H.R. 4444.

Congress has the power to enact this legislation pursuant to the following:

The U.S. Constitution, Article I, Section 8, Clause 1, The U.S. Constitution, Article I, Section 8, Clause 3 and The U.S. Constitution, Article I, Section 8, Clause 18: The Congress shall have Power to lay and collect Taxes, Duties, Imposts and Excises[,] To regulate Commerce with foreign Nations [and] To make all laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. COBLE:

H.R. 4445.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. COBLE:

H.R. 4446.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. COBLE:

H.R. 4447.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. COBLE:

H.R. 4448.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. COBLE:

H.R. 4449.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. COBLE:

H.R. 4450.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. COBLE:

H.R. 4451.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. COBLE:

H.R. 4452.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. COBLE:

H.R. 4453.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. FLEISCHMANN:

H.R. 4454.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8.

By Mr. HIGGINS:

H.R. 4455.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

The Congress shall have Power *** To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. HIGGINS:

H.R. 4456.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

The Congress shall have Power *** To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. HINCHEY:

H.R. 4457.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 3 of the United States Constitution.

By Mr. KIND:

H.R. 4458.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8, clause 3 of the Constitution of the United States grants Congress the authority to enact this bill.

By Mr. LUETKEMEYER:

H.R. 4459.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the explicit power of Congress to regulate commerce in and among the states, as enumerated in Article 1, Section 8, Clause 3, the Commerce Clause, of the United States Constitution.

By Mr. LUETKEMEYER:

H.R. 4460.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the explicit power of Congress to regulate commerce in and among the states, as enumerated in Article 1, Section 8, Clause 3, the Commerce Clause, of the United States Constitution.

By Mr. LUETKEMEYER:

H.R. 4461.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the explicit power of Congress to regulate commerce in and among the states, as enumerated in Article 1, Section 8, Clause 3, the Commerce Clause, of the United States Constitution.

By Mr. LUETKEMEYER:

H.R. 4462.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill rests is the explicit power of Congress to regulate commerce in and among the states, as enumerated in Article 1, Section 8, Clause 3, the Commerce Clause, of the United States Constitution.

By Mr. LUETKEMEYER:
H.R. 4463.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority on which this bill rests is the explicit power of Congress to regulate commerce in and among the states, as enumerate in Article 1, Section 8, Clause 3, the Commerce Clause, of the United States Constitution.

By Mr. LUETKEMEYER:
H.R. 4464.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority on which this bill rests is the explicit power of Congress to regulate commerce in and among the states, as enumerate in Article 1, Section 8, Clause 3, the Commerce Clause, of the United States Constitution.

By Mr. LUETKEMEYER:
H.R. 4465.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority on which this bill rests is the explicit power of Congress to regulate commerce in and among the states, as enumerate in Article 1, Section 8, Clause 3, the Commerce Clause, of the United States Constitution.

By Mr. LUETKEMEYER:
H.R. 4466.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority on which this bill rests is the explicit power of Congress to regulate commerce in and among the states, as enumerate in Article 1, Section 8, Clause 3, the Commerce Clause, of the United States Constitution.

By Mr. BACA:
H.R. 4467.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3 & Clause 18

By Mr. THOMPSON of Mississippi:
H.R. 4468.
Congress has the power to enact this legislation pursuant to the following:
The Congress enacts this bill pursuant to Article I, section 7 & 8 of the Constitution of the United States and Amendment XVI of the United States Constitution.

By Mr. TIPTON:
H.R. 4469.
Congress has the power to enact this legislation pursuant to the following:
Article 1 Section 8 To regulate commerce among the several states)

By Ms. WATERS:
H.R. 4470.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, clause 3 of the U.S. Constitution and
Article 1, Section 8, clause 18 of the U.S. Constitution.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions as follows:

H.R. 25: Mr. FLORES.
H.R. 32: Ms. MATSUI, Mr. COSTELLO, Mr. STARK, Mr. MCDERMOTT, Mr. TIERNEY, Mr. DOYLE, Mr. BLUMENAUER, and Mr. BUCHANAN.
H.R. 192: Mr. PASCRELL and Mr. KILDEE.
H.R. 265: Mr. PASTOR of Arizona.
H.R. 266: Mr. PASTOR of Arizona.
H.R. 267: Mr. PASTOR of Arizona.
H.R. 300: Mr. HIMES.
H.R. 365: Mr. CHABOT.
H.R. 374: Mr. DUFFY.
H.R. 459: Mr. SMITH of New Jersey, Mr. KINZINGER of Illinois, Mr. COBLE, and Mr. HALL.
H.R. 591: Mr. ENGEL.
H.R. 616: Mr. PASCRELL.
H.R. 639: Mr. COFFMAN of Colorado and Mr. GRIMM.
H.R. 780: Mr. NEAL.
H.R. 808: Mr. CARSON of Indiana, Ms. CLARKE of New York, Mr. CLEAVER, Mr. DAVIS of Illinois, Mr. AL GREEN of Texas, Mr. HINCHEY, Ms. HIRONO, Mr. ROTHMAN of New Jersey, Mr. RYAN of Ohio, and Mr. LARSON of Connecticut.
H.R. 835: Mr. FLORES.
H.R. 860: Mr. SHUSTER, Mr. FARENTHOLD, and Mr. COBLE.
H.R. 893: Mr. MCCARTHY of California.
H.R. 942: Mr. REED, Mr. AUSTIN SCOTT of Georgia, Mr. BERG, Mrs. ELLMERS, Mr. HINCHEY, and Mrs. BLACK.
H.R. 997: Mr. SCHWEIKERT.
H.R. 1004: Mr. AMODEI.
H.R. 1005: Mr. GIBSON.
H.R. 1044: Mr. OWENS.
H.R. 1048: Mr. MCDERMOTT and Mr. LARSEN of Washington.
H.R. 1057: Mr. REICHERT.
H.R. 1063: Mr. SCHOCK.
H.R. 1116: Mr. CLAY and Mr. CARSON of Indiana.
H.R. 1175: Mr. KLINE.
H.R. 1193: Mr. BRADY of Pennsylvania and Mr. PASCRELL.
H.R. 1242: Mr. CARSON of Indiana.
H.R. 1259: Mr. LANKFORD.
H.R. 1267: Ms. CASTOR of Florida.
H.R. 1283: Mr. ELLISON and Ms. HIRONO.
H.R. 1356: Mr. CARSON of Indiana.
H.R. 1409: Mr. SCHOCK.
H.R. 1418: Mr. POLIS.
H.R. 1426: Mr. WALDEN.
H.R. 1463: Mr. PAULSEN.
H.R. 1464: Mr. SHERMAN.
H.R. 1519: Mr. MEEKS.
H.R. 1537: Ms. SCHWARTZ.
H.R. 1543: Mr. HIMES and Mr. LANGEVIN.
H.R. 1588: Mr. BARTLETT, Mrs. NOEM, Mr. YOUNG of Alaska, Mr. GIBBS, Mrs. CHRISTENSEN.
H.R. 1620: Mrs. MYRICK.
H.R. 1653: Mr. AMODEI.
H.R. 1666: Mr. CLARKE of Michigan.
H.R. 1744: Mr. SMITH of Texas.
H.R. 1753: Ms. RICHARDSON.
H.R. 1755: Mr. CASSIDY and Mr. REED.
H.R. 1781: Mr. CARNAHAN.
H.R. 1802: Mr. LUJÁN and Mr. TERRY.
H.R. 1821: Mr. MCDERMOTT.
H.R. 1876: Mr. CARSON of Indiana.
H.R. 1881: Ms. CHU.
H.R. 1897: Mr. HIMES and Ms. SCHAKOWSKY.
H.R. 1919: Mr. PRICE of North Carolina.
H.R. 1946: Mr. YOUNG of Indiana.
H.R. 2000: Mr. TERRY.
H.R. 2028: Mrs. CAPPS.
H.R. 2033: Mr. SCHRADER and Mr. KILDEE.
H.R. 2083: Mr. GENE GREEN of Texas.
H.R. 2108: Mr. CANSECO.
H.R. 2139: Ms. HOCHUL, Mr. LANDRY, and Mr. AMODEI.
H.R. 2151: Mr. GRIJALVA.
H.R. 2152: Ms. RICHARDSON, Mr. PRICE of North Carolina, and Mr. PETERSON.
H.R. 2245: Mr. BACHUS.
H.R. 2288: Mr. SESSIONS.
H.R. 2299: Mr. GIBBS, Mr. GUTHRIE, and Mr. HARRIS.
H.R. 2304: Ms. BORDALLO.
H.R. 2366: Mr. LOBIONDO, Mr. AMODEI, and Mr. SMITH of Washington.
H.R. 2377: Mr. MICHAUD.
H.R. 2389: Mr. BACA.
H.R. 2446: Mr. GRIFFIN of Arkansas, Mr. HUNTER, and Mr. GUTHRIE.
H.R. 2502: Mr. PETERS.
H.R. 2529: Mr. POMPEO.
H.R. 2555: Mr. KEATING.
H.R. 2569: Mr. AMODEI.
H.R. 2741: Ms. ZOE LOFGREN of California.
H.R. 2765: Mrs. NAPOLITANO.
H.R. 2766: Mr. BACA.
H.R. 2780: Mr. KIND.
H.R. 2809: Ms. HAHN and Mr. CARSON of Indiana.
H.R. 2810: Mrs. BLACKBURN, Mr. ROKITA, Mrs. MYRICK, Mr. GRAVES of Georgia, Mr. SOUTHERLAND, Mr. QUAYLE, Mr. MCHENRY, Mr. MULVANEY, Mr. MANZULLO, Mr. KINGSTON, Mr. GOWDY, and Mr. FLAKE.
H.R. 2827: Mr. GOSAR.
H.R. 2900: Mr. GRIFFIN of Arkansas.
H.R. 2914: Mr. NEAL.
H.R. 2948: Ms. BONAMICI and Mr. BACA.
H.R. 2951: Mrs. HARTZLER.
H.R. 2954: Mr. CARNAHAN.
H.R. 2969: Mr. DIAZ-BALART.
H.R. 2989: Mr. WELCH.
H.R. 3015: Mr. PRICE of North Carolina.
H.R. 3032: Mr. COBLE.
H.R. 3059: Mr. WHITFIELD.
H.R. 3187: Ms. MATSUI.
H.R. 3199: Mrs. BIGGERT.
H.R. 3238: Mr. KILDEE and Mr. ELLISON.
H.R. 3356: Mr. GOSAR and Mr. ROONEY.
H.R. 3357: Mr. WAXMAN.
H.R. 3387: Mr. GIBSON.
H.R. 3395: Mr. BRALEY of Iowa.
H.R. 3423: Ms. BERKLEY.
H.R. 3596: Ms. DEGETTE.
H.R. 3612: Mr. CARSON of Indiana and Mr. STIVERS.
H.R. 3661: Ms. CASTOR of Florida, Mr. QUIGLEY, Mr. STARK, and Mr. ELLISON.
H.R. 3720: Mr. LATTA.
H.R. 3767: Mr. LUJÁN, Mr. MCINTYRE, Mr. LATHAM, and Mr. WOLF.
H.R. 3795: Mr. RANGEL.
H.R. 3803: Mr. GARDNER and Mr. COFFMAN of Colorado.
H.R. 3808: Mr. CALVERT.
H.R. 3826: Mr. BOSWELL, Mr. CROWLEY, Mr. DEUTCH, Mr. FARR, and Mr. CRITZ.
H.R. 3839: Mr. BRALEY of Iowa.
H.R. 3849: Mrs. BLACK, Mr. DENT, and Mr. LOEBSACK.
H.R. 3862: Mr. HUIZENGA of Michigan, Mr. KINGSTON, Mr. MCHENRY, Mr. ROKITA, Mrs. BLACKBURN, Mr. FLORES, Mr. HARRIS, and Mr. YODER.
H.R. 3881: Ms. RICHARDSON.
H.R. 3903: Mr. MARKEY, Mr. STARK, Mr. COURTNEY, Mr. BRADY of Pennsylvania, Ms. JACKSON LEE of Texas, and Ms. SPEIER.
H.R. 3993: Mr. HANNA.
H.R. 4017: Mr. PETRI.
H.R. 4049: Mr. LARSON of Connecticut, Mr. PASCRELL, Mr. CROWLEY, Ms. SCHWARTZ, Mr. THOMPSON of California, and Mr. LEWIS of Georgia.
H.R. 4051: Mr. GRIFFIN of Arkansas, Ms. HANABUSA, and Mr. MICHAUD.
H.R. 4052: Ms. HANABUSA.
H.R. 4077: Mr. CARSON of Indiana.
H.R. 4094: Mr. COBLE.
H.R. 4114: Mr. MICHAUD.
H.R. 4115: Mr. CARSON of Indiana and Mr. GIBSON.
H.R. 4120: Mr. COBLE.
H.R. 4132: Ms. ROS-LEHTINEN.
H.R. 4134: Ms. EDDIE BERNICE JOHNSON of Texas, Mr. HALL, Mr. STIVERS, Ms. SPEIER, and Mr. SMITH of Washington.
H.R. 4137: Mr. PASCRELL.
H.R. 4142: Mr. MICHAUD.
H.R. 4153: Mr. DENT and Mr. BARTLETT.
H.R. 4154: Mr. SIMPSON.
H.R. 4157: Mr. ROGERS of Michigan, Mr. GIBBS, and Mrs. EMERSON.
H.R. 4160: Mr. COBLE, Mr. AUSTIN SCOTT of Georgia, and Mr. SCHWEIKERT.
H.R. 4169: Mr. CARSON of Indiana, Mr. PERLMUTTER, and Mr. WELCH.
H.R. 4171: Mr. BOREN.
H.R. 4175: Mr. BRALEY of Iowa.
H.R. 4180: Mr. LUCAS.
H.R. 4192: Mr. GARAMENDI, Mr. BRADY of Pennsylvania, Mr. CLEAVER, Ms. SUTTON, and Mr. HEINRICH.

H.R. 4196: Mrs. BLACK, Mr. CLAY, and Mr. LONG.
H.R. 4201: Mr. WITTMAN, Mr. LAMBORN, Ms. BORDALLO, and Mr. FORBES.
H.R. 4209: Mr. ROTHMAN of New Jersey, Mr. DEUTCH, Mr. BARTLETT, and Mr. FARR.
H.R. 4222: Mr. FRANKS of Arizona.
H.R. 4232: Mr. CHABOT.
H.R. 4234: Mr. AMODEI and Mr. MCCLINTOCK.
H.R. 4235: Mr. SCHWEIKERT.
H.R. 4237: Mr. BARLETTA.
H.R. 4243: Mrs. MILLER of Michigan.
H.R. 4249: Mr. ACKERMAN.
H.R. 4254: Mr. RANGEL.
H.R. 4256: Mr. CALVERT.
H.R. 4259: Ms. SPEIER.
H.R. 4268: Mr. HUELSKAMP.
H.R. 4269: Mr. NUGENT.
H.R. 4270: Mr. MCGOVERN and Mr. MICHAUD.
H.R. 4271: Mr. TOWNS, Mr. CAPUANO, Mr. BRADY of Pennsylvania, Mr. STARK, Ms. LINDA T. SÁNCHEZ of California, Mr. CONNOLLY of Virginia, Mr. MCNERNEY, Mr. FRANK of Massachusetts, and Mr. DEFAZIO.
H.R. 4275: Mr. RANGEL.
H.R. 4290: Mr. DEUTCH.
H.R. 4296: Mrs. NOEM, Mrs. ELLMERS, Mr. GUINTA, and Mr. HUELSKAMP.
H.R. 4301: Mr. MCCLINTOCK.
H.R. 4313: Mr. GERLACH, Mr. DENT, and Mr. DESJARLAIS.
H.R. 4315: Mr. STARK.
H.R. 4351: Mr. CARSON of Indiana.
H.R. 4367: Mr. WESTMORELAND, Mr. GRIMM, Mr. SCHWEIKERT, Mr. POE of Texas, and Mr. CANSECO.
H.R. 4379: Mr. FILNER, Ms. HAHN, and Mr. ELLISON.
H.J. Res. 103: Mr. COFFMAN of Colorado and Mr. TIPTON.
H.J. Res. 106: Mr. GOSAR.
H.J. Res. 107: Mr. CALVERT.
H. Con. Res. 40: Ms. SCHAKOWSKY and Ms. DEGETTE.
H. Con. Res. 110: Mr. TIPTON.
H. Con. Res. 113: Mr. LONG.
H. Con. Res. 115: Mr. ROGERS of Kentucky, Mrs. ELLMERS, Ms. HAYWORTH, Mr. MULVANEY, Mr. ROKITA, Mr. MCHENRY, Mrs. MYRICK, Mr. GUINTA, Mr. PEARCE, Mr. GOODLATTE, Mr. WOODALL, Mr. ROE of Tennessee, Mr. DESJARLAIS, Mr. FLAKE, Mr. REED, Mr. SCOTT of South Carolina, Mr. HUELSKAMP, Mr. MICHAUD, Mr. PRICE of Georgia, Mr. DIAZ-BALART, Mr. COBLE, Mr. KING of Iowa, Mr. MARINO, Mr. MILLER of Florida, Mr. MURPHY of Pennsylvania, Mr. SAM JOHNSON of Texas, Mr. HULTGREN, Mr. LATTA, and Mr. LONG.
H. Res. 137: Mr. GIBSON.
H. Res. 394: Mr. HUNTER.
H. Res. 568: Mr. RAHALL, Mr. BASS of New Hampshire, Mr. MCINTYRE, Mr. YOUNG of Florida, Mr. WOODALL, Mrs. MALONEY, and Mr. KIND.
H. Res. 583: Ms. GRANGER.
H. Res. 592: Mr. GRIJALVA.
H. Res. 604: Mr. LANKFORD and Mr. STEARNS.
H. Res. 609: Mr. OLVER.
H. Res. 618: Mr. BURTON of Indiana.

DELETIONS OF SPONSORS FROM PUBLIC BILLS AND RESOLUTIONS

Under clause 7 of rule XII, sponsors were deleted from public bills and resolutions as follows:

H.R. 2341: Mr. LANGEVIN.

United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE *112th* CONGRESS, SECOND SESSION

Vol. 158 WASHINGTON, THURSDAY, APRIL 19, 2012 *No. 57*

Senate

The Senate met at 9:30 a.m. and was called to order by the Honorable TOM UDALL, a Senator from the State of New Mexico.

PRAYER

The PRESIDING OFFICER. Today's opening prayer will be offered by Rev. Rebecca Spencer, senior pastor of Central Congregational Church, United Church of Christ, Providence, RI.

The guest Chaplain offered the following prayer:

Shall we pray.

Gracious and loving God, we thank You for Your presence with us. You offer wisdom and perspective and grace. We ask Your blessings to be upon these elected representatives. May all that we do reflect Your purpose that we live together as Your children in harmony and freedom. May Your blessings and our work bring real hope to those who may be struggling or oppressed.

We do ask for Your special blessings to be with those who serve our country in the military—at home, at sea, in the air, and foreign countries. Shield them from danger as they work for peace.

This is indeed a gift of a new day You have given to us. May all our endeavors honor You and may we all serve the cause of life, liberty, and the pursuit of happiness in this beloved land of ours. May we truly do justice and love kindness and walk humbly with You, our God.

Amen.

PLEDGE OF ALLEGIANCE

The Honorable TOM UDALL led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mr. INOUYE).

The assistant legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, April 19, 2012.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable TOM UDALL, a Senator from the State of New Mexico, to perform the duties of the Chair.

DANIEL K. INOUYE,
President pro tempore.

Mr. UDALL of New Mexico thereupon assumed the chair as Acting President pro tempore.

RESERVATION OF LEADER TIME

The ACTING PRESIDENT pro tempore. Under the previous order, the leadership time is reserved.

VIOLENCE AGAINST WOMEN REAUTHORIZATION ACT OF 2011—MOTION TO PROCEED

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will resume consideration of the motion to proceed to S. 1925, which the clerk will report by title.

The assistant legislative clerk read as follows:

Motion to proceed to S. 1925, a bill to reauthorize the Violence Against Women Act of 1994.

Mr. REID. Mr. President, I would yield to my friend from Rhode Island.

The ACTING PRESIDENT pro tempore. The Senator from Rhode Island is recognized.

WELCOMING THE GUEST CHAPLAIN

Mr. WHITEHOUSE. Mr. President, I thank the majority leader for that courtesy. I will only take a moment to recognize and welcome Rev. Rebecca Spencer who shared with us the prayer that began the Senate session this morning.

She has been the senior pastor of the Central Congregational Church in Providence, RI, since 1988. It was my congregation for the years that I lived in Providence. My wife and I renewed our vows under her care. She is a wonderful and thoughtful preacher from the pulpit. Her church has perhaps the best musical and choral program certainly anywhere in Rhode Island and probably for a good distance around. If you have not heard the ''Hallelujah Chorus'' sung at Easter at Central Congregational Church, you have missed an extraordinary experience.

But her greatest contribution in a community that she has served now for 24 years has been pastoral work with the families who make Central Congregational their home and the home of their faith. From birth to baptisms and for kids coming up through the youth programs the church runs, through marriages and unfortunately sometimes divorces, and through illness and death, Reverend Spencer is a wonderful friend and a wonderful solace and a wonderful gift to all of the congregation that she serves.

She is joined today by her sons Tom and Ezra. We welcome them as well, and are delighted that she has taken the time to come down from Providence, RI.

I thank our Chaplain, Chaplain Black, for his courtesy in helping to facilitate this visit.

I yield the floor.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

SCHEDULE

Mr. REID. Mr. President, the Senate is now considering the motion to proceed to the Violence Against Women Reauthorization Act. Following my remarks and those of the Republican leader, if any, the first hour will be equally divided between the two sides. The Republicans will control the first 30 minutes, the Democrats the final 30 minutes.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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I note that the filing deadline for second-degree amendments to the substitute amendment and to the postal reform bill is 11 a.m. today. We are still hopeful of working out an agreement on the postal reform bill. If no agreement is reached, there will be a cloture vote on the substitute amendment this afternoon at 2:15.

POSTAL REFORM

Mr. President, for more than two centuries, 200 years, America's postal system thrived and grew in spite of rapidly changing technology. The Postal Service survived the invention of the telegraph, the telephone. It expanded despite radio and television. It grew regardless of the fax machine.

The post office was created in the day of the quill and ink—these inkwells we talked about yesterday—and mailbags slung across horses. The post office survived all of that. It grew through the days of horse and buggy, steamboat and railroad, into the age of airplanes. It adjusted to the expansion of the suburbs, to the growth of cities, and the explosion of our population generally.

It adapted from hand sorting and conveyer belts, with the invention of ZIP Codes and optical sorting machines. The post office has always found creative, cutting-edge ways to do more and more to move mail more quickly, and more of it.

In fact, for two centuries, the Postal Service relied on technology to cope with constant growth, growth in the volume of mail it delivered and the number of homes and businesses to which it delivered. And for 200 years, the Postal Service kept up with a flood of packages and letters and mail orders and online purchases, catalogues and fliers, life-saving medications and absentee ballots, bulk mail and overnight delivery. The post office survived.

Today the Postal Service handles nearly half the world's mail—554 million pieces every day, 6,400 pieces every second. That feat would be impossible without modern technology and world-class workers and facilities. But now technology is both a solution and a problem. In the last 5 years, the Postal Service has seen mail volume drop by more than 20 percent. That trend is expected to continue.

E-mail and online bill payments significantly contributed to this crisis. Today letters, orders, payments across the world happen with the click of a mouse. And the challenge facing the Postal Service is how to adapt to a decreasing volume of mail rather than how to deal with increasing demand.

The bipartisan compromise before the Senate will help the system do that. It will build a leaner, smarter post office which offers new products and services while protecting its mission—delivering the mail 6 days a week to every corner of our great Nation.

The postal reform legislation before this body will sensibly restructure the system while preserving overnight and Saturday delivery. The legislation will save the Postal Service from insolvency. It will responsibly reduce the Postal Service workforce and the number of facilities it maintains. But it will also protect postal employees, including 130,000 veterans from our Armed Forces. It will also safeguard the more than 8 million jobs that depend on a vibrant postal system. And, most importantly, it will account for the needs of millions of seniors, people with disabilities, small business owners, and rural Americans for whom the U.S. mail is an important lifeline to the outside world.

Unlike the unacceptable bill Congressman ISSA is pursuing in the House, this bipartisanship Senate bill preserves the Postal Service we know and rely on. The House bill, by contrast, would immediately eliminate Saturday delivery, and it would set up commissions to unilaterally cut costs by closing post offices and processing plants, voiding union contracts and laying off tens of thousands of workers when our economy can least afford it.

That may be why Congressman ISSA's bill has not come up for a vote. There could be other reasons. But even the tea party advocates have trouble supporting his reckless ideas. The Senate bill we are considering today is not perfect. It will not save every post office, every job, or every distribution center. It will not please every Senator, every postal worker, or every customer. But unlike the House legislation, it is a strong, bipartisan bill that will modernize an institution enshrined in the Constitution without gutting its mission.

I hope we can continue to work together to pass this worthy legislation, but we are going to have to make a decision on that this morning. I appreciate everyone's cooperation. I especially appreciate the hard work of Senator JOE LIEBERMAN and Senator SUSAN COLLINS, the two floor managers of this legislation. There have been others who have worked very hard on this legislation, not the least of whom is TOM CARPER who has devoted a lot of the last few years of his life to this legislation.

Mr. President, I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The ACTING PRESIDENT pro tempore. The minority leader is recognized.

SVINICKI NOMINATION

Mr. MCCONNELL. Mr. President, yesterday I came to the floor to call attention to a woman named Kristine Svinicki, a widely respected nuclear engineer who sits on the Nuclear Regulatory Commission, the Federal agency charged with ensuring the safety of our Nation's nuclear powerplants. At the moment, Commissioner Svinicki is in Africa, sharing her expertise on nuclear safety at the request of the Obama administration, which should not surprise anybody, since she is one of the world's leading experts on the topic, and since President Obama's own Chief of Staff signed a letter a few months ago expressing the administration's confidence in her commitment to the mission of the NRC and her ability to fulfill it.

I have the letter. It is dated December 12. I ask unanimous consent that it be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

THE WHITE HOUSE,
Washington, DC, December 12, 2011.

Hon. GREGORY B. JACZKO,
Chairman, U.S. Nuclear Regulatory Commission, Washington, DC.

Hon. GEORGE APOSTOLAKIS,
Commissioner, U.S. Nuclear Regulatory Commission, Washington, DC.

Hon. WILLIAM D. MAGWOOD IV,
Commissioner, U.S. Nuclear Regulatory Commission, Washington, DC.

Hon. WILLIAM C. OSTENDORFF,
Commissioner, U.S. Nuclear Regulatory Commission, Washington, DC.

Hon. KRISTINE L. SVINICKI,
Commissioner, U.S. Nuclear Regulatory Commission, Washington, DC.

DEAR COMMISSIONERS: I am writing to you regarding the internal management issues at the Nuclear Regulatory Commission raised in the Commissioners letter to me dated October 13, 2011.

As an initial matter, I would like to thank you again for raising these concerns with me, and for your commitment to fulfilling the agency's important mission to ensure the safe civilian use of nuclear materials. The Nuclear Regulatory Commission has an important mission, and we respect and appreciate your strong commitment to the Commission's work and values.

As you know, upon receipt of the October 13 letter, I arranged to meet personally with each of you so that I would have opportunity to discuss these matters with you. I also met with the agency's Executive Director of Operations. By letter dated December 7, 2011, Chairman Jaczko subsequently responded in writing to the concerns raised in the October 13 letter.

While I recognize that there are tensions and disagreements among the Commissioners, each of you made it clear in your conversations with me that these management differences have not impaired the Commission's ability to fulfill its mission or in any way jeopardized the safety and security of nuclear facilities in the United States.

I share your commitment to the mission of the Nuclear Regulatory Commission and agree that sound leadership and management practices are essential to its proper functioning. In our meetings each of you expressed your strong commitment to the agency and to ensuring that it fulfills its mission. We have confidence in your ability to do so, and urge each of you to make every effort to improve the internal communications at the agency.

The Chairman has committed to improve communications amongst you, including by keeping fellow Commissioners better informed, and has proposed that all of the Commissioners meet with a trusted third

party to promote a better dialog. I urge you to pursue such a course of action and to keep me apprised of your progress and, as appropriate, any findings or recommendations of the agency's Office of Inspector General, as I intend to continue to monitor the situation.

I have also enclosed for your information my response to a letter I received on this matter from Chairman Issa.

Sincerely,

WILLIAM M. DALEY,
Chief of Staff.

Mr. MCCONNELL. Mr. President, what is surprising is that despite all of this, despite her expertise, despite the administration's own stated support for her work, she has not yet been renominated. The White House alone has the power to renominate. For some reason they have not. Look, the only possible reason for this delay is the fact that she had the courage to blow the whistle on the Commission's Chairman Gregory Jazcko, a guy whose temper and condescension toward subordinates, particularly women, nearly cost him his job.

So let's be clear about this. The only reason we are even talking about Kristine Svinicki right now is because she had the courage to stand up to a hostile work environment and the bully who was responsible for it. That is the only reason we are even having this conversation. She should be applauded for that, not hung out to dry.

Yet that is precisely what has been happening here. Commissioner Svinicki is one of the world's leading experts on nuclear safety. She was confirmed in her current term without a single dissenting vote—not one. She enjoys the respect of her colleagues and, as the letter I just cited shows, of the Obama administration as well. Her renomination papers were completed more than a year ago, as was the FBI report that nominees have to complete ahead of being confirmed.

If this nomination continues to be held, after she had the courage to take a stand, it will send a chill up the spine of every whistleblower in Washington. Commissioner Svinicki spoke out against a guy that even Democratic commissioners say bullied employees and intimidated female workers. Kristine Svinicki did the right thing in raising the alarm. She should not pay a price for it. The White House says it likes the job she is doing. They sent her to Africa to give a keynote address on nuclear safety. Yet for over a year there has been silence. It is my hope they are not rewarding abusive behavior by silencing someone who had the courage to speak out. There is no reason for this renomination and reconfirmation to wait another single day.

If Democrats have a problem with Commissioner Svinicki, then let's debate it.

This morning, I renew my call for the White House to send this nomination over immediately and for the Senate to act quickly to get Commissioner Svinicki reconfirmed. The White House said just yesterday there should be no interruption in service on the Commission, so why don't we get this done.

Mr. President, I yield the floor.

The ACTING PRESIDENT pro tempore. Under the previous order, the first hour will be equally divided and controlled between the two leaders, or their designees, with the Republicans controlling the first 30 minutes and the majority controlling the second 30 minutes.

The Senator from Oklahoma is recognized.

CONFERENCE SPENDING

Mr. COBURN. Mr. President, I want to spend a few minutes talking about what is occurring with the GSA conference waste that has been in the news of late. My criticisms are not mainly directed toward GSA.

Over 3 years ago, I started doing oversight on conferences by government agencies. Today I have an amendment, which will not be allowed to be considered, that will hold the agencies accountable in terms of their conferences. Through the years I have put out five reports on wasteful conference spending from the Department of Justice, where it spent $380 million over a 5-year period on conferences, to the Department of Agriculture, and to the Department of HHS in terms of sending thousands of people to one conference at a time. All of it went unheeded.

Now we have the GSA—with Members of the Senate and the House aghast at the waste that has been spent in terms of the GSA conference out West. Had we been doing our job—and there were multiple amendments I have offered over the last 6 years to control conference spending, which have been rejected on party-line votes, to try to bring some semblance of reasonableness and control to conference spending by the various Federal Government agencies.

So we have this problem with the GSA today, but not because of the GSA; it is because of ourselves. We refused to do the hard work of passing requirements that would hold Federal agencies accountable.

My hope is that we would, in one small step, accept an amendment on the postal bill that would allow us to start holding the agencies accountable. It makes for great press and great TV when we stand aghast at what is obviously wasteful spending by an agency, but that accomplishes nothing other than advancing the political careers of my colleagues. We can accomplish something with real legislation that has real teeth and holds the agencies accountable. It is my hope we can have a vote—I don't even think it would take a vote; I think it would be accepted by unanimous consent—that would force the agencies to now come into compliance both in terms of transparency and accountability in how they spend their money.

Every Federal Government agency today has the capability for teleconferencing. We don't have to send 1,000 people, at $2,000 apiece, to a conference to accomplish education and training. We all have it in our offices. The GAO has determined that most Federal employees see conferencing as one of the perks of their job, which is in one of their reports.

I invite the American constituency to look at my Web site, coburn.senate.gov, and go to the studies we put out and oversight reports on wasteful conference spending over the last 3 to 5 years and ask themselves a question: Why didn't Congress act on it? Why didn't they do something about it?

Now we claim we are insulted at the waste. We have had five different opportunities with amendments to do something about it, and we rejected them. We have seen oversight reports that are fully documented which show the waste. Yet we have not done anything.

If Americans are upset with the waste of the GSA conference, they need to be upset with Members of the Senate who have rejected time and again the ability to hold agencies accountable on conference spending. It is my hope that in a bipartisan manner we can address this issue—and not just for GSA but for every government agency so that now we can see transparency and accountability in how the hard-working American taxpayers' dollars are spent, not wasted, and they will know when money is spent on a conference, everybody will see it, and they are going to have to justify not only the expenditure but the reason they are sending people to vacation spots when they should be doing it through teleconferencing and bringing needed updates to Federal employees in a much more efficient and effective way.

With that, I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Missouri is recognized.

THE ECONOMY

Mr. BLUNT. Mr. President, I thank my friend and my congressional neighbor. When we were in the House, we represented adjoining districts in Missouri and Oklahoma, and it is good to be serving in the Senate with my friend and to hear his commonsense approach on how we need to solve the problems we are facing as a country and the needless problems the government seems to be willing to create for itself.

We have been talking so much—at least the President has been talking about economic fairness as the principal goal of the Tax Code. Frankly, the most fair thing we can do in the Tax Code and in the Senate would be to work to be sure we are dealing with the important issues the job creators and families are dealing with across the country today.

All of us have had the opportunity to be home over the last 2 weeks. I was able to be in the last of the 115 Missouri counties that I hadn't been in since I was sworn into the Senate 15 or so months ago. I learn a lot when I am out there.

What I learned this time is that people are focused on fuel costs. Fuel costs

are on track to hit an average of $4 per gallon by summertime. This is more than double what fuel costs were in January of 2009, and it set the all-time record for the last 2 months. I talked to the people in south central Missouri who are trying to provide transportation for older Americans and disabled Americans, and the fuel cost increase of $150,000 means they have to cut back their services.

The chamber of commerce survey this week found that nearly one out of four small businesses reported that their top concern was gas prices. When we think about that, whether it is delivery or whether it is employees getting to work or whether it is people deciding they cannot go to that small business—the restaurant, the bowling alley, a movie theater, or whatever it might be because they just put too much money in the gas tank of their cars—we should be concerned.

Unfortunately, instead of working to pass solutions that would jumpstart our economy and restore consumer confidence, we simply want to talk about the wrong thing over and over. We had a vote on the so-called Buffett tax this week, which almost everybody who talked about it said it is more of a gimmick than a solution because even if we collected this new tax on Warren Buffett and his wealthy friends, in a year we would collect what the Federal Government deficit is in a day. We will not solve this problem dealing with one three-hundred sixty-fifth of the deficit like it is the solution to the problem.

The lead sponsor of the Buffett tax in the Senate, Senator WHITEHOUSE, said on the Senate floor that the aim of the bill is not to lower the unemployment rate or the price of gasoline. Why would we not have a bill on the Senate floor the aim of which is either to do something about energy prices or job creation?

This bill would generate less than 1 percent of the $7 trillion deficit projected in the 2013 budget during that same period of time. It would take 250 years to collect enough money under the so-called Buffett rule to pay the 2011 deficit. If the solution to last year's deficit would take us 250 years of recovery, the truth is we are just wasting a lot of time on little things rather than big things. We can make little things sound big.

We can make it sound as though fairness is the critical element of everything the government should do, as opposed to opportunity being the critical element of everything the government should do. We can make it sound as though people will still invest money, their IRAs or their lifetime savings—their return is, even if they are successful, zero. But that is not what is going to happen.

I just finished reading a book about President Eisenhower and General Eisenhower. There are many pertinent things in that book, but one was when General Eisenhower and others came back from World War II, the top tax rate was 90 percent. From 1933–1934 until 1981, it was at least 70 percent.

Two points can be made there. Nobody paid it if they figured out how to avoid it, and almost everybody figured out how to avoid it—lots of passive investments instead of active ones. It had to be a good time for municipal bonds because there was no tax on them. So why not put your money there. If you made any money, 70 percent would go to the Federal Government or, in 1946, 90 percent would go to the Federal Government.

But the capital gains rate—which happened to be the rate at which World War II memoirs were taxed, which is why it was in this book—was 25 percent. Even when the top rate in the country was 90 percent, nobody thought the capital gains rate should be even one-third of that because they knew people would not invest money if there was no return. We need tax policies that multiply the opportunities created in our economy rather than subtract from those opportunities.

If we want this not to be about politics but about math, it needs to be about multiplication not subtraction and about how to drive an economy to encourage more private sector jobs.

How do we encourage investment and encourage people to take risks? If nobody takes a risk, somebody else doesn't get an opportunity. People being willing to take a risk means that an opportunity is created for somebody else that would not have been created otherwise. Last month, we were here talking about tax hikes on American energy producers that clearly would be passed along to consumers. Nobody even argues if we had passed those tax hikes last month that gas prices would not go up.

Why in the world would we argue about anything that would raise gas prices rather than lower gas prices? The sponsor of that bill said nobody has made the claim that this bill is about reducing gas prices. The majority leader, Mr. REID, admitted that this is not a question of gas prices. Senator SCHUMER said this was never intended to talk about lowering gas prices. Senator BEGICH said the bill would not decrease prices at the pump for our families and small businesses—and these were the supporters of the bill.

Why would we have a bill on the Senate floor to do that when we could support what the President says he is for, which is an ''all-of-the-above'' energy strategy? Let's do what we can to solve this problem. The most glaring recent example is, of course, the Keystone Pipeline, which would run through North Dakota, go through Nebraska and other States, and get to our refineries. It would create 20,000 jobs, and it would decrease our country's dependence upon people who don't like us very much. It would also encourage more North American energy and encourage energy from our best trading partner, Canada. It is just one of the commonsense steps we can make.

If someone would have told me a couple years ago that when we went home in the spring of 2012, one of the things people would be talking about is why aren't we building a oil pipeline from Canada, I would have said that is a pretty detailed understanding of our energy problem, but it is an understanding that is out there. If we are going to create real economic fairness, we need to work together to pass solutions that will bring down the prices at the pump and get Americans back to work. That is why I believe we need to utilize all forms of American energy, including wind, solar, renewable, biomass, shale gas, shale oil, coal, and nuclear alternatives.

An announcement is being made today by one of our Missouri utility companies and Westinghouse about small nuclear and how that might be part of this all-of-the-above solution.

I am ready to work with my colleagues across the aisle and anywhere else to do what we can to help American families. I hope we can do this together. The shortest path to more American jobs is more American energy. The best and the most fair thing we could do is what is good for American families and small businesses and job opportunities. I hope we can get to work on that.

Mr. President, I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from North Dakota.

THE BUDGET

Mr. CONRAD. Mr. President, I rise today to discuss what I did in the Budget Committee yesterday, why I did it, and where we are headed.

I have heard people say repeatedly that the Senate has now gone for some 1,000 days since passing a budget resolution. What they are not telling people is that last year, instead of a budget resolution, the Senate and the House and the President signed a budget control law. The occupant of the chair knows very well, being a former attorney general, that a resolution is purely a congressional document. It never goes to the President for his signature. The Budget Control Act we passed last year, while it is true it is not a resolution, was a law signed by the President of the United States, and that law—the Budget Control Act—said we are going to set the budget for this year and next, but beyond that we are also going to put in place 10 years of spending caps, saving $900 billion.

On the question of whether the Budget Control Act represents or takes the place of a budget resolution for this year and next, let me read from the text because I think it makes it abundantly clear. It says: The allocations, aggregates, and levels set in the Budget Control Act shall apply in the Senate in the same manner as for a concurrent resolution on the budget.

That is pretty clear. This law, the Budget Control Act law, is to serve in the same manner as a budget resolution for 2012 and 2013, and it sets out the spending limits for those years.

But it even goes further and sets spending caps for 10 years—something that, in my time here, has never been done in a budget resolution. Never in a budget resolution, while I have been here, has there been the setting of 10 years of spending caps, but that is what was done in the Budget Control Act last year.

But that law went even further than that. It also created a special committee and empowered that committee to come up with a proposal to reform the entitlement programs—Social Security and Medicare—and reform the tax system of the United States, and it told that special committee that if it came to an agreement, that legislation could come to the floor without fear of filibuster—without fear of filibuster. Extraordinary powers were granted in that Budget Control Act to reform Social Security and Medicare and the tax system as well.

That special committee did not agree, and the Budget Control Act said: If you don't agree, there are consequences, and the consequences are another $1.2 trillion of spending cuts on top of the $900 billion of spending restraint that was in the underlying act.

So the special committee didn't agree, and now we have the prospect of a sequester imposing another $1.2 trillion of spending cuts on top of the $900 billion of spending cuts in the underlying act, for a total of over $2 trillion of spending cuts. That is the biggest spending cut package, as far as I know, in the history of the United States. Yet the other side suggests repeatedly that nothing has been done to set spending limits when they know full well what the Budget Control Act, passed last year, does. Yes, it wasn't a resolution; it was a law. Boy, that is sort of civics 101, that a law is stronger than a resolution.

I said several days ago I would go to markup in the Budget Committee and I would lay out a long-term plan because while it is true that we have in place for the next 2 years a budget under the Budget Control Act, what we don't have is an overall long-term plan. The Budget Control Act limits discretionary spending for the next 10 years, but we also need a program that outlines what we are going to do about entitlement programs—Medicare, Social Security—and what we are going to do to reform our tax system, which is badly broken.

So several days ago I said I would lay before the Budget Committee the Bowles-Simpson plan, which is the only bipartisan plan that has emerged. It was supported by 11 of the 18 Commissioners. I was proud to be one of five Democrats, five Republicans, and one Independent. Eleven of the 18 voted to support that Bowles-Simpson package. Unfortunately, it took a super supermajority for that plan to come to the floor of the House and the Senate; it required 14 of the 18 members to agree. Eleven of 18 did, which is more than 60 percent. Even in Washington, usually 60 percent carries the day, but it didn't with respect to the Bowles-Simpson recommendations.

So I said several days ago I would put before the body the Bowles-Simpson plan. I did not suggest we would complete action on it at the beginning of the markup. Why? Because we already have in place the spending limitations for this year and next. What we don't have is a longer term plan. We don't need that longer term plan right at this moment, but we need it before the end of the year because at the end of the year all of the Bush-era tax cuts are going to expire, and at the end of this year we are going to face that sequester I mentioned that is in the Budget Control Act law that we passed last year instead of a budget resolution.

Why do we need this longer term plan? Well, because we are borrowing about 40 cents of every dollar we spend, and that is unsustainable. It has to change. I have warned repeatedly of where we are headed if we don't change course. And here is where we are headed. This chart shows the gross debt of the United States if we stay on the trajectory we are on. We can see we are here in 2012. At the end of this year, the gross debt of the United States will be 104 percent of our gross domestic product, headed for 119 percent on our current trajectory. That shouldn't be permitted to happen, and under the plan I laid before our colleagues yesterday, it won't happen.

If we look at the underlying cause of these deficits and debt, we can see it is the relationship between spending and revenue. The red line is the spending line, the green line is the revenue line of the United States looking back to 1950, and what one sees is that spending is at or near a 60-year high. Actually, we have fallen back somewhat from the 60-year high we reached 2 years ago. Revenue is at or near a 60-year low. Actually, we can see it bumped up to a 70-year low back in 2010. But still we see a very wide gap between revenue and spending. As a result, there is a very large deficit—a deficit of $1.2 trillion.

Now, I could have gone before the Budget Committee yesterday and laid out another partisan plan, because that is what is happening. Congressman RYAN, to his credit, laid out a plan, and in the House they passed his plan. I give him credit for laying out a plan. I think the plan is a very bad plan for the country and completely lacks balance. It is all done on the spending side of the equation, which leads him to truly Draconian cuts—dramatic changes in Medicare, for example, dramatic changes in Medicaid, dramatic changes in the whole structure of services the government provides people in this country. And the American people don't want a plan that is just a partisan plan. They do not want a plan that lacks balance. They do not want a plan that is just on one side of the ledger.

As I showed in the previous chart, we have a problem on both sides of the ledger—on revenue and on spending. We have to work on both sides of the ledger. And the American people believe that as well. When asked in the Pew Research Center poll last year in November, ''What is the best way to reduce the Federal budget deficit?'' 17 percent said just cut major programs—only 17 percent, 1–7. On increasing taxes, 8 percent said just increase taxes. And 62 percent said a combination of both. I think the American people have it right. They are pretty smart. They are pretty smart.

In 2010 we had the Bowles-Simpson Commission, the so-called fiscal commission. Eighteen of us were named to serve. It was created by the President after a legislative attempt, led by Senator Gregg of New Hampshire, a Republican, and myself, failed here. We got a majority but we didn't get a supermajority. So our attempt to form a commission legislatively was thwarted. President Obama showed leadership and named a Presidential commission in order to take on the subject, and in December of 2010 that commission reported their conclusion, with 11 of the 18 of us agreeing to the recommendations.

Here are the principles and values the fiscal commission used to guide their efforts: that it is a patriotic duty to make America better; that we shouldn't do anything that would disrupt the economic recovery; that we ought to cut and invest to promote economic growth and keep America competitive; that we ought to protect the truly disadvantaged; that we ought to cut spending we cannot afford, with no exceptions; that we ought to demand productivity and effectiveness from Washington; that we ought to reform and simplify the Tax Code; that we shouldn't make promises we can't keep; and that the problem of deficits and debt are real and the solution will be painful.

Let's be honest. When you are borrowing 40 cents of every dollar you spend, you are not going to solve this in a way that doesn't affect anyone. All of us are going to have to participate in the solution.

The last principle that was used to guide the commission was that we should do things to make America sound over the long run.

So what does the fiscal commission plan I laid out do? It puts in place $5.4 trillion in deficit reduction over 10 years, including savings that have already been enacted in the Budget Control Act. It lowers the deficit from 7.6 percent of GDP in 2012 to 2.5 percent in 2015 and down to 1.4 percent in 2022. So because of the reductions in deficits, it stabilizes the debt and begins to bring it down. In fact, it stabilizes the gross debt by 2015 and lowers it to 93 percent of GDP by 2022.

Remember my previous slide? Here is the quiz. What did it say the debt would become by 2022 if we don't do anything as a share of GDP? It said it would become 119 percent if we didn't

act. Under the proposal I laid before the Budget Committee yesterday, it would bring down the debt to 93 percent of GDP—the gross debt to 93 percent of GDP by 2022 instead of 119 percent if we fail to act.

The plan I laid out reduces overall spending to 21.9 percent of GDP by 2022, discretionary spending to 4.8 percent of GDP by 2022, a record low—a record low. In fact, this overall spending level is lower than the average spending level during the Reagan administration.

Our colleagues on the other side are always eager to embrace Ronald Reagan's policies. The proposal I laid out yesterday has a lower average spending as a share of our national income than did President Reagan during the entire period of his Presidency.

The plan I laid out also builds on health care reform with additional health care savings and fully funds the doc fix. What is the doc fix? That is the measure to prevent the doctors who treat Medicare patients from taking a cut of more than 20 percent.

The plan also calls for Social Security reform that ensures the 75-year solvency of Social Security, with the savings only to extend solvency, not for deficit reduction. In other words, Social Security reform, those savings are not used for deficit reduction. They are only used to extend the solvency of the program itself. The plan I laid out includes fundamental tax reform; makes the Tax Code simpler, fairer, more efficient, while raising more revenue to reduce our deficit and debt.

This chart shows the deficit as a percentage of GDP under the fiscal commission budget plan I laid before our colleagues yesterday. We can see, it takes the deficit from 7.6 percent of GDP this year—which is down, by the way, substantially from 10 percent, which is where it has been—down to 1.4 percent in 2022. The fiscal commission budget plan reduces the deficits below the 3-percent-of-GDP level that is considered sustainable by economists, and it does that by 2015.

Again, the gross debt under the plan I put before colleagues that comes from the fiscal commission work, the Bowles-Simpson plan that was concluded and recommended in 2010, would take the gross debt down to 93 percent of GDP from the 104 percent it is now and, as I indicated earlier, an even more dramatic improvement compared to what the debt would be if we failed to act.

As I indicated, the spending level under the fiscal commission budget plan is about 21.8 percent of GDP. During the Reagan administration, spending was 22.1 percent of GDP. So we have lower overall spending as a share of the national income than was the case during the Reagan administration. In fact, discretionary spending goes to an all-time low of 4.8 percent by the end of the 10-year plan.

We can see, discretionary spending—that is distinct from mandatory spending. Mandatory spending are things such as Social Security and Medicare. Discretionary spending are things such as defense and national parks and law enforcement and education. We can see, discretionary spending as a share of our national income is dropping very sharply under this plan.

What is happening on the other side of the spending ledger is the 800-pound gorilla, which is health care. That is the thing that threatens to swamp the boat around here because we can see what is happening. Back in 1972 Medicare, Medicaid, and other Federal health spending was about 1 percent of our gross domestic product. If we don't take further steps by 2050, it is going to be 13 percent of our gross domestic product, from 1 percent to 13 percent. Right now in this country, 18 percent of our GDP is going to health care. One in every six dollars in our whole economy is going to health care—more than $1 in every $6. So that is something we have to focus on like a laser, and in the fiscal commission plan, we do focus on it like a laser. It doesn't open the health care reform debate that we just concluded, but it does provide an option to phase out the tax exclusion for health care that economists tell us would be one of the most effective things we could do to change the direction of health care expenditure.

It fully offsets the cost of the so-called doc fix, so our doctors treating Medicare patients don't face this huge cut that is currently in the law. We have additional savings proposals with Medicare beneficiary cost sharing, payments to health care providers being reformed, eliminating State gaming of the Medicaid tax, and providing the Medicaid drug rebate for those who are duly eligible in Medicare. This would save hundreds of billions of dollars.

While the fiscal commission did make a recommendation on Social Security, those numbers are not included in the proposal I put before our colleagues yesterday because I am precluded from doing so by the law. The Congressional Budget Act of 1974 prohibits the inclusion of Social Security in deficit totals of a budget resolution. So I did lay out the proposal from the fiscal commission on reforming Social Security; but I could not include it in the numbers because I am precluded from doing so by the law.

Here are the recommendations from the fiscal commission that I included in my proposal to our colleagues but that are not in the numbers for the reason I have given: calls for Social Security reforms to make it solvent, not for deficit reduction; restores 75-year solvency and puts it on a stable path beyond 75 years; strengthens the safety net by enhancing the minimum benefit for low-wage workers and by giving an actual bump up in benefits for the oldest seniors and the long-time disabled. One of the things we know, people who live a long time run out of their benefits. So in the fiscal commission we proposed to actually give them a little bump up after they have been in retirement for an extended period of time.

We also provided a hardship exemption for those who are unable to work past the age of 62. One of the things we know is a person can take early retirement at age 62—and we are going to have to increase the retirement age of Social Security over time, over a very long time, by the way. In this proposal, we increase the retirement age to 69 over decades.

We have to increase also the maximum level of wages that are taxed for Social Security because the traditional standard is no longer being followed. We are not taxing 90 percent of wages. That doesn't mean the tax is 90 percent, by the way. It means 90 percent of wages is being subjected to the tax. What has been happening over years is we have been getting a reduced share of income in this economy to apply the Social Security tax to. That is one of the reasons we have a shortfall over time. Under this plan, we raise the retirement age—but only very gradually—reaching 69 by 2075. This is 2012. So we don't raise the retirement age to 69 until 2075. That is 63 years from now. But make no mistake, that is important because people are living longer. In fact, people are living much longer.

We also have a need for tax reform. The Tax Code is out of date, it is inefficient, and it is hurting U.S. competitiveness. The complexity imposes significant burden on individuals and businesses. The expiring provisions create uncertainty and confusion. We are hemorrhaging revenue to the tax gap, to tax havens, to abusive tax shelters.

Many times on this floor I have shown a picture of a little building down in the Cayman Islands called Ugland House. Ugland House claims to be the home to 18,000 corporations. A little 5-story building down in the Cayman Islands claims to be the home to 18,000 companies. Are all those companies doing business out of that little five-story building? No. The only business they are doing down there is monkey business, and the monkey business they are doing is ducking their taxes here and shoving the burden onto all the rest of us who pay our taxes. That is not right.

We have to go after these tax havens, these abusive tax shelters, and we can do it. We need to restore fairness. The current system is contributing to growing income inequality, and our long-term fiscal imbalance, the deficits and debt we talked about, must be addressed.

CBO Director Elmendorf talked about the economic benefits of tax reform in a hearing before the Budget Committee. He said:

> I think analysts would widely agree that reform of the Tax Code that broadened the base and brought down rates would be a positive force for economic growth, both in the short term and over a longer period.

Tax reform has to be part of the agenda of this Congress. Here is what is happening to income disparity in

America. Look at what is happening. The top 1 percent—and I am all for the top 1 percent doing well. I want everyone to do well in America, but look what is happening. Since 1979, the top 1 percent, their incomes have gone up almost 300 percent. Look at what has happened to those in the middle and those at the bottom. Their incomes have stagnated. They have been about stable—gone up a little bit but not very much. The top 1 percent has gone up like a rocket. One of the reasons is the Tax Code of the United States has dramatically reduced for the wealthiest in our country the tax burden they shoulder. They will show us, oh, their taxes have gone way up. Sure, they have because their incomes have gone way up. What has gone down—what has gone way down is the effective tax rate they pay. The top 400 families, the wealthiest 400 families in America, have had their effective tax rate almost cut in half since 1995.

Again, I am not one who is against success. I come from a family who has succeeded. I come from a family who has done well, and I am deeply appreciative. I am grateful for the opportunity this country has provided to my family. But do you know what. What is fair is fair. What is fair is fair. We have to ask everybody to help pull this wagon out of the ditch. We are in the ditch, and let's get serious about getting out.

If we broaden the base of our tax system, the people who will be most affected are the wealthiest among us because look what happens. Here is the increase in aftertax income, on average, from tax expenditures in this country; that is, the loopholes, the deductions, the credits, the exclusions that are in the current Tax Code. The average benefit for the top 1 percent is $219,000 a year. The middle quintile, their benefit is $3,000. If we reform tax expenditures, which we should do, that will put some additional burden on those who are the wealthiest among us.

By the way, not everybody who is doing well is treated the same way under this Tax Code. There are many people who are doing well who are paying a tax rate that is very close to the top rate of 35 percent. There are others who are paying at a level one-half as much; the same income but paying much less in taxes. Why? Because they have set up their affairs in a way that they especially benefit from the credits, the exclusions, the deductions, and all the rest of the tax gimmicks that riddle the current Tax Code.

Here is what one of the most conservative economists in the country said about reducing tax expenditures. This is Martin Feldstein, professor of economics at Harvard, Chairman of the Council of Economic Advisers under President Reagan. This is what he said about cutting tax expenditures:

> Cutting tax expenditures is really the best way to reduce government spending. . . . [E]liminating tax expenditures does not increase marginal tax rates or reduce the reward for saving, investment or risk-taking. It would also increase overall economic efficiency by removing incentives that distort private spending decisions. And eliminating or consolidating the large number of overlapping tax-based subsidies would also greatly simplify tax filing. In short, cutting tax expenditures is not at all like other ways of raising revenue.

That, from one of the most conservative economists in the country.

Our colleagues on the other side say wait a minute, we should not have revenues more than 18 percent of gross domestic product because that is, on average, what it has been over the last 30 or 40 years. The problem with their analysis is the last five times we have balanced the budget the revenue has not been 18 percent of GDP. The last five times we have balanced the budget, revenue has been at 19.7, in 1969; 19.9, in 1998; 19.8 percent of GDP in 1999; 20.6 percent of GDP in 2000; and 19.5 percent of GDP in 2001. If people want to be serious about balancing the budget, we are going to have to have a revenue level, based on what we see historically, that is more than 18 percent of GDP.

The fiscal commission plan I laid before colleagues yesterday, the so-called Bowles-Simpson plan, does this with respect to tax reform. It eliminates or scales back those tax expenditures we were discussing but lowers tax rates. You can lower tax rates and get more money if you broaden the base, if you reduce some of these tax expenditures that frankly go disproportionately to the wealthiest among us and have grown like Topsy in the Tax Code.

We can promote economic growth and improve America's global competitiveness, we can make the Tax Code more competitive, we can have what was included in the fiscal commission, an option, a reform plan that calls for three rates for individuals: 12 percent, 22 percent, and 28 percent. The top rate now is 35 percent. A corporate rate of 28 percent. The corporate rate now is 35 percent.

The fiscal commission plan called for capital gains and dividends to be taxed as ordinary income. Instead of having a differential for capital gains and dividends, they were taxed at ordinary rates. But the fiscal commission also said if you want to have a differential, you have to pay for it by buying up the top rate.

For those who believe strongly you need to have a differential for cap gains and perhaps dividends, you can do that, but then you have to have a higher top rate than 28 percent.

The fiscal commission plan reforms the mortgage interest and charitable deductions, it preserves the child tax credit and earned-income tax credit, and completely repeals the alternative minimum tax.

Under this plan, revenues grow to 20.5 percent of GDP by 2022. In fact, the revenue under the fiscal commission plan during the 10 years of the plan averages 19.7 percent. That is right at the level that has been required the last five times we have balanced the budget. That is very close to the revenue level during the Clinton administration, the last time we did balance the budget. By the way, that was a Democratic President.

Some say that is a big tax increase you are talking about, Senator. No, it is not a big tax increase. It is additional revenue of $2.4 trillion compared to roughly current policy, what is happening right now. But compared to current law it is actually a $1.8 trillion tax cut because all of the tax cuts that were put in place in the Bush administration are about to expire. So if you compare it to that law, this proposal represents a $1.8 trillion tax cut. It is more revenue than we would get under current policy but less revenue than we would get under current law.

The fiscal commission plan I laid before colleagues yesterday, the so-called Bowles-Simpson plan, also had certain process changes to tighten things up around here, to become more disciplined. It set discretionary spending caps through 2022 enforced by a 60-vote point of order and sequester; firewalls between security and nonsecurity spending so money could not be diverted between the two; a separate cap for war funding with annual limits proposed by the President; more rigorous emergency designation procedures and annual budgeting for disasters; a failsafe to pressure Congress to maintain a stable debt-to-GDP ratio starting in 2015; more accurate inflation adjustments for indexed programs—that is the so-called chained CPI, a more accurate measurement for inflation adjustment; and a process to ensure more reliable and timely extended unemployment insurance benefits.

I have heard from my colleagues repeatedly that the President showed no leadership. I don't believe that. I think the President showed extraordinary leadership. He averted a depression—and make no mistake, that is where we were headed when he came into office. When he came into office here is what was happening. We were losing 800,000 jobs a month in the private sector. That is what he walked into. He did not create the conditions that led to losing 800,000 jobs a month, he inherited that.

Look at the progress that has been made. Since 24 months ago we have seen jobs in the private sector on the positive side of the ledger—4 million jobs created. That is after he was in a situation in which we were losing 800,000 jobs a month. In the last 4 months we have been averaging 200,000 jobs created. That is pretty good leadership. That is a dramatic turnaround.

The same is true of economic growth. When he came into office the economy was shrinking at a rate of almost 9 percent. Now it is growing at a rate of about 3 percent. That is pretty good leadership. That is a dramatic change from what he inherited.

When I hear that the President did not show leadership—oh, yes? I would

say he showed pretty good leadership. He stopped the hemorrhaging. He got us going back in the right direction. It is not everything we hoped for, but my goodness, what a remarkable turnaround. Two of the most distinguished economists in this country said if we had not taken the actions that were taken by the Federal Government at the end of the Bush administration and during this administration, we would be in a depression.

We are not in a depression. In fact we are growing. We are growing modestly but we are growing. We are creating jobs in the private sector. The private sector is growing. It added 4 million jobs since this President got things turning around. This President named the fiscal commission. There would not be a Bowles-Simpson commission had the President not appointed it. The Bowles-Simpson commission plan is what I put before our colleagues yesterday.

Some have criticized me to say: You didn't vote on it. That is right. We are not going to vote on it until we believe there is the best possible chance to actually get results. If you go back to the Bowles-Simpson commission approach, what you saw is they did not time the vote until after the 2010 election. What I am saying to colleagues is I think we ought to follow their good example. That is because the truth is, people are not likely—all sides are unlikely to get off their fixed position right before a national election.

Let me end as I began. We have a budget for this year and next. It is contained in the Budget Control Act, a law that was passed last year. When my colleagues say there was no budget resolution passed, what they are not telling you is instead of a budget resolution, we passed a budget control law. A law is stronger than any resolution. A resolution is purely a congressional document and never goes to the President for his signature. The Budget Control Act passed the House and the Senate and was signed by the President of the United States.

It says in part:

> The allocations, aggregates and levels of spending set in this act shall apply in the Senate in the same manner as for a concurrent resolution on the budget.

What could be more clear? This law is in place of a budget resolution. It is stronger than any resolution because it is a law. Next time somebody tells you there has been no budget resolution for 1000 days, ask them, but did they pass a law that set spending limits? That set the budget for this year and next? That set 10 years of spending caps that saved $900 billion, that gave a special committee the ability to change Social Security and Medicare and the tax system of the United States and not face a filibuster? And if they did not succeed, there would be another $1.2 trillion of cuts? And because they did not agree, that additional $1.2 trillion of cuts is now in law and will begin to be imposed at the beginning of next year?

That is a total of more than $2 trillion of spending cuts in the Budget Control Act passed by the Congress, signed by the President, and in force today. That is the biggest spending cut package in the history of the country.

If anybody suggests to you no spending limits have been put in place, ask them: What about the Budget Control Act? Didn't you vote on that? Because it passed the House. The Republican-controlled House, they passed it. It passed the Senate and it was signed by the President of the United States. It is the law. A law is stronger than any resolution.

I yield the floor.

The PRESIDING OFFICER. The Senator from West Virginia is recognized.

Mr. MANCHIN. Mr. President, first I thank my colleague, Senator KENT CONRAD from North Dakota. To say he is going to be missed is an understatement as he goes back to the private sector with his beautiful wife and family. But his steadfast commitment to this country to put our financial house back in order is the direction we should be going. We should have the courage to do that. I believe we will with his leadership because he has laid out a plan that is more reasonable. There has been more bipartisan support for a longer period of time, and it has grown. It is the only plan since I have been here, less than 2 years, that has maintained that bipartisan support because of the leadership of Senator KENT CONRAD. On behalf of the grateful State of West Virginia and the people of America and my colleagues here in the Senate, we thank Senator CONRAD. We thank him for his leadership.

POSTAL SERVICE REFORM

Mr. MANCHIN. Mr. President, I rise today to share with you the deep concerns that I am hearing from my constituents all across the great State of West Virginia, who are worried about what will happen to their rural communities if their local post offices are forced to shut their doors. In our State, we know that the Postal Service is at the very core of what makes this country great, and what connects us all. In fact, the Postal Service is America. That is why we are willing to come together across party lines to fight hard to preserve the essential services the Postal Service provides.

We also know that serving rural communities is not always profitable and private companies will not come in to fill the gap if the Postal Service leaves. As Americans, we need our rural communities to stay in touch with this great Nation. I am fighting, along with the members of our delegation, to put a stop to these proposed closures.

These concerns for the future of the Postal Service are bringing all West Virginians—Democrats and Republicans alike—together for protests, rallies, and letter-writing campaigns.

In communities where people were told their post offices down the road might be closed, I am hearing people's fears of unacceptable consequences: seniors who wouldn't be able to get their medicines delivered, problems receiving important checks and other financial services, and, just as importantly, the loss of the ability to stay connected to the community and to the country as a whole.

This note comes from Mr. George Jones in Nebo, WV, which is in Clay County. He writes:

> Few people in this area have access to the Internet. They still rely on the post offices to keep them connected to the world. And our people still use the post office. It just makes no sense to cut services to the people who still use them.

They need them as well.

In communities where the post office has already closed, I have heard about what it means to the town and its residents.

This note comes from Delores Wilson in Norton, WV, which is in Randolph County:

> Our Post Office was closed last November. We now have cluster boxes which are out there in the weather, and our residents are scared to have their prescription drugs mailed to their home or these boxes. Our community has been severely affected. We used to see each other while getting our mail. Our postmaster would let us know when children were born and neighbors passed away. We collected funds at the post office to help our neighbors when they fell on hard times or were in need. Now we don't have this central location to do that because our small community no longer has its post office.

I have always said that we as a people and a country need to pick our priorities based on our values. In West Virginia, keeping the Postal Service intact is one of the things our people truly care about. That is why I have raised very serious concerns about this bill which does nothing to keep the 3,700 post offices open, and they are currently on the list for potential closure, including 150 of these proposed closures in West Virginia.

Today I wish to encourage all of my colleagues to vote for an amendment I have offered that would prohibit any postal facility from being closed for 2 years while the Postal Service figures out better ways, working with the Postal Service unions, to get its financial house in order. I have offered this amendment because, as I have heard from my constituents, we simply cannot afford to let these facilities close in the communities that need them most. In our rural towns—places such as Norton and Nebo, WV—the Postal Service is about much more than a place to send and receive mail. Our postal facilities are the centerpieces of our communities. They are places where people gather and share important information. They are a symbol of the importance of our small towns to the people whose families have always been there. They are our little place on the map.

This note came from Deanna Halstead from Boone County, where the Uneeda Post Office could soon be closed. She writes:

We have had a post office in this area since 1902. In fact, the story goes that the citizens petitioned for a post office and were asked what to name it back in 1902. A gentleman saw a can of Nabisco's Uneeda Biscuits, and that is how the post office and town got their name. It would be a shame to lose that history, and it would be hard for our elderly and disabled citizens to travel farther for these services. Fifteen miles does not sound like much to people in Washington, but when you rely on public transportation or a neighbor to take you, it becomes a big burden.

I myself grew up in the small town of Farmington, WV, a community of just a few hundred people. I speak from experience when I say the post offices in these rural communities serve as a critical lifeline.

Even now, as an elected representative, I receive dozens, sometimes hundreds of letters a day from my constituents, many of whom don't have access to the Internet and can only reach me by writing me a letter. That is what is so unique about our post offices. They are a vital link for West Virginians and many others throughout the country, and for them it is so important that their mail service remain uncompromised.

We all know the U.S. Postal Service is in dire straits. The combination of the recent recession, the increased use of e-mail and text messages, and the cost of retiree health benefits has put the Postal Service on a path to financial ruin. In order to remain solvent, the U.S. Postal Service must cut costs by $20 billion by 2015.

Anyone who has heard me speak before knows I share a deep commitment to fiscal responsibility, and we just heard our dear friend, Senator KENT CONRAD, lay it out for us. I truly believe this Nation's out-of-control finances are the biggest threat we face. I am not alone. At a Senate Armed Services Committee hearing a year ago, the then-Chairman of the Joint Chiefs of Staff, ADM Mike Mullen, was asked his opinion on the greatest threat to our national security. Coming from the Defense Department and the person in charge, Admiral Mullen—I would have thought he would have said something about all the turmoil around the world, the wars that are going on, the unease and unrest that could contribute to more wars. I thought he would tell us about some rising military power we should be concerned about or another uprising of a violent attack on this country or a terrorist group wishing to do us harm. But what he said was very simple, and it was a defining moment for me as a Senator when he said that our national debt is the greatest threat this Nation is concerned about, it is the greatest threat this Nation faces. It was a sobering moment. So believe me when I say I truly believe we all have to set our priorities based on our values and learn very quickly to live within our means. That is right. There is a right way and a wrong way to go about this.

The bill we have before us proposes to close 3,700 rural post offices—I am sure including some in the Presiding Officer's own State—for a total savings of $200 million—a figure that is less than 1 percent of the Postal Service's $20 billion and is roughly equivalent—listen to this figure—to the amount we spend in 1 day in the Afghanistan war. We spend that amount in 1 day fighting in Afghanistan, which I think everyone knows I am totally opposed to. Yet we are going to close 3,700 post offices for that 1-day savings for a war in Afghanistan. While achieving very little in terms of the Postal Service's bottom line, this proposal would have an enormous impact on people all over the United States of America, including the people in West Virginia who would lose up to 150 of their post offices. This bill would also lower delivery standards by allowing the Postal Service to go to 5-day service and eliminating door delivery. It would add to our national deficit. In short, I am not sure what exactly we are hoping to accomplish with this piece of legislation.

Already in West Virginia we know for certain that three of our mail-processing facilities will be closing, one in Clarksburg, one in Parkersburg, and one in Petersburg. We still don't know the fate of our facility in Bluefield. The impact those closures will have on the Postal Service's bottom line is minimal, but the impact to those communities is widely felt and deep.

Rather than making drastic cuts on the front lines, the Postal Service needs to consider a different approach to getting its financial house in order. I truly believe we can save the Postal Service without making cuts to the services our communities rely on and the lifeline that they are, and they are needed, and without adding to our enormous deficit. We can work together on a way to keep our postal facilities open, expand services that raise revenue, eliminate enormous bonuses for executives, and sustain 6-day-a-week delivery service.

My colleagues and I have suggested many commonsense ideas that could help solve the problem. For one, current law caps pay for Postal Service executives at $199,700—the rate of pay for most Cabinet-level Secretaries—but provisions in the law allow for bonuses and other compensation to increase total take-home pay for these executives to $276,840. That figure is 20 percent higher than the salary of the Vice President of the United States. In addition, the Congressional Research Service has noted that ''postal executives may be eligible for deferred annual incentive bonuses that exceed existing caps, the payment of which can be deferred until after he or she leaves the postal service.'' As an example, according to CRS, former Postmaster General John Potter earned $501,384 in total compensation in fiscal year 2010. I think most Americans would be shocked to know Postal Service executives can earn larger salaries in the form of bonuses and deferred compensation than Cabinet-level Secretaries. These excesses must be eliminated.

We know from an August 2011 report by the Postal Service inspector general that the Postal Service maintains 67 million square feet of excess interior space and that getting rid of this unneeded real estate could net $3.4 billion over 10 years. I think this is a revenue raiser that deserves some serious consideration, and I believe most of my colleagues would think the same.

I would also ask, during a time when finances are tight, why did the Postal Service spend advertising dollars sponsoring the U.S. Tour de France team and is now sponsoring a NASCAR racing team? I love NASCAR racing, but I am not sure they can afford to be sponsoring a team.

There are a variety of ways for the Postal Service to get its financial house in order without closing their doors in the communities that rely on them most.

Back in April my office coordinated regional open meetings in the communities where post offices are on a list for potential closure. Along with representatives from the U.S. Postal Service, my staff was on hand at these meetings in McDowell, Raleigh, Wood, and Randolph Counties to give local residents the opportunity to share their creative proposals and commonsense ideas to help preserve post offices in their communities. We got the message loudly and clearly: West Virginians do not want to see their post offices closed. They are the lifeblood of the community.

We continue to hear from hundreds of West Virginians in letters, phone calls, and petitions, folks such as Rebecca from Raleigh County, where the Clear Creek Post Office is facing closure. Her community has had a post office for 140 years—140 years. Tell me anything that is more American than that. Here is her letter:

> We are an isolated area. The roads are curvy and our citizens are elderly. If this post office closes, it will mean 20 miles round trip to the nearest post office.

It is rare to see a community—hundreds of communities, really—come together around a single issue such as this one. But we are seeing hundreds of people rush to the defense of an institution that has built this Nation and connected this Nation into what we are today. West Virginians do not want to see that disappear, and neither do I. That is why I will fight, along with my colleagues, to find a solution that forces the Postal Service to get its financial house in order, which I believe can be done, without balancing its books on the backs of our rural communities and the people who depend on that lifeline most—our citizens.

Thank you, Mr. President. I yield the floor and note the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MERKLEY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. BROWN of Ohio). Without objection, it is so ordered.

Mr. MERKLEY. Mr. President, I rise today to address an issue that goes to the very heart of our rural communities: our rural post offices. I am speaking while negotiations are going on regarding the Postal Service reform bill that has many dimensions to it, attempting to put the Postal Service on stable financial grounds. But I want to focus on this particular aspect: that today we must modify the bill that is before us so we do not end up destroying our rural post offices that are at the heart of the communities they serve.

It was a few months ago that I was in eastern Oregon and received a message that the Postmaster General had put on the list for closure 41 rural community post offices—and that was just in my State of Oregon. In the next couple days, I dropped by several of those rural community post offices. In two cases they were open. I talked to the postmaster, I talked to citizens who were nearby, and I quickly got feedback on the destruction that would happen in that rural community if we do not address this issue in this bill.

Specifically, there will be a huge impact on the small businesses that use the post offices to receive orders and to ship orders on a daily basis. Those businesses will not be able to function if they have to drive 30, 40, 50, 60 miles roundtrip each day to pick up orders and to ship products—a huge waste of time, often on dangerous, winding, narrow roads; a huge additional cost, a huge distraction from the work they do on their farms or on their ranches. In short, this will shut down a lot of small businesses or those small businesses will have to move. They will move to larger towns. When they move, the retail dollars move, and it will not be long before that small store at the heart of that town shuts down.

In addition, I heard from seniors who receive their medicines through the mail. In some cases, they are controlled medicines for which they have to sign. They have to be there in person. They cannot simply receive them through a mailbox, if you will. Certainly, often our seniors are not always in the shape where they can drive daily to see if a medicine they are waiting for has arrived—that they would have to go 40, 50, 60 miles roundtrip to check and see if their medicines came in. Those folks will start thinking: Well, maybe I can't live in this rural community anymore. Maybe I need to move to a larger town that has a post office.

Part of the irony of the bill we have before us is often on the Senate floor we are talking about spending government resources for economic development. Well, if you go to a small town and ask people what is the most essential component for the success of their small town, their small businesses, they are going to tell you the rural post office; that without that they are pretty much out of business. So how is it we spend so much time talking about jobs and economic development and small business as the factory of job creation, and yet we have a bill before us that basically cuts the heart out of the small town economy?

I originally come from a very small town, the small town of Myrtle Creek. When I was a small child—born there—the Dairy Queen at the heart of town was the place we occasionally went as a family. That Dairy Queen is still there, and I still often drive through Myrtle Creek just to go by and have a hamburger as I am going north and south through Oregon.

Now, Myrtle Creek does not happen to be on the list of the 41 towns where the post offices would be shut down.

But visit my hometown and one would get a real sense of the damage that would occur if the post office were shut down. So I bring a very kind of personal sense that this battle matters. I wanted to share some of the feedback I have had from a couple towns. I wish to start with the town of Tiller in Douglas County. Tiller is not that far away. Myrtle Creek is in Douglas County; Roseburg is in Douglas County where I started grade school; Tiller is in Douglas County.

This is the post office in Tiller. It is 16 miles from the next nearest post office. Imagine that a person lives 10 miles from Tiller and then they have to drive another 16 miles to get to the next nearest town. Now we are talking about 50 miles round trip. That is an hour or more out of their day, and that is a lot of cost in gas. That might be $10 a day in gas right there, and that is a huge factor for many of our families.

I am going to share with everyone some passages from a letter from Diana Farris, a former postmaster in Tiller. She writes:

> Tiller is one such community where, in many ways, time stands still and new technology is beyond their grasp. In Tiller, cellular phone service is unavailable, DSL and cable internet service are unavailable, satellite service is overpriced with the majority of residents in the area unable to afford it and there is no Wi-Fi access.

She continues:

> Dial up internet is available (when the poorly maintained telephone system is operational) at top speeds of approximately 24–26k, so slow that many websites, including USPS, time out before you can access the needed information.

Diana Farris, former postmaster, then says:

> The unemployment rate has risen to 13 percent in Douglas County, and the lowest gas price in Tiller in the last few months has been $3.95 per gallon. For communities like this, the local Post Office remains the only option.

Many folks in the Senate may think in terms of big cities they represent that have many options, that have FedEx, that have all forms of electronic communications. They have all kinds of alternatives. But those alternatives, as Diana points out, are not options they have in a small town. Indeed, one of my colleagues said: I do not understand why you are so concerned because FedEx can deliver the medicines.

If one has been to a small town, they would find out that FedEx uses the post office system to complete the last mile of their deliveries. So, no, FedEx does not provide an answer for our veterans, for our seniors, for others who need medicines or other products being delivered through the mail.

Because of that difficult drive from Tiller to the next post office, because of the time, because of the distance, the closing of the Tiller Post Office would have a devastating impact on the small businesses that rely on the U.S. Postal Service.

Here is a letter from Alexandra Petrowski, who owns a small business. It is called Singing Falls Mohair. She owns the business with her husband, lives in Tiller, and she writes:

> We utilize the services of the U.S. Post Office extensively. I would estimate that between 3 and 5 packages go out from our home to destinations all over the world on a daily basis. We sell our products on EBay and the business is flourishing. Our growing market is worldwide using the U.S. mail system every day of the week excluding Sundays.
>
> In the EBay marketplace, timely mailing is an integral part of good customer service. As it is, the Tiller post office is 7 miles from our mountain ranch. A closure of the Tiller Post Office would require an approximately 45 mile round trip journey that would severely impact our modest profit margin.

She concludes:

> We have been engaged in this business for 30+ years. We are seniors and rely extensively on our cottage industry to sustain our ranch operation. Would closing Tiller's post office mean effectively an end to the home business?

Then she answers her own question.

> The answer at this point in time is that it would seriously jeopardize our business.

So here there is a family living on a ranch quite a ways outside Tiller, but Tiller is the closest place. They would have to drive into Tiller, then drive this additional 16 miles to the next post office, would have to do this on a daily basis to ship products.

They are fortunate to have Internet and have been able to advertise and have the world see their products and advertise them through eBay, but they get customer ratings on eBay. If you have ever been on eBay, you will see that people who have these small businesses establish online reputations because they are judged by each of their customers. They are rated by each of their customers.

We feel pretty comfortable ordering from someone who, say, has shipped 500 orders and has a 5-star rating and not that comfortable ordering from someone who has a 3-star rating and customer after customer has said: The product does not come in a timely manner or it is not packaged well, it is not shipped well. So this model, small businesses completely depend on the U.S. Postal Service serving that small community.

Let me turn to Malheur County, a different part of the State, and the town of Juntura. I will get a picture of the Juntura Post Office before us. We will see it is quite a simple looking structure, a manufactured building, not very expensive to build, certainly not very expensive to have it open a couple hours a day. So we are talking about microscopic costs in the context of postal reform that have a monumental impact on the success of our small communities—low cost, high impact.

Is that not the type of deal we argue for every day: government efficiency, low cost, high impact. This little, simple modular building, a few wooden steps going up to the door, may not look like much, but it is a shipping hub and a communications hub that makes the economy work in Juntura, OR.

I have a report from a Juntura resident named Laura Williams. She went into a comprehensive analysis of the impact of this very modest building. She wrote up a 42-page report. It examines every aspect of how this very inexpensive investment—the returns it has for the community. I thought I would read to all of you a little bit from that report.

She writes that the residents of Juntura:

> Will either have to drive to Drewsey, to the west, to mail packages, buy money orders and complete a variety of other transactions—or they'll have to drive east to Harper, 34 miles away, a route that winds through a river canyon dangerously choked with deer during the winter months.

That is the end of that first part of the passage. When I looked at her report, she actually compiled numbers of the number of collisions per week with deer on this road as one drives from Juntura to Drewsey. I was astounded by the high rate. It was a rate of several collisions a week.

I remember when I was a kid, a small child, and we would be driving the rural roads in Douglas County and my parents would say: We have to watch for deer. If you have a deer come through your windshield, you can be pretty much toast if you are traveling at any substantial speed. If you are on a motorcycle and you go around a curve and you hit a deer, the deer is going to do a lot of damage.

So it may not sound like something folks who come from cities would understand, but driving roundtrip—in this case to Harper, 34 miles away—70 miles roundtrip through a road that is dangerous, in dangerous weather conditions, dangerous because of deer and certainly an enormous waste of time and fuel, doesn't make any sense.

She continues, and this is an analysis of Laura Williams from Juntura:

> In essence, Juntura is between a rock and a hard place.

She then analyzes that 25 percent of Juntura's post office users are seniors who would be particularly impacted by these changes, as they rely heavily on the Postal Service to receive medication and may have more difficulty driving long distances in hazardous conditions.

She has one word in bold on the front page which sums up her analysis of the impact of closing this humble post office, ''disastrous.'' It would be disastrous for seniors, for veterans, and for small businesses. It is disastrous for the sense of the community that uses this as a place to connect with each other.

Two weeks ago when we were on the State work period, I visited Fort Klamath, which is also on the list to be closed. When I came, they wanted to share their stories, and I want to share several of those with you now.

The first comment is from Jeanette and Bob Evans. Bob is a veteran, and he receives medication through the mail that often needs to be scanned and signed for. They would have to take a 30-mile trip to pick up the medication if Fort Klamath post office was closed. They will feel the impact in that manner, and then they might make that trip and find out the medicine hasn't arrived yet. So they may have to make multiple trips.

They have a rental business that must follow State law requiring many documents be sent via first-class U.S. mail in order to verify the date of notification. Again, closure of the Fort Klamath Post Office will force them to take more 30-mile trips to Chiloquin to process this mail correctly.

So there are a couple hundred families in this community. It is a beautiful area and has a lot of residences rented out in the summer. Those folks who rent need to have timely service or they are not going to come to town. This point was made. Once the summer renters arrive, which drives the economy of the town, those renters want to be able to mail their letters, and they want to be able to receive their packages.

So that post office—I don't have a picture of the Fort Klamath Post Office here, but closing that post office would take away not only from the business of renting out summer residences but from the number of folks who believe they want to go there and spend their vacation.

Heidi McLean is the proprietor of the Aspen Inn in Fort Klamath, which operates seasonally. Heidi uses the post office daily to send out information packages to everybody interested in staying with them during the season. Once they get word of somebody being interested, they send out the details. They have to be received on a timely basis or the customer will say they got information from somewhere else and that is where they are going to go for their summer vacation. Then Heidi will have lost that business.

Heidi said they could get by with fewer days or partial days, but they feel very strongly they need access to a local post office and that a 70-mile roundtrip to Chiloquin to access their mail would be a serious problem for their small business.

Currently, several of my colleagues have worked to put together a process in the managers' amendment. They have been working hard. I applaud them for taking a step forward from the basic bill. I appreciate the hard work Senator CARPER from Delaware has been doing and the hard work Senator LIEBERMAN from Connecticut has been doing. They have both indicated a willingness to continue working to try to make sure we do not destroy our rural communities by shutting down their post offices. So we are continuing that conversation.

We have a group of us who have an amendment now, including Senator MCCASKILL, who is the lead on it. Many other folks are involved, including Senators TESTER, BAUCUS, and LEAHY. I don't have the full list. I thank them all. They understand this basic notion of little money and the huge impact. It is a type of solution we should be driving through this Chamber.

Currently, the plan in the managers' amendment is a step forward but not quite far enough. I will explain. It says the post office will design a series of service standards, and they will design a procedure. Essentially, before they close a post office they will have to do an analysis of whether closing the post office meets the retail service standards they have laid out, and after they announce the decision there will be an opportunity for the decision to be appealed. That appeal will go to the PRC, Postal Review Commission. The PRC will evaluate whether they met their own standards, and they will evaluate whether the procedures were followed. If they were not, then the PRC can say to the post office that they must go back and look at this again.

It sounds like a system that has some routine to it. But why is that not sufficient to protect our rural post offices? Very simply, the post office management is trying to save money. If they set service standards, those standards will be set in a manner that allows many of our small towns to be shut down—many of our post offices to shut down. It is the same reason they put up a list of 41—let me put up Tiller again. Forty-one of these small town post offices already said—from their internal review, from their sense of responsibility, and from their service standards they want to shut down 41 of these.

After a lot of protests, we got a 6-month delay, and I am very thankful for that. The Postmaster General also said: Maybe not 41. For now, we will take 20 of them off the list. And he took one more off. So we are down to about 20 in Oregon. Others could be added back at any time.

The post office has already said they want to shut down 41 based on their understanding of their service responsibilities. So a process we put into statute that simply says: Will you be a little more clear about writing your service standards or your procedures is just window dressing.

So we need the Senate to say: Here are service standards for delivering

medical supplies to our seniors, veterans, and others. Here are standards for the communities that do not have all the electronic communications that big towns have. Here are standards for supporting the small businesses in these communities. We need to set those standards because it is we on the Senate floor who have been elected to fight for the people of America. The post office is trying to balance their budget. That is why they said they think it is OK to shut down these 41.

The amendment that Senators MCCASKILL, TESTER, BAUCUS, LEAHY, and a number of others have put forward is completely compatible with the general vision of having an appeal process with the Postal Review Commission. But it gives the Postal Review Commission an actual standard by which to make a decision; otherwise, all the post office has to say is, yes, we considered the issue—and the word ''consider'' is right in the current amendment, the managers' amendment. It is not enough for the post office to say: Yes, we considered the fact that it does affect small businesses, such as the Mohair Company that I described. There has to be a standard of service that we in this body are comfortable with in defending the commerce of the small town and for small businesses.

So I appreciate the work Senators COLLINS, CARPER, and LIEBERMAN are doing and that they are engaged in this dialog about defending our small towns. I know they understand the impact that would occur. Maybe it is an impact that hits harder in some States than others. It certainly hits hard in Oregon.

I look forward to continuing to work with the sponsors of our amendment, lead by Senator MCCASKILL, and to working with the floor leaders of the bill because we must not pass through this Chamber a bill that would carve the heart out of the economy and the communications of rural America.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. BROWN of Ohio. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mrs. HAGAN). Without objection, it is so ordered.

Mr. BROWN of Ohio. I rise to urge the reauthorization of the Violence Against Women Act.

In 1994, this very important act became law. It was groundbreaking for women, for law enforcement, and for local advocacy organizations that received the resources they needed to better protect victims of abuse. It empowered us to combat domestic and dating violence and to prevent sexual assault and stalking.

The Violence Against Women Act has improved the criminal justice system's ability to keep victims safe and to hold perpetrators accountable. It has been a valuable tool for so many women, so many children, so many families, and law enforcement to make sure we can keep people safe. It is vital we ensure these services remain intact.

Last year, the law expired. Critical efforts that help women and their children protect themselves from domestic violence and stalking and now cyber threats continue only on a short-term basis.

As a husband, as a father of three daughters and a daughter-in-law and as a Senator, I find any further delay of reauthorization of the Violence Against Women Act to be simply unacceptable. Our mothers, our sisters, our daughters deserve more protection and security and less of the political bickering.

In 2011, there were more than 38,000 reported cases of domestic violence in Ohio. Of course, many more than that—thousands more, we think—went unreported. Women live, as do children, with fear and pain. These women live with the fear and pain of their partner's physical and emotional abuse. It is because of the Violence Against Women Act that they have somewhere to turn. It is because of that law that when they do, they have the help to escape violent relationships and the support to seek legal representation when they need it. It is why authorizing the Violence Against Women Act is so important.

Women's shelters and domestic violence centers clearly would have trouble existing without this law. These are the very organizations that connect women with legal help, emergency housing, transportation, and like services. They help with primary prevention programs so children grow up learning the importance of healthy and safe relationships.

The Violence Against Women Act is about assisting law enforcement officials who place themselves in danger when they investigate and prosecute cases of abuse and violence.

Reauthorizing the Violence Against Women Act would invest in State grant programs—such as the Grants to Encourage Arrest Policies and Enforcement of Protection Orders Program—that help law enforcement respond to assault crimes. The bill provides tools for law enforcement, victim service providers, and court personnel to better identify and manage high-risk offenders and prevent domestic violence homicides.

Reauthorizing the Violence Against Women Act is long overdue. It is time to stand for the women in this country so they are no longer subject to neglect and abuse and the law's inaction. I urge my Senate colleagues to reauthorize, finally, after the opposition—opposition I don't even understand—from a number of my most conservative colleagues, how important it is to reauthorize one of the most important pieces of legislation affecting women in our country.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. SESSIONS. Madam President, I ask unanimous consent the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

THE BUDGET

Mr. SESSIONS. Madam President, my friend and colleague Senator CONRAD said earlier this morning, protesting a bit, that he never said we would have a markup in the Budget Committee—mark up a budget, as required by law. But that was what I understood. I am not here to argue the details of it. But he said publicly, as I understood it, that he was going to have a markup. Our people were working on as many as 80 amendments. I was working on amendments, key health care amendments, at the time. I heard the Senator was having a press conference, we turned it on, and he basically said we are not going to have a markup.

He said there was a markup, we started a markup, we had opening statements, and I offered a bill but we just did not have votes, no amendments, no final vote on passage; didn't ask a single member on the Democratic team on the Budget Committee to vote for or against anything. That is how it happened.

I am not accusing him of deliberately misleading me. What I would say is I thought we were going to have a markup—and a markup means the chairman lays down the chairman's mark, it is marked up with amendments, others can offer substitutes, and you vote, and citizens of the United States of America can hold us accountable for what we do and if they do not like what we do, they vote us out of office. They have been pretty good at that in recent years. A couple of times they whacked the Republicans, last time they whacked the big-spending Democrats in 2010. That is what America is all about. We are accountable. But there is no ability or need or right to avoid responsibility for the critical issues of America. I wanted to say that.

Let me tell you what happened. This is not a mystery here. There is no mystery here. This started 3 years ago when the Senate Budget Committee—Senator CONRAD was chairman—moved out a budget. But the majority leader, Senator REID, decided it was going to be uncomfortable to vote on that budget. The United States Code requires that by April 1 the Budget Committee produce a budget and by April 15 it is voted on, on the floor. Congressmen and Senators who passed the Congressional Budget Act in 1974 did it because we were not having budgets moved promptly, on time. They laid out how it should be conducted. They did not put down that you lose your pay if you do not produce a budget, they did not put down you go to jail if you violate

the statute, they just said that you should do it. So there is no penalty in the code. Senator REID blocked the budget from coming to the floor 3 years ago.

Then last year, despite the code requiring that we have a budget, Senator REID and his Democratic colleagues decide they did not want to have a budget even in committee. There was no budget in committee as the law requires, no budget was brought to the floor, except Senator MCCONNELL forced a few votes but without the normal debate that you have on a budget as it moves through the Senate.

What was going to happen this year? What happened this year is that Senator CONRAD is not going to be running again. He is proud of his service on the Budget Committee. He served on the Erskine Bowles-Simpson fiscal commission, the Gang of Six he was involved in—he had some ideas. He wanted to do what the law said, I think. I think he wanted to bring forth a budget. At least the last thing he did, he was going to comply with the law—at least that is what I thought.

He got started. We were prepared. On the eve of the hearing to mark up the budget we were told we were going to not have a normal markup, but a markup in which we would not vote. You get to have opening statements—everyone could make one—and then he would lay down the mark, but nobody would vote for it or any amendment or any other substitute mark.

I think that is a pretty sad thing. The reason Congress passed the Congressional Budget Act in 1974 is that Congress recognized they were not fulfilling a fundamental responsibility of good government, and that as the largest entity in the world, the entity that spends more money than any other government agency or so forth in the world, the United States of America, ought to lay out in advance a plan for spending its money. That is so basic. So it required a budget and usually we have had one—at least with regard to committee work.

We do not produce budgets in election years, they say. There have been times in election years when budgets have not been passed and reconciled with the House. But I have never known in the 15 years I have been in the Senate, other than these 3 years, a year when the Budget Committee did not move a budget. The Budget Committee has always managed at least to move forward. And usually we have had votes on the floor—virtually every year. I think this is all miscommunication. It is a concern to me.

The question that we need to ask—and what the American people need to ask is this: Why don't you consider a budget? Why don't you have a budget?

There have been several excuses in the last 3 years about why we do not have a budget. Senator DURBIN, Speaker PELOSI, Jack Lew, Chief of Staff at the White House and former Director of OMB, who ought to know better, said on television: You can filibuster a budget and we can't have a budget because you can filibuster it.

Wrong, you cannot filibuster a budget. The Congressional Budget Act was passed in 1974 to make sure we pass the budget. It is passed with a simple majority. You are guaranteed 50 hours of debate and then you have a vote. But in that 50 hours of debate you can offer amendments. So it cannot be filibustered. That is a bogus excuse. So that is not the real reason, is it?

They said we had the Budget Control Act last summer and that takes care of it; we don't need a budget. Wrong. If it is ''the budget control act is the excuse,'' why didn't we have a budget last year, before the Budget Control Act passed? Why didn't we have one the year before that? That was not an election year; last year was not an election year. Why? The Budget Control Act is not the reason they did not bring up a budget. It was not the reason they did not bring up a budget last year and the year before, because we did not have the Budget Control Act last year or the year before and a budget was not brought up. It was not brought up for other reasons.

This is the code book, United States Code, Annotated, where the Congressional Budget Act is, and it requires us to pass a budget out of committee by April 1.

If the Budget Control Act said we did not need to have a budget, why did the President submit a budget this year? He submitted a budget. The Budget Control Act was passed last summer. If that obviated the need to pass a budget, why did Congressman RYAN and the House lay out an historic budget that would change the debt course of America, put us on a path to prosperity and not decline? Why did they do it? There were six other budgets offered in the House, some by Democrats, some by a bipartisan group, and some by conservative Republicans. But the Ryan budget passed and the others were voted on, too. Why did they go through that process if the Budget Control Act eliminated the need for a budget? So that is not the reason.

All they said is that we cannot have a budget during an election year. What does that mean? We don't want to vote on tough economic issues with an election coming, do we? Somebody might note how we voted. They might not be happy with it. They might vote us out of office and the last thing we want is to be voted out of office. We don't want to be held accountable. We don't want the American people to know what we are doing. We want to allow the debt to continue year after year without taking any leadership to change it. That is getting close to the matter.

Senator CONRAD said we may reconvene the committee after the election. But we don't want to bring it up before the election. I have to tell you, in this town, with the media, old hands around Washington, lobbyists, political gurus—they probably think that is clever. They say it is clever on TV. ''Oh, Senator REID didn't want to bring up a budget because his people would have to vote. That's good politics,'' they would say. Senator REID said he would not bring up a budget last year because it would be foolish to bring up a budget. Foolish for the United States of America to have a budget at a time when the debt is the greatest threat to our future of any thing that is out there? It dwarfs any other danger our Nation faces, our surging debt, and yet it is foolish to have a budget?

No, he wasn't saying it is foolish to have a budget. He was basically saying it was foolish for us Democrats to lay out a plan on how we are going to spend the Nation's money, because we are going to propose big tax increases in our plan and if we put it out there they are not going to like it. The great unwashed out there, these tea party people, they might be angry with us if they find out how much we are going to increase taxes and how little spending is going to be cut in our budget. That is what he meant, ''it is foolish.'' It was politically foolish, not substantively foolish.

We were at this so-called markup—this faux markup I called it yesterday—and the Democratic members were speaking, and you would have thought they were serving the Nation's interest by not having a vote: You know, we are going to talk about this. We should talk about it so we can begin to make plans for next year. Next year? We have gone three years without a budget. They were serving the national interest?

All that was rhetoric. The interest they were serving was political, and the political interest was not to have to vote and be held accountable, because the President's budget is so irresponsible. I offered it last year. Senator MCCONNELL called it up and got a vote on it. We did not get to debate it. We called it up, and Senator MCCONNELL was able to force a vote—97 to 0 against the President's budget. Every Democrat voted against the President's budget last year.

Earlier this year the President's budget was brought up in the House. It went down 414 to 0. Then they brought up Congressman RYAN's budget here in the Senate. All our Democratic colleagues voted against it because it cuts spending and doesn't raise enough taxes. They voted against it, but they did not say what they would do. They brought up Senator TOOMEY's budget, which would balance the budget in 10 years, last year. He has one that would balance maybe even sooner this year—a tough thing to do, but he has a budget that would do that. It was brought up on the floor of the Senate, and every Democrat voted against it.

So with regard to budgets last year, what happened? Our Democratic colleagues voted against the President's budget, they voted against the Toomey budget, they voted against the Ryan

budget, they voted against the Rand Paul budget, and they didn't vote for anything. They didn't go on record for anything because they don't have the courage or the coherence or the willingness to agree on a vision for America. It is that simple. One can spin all this any way one wants to, but the Democratic majority in this Senate is incapable of uniting behind a plan that the American people would see as credible and would change our dangerous debt path.

Alan Simpson, the former Senator, and Erskine Bowles, former Chief of Staff to President Clinton, chaired the Fiscal Commission. The President appointed them to the Fiscal Commission. They told us this Nation has never faced a more predictable financial crisis, and they were talking about the surge in debt. I think that is true. I think the needle is in the danger zone. Our debt-to-GDP is now over 100 percent. Our total gross debt is greater than the entire gross domestic product of our country. Our debt per capita is greater than Europe's. Our debt per capita is greater than Greece's. Our debt per capita is $50,000 per person, and under the President's 10-year budget, it would go to $73,000 per person—greater than Europe, which is in a financial crisis today. We have some unique advantages now, but we could lose those. We are heading to a crisis unless we change our path.

I am so disappointed in the President. This is the leader of the Nation. What does he do? Not only does he not lay forth a credible plan for the future, he attacks Congressman RYAN. He invites him to come sit in on a meeting and then attacks him. Meanwhile he says he wants to have a bipartisan plan to change America.

We need to make some tough decisions—a lot of tough decisions. They are not going to be easy when we borrow 40 cents of every dollar we spend. Last year we were taking in $2,300 billion and spending $3,600 billion. I know people think this is not true. I am telling my colleagues that it is true. That is why Republicans and Democrats, liberals and conservatives acknowledge we are on the wrong path.

The budget that Senator CONRAD laid down but none of his colleagues voted for—and he didn't vote for it either—the budget he laid down yesterday would not cut any spending over the agreement of the Budget Control Act next year. After the Budget Control Act passed, we were projecting to spend $44 trillion over 10 years, and under Senator CONRAD's budget, we would spend $44 trillion over 10 years. But he claimed we are going to reduce deficits. How? By getting $2.6 trillion in new taxes—no cuts, but $2.6 trillion in new taxes. No wonder they don't want to have it out here on the floor where it can be talked about and amendments can be offered and the American people can know what is in it. That is no way to solve our Nation's problem.

The President goes around saying we need the Buffett tax. We know the Buffett tax and how horrible it is, and people don't see that as a solution to our problem when, in fact, it would raise $4 billion a year and this year our deficit is projected to be, again, $1,300 billion. This Buffett tax is going to raise $4 billion. How irresponsible is that? Is this all we are getting from the other side? Tax oil companies, raise the Buffett tax—there is no reality here.

So what I believe is this: A budget lays out a comprehensive plan. It lays out a plan for 10 years. We have some smart people around here, and they can add up the numbers, and they will know how that budget raises taxes, how little it may be cutting spending, how much debt we will be accumulating each and every year in the years to come, and the Congressional Budget Office tells us how much interest we will pay on our debt each year.

We could ask Congressman RYAN: How much interest are we going to have to be paying on our debt over the next 10 years? We could ask Senator CONRAD or Senator REID: How much interest will your budget cause us to pay? For example, President Obama's budget—last year we paid $230 billion in interest on the debt of the United States. According to the Congressional Budget Office, which has analyzed the numbers, they calculated that at the end of the 10th year, we would pay $743 billion in interest—in one year. The Federal highway program spent faster to meet the $40 billion budget this year for highways. Federal aid to education is $70 billion. The Defense Department's base budget is $530 billion. Interest would be the fastest growing item in the Federal budget based on the fact that we are running virtually trillion-dollar deficits for the rest of the decade.

Also, the President's budget fails to alter the debt course in the future. Congressman RYAN's does. It deals with the surging entitlements—at least the ones that can be dealt with. We can't deal with Social Security in a budget by law, but we can deal with Medicare, Medicaid, and other surging entitlement programs that have to be brought into some sort of stable control so they don't go bankrupt. Congressman RYAN dealt with that, but the President doesn't deal with it in a realistic way, and he has failed to lay out a plan.

I guess what I am saying is I am just frustrated this morning to hear that our colleagues are aggrieved that they did not get—that we felt we should have had a markup on the budget, but we didn't get one. The reason we didn't get one is because a decision has been made in the highest counsels of the majority party of the U.S. Senate that they do not want to be held accountable for the votes necessary to put our country on a sound path. I am very disappointed about it, and that is the bottom line. Hopefully, as time goes by, we can come together and work together to pass a plan for America—including tax reform—that will put us on the right path. That certainly is what is needed.

I would just say, though, that a budget can be passed on a party-line basis. It has been done many times in the past. The majority party in particular has a responsibility, in my view, to lay out its vision for the country, and the biggest part of that vision is where they intend to spend the taxpayers' money. I can't imagine they would want to go to the American people and ask for higher taxes when they refuse to comply with the plain statutory law that says they should have a budget to show where that money is going to be spent. If they won't tell the American people where they are going to spend the money, how much debt they are going to run up, how much spending they are going to cut or not cut, then I don't think the American people ought to send another dime to this place—not another dime. That is why the polling numbers show we are in such sad shape.

Madam President, I yield the floor.

The PRESIDING OFFICER. The Senator from Massachusetts.

RETIREMENT OF KATHY KERRIGAN

Mr. KERRY. Madam President, all of us who work here in the Senate and who are privileged to serve as Senators know on a personal level that we are always only as good as our staff and staff work that we are privileged to have from them. I think every Senator is enormously grateful for the hours all of our staffs invest to help us do our work. Oftentimes, that means missing weekends, deferring, delaying, or plain canceling vacations, or working away on a beautiful Saturday morning when other people are out and about, and I am sure the best of them would readily admit they would rather be spending their time somewhere other than perhaps the Russell Senate Office Building.

That is why today I mark a very bittersweet transition on my team because tomorrow is Kathy Kerrigan's last day on my Senate staff. After having been confirmed at the end of the last work period, she is leaving the Senate to serve as a judge on the U.S. Tax Court, and that is the capstone in an already distinguished life spent in public service.

As proud as I am to see her serve on the Tax Court, it is really difficult to imagine my office without her. She has had the title of ''tax counsel,'' but she really was a lot more than that. The chairman of the Finance Committee, MAX BAUCUS, and my colleague from Massachusetts in the House, Kathy's old boss, RICHIE NEAL, all know better than anyone just how much—on almost every single issue in the Congress, it always somehow comes to be a tax issue, a Finance Committee issue. So for 6 years Kathy has been my indispensable utility player. It didn't matter if it was on health reform, climate change, energy, infrastructure, or supercommittee, if it was anything I was working on with a fairly high level

of focus, you can bet Kathy was there. I can tell my colleagues that she wasn't just there, she was invariably the indispensable player.

I don't know if she will like it, but I would say at times she was a wonk's wonk. She knew the Finance Committee brilliantly, and sometimes I had to struggle to follow Kathy because Kathy talked tax, and tax is a different language. She was almost a charter member of the very unique clique of the Finance Committee staffers, and MAX BAUCUS knows what I am talking about from his staff director, Russ Sullivan. They actually had their own annual tax prom, and that is how exclusive a bunch they are. There are a lot of us who are a little scared to think of what a tax prom looks like. I once said it was probably a prom for people who didn't go to their own proms once upon a time, but, in fact, it is a party for the smartest, most detail oriented, hardest working staffers the Senate has because they are always in the middle of everything around here and, boy, do they deliver.

That is really where Kathy was in her element—driving into the minutiae of issues, crystal-balling legislation better than just about anybody with whom I have ever worked. I will tell my colleagues, if she had chosen the Navy instead of the Finance Committee, we would be here today saluting Admiral Kerrigan. She comes to an issue always armed with facts. She has always thought through every question a Senator or anybody else might ask about a particular issue. She is driven to get the job done, and she always did.

On health care, she was a phenomenal thinker as we worked through the Finance Committee issues and the funding mechanisms.

Last summer, she was nominated for the court. But then, nevertheless, I asked her to serve on the deficit committee. She promised to stay until the work was done, and I cannot emphasize how valuable she was there also. On the Joint Select Committee, there were many times when committee members from both parties would ask if Kathy could join a meeting. That is a sign of respect and of ability. She was someone who quietly, head down, did the work, and let the work try to find a way toward a solution.

Everything I admire about her as a public servant is written into her DNA. I think it is the result of growing up in Springfield, MA, where her father Bill Sullivan served as mayor. She had a front-row view of what it is like in public life, of what the demands are, and of what a difference earnest people like her father can make in government—people who do the work without worrying about the limelight or who gets the credit.

She never lost sight of that through Boston College and Notre Dame Law School and 14 years on Capitol Hill working on tax policy. As much as I admire the special energy Kathy brought to her job, what I admire most about her is her ability to distinguish between right and wrong and her moral compass that always guided her in her public service.

I will just share one quick story before I wrap up. Last summer, deadly tornadoes clippered through her hometown of Springfield, MA. The first thing Kathy did was, obviously, make sure her parents were safe. But the second thing she did was get in her car and drive to work immediately. Instead of going home to Massachusetts, she came to work in the Senate on a bright Sunday morning and immediately got busy working on tax disaster legislation to help the people of Springfield, the small businesses, the people who had been impacted. She did not see arcane tax legislation; what she saw were bricks and mortar, lumber and nails and lives that had been disrupted.

That is the Kathy Kerrigan I know. That is the Kathy Kerrigan I have been privileged to have working with me through some of the most interesting, most grueling, most productive legislative years I have had the privilege of being part of in 27 years in the Senate. I will miss her energy, her creativity, and the dedication she brought to my office.

But it is good to know and we will all be reassured by the fact that she will bring those same qualities, heart and head to the Federal bench. She will be a phenomenal tax judge, and she will continue to make her family and her friends and her home State of Massachusetts very proud.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. LEAHY. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mrs. MCCASKILL). Without objection, it is so ordered.

Mr. LEAHY. Madam President, what is the parliamentary situation?

The PRESIDING OFFICER. The Senate is considering the motion to proceed to the Violence Against Women Act.

Mr. LEAHY. I am glad we are doing that. I want to thank the majority leader for moving to proceed to the reauthorization of the Violence Against Women Act as the next legislative measure for the Senate to consider. He made the motion Tuesday afternoon.

My hope is that it is not going to be necessary to have extended debate or a filibuster or the filing of a cloture motion and a delay of several days and then a delay of 2 more days even after more than 60 Senators vote to bring the debate to a close and proceed to the bill and then another vote on the motion to proceed before the Senate is permitted to consider this important measure.

I expect anybody listening got lost through that whole process. That is something we Senators should think about. The American public expects us to vote yes or no, not maybe. The longer the delay and the motions go on, the more we are voting maybe. Let's vote yes or no.

For almost 18 years, the Violence Against Women Act has been the centerpiece of the Federal Government's commitment to combat domestic violence, dating violence, sexual assault, and stalking. The impact of this landmark law has been remarkable. It has provided lifesaving assistance to hundreds of thousands of women and children and men. I appreciate the bipartisan support that this bill has had from the beginning.

Senator CRAPO and I introduced a reauthorization of the Violence Against Women Act last year after months of discussion. We wanted it to be a bipartisan bill, and it is. Too often in recent times, the Senate goes through all kinds of delaying moves before they proceed to legislation. Again, as I said, the American people elect us. They expect us to vote yes or no not maybe. The delays are a big fat maybe.

The Violence Against Women Act is a measure that is cosponsored by 61 Senators. It is a bipartisan measure cosponsored by Democrats, Republicans, and Independents, and passed out of the Senate Judiciary Committee in February. So I hope Democrats and Republicans and Independents will come together to proceed to consider the bill without delay. I would hope they step forward and do the right thing and send the message to America that we are united in the effort to see the Violence Against Women Act reauthorized.

It is an opportunity for the Senate to come together and renew what I believe is a shared commitment among Senators to end violence against women. For generations, violence against women in this country was condoned. Too often these insidious crimes were dismissed with a joke or a shrug or that ''they involve somebody else.'' Rape was too often excused and domestic violence was tolerated as a family matter.

Victims were blamed, humiliated, and ignored. They had nowhere to turn. There were no crisis centers, there were no shelters. Far too many women and families were left to fend for themselves with no help. The Violence Against Women Act was passed nearly 18 years ago and has helped to change that. It sent a powerful message that violence against women is a crime and it is not going to be tolerated, no matter where it happens.

It transformed the law enforcement response and provided services to victims all across the country. Now is the time to renew our commitment to these victims by passing this legislation. We need to move forward. We need to reaffirm that ending violence against women is a priority for all Americans. We need to be a beacon to others around the world in this regard.

With this effort we set the standard. We show that America understands

equality and recognizes human dignity. We are going to fight injustice against the most vulnerable among us.

The legislation that I introduced with Senator CRAPO last November is drawn from the needs of survivors of domestic and sexual violence. It is based on the recommendations of the tireless professionals who serve those survivors every day.

It includes improvements suggested by law enforcement officers across the country. As we build on the progress we have made in reducing domestic and sexual violence, we made vital improvements to respond to remaining, unmet needs to better serve the victims of violence.

We incorporate the important work that Chairman AKAKA, Senator MURKOWSKI, and the Senate Indian Affairs Committee have been doing to try to respond to the epidemic of domestic and sexual violence in tribal communities. We increase the focus on effective responses to sexual assault.

While the annual incidence of domestic violence has fallen since VAWA was introduced by more than 50 percent, the progress has not yet translated to reducing sexual assault. Incidents of sexual assault remains high, while reporting rates, prosecution rates, and conviction rates remain appallingly low.

So we faced that problem head on. We ensure that funds are allocated to law enforcement and victims service responses to sexual assault and authorize support for law enforcement sexual assault training and the reduction of the backlogs of untested rape kits.

In a lot of places, they say: We cannot test this rape kit for several months. So often the perpetrator comes back. So during the several months it takes to test the rape kit, they say to the victim: Be sure and keep your door locked. This is not how victims should be treated; they should not have to live in fear. We should be able to say we can test this immediately, and then go get the person involved.

My early experience with the question of sexual assault was not as a Senator but as a local prosecutor. Senator CRAPO has been visiting women's shelters and working on these issues for decades as well. His principled bipartisanship should be respected and celebrated as being in the best traditions of the Senate, the Senate I came to 37 years ago. From the outset, we have consulted to make this bill the best it can be.

More than a month ago, Senators from both parties came forward to urge the Senate to take up and pass the reauthorization of the Violence Against Women Act. The Senate heard that day from Senator KLOBUCHAR, Senator MURKOWSKI, Senator MIKULSKI, Senator MURRAY, Senator HAGAN, Senator SHAHEEN, Senator FEINSTEIN, and Senator BOXER, who was the author of the House bill in 1990. Eight Senators came to the floor to remind us all why this bill is important and why the Senate should pass it.

There is nothing radical or new about saying that all victims—all victims—are entitled to services. I have been at some of the most horrendous crime scenes you can imagine in my earlier career. I never asked, and certainly none of the police officers ever asked, whether the victim was a Democrat or Republican, rich or poor, or from a minority. A victim is a victim, and we should be helping all victims not discriminating among them.

We know that even though the economy is improving, these remain difficult economic times and we have to spend our taxpayer money responsibly. That is why in this bill, we consolidated 13 programs into 4 to reduce duplication and bureaucratic barriers. We cut the authorization level by more than $135 million a year, a decrease of 20 percent from the last reauthorization.

We have significant accountability provisions including audit requirements, enforcement mechanisms, and restrictions on grantees and costs. I sought to consult with Senator GRASSLEY and others in making these changes to authorization levels and for increased accountability, knowing how important these aspects are to them. In the Senate Judiciary Committee those who opposed the bill were given an opportunity to offer a substitute and other amendments. Senator GRASSLEY offered a substitute which was voted on and rejected. In the minority views of the Committee report, Senator KYL noted disagreement with the provisions of the bill responding to the crisis of violence against Native women that incorporated a provision for the SAVE Native Women Act to provide domestic violence jurisdiction over those perpetrators with significant ties to the prosecuting tribes.

Opponents have noted their disagreement with the U visa provisions requested by law enforcement. Some opposed the provisions intended to ensure against discrimination in services based on sexual orientation or gender identity.

Again, I will say what I have said over and over again: a victim is a victim is a victim. We should not ask what category they fall in.

Since the bill was passed by the Judiciary Committee I have continued to reach out to Senator GRASSLEY and ask what amendments opponents wish to offer during Senate consideration. While amendments to strike the tribal, U visa and sexual orientation provisions were not offered before the Judiciary Committee, I would understand if opponents wished to do so before the Senate. I have reached out to try to construct a pathway for consideration of the bill pursuant to an agreement that is fair to opponents of these various provisions. If they have other amendments, let's bring them up. Let's vote on them. Let's vote this up or down. Do not vote maybe.

I hope we can reach out to the leadership on both sides, get a time to get this done, do not keep holding up legislation that has been endorsed by more than 700 State and national organizations, numerous religious and faith-based organizations, and our partners in law enforcement. Let's show the country we will not duck this issue. We will vote for it or we will vote against it.

The Violence Against Women Act should not be a partisan matter. The last two times the Violence Against Women Act was reauthorized, it was unanimously approved by the Senate.

Although it seems that partisan gridlock is too often the default in the Senate over the last couple of years, it remains my hope that those who have voted for VAWA in the past will come forward and join our eight Republican cosponsors to support it. If so, we can pass our VAWA reauthorization with a strong bipartisan majority as we always have.

Domestic and sexual violence knows no political party. Its victims are Republican and Democrat, rich and poor, young and old, male and female, gay and straight. Let's pass this without delay. It is a law that has saved countless lives, and it is an example of what can be done when we work together.

I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut is recognized.

Mr. BLUMENTHAL. Madam President, I salute and thank the Senator from Vermont for his extraordinary leadership on this issue of the Violence Against Women Act. He has been truly and deservedly a hero in championing a measure that has saved countless lives and prevented the kinds of suffering and brutality we have seen all too often.

I join in his remarks, and I will speak at greater length about the need for that bill in the future.

(The remarks of Mr. BLUMENTHAL pertaining to the introduction of S. Res. 428 are located in today's RECORD under ''Submissions of Concurrent and Senate Resolutions.'')

Mr. BLUMENTHAL. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Ms. CANTWELL. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

50TH ANNIVERSARY OF SEATTLE WORLD'S FAIR

Ms. CANTWELL. Madam President, this Saturday marks the 50-year anniversary of Seattle's World's Fair. The fair was a presentation of what the world would be like in the 21st century. The Space Needle was built and it gave us an iconic symbol that still lasts and defines our skyline today.

More than 9 million people visited that World's Fair in 1962. Elvis Presley stopped by during the filming of a

movie, because the movie was called ''It All Happened at the World's Fair.'' All the visitors to the fair saw a very futuristic rendition of what boundless energy and innovative spirit in America would be all about.

President Kennedy opened the fair, highlighting the innovations of science and technology. He said, ''These accomplishments are a bridge which will carry us confidently toward the 21st century.'' Indeed, the World's Fair was a bridge toward the 21st century, especially for our Washington State economy.

The fair foreshadowed the Puget Sound and the entire State as a region that would look to innovation and entrepreneurship. It gave the public a glimpse of what life would be like in the 21st century. And in the years following the fair, Washington State was home to many of the innovations and technologies that revolutionized the way we live and work.

In 1962, Seattle was home to the first satellite transmissions of telephone calls and television broadcasts. That same year, the Seattle Times declared, ''Boeing Is In Space Age to Stay.'' The rest of the changes that we have continued to see have led to many things, including Boeing's 787 Dreamliner—a true 21st century plane.

Also, it helped in setting a tone. Bill Gates took his company from his parents' house to a global headquarters in Redmond, WA. The Microsoft Company was founded in 1975. After the opening of its first store in Seattle in 1983, Costco became the first company ever to go from zero to $3 billion in sales in just under 6 years. Amazon revolutionized the way people shop online and it is a company that has continued to make innovations.

Today many other companies in Washington State—producing everything from composites for airplanes to lean manufacturing to mobile apps software to clean energy technology—are continuing to innovate because of Washington State's reputation for making sure we have a talented workforce.

So 50 years ago, the World's Fair, and what was announced there, made sure the United States was poised for bigger things to come. Some of the predictions we saw about life in the 21st century may not have come true yet, things such as flying cars—although I recently saw an article about flying cars, so maybe they weren't too far off—but other things were just as they predicted, such as that one day we would be able to have a telephone in our pocket.

Fifty years later, we can look back and see a glimpse of the 21st century in the exhibitions and booths that were at the fair, but we also see how fast the future can come and what we need to do to keep moving forward, not just in Washington State but around the country, in an innovation economy.

I thank the Chair. I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. DURBIN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. DURBIN. I ask consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The remarks of Mr. DURBIN pertaining to the introduction of S. 2303 are located in today's RECORD under ''Statements on Introduced Bills and Joint Resolutions.'')

Mr. DURBIN. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. SANDERS). The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. REID. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. Mr. President, I now ask unanimous consent that the cloture votes with respect to the Lieberman-Collins substitute amendment 2000, as modified, and S. 1789 be postponed to a time to be determined by me after consultation with Senator MCCONNELL.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. Mr. President, as I indicated this morning, we are real close to an agreement. The main issue now is whether there will be a 50-vote hurdle or 60-vote hurdle. We have been through that before. Obviously, we know where we are going to wind up, in my opinion, if we are going to have a bill. So we will work on that for the next hour or so and see what we can come up with.

We are very close to getting something done. As I have said here before the last few days, Senators LIEBERMAN and COLLINS have done an outstanding job to the point we are. We have made progress. We are here. We are trying to legislate. We have a rule of relevance. It is very broad. That is indicated by the amendments that people have suggested.

So I hope we can work this out very soon. If we cannot, we will have to come back and I guess walk away from postal reform, which is a shame. But everyone who is holding up things should understand, if there is no bill, you are not going to get what you want. If there is no bill, the post office will be drastically hit. The Postmaster gave us until May 15 to come up with something. We have come up with nothing to this point. So if people are concerned about some rural post offices, as well they should be, or about processing centers, as of May 15, the Postmaster General, unless we do something, will have carte blanche to do almost anything he wants to do.

That is not what the Senate wants. So those Senators who are holding up the bill because they do not like it, they may not like what the result of having no bill is.

Ms. COLLINS. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. DURBIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. DURBIN. Mr. President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

FOR-PROFIT COLLEGES

Mr. DURBIN. Mr. President, I have come to the floor a number of times to talk about a new business in America that has become a major source of income and a major source of Federal subsidy that most people are not aware of. The business I am talking about is the for-profit college. These are schools which are popping up everywhere across my State and across the Nation. You can hardly go to the Internet and put in the word ''college'' or ''university'' that you will not be bombarded by all these for-profit schools that try to entice young people to sign up.

Some of them, I am sure, offer valuable courses. But too often these schools offer worthless diplomas. They entice young people into a curriculum that is vastly overpriced, and it turns out these schools they attend and the education they achieve doesn't lead to a job.

Here is this young person, all full of hope and idealism, signing up to go in one direction or the other, and they find themselves lured into a school which is, frankly, not much of a school at all. I have seen these cases over and over again.

I was just in southern Illinois last weekend and a young girl came up—she was a high school senior, standing there with her mom—and I said: So what is next for you? She said: Well—and I am not going to use the name of the school—I have just been accepted at the XYZ cooking school in St. Louis.

I said: Well, that is interesting. How much does it cost?

She said: Well, after I give them my Pell grant—$5,500—my mother will cosign a note for $17,000 for me to go to this cooking school.

That is the tuition, and it is a 2-year course. Well, it turns out she is getting off easy.

In the Chicagoland area I ran into a student who was actually picketing outside a hearing I had on for-profit schools. He was dressed up like a chef, and I asked him: So you are going to culinary school?

He said: Oh, I love these food shows. I watch the Food Channel all the time. I think this is great.

I said: So you are studying to be a chef.

Yes.

I said: How much will it cost you? How much do you have to borrow to finish a 2-year course in culinary school in the Chicagoland area?

He said $57,000—$57,000.

The point I am trying to get to, Mr. President, is student loan debt in America has surpassed credit card debt in America, and it is growing by leaps and bounds. Decisions are being made by young people and their supportive parents and grandparents—and I will talk about that in a minute—to get deep in debt to go to a school. These young people think they are doing the right thing. They have been told all their lives not to quit after high school; that they need to pick up additional education or additional skills, perhaps a bachelor's or a professional degree. So they instinctively believe they are doing the right thing for themselves, and they instinctively believe if the Federal Government is loaning money to the students to go to the school that it must be a good school; right? The Federal Government wouldn't loan money if it were a bad school.

But the honest answer is that some of these are very bad schools. There are three numbers to remember when we talk about for-profit schools: 10, the percentage of college students that attend for-profit schools, 10 percent; 25, the percentage of Federal aid to education going to for-profit schools, 25 percent; and 40, the percentage of students defaulting on their student loans—40 percent going to for-profit schools.

The reality is that the student loan default rate on for-profit schools is substantially higher than for any other schools. We can just open the box and look inside and say: I think I understand why. They are being charged too much in tuition, and they end up with training or an education that doesn't lead to a job or doesn't lead to a job that pays money—enough money to pay back their student loans.

The other thing is we passed a law that said for-profit schools in America can receive no more—get ready—than 90 percent of their revenue directly from the Federal Government. How close is this to a Federal agency? Ten percent, that is all they need to be a complete Federal agency. We send subsidies to these for-profit schools by way of Pell grants and student loans to the tune of 90 percent. If they train veterans, we waive that and let them go to 95 percent and higher.

In the academic year 2009–2010, for-profit colleges took in $31 billion in title IV Federal student aid—Pell grants and student loans. For-profit colleges received one out of every four Pell grants given to institutions of higher education—only 10 percent of the students going to these schools, 25 percent of the Pell grants. As I mentioned, current law allows them to receive up to 90 percent—90 percent.

The for-profit college industry is just 10 percent away from being an actual Federal agency. Let's put that aside for a moment and think about what $31 billion means to the private for-profit school industry. This chart is interesting because it compares the amount of money we spend in a given fiscal year for a variety of things.

How much does it cost us to run the Federal Bureau of Investigation for a year? Less than $10 billion. The Environmental Protection Agency, less than $10 billion; Customs and Border Patrol, about $10 billion; the Coast Guard, $10 billion; the Federal Aviation Administration, responsible for the safe landing of airplanes all across the United States, comes out to about $16 billion or $17 billion. The space program is about $18 billion. How about the National Institutes of Health? This is where we do all the medical research to find the new drugs and cures for diseases all across America. The annual expense there is right at $30 billion.

Now, take a look at the last bar. This is the Federal subsidy to for-profit colleges. Over $31 billion a year—$31 billion a year.

Fifteen percent of the students who take out loans at for-profit colleges default within 2 years. That is double the rate of public colleges and three times the rate of private nonprofit colleges, which are historically more expensive. We spend more on for-profit schools than we do keeping planes in the sky or protecting our borders or tracking down criminals through the FBI or responding to disasters through FEMA or researching cures for cancer at the National Institutes of Health or protecting the Nation's food supply or making sure our air and water are safe for the people in America or exploring the outer reaches of our universe. That is how much we are investing in this relatively new and horrendously expensive industry.

I think the question we face with the deficit is where are we going to make our choices. I have been a reflexive voter for student aid all the time I have been in the House and Senate. Why? That is why I am standing here. I got National Defense Education Act loans to pay for my college and law school. That is why I am here. I know it, and I think the next generation deserves the same opportunity. So I have reflexively voted for these things.

Then someone said: Have you looked at where this money is going? Do you realize 25 percent of it is headed to an industry where so many students are being sucked into signing up, dropping out, and carrying loans for the rest of their lives?

Mr. President, you and I know this, but everybody should know there is something different about a student loan from another loan you take out. The loan you take out for your home, the loan you take out for your car, maybe the loan to buy some appliances is a lot different from a student loan.

Do you know what the difference is? It is not dischargeable in bankruptcy.

No matter how badly things go for you at any stage in your life, you are going to carry that student loan debt to the grave. It is there forever. It can't be wiped out.

There are Federal college loans, such as the ones I took out, they are different today. But they are much more reasonable. Do you know what the difference is between the private loans these schools are pushing on families and students and the Federal student loans? Start with the interest rate.

The interest rate on Federal student loans is 3.4 percent. The interest rate on private loans can be up to 18 percent. It is like credit card debt. Do you have any idea what that means when you borrow $50,000 or $60,000 and you face an 18-percent interest rate? Do the calculation and math, and I will tell you some stories about what it does when you start falling behind in your payments.

Brandy Walter grew up in a small town in Indiana. She wanted more out of life so she left for college right out of high school. She enrolled in the International Academy of Design and Technology in Chicago, a for-profit school owned by the Career Education Corporation. She switched later to Harrington College in Chicago, also owned by the same for-profit corporation.

Brandy took out a total of $99,844 in private and Federal student loans to cover the cost of her attending these for-profit schools, and then she ran out of money. She hadn't finished her degree. She took out the maximum amount of Federal student loans, she took out the private student loans, and without any cosigners she couldn't get any more loans. She was all in. Without any advanced notice from her school or her lender, one day her student ID card just stopped working. She dropped out and returned back home to Indiana with no options. She can't get a job in her field, and she doesn't have a degree because she didn't finish. So $99,000 into it and she didn't finish.

She is 24 years old. Think about being 24 years old and owing $99,000 in student loans, unemployed. Her private student loans have interest rates between 9 and 11½ percent. Not the highest, but still much higher than the Federal loans. The monthly loan payment for this young woman for her private loan is around $900. Her total loan balance has ballooned because she couldn't find a job, from $99,000 to $139,000. She has been unable to save any money to go back to school or to even have a place to live on her own. She doesn't know what to do with her life at this early stage because of bad decisions to go to worthless schools.

She says:

> If I could erase that student debt, I could move on with my life, and hopefully return to school to finish my degree.

Mr. President, 139,000 bucks.

Let me give you a taste of what kind of business Career Education Corporation runs. The Career Education Corporation that owned the two schools Brandy went to owns 83 schools and enrolls almost 100,000 students across

America. Many of them are in Illinois. I have spoken on this floor about several of their schools and, unfortunately, my office continues to be contacted regularly by students who have attended the Career Education Corporation school and left with a worthless degree.

In 2011, Career Education received $1.4 billion in title IV student aid. Career Education schools received about 83 percent of their total revenue from the U.S. Department of Education's student aid programs, and that doesn't include the money they get from the GI bill program. So 81 percent of the students take out student loans, and of those students who take out loans over 14 percent will default on their loans within 2 years.

On November 1 of last year, Career Education Corporation's CEO resigned while admitting that some of their schools, had falsified the employment rate of graduating students. Their accreditors—the people who say they are a real school—require a job placement rate of at least 65 percent for schools to remain eligible for title IV assistance. Career Education Corporation job placement rates were below 65 percent and, incidentally, the departing CEO who falsified the information to the Department of Education was run out of town on a rail with a $5 million bonus payment as he left.

I have met the new head of this Career Education Corporation. As with every for-profit school that actually sends someone in to see me, he has said: We are changing everything. We are going to straighten this mess out.

I will believe it when I see it. And I will believe it when Brandy and students like her are given a chance.

It is hard to believe that we live in a time when student borrowers and their families risk losing their homes because of student loan debt. I have introduced legislation that would permit private student loans to be discharged in bankruptcy like every other private loan. This legislation will help these young people.

Let me tell you one other story that was in the Washington Post. Recently, one of the headlines in that paper read ''Senior Citizens Continue to Bear the Burden of Student Debt.'' Senior citizens. The story highlighted one of my constituents, 58-year-old Sandy Barnett.

As an adult, Sandy found herself in a familiar situation: Her husband was laid off, and she wanted to go back to school. When she was younger, college wasn't an option. Sandy enrolled in a bachelor's degree program in psychology. Concerned about the debt, Sandy didn't take out any student loans. She worked full time while in school and paid her tuition as the bills came due.

Balancing work and school was difficult, but Sandy graduated in 1987 with a bachelor's degree in psychology and no student loan debt. The school adviser told her it would be a good idea to keep going to school and get a master's degree. Because the degree program required a number of internships, she decided she wanted to focus on her studies and not work. She was going to be a full-time graduate student. Then, for the first time, she took out a student loan.

Sandy graduated in 1989 with a master's degree in psychology and $21,000 in debt. She taught part time for the next 10 years at Lincoln Land Community College in my hometown of Springfield, IL. By then she was divorced and it was tough for her to make the $300 monthly payments on her student loan. It took a few years for her to find a good job, but as soon as she did, she started paying back the loans again.

By 2005 she was already too far in debt to ever work her way out of it, and she filed for bankruptcy, but her student loan debt was not forgiven. They are not dischargeable in bankruptcy. Fortunately, many of her other debts were relieved, and she thought she just might be able to get back on track.

In 2008 she got a job with AT&T as a customer service representative, where she still works. Currently, 15 percent of her wages are garnished by the Federal Government to pay her student loans. That is $200 to $300 a month, depending on her income. Her total loan balance is now up to $54,000—more than double the amount she started with. The loan servicer will not work with her on a payment plan. And we hear that complaint all the time. What is worse is that her balance keeps going up because her payment doesn't cover the interest on the loan.

You may wonder what Sandy's life is like as a 58-year-old with a student loan debt. How did she get there? Does she live an extravagant lifestyle? The answer is a resounding no. Sandy's coworkers drive her to work because the cost of gasoline is now too much for her to pay. She has no money to do anything, is what she tells us. She owns a mobile home that needs a lot of repairs she can't afford.

When asked if, looking back, she would have taken the same path, Sandy says she would have absolutely not gone to school if she had known this was going to happen. Her degree is the worst thing that ever happened to her, she said. She doesn't think she will ever be able to retire. She said: I just don't have any money. I have nothing because of student loans.

Her advice, 58-year-old Sandy's advice to others? Don't do it. Do not go to college. There is no guarantee your college degree will help you get a job that will pay for your student loans.

What a sad statement. All of us tell our children: Keep going; go to school. And we should. It is the right thing to do. But she has a right to be disappointed, even cynical about what has happened to her.

Sandy isn't alone. Other older Americans out there are bearing the burden of student loan debt because of different situations. Do you know why? They were generous to their children and grandchildren and said: Let me sign the loan with you. Do you want to go to school? It is the dream of your life. Let me cosign.

Tim Daniel's grandparents are two of them. When Tim signed up for $80,000 in student loans, he had no idea that years later his grandparents would be at risk of losing their home because of his students loans. Tim dreamed of going to college. In 2004 he enrolled in the Illinois Institute of Art, a for-profit school owned by the Career Education Corporation, I talked about before. Tim's grandparents were so proud and happy, they cosigned his loans.

Like many students who contact my office, Tim says he would have never taken out the loans if it was clearly stated to him how much his monthly payments would be. He put his trust in the school and he thought the counselors really had his best interests in mind, so he took out the loan.

Tim makes $25,000 a year. That is a modest income. He can't afford to get a car loan, and he says he will probably have to rent for the rest of his life. His Federal loans, which have a balance around $23,000—Federal Government loans—have a manageable monthly payment, but his private student loans are completely unmanageable. The lenders won't work with him to come up with a reasonable payment plan, leaving the burden of debt on his grandparents, who cosigned his loans. His grandparents don't have any money. They filed for bankruptcy, too, but because the private student loans are not dischargeable in bankruptcy, they risk losing their home to pay off their grandson's student loans.

This isn't the American dream. This is a nightmare, and we are complicit. We are complicit because this Federal Government continues to offer Pell grants and student loans to worthless schools. And students who sign up there think, well, if the Federal Government is going to loan some money, this must be a good school. So we are complicit in not policing the ranks of these for-profit schools on behalf of these students.

Secondly, the outrage I hear expressed on this floor all the time about overspending by the Federal Government should be directed as well at these for-profit schools. The annual subsidy of these for-profit schools—$31 billion—is greater than the amount we spend as a nation for medical research in a given year—as a nation. So people who are intensely aware of our deficit—as the Presiding Officer is—who want to cut spending and wasteful areas, join me in taking a look at these for-profit schools.

Congress could start by passing legislation to keep interest rates on the Federal Government student loans at a manageable level of 3.4 percent. They are going to double in July if we don't take action, so we had better do that.

Senator HARKIN of Iowa and I recently introduced legislation that will help educate borrowers about private student loans.

Actually, there are situations where students at these for-profit schools are still eligible to borrow money from the Federal Government at 3.4 percent, and the so-called counselors at these schools steer them into private loans at 5, 11, and up to 18 percent interest rates, and the students don't know it. They sign up not realizing they could still borrow the money under manageable terms from the Federal Government if they wish. There ought to be clear disclosure to the students, their families—and their grandparents.

Our legislation, the Know Before You Owe Private Student Loan Act, will require private student loan lenders to certify a potential borrower's enrollment status and cost of attendance with the borrowing school and require institutions of higher education to counsel students about all their student aid options before the private student loan is actually disbursed. Most importantly, schools would have to inform the students about the differences between private student loans and Federal student loans. Federal student loans have consumer protections built in but not the private loans.

I encourage my colleagues to go home and listen to these families. On your Web site, ask for the victims of student loan abuse to write in, as they have to my office, and you will come to realize this is a growing problem in this country. Student loan debt is greater than credit card debt, and it is coming due. Less than 40 percent of student loan borrowers today are current on their payments. This is a problem that is going to haunt our Nation for a long time.

I hope my colleagues will join me in bringing some real changes. If the for-profit school industry has anything to offer by way of real education and training, they had better shape up and they had better be honest with their students. They shouldn't drag them deeply in debt for worthless diplomas which could literally ruin a life.

Mr. President, I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. WARNER). The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

(Mr. MANCHIN assumed the Chair.)

The PRESIDING OFFICER (Mr. FRANKEN). The majority leader.

Mr. REID. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT AGREEMENT S. 1789

Mr. REID. Mr. President, first of all, let me express my appreciation to every Senator. We tried something a little different, and I think it is something we can look to in the future. We decided we were going to have an amendment process. Maybe it is not as far as everyone wants to go, but it is a pretty good step in the right direction. Rather than having no amendments, rather than having only germane amendments, we decided we would have a standard that is very broad; that is, relevant amendments. It has given people the opportunity to offer lots of different things. So I hope in the future—it may not happen on every piece of legislation that comes along, but I hope we get in the habit of being able to do things such as this; that gives Senators wide range on things they can do. But anyway, we have done it on this and I appreciate everyone's cooperation.

I also appreciate the good work of Senator LIEBERMAN and Senator COLLINS. I have many times in the last week or so expressed that appreciation to them for their leadership. This has been extremely difficult. It is a massive bill dealing with more than one-half million postal employees, more than 30,000 post offices, 500 or so processing centers, and it has been extremely difficult to get to a point where I hope we can arrive shortly. So we are here. I have been given the nod.

Mr. President, I ask unanimous consent that the cloture motions with respect to the Lieberman-Collins substitute amendment and the bill be vitiated; the motion to recommit be withdrawn; that the pending amendments Nos. 2013 and 2015 be withdrawn and that the following amendments be the only amendments in order to S. 1789 or the pending substitute amendment No. 2000, as modified: McCain 2001; Tester 2056; Coburn 2060; McCain 2033; Wyden-Feinstein 2020; Coburn 2058; McCaskill-Merkley 2031; Coburn 2061; Snowe 2080; Udall of New Mexico 2043; Durbin 2082; Akaka 2034, with a modification agreed to by the two managers; Bennet-Blunt 2047; Corker 2083; Mikulski 2003; Akaka 2049; Paul 2025; Manchin 2079; Paul 2026; Bingaman 2076; Paul 2027; Cardin 2040; Paul 2028; Carper 2065; Paul 2029; Carper 2066; Paul 2039; Casey 2042; Paul 2038; Landrieu 2072; DeMint 2046; McCaskill 2030; Coburn 2059; Pryor 2036; Rockefeller 2073; Rockefeller 2074; Schumer 2050; Tester 2032; and Warner 2071, with a modification agreed to by the two managers; that on Tuesday, April 24, at a time to be determined by the majority leader, after consultation with the Republican leader, the Senate vote in relation to the amendments in the order listed; that there be 2 minutes equally divided in the usual form prior to each vote; that all after the first vote be 10-minute votes; that the amendments be subject to a 60-affirmative-vote threshold; that there be no other amendments in order to the bill, the substitute amendment, as modified, or the amendments listed; and there be no points of order or motions in order to any of these amendments, the substitute amendment or the bill, other than budget points of order and the applicable motions to waive; that upon disposition of the amendments, the substitute amendment, as modified and amended, if amended, be agreed to; further, the bill, as amended, then be read a third time and the Senate proceed to a vote on passage of the bill, as amended; finally, that the vote on passage of the bill be subject to a 60-affirmative-vote threshold.

The PRESIDING OFFICER (Mr. UDALL of Colorado). Is there objection?

Without objection, it is so ordered.

UNANIMOUS CONSENT AGREEMENT—S.J. RES. 36

Mr. REID. Mr. President, another important issue: I ask unanimous consent that at 2 p.m., on Monday, April 23, the Republican leader or his designee be recognized to move to proceed to the consideration of S.J. Res. 36, a joint resolution disapproving a rule submitted by the National Labor Relations Board relating to representation election procedures; that there be up to 4 hours of debate on the motion to proceed, with the time equally divided and controlled between the two leaders or their designees; further, that the first 2 hours of debate, equally divided, occur from 2 p.m. to 4 p.m., Monday, April 23, and the final 2 hours of debate, equally divided, occur from 10:30 a.m. to 12:30 p.m., Tuesday, April 24; that at 2:15 p.m., Tuesday, April 24, the Senate proceed to vote on the adoption of the motion to proceed; that if the motion is successful, then the time for debate with respect to the joint resolution be equally divided between the two leaders or their designees; that upon the use or yielding back of time, the joint resolution be read a third time and the Senate proceed to vote on passage of the joint resolution; finally, all other provisions of the statute governing consideration of the joint resolution remain in effect.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

DISCHARGE OF FURTHER CONSIDERATION

We, the undersigned Senators, in accordance with chapter 8 of title 5, United States Code, hereby direct that the Senate Committee on Health, Education, Labor, and Pensions be discharged of further consideration of S.J. Res. 36, a resolution on providing for congressional disapproval of a rule submitted by the National Labor Relations Board relating to representation election procedures, and further, that the resolution be immediately placed upon the Legislative Calendar under General Orders.

Michael B. Enzi, Thad Cochran, Roy Blunt, Bob Corker, John Boozman, Kelly Ayotte, Marco Rubio, Olympia Snowe, Lamar Alexander, Rob Portman, Orrin Hatch, Jerry Moran, John Hoeven, John Cornyn, Mike Crapo, Jeff Sessions, Patrick Toomey, Jim DeMint, Tom Coburn, David Vitter, Ron Johnson, Lindsey Graham, Saxby Chambliss, Richard Burr, Johnny Isakson, John Thune, Michael Lee, Chuck Grassley, Roger F. Wicker, Richard G. Lugar.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. LIEBERMAN. Mr. President, I want to thank Senator REID, and, of course, thank Senator COLLINS. We have again worked very closely together. I thank the staff on both sides who worked very hard, and I thank all of our colleagues.

I know it took a lot of effort, because people have strong opinions about the crisis in the Postal Service of the United States, but we have ended with a process here that will allow a discussion and votes on a wide range of amendments on both sides. I would say based on the knowledge we have of this list that not all of these amendments listed will actually require rollcall votes.

We will be working over the weekend trying to see if we can find common ground, accept some of these amendments or modify them. But bottom line, this consent agreement, though we are not there yet, gives me great hope that the Senate is going to prove that we are capable of taking on a crisis situation which the post office is in, losing $13 billion plus over the last 2 years. If we do not do anything, it is only going to get worse and a lot of people are going to lose their jobs and a lot of people who depend on the mail are not going to get it in the same way.

This is a bill that will provide an orderly reform that will keep the post office not only alive but change it so it can survive throughout the 21st century.

Senator COLLINS and I will be here at noon on Monday to debate any of the amendments people want to come to debate. I believe I am speaking for both of us in saying—I know I am—that after the votes Monday afternoon unrelated to this matter, we are prepared to remain here into the evening to continue debating amendments before the actual votes occur on Tuesday afternoon.

Again, I thank everyone involved, particularly Senator COLLINS.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maine.

Ms. COLLINS. Mr. President, I want to echo the thanks to everyone who was involved in formulating this very extensive unanimous consent agreement. We have been working extremely hard the last couple of days to make sure we were being fair to all Members on a bill on which there are diverse opinions, on an issue that is so important and that is how do we save an essential American institution, the U.S. Postal Service.

I too want to thank our two leaders, Senator REID and Senator MCCONNELL, and my dear friend and chairman of the Homeland Security and Governmental Affairs Committee, Senator LIEBERMAN, as well as our staffs and our floor staff who have put in so many hours.

I want to reiterate that Senator LIEBERMAN and I will be available to negotiate—our staffs will as well—and to debate these issues. We will be available over the weekend and tomorrow, and then on Monday to begin the debate on the amendments. But, again, I want to thank everyone involved. I think this is how the Senate should operate. It took a lot of work to get here, but no one gave up. Everyone kept working away.

I believe we have come up with a very fair agreement to allow us to proceed on a bill of great significance. I want to thank everyone involved.

I yield the floor.

The PRESIDING OFFICER. The majority leader is recognized.

MORNING BUSINESS

Mr. REID. Mr. President, I ask unanimous consent that the Senate now proceed to a period of morning business, with Senators permitted to speak for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTE TO MR. CHIP HUTCHESON

Mr. MCCONNELL. Mr. President, I stand before you today in honor of someone who has made a substantial contribution to the people of Caldwell County, KY, for his work in the field of journalism: Mr. Chip Hutcheson, publisher of Caldwell County's local periodical, the Princeton Times Leader. Mr. Hutcheson was recently inducted into the Kentucky Journalism Hall of Fame in Lexington, KY, along with five other esteemed broadcasting and journalism colleagues from all over the Commonwealth.

The relationship between Chip Hutcheson and the paper that would become the Princeton Times Leader began when Chip was just 10 months old. His parents, the late John and Betsy Hutcheson, purchased the then-Princeton Leader and moved to Princeton, KY, just after the birth of their son, Chip. John and Betsy shared a love for their chosen profession of journalism, a love of the trade that Chip, too, would inherit at a young age.

Looking back, Chip recalls the paper being a big part of his adolescent life. He remembers writing sports news all throughout his teenage years. Chip left Princeton after high school to attend the University of Kentucky, just like his father before him. He enlisted in the U.S. Army after graduating from the college and served 4 months of active duty in Vietnam.

Upon his return from the service, he immediately re-entered the field he had been passionately involved with for so long. He understood that journalism was his calling, and he wanted to make a career out of bringing the news to the people of Caldwell County, just as his beloved mother and father had. Chip remembered a piece of advice his father gave him about the media industry: ''He said, This is a good business, but remember this—you will never be caught up; there will always be one more advertiser you can see, one more story you can write.'''

After watching his parents run a newspaper throughout his childhood, Chip was no doubt aware of the difficulties of producing a new edition day in and day out, but he was okay with it. He had a deep desire to be in the thick of reporting. He wanted to follow leads, piece together stories, record monumental events, and most importantly, inform the citizens of Princeton of the goings on of the world around them.

Chip became publisher of the Princeton Leader in 1976, assumed the role of publisher of the Times Leader in 1992, and has been doing an outstanding job ever since. Chip Hutcheson is a testament to the success one can achieve when one enters a field of work one has a true passion for.

It is with the most sincere gratitude that I congratulate Mr. Chip Hutcheson on his induction to the Kentucky Journalism Hall of Fame and thank him for the heartfelt devotion he has shown the people of Princeton, Caldwell County, and the Commonwealth of Kentucky throughout the years. And I would like to ask my colleagues in the United States Senate to join me in commemorating Mr. Chip Hutcheson for his many accomplishments in the field of journalism.

There was recently an article published in the Princeton Times Leader which made note of Chip Hutcheson's induction into the 2012 Kentucky Journalism Hall of Fame. Mr. President, I ask unanimous consent that said article be printed in the RECORD.

There being no objection, the article was ordered to appear in the RECORD as follows:

[From the Princeton Times Leader, Apr. 14, 2012]

TL PUBLISHER JOINS HALL OF FAME RANKS

(By Jared Nelson)

Times Leader Publisher Chip Hutcheson and two others with western Kentucky connections were among a class of six individuals inducted into the 2012 class of the Kentucky Journalism Hall of Fame this week.

The induction ceremony followed a luncheon hosted by the University of Kentucky Journalism Alumni Association and the UK School of Journalism and Telecommunications in Lexington Wednesday.

Other inductees included: D.J. Everett III, president of Ham Broadcasting Company, which operates the WKDZ and WHVO radio stations; Dr. Bob McGaughey, retired chairman of the Department of Journalism and Mass Communications at Murray State University; Albert B. ''Ben'' Chandler, Jr., longtime publisher of the Woodford Sun; Bill Luster, retired photo-journalist with the Louisville Courier-Journal and two-time Pulitzer Prize winner; and Michael M. York, a former Lexington Herald-Leader and Washington Post reporter, also a Pulitzer Prize winner.

Duane Bonifer, president of the alumni association, noted April as national Jazz Appreciation Month and drew parallels between the work of great jazz musicians and great journalists, their balance of innovation and improvisation.

''We're going to celebrate the artistry of Chandler, Everett, Hutcheson, Luster, McGaughey, and York,'' he said. ''That's not a bad sextet to be jamming with on a Wednesday afternoon in Lexington.''

Hutcheson has served as publisher of the Times Leader since its 1992 creation, when the community's two newspapers, the Caldwell County Times and the Princeton Leader, were purchased by the Kentucky New Era and merged.

Hutcheson had published the Leader, taking over from his parents, in 1976.

In his induction speech Wednesday, he recalled a life spent in the business.

''If anyone has ink in their veins, that would be me,'' he said.

His parents, the late John and Betsy Hutcheson, bought the Leader when their son was 10 months old and moved to Princeton, a town where the only person they knew was the paper's prior owner.

''But that paper was a labor of love for my parents, and in turn for me,'' he said.

The paper, he said, was a major part of his life throughout childhood and into his teenage years, when he began writing sports news.

He enrolled at UK, following his father's footsteps.

Faced with the prospect of being drafted into the U.S. Army after graduating, he returned to Princeton.

He was hired as a sports editor for the Kentucky New Era, taking his father's advice to gain experience outside the family business.

The day before he was to be drafted, he was able to enlist in the Army Reserve. ''That meant four months of active duty rather than two years, so my time away from the New Era was brief,'' he said.

He served as sports editor there from 1970 to 1976, when his father retired from the Leader and handed the reins to his son.

''My father only offered one piece of advice, and I have never forgotten it,'' he told the Lexington crowd.

''He said 'This is a good business, but remember this—you will never be caught up; there will always be one more advertiser you can see, one more story you can write.'

''It was that philosophy that has guided me ever since.''

Hutcheson credited the support of his family in the years since: his mother, who worked 60-plus hours each week at the paper into her 70s, retiring only when the papers merged; his wife, Karen, a nurse by profession who became a utility employee; and children Cindy and John Mark, who spent much time in the newspaper office during their formative years.

''The Leader truly was a 'family' business,'' he said ''I regret that my parents are not here today for this honor my dad died 10 years ago and my mother just last year—because they were the ones who instilled in me this love of community journalism.''

He also gave thanks to the employees of the Times Leader for their support, and to the community at large for being a ''strong newspaper town.''

The publisher quoted Lou Gehrig's famous farewell speech to a 1939 Yankee Stadium—''Today I consider myself the luckiest man on the face of this earth''—in closing.

''I'm not the luckiest man,'' Hutcheson said. ''I'm the most blessed man. I'm blessed to work with the people I work with. I'm blessed to be in the community I live in, and I'm blessed to have a family who thinks much more highly of me than I deserve.''

150TH ANNIVERSARY OF TEMPLE BETH ISRAEL

Mr. LEVIN. Mr. President, religious institutions play an important role in communities across the Nation. They are places where families bond; they are places where culture and traditions are handed down from generation to generation; and they are places where many turn for guidance. This Saturday, April 21, marks a significant milestone for one such place of worship in Jackson, MI. On Friday evening, Temple Beth Israel will celebrate the sesquicentennial anniversary of its founding on April 21, 1862. This momentous occasion will be commemorated through a service that highlights the congregation's rich history and important place within the greater Jackson community.

Since 1862, this close-knit synagogue has been a mainstay in Jackson and has helped to preserve and instill religious values and culture from one generation to the next. Nowhere is this better portrayed than in a short vignette on Temple Beth Israel's web site, which brings to life what may seem to be routine—scores of proud families pouring out of a service laughing, smiling and bonding with one another; providing a place for members of the Jewish community to come together in fellowship to learn, to seek spiritual guidance and to celebrate important religious and life events is at the core of Temple Beth Israel's mission.

Temple Beth Israel, situated on West Michigan Avenue, is the first and only synagogue in the city of Jackson and is at the center of Jewish life there. Four stained glass windows representing the ideals the congregation holds dear—Torah, peace, justice and good deeds—adorn the synagogue's sanctuary. Through the years, there have been abundant examples of these ideals put into action.

Temple Beth Israel is a landmark, literally. Preceding the Temple's founding was the Hebrew Benevolent Society. One of the lasting achievements of the Benevolent Society was the purchase, along with others in the community, of land for burial in 1859. Today, it stands as one of the oldest Jewish cemeteries in continuous use in Michigan and has been recognized nationally as an important landmark through its listing in the National Register of Historic Places. Notable, also, is that Temple Beth Israel served as the student pulpit for Rabbi Sally Priesand, the first female rabbi in the United States.

I extend my very best to the Temple Beth Israel community as they commemorate this wonderful milestone. Through strong spiritual leadership and an active congregation, they have etched an impressive legacy for all to see. Jackson, MI is a better place because of their work, and as they look toward the future, I am certain it is equally bright. A hearty mazel tov to Temple Beth Israel.

HOLOCAUST REMEMBRANCE DAY

Mr. LEAHY. Mr. President, today, Thursday, April 19, is Holocaust Remembrance Day. Observances and remembrance activities are taking place across the Nation in civic centers, schools, churches and synagogues, on military bases and in workplaces.

As always, the United States Holocaust Memorial Museum—created as a permanent living memorial to its victims—is taking a leading role in this annual observance.

We must never forget the horrors of the Holocaust, we must never let the world forget, and we must never forget or neglect the Holocaust's lessons.

Never forgetting means keeping alive the memory of those who suffered and died in the Holocaust.

Never forgetting also means declaiming against crimes against humanity that erupt in our midst, and on our watch.

As searing as the Holocaust's lessons are, the world is too easily tempted to avert its eyes from heinous crimes committed by governments and others against our fellow human beings. The community of nations will always bear the shame of doing so little during the massacres on the killing fields of Cambodia, and in the villages of Rwanda.

The United States Holocaust Memorial Museum itself has taken the lead in shining a light on atrocities in our time in Darfur, and I commend its Committee on Conscience for lending its unmatched moral authority to the crusade to bring an end to the violence there.

In that spirit, our voices are also needed to expose the crimes against humanity that are occurring behind the walls of the prison camps of North Korea. More and more information now is coming to light about the systematic, state-sponsored brutality that is being waged upon some 200,000 people, according to the State Department, in those camps. The fact of these prison camps is not new. But horrifying new glimpses are now coming to light from those who have successfully broken free and crossed the frontier to eventual freedom. Publicly available satellite photos are helping to expose a system whose very existence the North Korean government continues to deny.

A new report on these prison camps, authored by David Hawk, has been released by the Committee for Human Rights in North Korea, a U.S.-based, private organization. It documents the imprisonment of entire families, including children and grandparents for the ''political crimes'' of other family members.

At the report's Washington release this month, a young man born to prisoners—and thereby condemned to spend his entire life in one of these camps—spoke about visiting the United States Holocaust Memorial Museum, every time he comes to Washington. Shin Dong-hyuk's harrowing escape is detailed in a new book by Blaine Harden, a former Washington Post reporter.

We have vital national security interests at stake in our dealings with the North Korean regime, which has acquired nuclear weapons. I am one

who believes that we can fully and effectively pursue these interests through diplomacy and other means, without having to mute our outrage about human rights atrocities like these.

I welcome the strong comments about this report made by Robert King, the United States human rights envoy for North Korea, who said that conditions in North Korea's prison camps are worse than in the former Soviet Union's gulag. I would hope that today's leaders of Russia and China would voice similar outrage about these atrocities.

Social media and a powerful video recently brought the story of the crimes of Joseph Kony and his Lord's Resistance Army to an audience of millions of people around the world. Let us individually and together similarly raise our voices against the crimes against humanity that are taking place behind the walls and barbed wire of North Korea's labor camps, where some one in four people die each year—starved to death, or worked to death, or executed.

Let it not be said by future generations that though we knew enough, we did not care enough to condemn and to lend our efforts to end this brutal system.

Several news organizations have reported or commented on this new information about North Korea's prison camps. I commend to the Senate's attention two recent such writings. I ask unanimous consent that an editorial, and a commentary by Fred Hiatt, both from the Washington Post, be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Washington Post, Apr. 12, 2012]

TURNING A BLIND EYE TO NORTH KOREA'S 'HIDDEN GULAG'

(Editorial)

While attention focused on North Korea this week ahead of Friday morning's missile launch, hundreds of Americans, Koreans, Japanese and others gathered in Washington to examine a different aspect of life in that communist nation: its ''hidden gulag.''

That was the title of an unprecedented conference organized by the U.S. Committee for Human Rights in North Korea (HRNK) and the Jacob Blaustein Institute for the Advancement of Human Rights. The gulag is a network of labor camps that houses 150,000 to 200,000 prisoners. They are generally arrested for no crime, sent away with no trial, never again allowed to communicate with anyone outside the camps, fed on starvation rations and forced to work until they die. Other than from one camp, according to South Korean expert Yoon Yeo-sang, no one deported to North Korea's gulag is ever released.

As noted by Blaine Harden, author of the recently published book ''Escape from Camp 14,'' the North Korean gulag has existed twice as long as did the Soviet network of labor camps created by Lenin and Stalin, and 12 times as long as Hitler's concentration camps. Yet, for the most part, ''Americans don't know anything about these camps,'' Mr. Harden said. ''They don't know they exist.''

This is not, the title of the conference notwithstanding, because the gulag is all that hidden, although North Korea's regime continues to deny its existence. In fact, as David Hawk said, a great deal is known about the camps, both from the testimony of those who have escaped and from satellite imagery. Mr. Hawk has just published the second edition of his definitive survey, also called ''The Hidden Gulag,'' which draws on horrifying testimony from 60 former prisoners.

The reason for the ignorance is mostly political. The United States, with a goal of keeping the peace and depriving North Korea of nuclear weapons, has not made human rights a priority. In South Korea, the gulag has been a political football between left-wing politicians favoring warmer ties with the North and right-wing politicians pushing a harder line. China, North Korea's neighbor to the north and west, abuses the human rights of its own population and does not believe any country's freedom to abuse its population in the same way should be interfered with.

China, in fact, is complicit in North Korea's abuses, since it sends many defectors who have made it across the Yalu River back into North Korea, where they face punishment or, if they are repeat escapees, execution. North Korean women who have become pregnant in China often are forced to abort their children. ''In cases where the pregnancy is too advanced, guards beat the infants to death or bury them alive after they are born,'' writes Roberta Cohen, the chair of HRNK.

Inevitably, there remains much that is unknown. It's impossible to be confident of a population count for the gulag, Mr. Hawk said, because it's not clear whether deaths are outpacing deportations.

Enough is known, however, for indifference to be inexcusable. As a first step, the United Nations could establish a commission of inquiry to investigate crimes against humanity taking place inside the prison camps. As Ms. Cohen said, ''It is not just nuclear weapons that have to be dismantled but an entire system of political repression.''

[From the Washington Post, Mar. 25, 2012]

NORTH KOREA'S DEHUMANIZING TREATMENT OF ITS CITIZENS IS HIDING IN PLAIN SIGHT

(By Fred Hiatt)

With President Obama in Korea this week, we will hear a lot about the dangers of North Korea's nuclear aspirations.

We're unlikely to hear about a young man named Shin Dong-hyuk, who was bred, like a farm animal, inside a North Korean prison camp after guards ordered his prisoner-parents to mate. But Shin arguably has as much to teach about Korea's past and future as about the cycle of negotiation, bluster and broken promises over the nuclear issue.

''Shin was born a slave and raised behind a high-voltage barbed-wire fence.''

So writes Blaine Harden, a former East Asia correspondent for The Post, in a soon-to-be-published account of Shin's life, ''Escape from Camp 14.''

Harden describes a closed world of unimaginable bleakness. We often speak of someone so unfortunate as to grow up ''not knowing love.'' Shin grew up literally not understanding concepts such as love, trust or kindness. His life consisted of beatings, hunger and labor. His only ethos was to obey guards, snitch on fellow inmates and steal food when he could. At age 14, he watched his mother and older brother executed, a display that elicited in him no pity or regret. He was raised to work until he died, probably around age 40. He knew no contemporaries who had experienced life outside Camp 14.

At 23, Shin escaped and managed, over the course of four years, to make his way through a hungry North Korea—a larger, more chaotic version of Camp 14—into China and, eventually, the United States. He is, as far as is known, the only person born in the North Korean gulag to escape to freedom.

Improbably, his tale becomes even more gripping after his unprecedented journey, after he realizes that he has been raised as something less than human. He gradually, haltingly—and, so far, with mixed success—sets out to remake himself as a moral, feeling human being.

How is this tale even possible in the 21st century, the era of ''Never Again,'' of the United Nations proudly (in 2005) declaring that all nations have a ''responsibility to protect'' civilian populations abused by their own governments?

''Fashioning a comprehensive policy to deal with North Korea's nuclear programs, its human rights abuses, and its failed economy is hardly child's play,'' explains Victor Cha, a Georgetown University professor, in his forthcoming book, ''The Impossible State.'' ''No administration thus far has been successful at addressing one, let alone all three.''

Cha, who helped shape Korea policy on the National Security Council under President George W. Bush, describes a nation where schoolchildren learn grammatical conjugations by reciting ''We killed Americans,'' ''We are killing Americans,'' ''We will kill Americans.''

With 25 million people, it is a failed state in every way but one, which is coddling the regime and a small elite that resembles a criminal syndicate more than a traditional bureaucracy. While cautioning that predictions are risky, Cha argues that ''the end is near.'' The next U.S. presidential term, he predicts, is likely to face ''a major crisis of the state in North Korea, and potentially unification.''

When that happens, ''what is likely to be revealed is one of the worst human rights disasters in modern times.''

Only, as both books make clear, it won't be much of a revelation. Harden points out that North Korea's labor camps ''have now existed twice as long as the Soviet gulag and about twelve times longer than the Nazi concentration camps.'' They are easily identified in satellite photographs. One is larger than the city of Los Angeles. Altogether they house about 200,000 people.

They are visible, in other words, but people do not want to see them, and Shin's story helps explain why.

It's no surprise that China, with its own gulag archipelago, objects to any suggestion that a government can't abuse its citizens as it pleases.

But South Koreans, living in freedom, also fear a North Korean collapse—not only for the potential financial cost but also because they sense how different their erstwhile countrymen have become. Not all North Koreans live as stunted a life as Shin did inside Camp 14, but generations of isolation, propaganda and warped morality take a toll. And 20 years of post-Soviet experience have taught us that civic virtues can be far more difficult to rekindle than private markets or democratic forms.

When he watched his teacher beat a six-year-old classmate to death for stealing five grains of corn, Shin says he ''didn't think much about it.''

''I did not know about sympathy or sadness,'' he says. ''Now that I am out, I am learning to be emotional. I have learned to cry. I feel like I am becoming human.''

But seven years after his escape, Harden writes, Shin does not believe he has reached that goal. ''I escaped physically,'' he says. ''I haven't escaped psychologically.''

FOOD SAFETY ACCOUNTABILITY ACT

Mr. LEAHY. Mr. President, one year ago, the Senate unanimously passed the Food Safety Accountability Act. This week, the Food and Drug Administration announced that raw tuna from a California supplier has sickened more than 100 people in 20 States with salmonella poisoning. We do not yet know the cause of the current outbreak, but if enacted, the Food Safety Accountability Act would help stop outbreaks of illness related to food safety. It is time for the House to pass this noncontroversial legislation.

The Food Safety Accountability Act promotes more accountability for food suppliers by increasing the sentences that prosecutors can seek for people who violate our food safety laws in those cases where there is conscious or reckless disregard of a risk of death or serious bodily injury. Current statutes do not provide sufficient criminal sanctions for those who knowingly violate our food safety laws.

Knowingly distributing adulterated food is already illegal, but it is in most cases merely a misdemeanor, and the Sentencing Commission has found that perpetrators generally do not serve jail time. The alternative, fines and recalls, fall short in protecting the public from harmful products. Too often, those who are willing to endanger our American citizens in pursuit of profits view such fines or recalls as merely the cost of doing business.

Salmonella poisoning is all too common and sometimes results from inexcusable, knowing conduct such as that carefully targeted by the Food Safety Accountability Act. The company responsible for a salmonella outbreak last summer had a long history of environmental, immigration, labor, and food safety violations. It is clear that fines are not enough to protect the public and effectively deter this unacceptable conduct. We need to make sure that those who knowingly poison the food supply will go to jail. This bill will significantly increase the chances that those who commit serious food safety crimes will face jail time rather than merely a slap on the wrist.

Food safety received considerable attention in the last Congress, and I was pleased that we finally passed comprehensive food safety reforms, but our work is not done. A provision almost identical to the Food Safety Accountability Act has previously passed the House with strong, bipartisan support. Now that the Senate has unanimously passed this bill, it is long overdue for the House to act.

The American people should be confident that the food they buy for their families is safe. The uncertainty and fear caused by the current salmonella outbreak only reinforces the need to pass the common sense Food Safety Accountability Act. I urge the House to quickly pass the Senate bill and join us in taking this important step toward protecting our food supply.

TRIBUTE TO IRENE DAVEY

Mr. BROWN of Massachusetts. Mr. President, today I wish to recognize Irene Davey of Attleboro, MA, who on January 26, 2012, turned 104 years of age. It is a privilege for me to join her family, friends and veterans everywhere in extending warm wishes to Irene.

In March of 1943, Irene joined the U.S. Army and served until November 1945. Irene had a distinguished military career where she earned the rank of staff sergeant. She was part of a force of about 351,000 women who served in World War II. Irene served in the Women's Army Auxiliary Corps and was assigned to motor transport.

While serving in the Army, Irene directly contributed to the success of the motor corps by training the other women in the auxiliary corps to drive trucks and provide vehicle maintenance. One of her duties while serving in the motor corps included transporting sick and injured soldiers home by ambulance. She even became a recruiter, using what she had learned in the Army to bring in the next generation of soldiers.

Irene understood the true meaning of shared sacrifice. The motto of the time was ''release a man to help your man.'' According to Irene it meant that if a woman could take a man's job, that man was released to join the armed forces. That made the armed forces stronger, helping your man who was in the armed forces be that much safer.

After World War II, Irene continued her service by becoming a warden at the election polls in her hometown of Attleboro. Irene is an exceptional woman who has served her country and community in many ways. Irene has been a champion for veterans all her life and the Commonwealth of Massachusetts owes her its deepest gratitude.

There is nothing Irene likes more than hearing someone thanking a veteran for their service. Today, however, the Senate recognizes Irene Davey the poet, songwriter, and lifelong public servant.

Irene has witnessed many wonderful events during her long and distinguished life. Throughout her years, she has demonstrated that one person can make a difference. It is people as dedicated as Irene who continue to make a difference in this world. Others should take notice and become inspired by the example that she has set.

I would like to thank Irene for her tremendous service to our country and our communities. I know that her family and friends, as well as the people of Massachusetts are extremely proud of her selfless service.

ADDITIONAL STATEMENTS

TRIBUTE TO BOWEN FLOWERS

● Mr. COCHRAN. Mr. President, I am pleased to commend Bowen Flowers of Clarksdale, MS, for his service and contributions to the State of Mississippi while serving as the 77th President of Delta Council. The Delta Council was formed in 1935 and has grown into a widely respected economic development organization representing the business, professional, and agricultural leadership of the alluvial floodplain commonly known as the Mississippi Delta. I am grateful to Delta Council for its continuous role in meeting the economic and quality of life challenges which have historically confronted this part of my State.

Bowen Flowers' tenure as president of Delta Council has coincided with the development of a new farm bill, the primary legislation for establishing Federal agriculture and food policies. Mr. Flowers has used his insight and judgment to lead the Delta Council in effectively working with Congress to help ensure that the priorities of those living and working in rural America are met. He is also recognized for his dedication to conservation and wildlife as part of his ongoing service to Mississippi.

In addition to his role as president of Delta Council, Mr. Flowers is a director of Staplcotn Producer Cooperative and the Covenant Bank, and is a commissioner on the Coahoma County Soil and Water Commission. Some of his previous leadership positions include director of the Mississippi Association of Conservation Districts, president of the Mississippi Soybean Promotion Board, producer director of the National Cotton Council, president of Delta Wildlife, and chairman of the Delta Council Soil and Water Committee.

Bowen Flowers is well respected in Mississippi and his performance as president of the Delta Council will add to his well-earned reputation of working to improve the quality of life of rural America. His dedication to the future of the Mississippi Delta and those who live there speaks highly of him as a person. In Mississippi, we appreciate Bowen Flowers, as well as his wife Susan and their daughter Anderson, for their service and commitment to Mississippi.●

TRIBUTE TO ALFRED RANKINS, SR.

● Mr. COCHRAN. Mr. President, I am pleased to commend Alfred Rankins, Sr., of Greenville, MS, for his tireless and effective leadership while serving on the Washington County Board of Supervisors. Mr. Rankins recently retired from the board following a long career dedicated to protecting and enhancing the lives of the residents of Greenville and Washington County, and people throughout the Mississippi Delta. Washington County has historically faced a unique set of challenges, and I am grateful for the board's consistent leadership in willingly addressing these challenges on a daily basis.

Al Rankins has served Washington County long enough to understand the

dynamics of the local economy and the needs of the region. Mr. Rankins served on the Board of Supervisors since 1990 and served as its president. His tenure was characterized by consistent focus on retaining and recruiting new businesses and industries to the area. During his career, Al Rankins has also been a member of the Mississippi Water Management Advisory Board and the Allied Enterprise Advisory Board. On the Delta Council, he served as the longtime chairman of the Council's Flood Control Committee and as chairman of the Development Department Board of Directors.

Prior to serving in these important jobs, Al Rankins worked almost 21 years as a police officer for the city of Greenville, retiring in 1990 as deputy chief. He also served his country honorably during a tour of duty in Vietnam with the U.S. Air Force.

Related to his career as a civic leader and business owner, Al Rankins has received many accolades and honors, including the Lifetime Achievement Award for Civil Service to the Community, the Outstanding Citizen Achievement Award, and the Outstanding Service to the Community Award. These awards are examples of the recognition extended to Mr. Rankins for his public service and community volunteer contributions to the Mississippi Delta Region.

Al Rankins and his wife Mary are a credit to my great State. In conjunction with the end of his long service with the Washington County Board of Supervisors, I join many Mississippians in commending Alfred Rankins, Sr., for his dedication and service to the people of Mississippi.●

REMEMBERING BRUNO BENNA

● Mr. HELLER. Mr. President, today I wish to pay tribute to a Nevadan who spent his life working to strengthen his local community and enrich the lives of its residents. After a courageous 9-year battle with cancer, Bruno Benna passed on April 1, 2012. Our State has lost a selfless and giving Nevadan. My thoughts and prayers continue to be with his family.

From starting a small concrete company that would later become a staple in Reno to his patronage for the fine arts, Bruno was involved in nearly every facet of Northern Nevada's community. In 1958, he co-founded C.B. Concrete Company, which literally laid the foundations for modern Reno. For the next 50 years, Bruno contributed to the construction of Reno's major infrastructure projects. Generations of Reno residents have become familiar with C. B. Concrete Company's iconic yellow trucks emblazoned with the bumble bee logo.

C. B. Concrete Company exemplifies the vital role small businesses play in both our economy and local community. As the backbone of our economy, they must continue to remain vibrant and healthy in order to create jobs at a time when Nevadans need them the most. I am saddened that Reno has lost such a passionate entrepreneur who was responsible for employing hundreds of Nevadans. Northern Nevada was fortunate to have such a talented businessman who was continuously striving to improve the business community while serving on the Reno Chamber of Commerce Board, the U.S. Interstate Commerce Commission, and as an advisor to the U.S. Small Business Administration.

In 1997, Bruno and his wife, Edna, started the Benna Family Foundation to give back to their community. Through the foundation, the couple were avid supporters of the University of Nevada, the Nevada Discovery Museum, the Nevada Opera, the Nevada Art Museum, and the Reno Little Theater. In 2002, Governor Kenny Guinn awarded the Bennas with the Governor's Arts Award for their decades of service for arts in Northern Nevada.

Bruno's extensive philanthropic endeavors and generous contributions to our State continue to be inspiring to those within the Reno and larger northern Nevada community. I am both grateful for and humbled by his commitment to the Silver State. I ask my colleagues to join me today in remembering the life of a great Nevadan.●

RECOGNIZING WEST BRANCH HERITAGE TIMBER, LLC

● Ms. SNOWE. Mr. President, my home State of Maine, with its vast acres of trees, has traditionally been a hub for the lumber industry since the advent of wood pulp in paper making. In recent years, the lumber industry has suffered due to the economic downturn, and the resulting decline in the housing market has reduced the need for wood products to build homes such as hardwood flooring and cabinet construction. Despite this, there are companies that persevere in the face of such hardships, confronting economic challenges with innovation and creativity. Today, I rise to commend and recognize one such company, West Branch Heritage Timber, for helping to revive the lumber industry while creating a beautiful and artistic product inscribed with Maine's rich history.

Since 2010, West Branch Heritage Timber located in Millinocket, ME, has harvested 20,000 tons of wood from Quakish Lake—part of the Penobscot River system—which became a repository for thousands of tons of lost timber cut by river-driving loggers over a century ago. The extensive wood inventory remained preserved under the water for over 100 years, until coowners Steve Saunders and Tom Shafer developed an idea to retrieve the unique and magnificent lumber. To put it simply, these two innovators have been ''fishing'' this timber from the bottom of the lake for the commercial value it holds today.

Currently, West Branch Heritage Timber is in the process of reclaiming an estimated 1 million cord of timber at the bottom of the West Branch of the Penobscot River, making it the largest timber reclamation project ever conducted in New England. The quality of their product has not gone unnoticed as this small firm was recently selected by another local business, Shaw & Tenney of Orono, as the primary wood supplier for the paddles they are producing for L.L. Bean's 100-year anniversary. Lake wood contains aesthetically impressive designs which develop and evolve as minerals from the lake's water seeps deep into the wood over many years, creating rich earth tones. Shaw & Tenney saw an opportunity to utilize this niche-commodity offered by West Branch Heritage Timber to demonstrate the beauty of Maine in L.L. Bean's commemorative paddles.

However, the artistic preservation of history is only one purpose that the wood of Quakish Lake serves. Steve hopes that the business will soon obtain a paper mill contract as West Branch would be able to provide pulping wood at a substantially less cost than competitors. Steve has attested to the feasibility and value of such a venture by estimating the potential to produce 40,000 tons of wood annually for the next 20 years. While the company currently employs nine full-time employees, obtaining a pulp contract would allow for expansion and job creation.

The ingenuity and creativity of the West Branch Heritage Timber team embodies the entrepreneurial spirit of our country's history and serves as an exemplary small business that so ardently comprises the backbone of the American economy. I am proud to extend my congratulations to Steve and Tom, as well as everyone at West Branch Heritage Timber, for their hard work in providing a product that is both beautiful and vital to the resurgence of Maine's lumber industry.●

2012 NATIONAL DRUG CONTROL STRATEGY—PM 46

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report; which was referred to the Committee on the Judiciary:

To the Congress of the United States:

I am pleased to transmit the 2012 *National Drug Control Strategy*, which follows through on the commitment made by my Administration to chart a new course in our efforts to reduce illicit drug use and its consequences in the United States. The balanced approach outlined in the Administration's inaugural *National Drug Control Strategy* has yielded significant results, which are detailed in the following pages.

Our Nation still faces serious drug-related challenges, however. Too many Americans need treatment for substance use disorders but do not receive

it. Prescription drug abuse continues to claim American lives, and those who take drugs and drive threaten safety on our Nation's roadways. Young people's perceptions of the risks of drug use have declined over the past decade, and research suggests that this often predicts future increases in drug use. There is still much left to do to reform our justice system and break the cycle of drug use and crime. Our commitment to work with partner nations must remain steadfast to reduce drug production, trafficking, and related transnational threats.

Based upon the progress we have achieved over the past three years, I am confident we can address these challenges through concerted action along the entire spectrum of prevention, early intervention, treatment, recovery support, criminal justice reform, law enforcement, and international cooperation. However, we must match our commitment with the appropriate resources.

Illicit drug use in America contributed to an estimated $193 billion in crime, health, and lost productivity costs in 2007, the year for which the most recent estimate is available. In today's challenging economic environment, we cannot afford such a drain on our economy and public resources. While difficult budget decisions must be made at all levels of government, we must ensure continued support for policies and programs that reduce drug use and its enormous costs to American society. In doing so, we will not only strengthen our economy but also sustain the national character and spirit that has made the United States a world leader.

I look forward to continuing to work with the Congress and Federal, state, local, tribal, and territorial leaders, international partners, and the American people in this important endeavor.

BARACK OBAMA.

THE WHITE HOUSE, *April 19, 2012*.

MESSAGE FROM THE HOUSE

At 10:37 a.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 2453. An act to require the Secretary of the Treasury to mint coins in commemoration of Mark Twain.

H.R. 4348. An act to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund pending enactment of a multiyear law reauthorizing such programs, and for other purposes.

MEASURES REFERRED

The following bill was read the first and the second times by unanimous consent, and referred as indicated:

H.R. 2453. An act to require the Secretary of the Treasury to mint coins in commemoration of Mark Twain; to the Committee on Banking, Housing, and Urban Affairs.

MEASURE DISCHARGED

The following joint resolution was discharged by petition, pursuant to 5 U.S.C. 802(c), and placed on the calendar:

S.J. Res. 36. A joint resolution providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the National Labor Relations Board relating to representation election procedures.

MEASURES READ THE FIRST TIME

The following bill was read the first time:

S. 2327. A bill to prohibit direct foreign assistance to the Government of Egypt until the President makes certain certifications related to treatment of nongovernmental organization workers, and for other purposes.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–5741. A communication from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Asian Longhorned Beetle; Additions to Quarantined Areas in Massachusetts'' (Docket No. APHIS–2010–0128) received in the Office of the President of the Senate on April 18, 2012; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5742. A communication from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Importation of Clementines From Spain; Amendment to Inspection Provisions'' (Docket No. APHIS–2010–0036) received in the Office of the President of the Senate on April 18, 2012; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5743. A communication from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Importation of Pomegranates From Chile Under a Systems Approach'' (Docket No. APHIS–2010–0024) received in the Office of the President of the Senate on April 18, 2012; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5744. A communication from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Importation of Fresh Pitaya Fruit From Central America Into the Continental United States'' (Docket No. APHIS–2010–0113) received in the Office of the President of the Senate on April 18, 2012; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5745. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Guidance Under Sections 642 and 643 (Income Ordering Rules)'' ((RIN1545–BH66) (TD 9582)) received in the Office of the President of the Senate on April 16, 2012; to the Committee on Finance.

EC–5746. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Guidance Under Section 267(f); Deferral of Loss on Transactions Between Members of a Controlled Group'' ((RIN1545–BI92) (TD 9583)) received in the Office of the President of the Senate on April 16, 2012; to the Committee on Finance.

EC–5747. A communication from the Assistant Secretary, Bureau of Legislative Affairs, Department of State, transmitting, pursuant to the Arms Export Control Act, the certification of a proposed amendment to a manufacturing license agreement for the manufacture of significant military equipment abroad and the export of defense articles, including, technical data, and defense services to Malaysia for the assembly, test and production of the Colt M4 carbine in the amount of $50,000,000 or more; to the Committee on Foreign Relations.

EC–5748. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–343 ''Tenant Security Deposits Clarification Amendment Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–5749. A communication from the Chairman of the Council of the District of Columbia, transmitting, pursuant to law, a report on D.C. Act 19–344 ''South Capitol Street Memorial Amendment Act of 2012''; to the Committee on Homeland Security and Governmental Affairs.

EC–5750. A communication from the Director of the Regulation Policy and Management Office of the General Counsel, Veterans Health Administration, Department of Veterans Affairs, transmitting, pursuant to law, the report of a rule entitled ''Rules Governing Hearings Before the Agency of Original Jurisdiction and the Board of Veterans' Appeals; Repeal of Prior Rule Change'' (RIN2900–AO43) received in the Office of the President of the Senate on April 18, 2012; to the Committee on Veterans' Affairs.

EC–5751. A communication from the Director of the Regulation Policy and Management Office of the General Counsel, Veterans Health Administration, Department of Veterans Affairs, transmitting, pursuant to law, the report of a rule entitled ''Payment or Reimbursement for Emergency Services for Nonservice-Connected Conditions in Non-VA Facilities'' (RIN2900–AN86) received in the Office of the President of the Senate on April 18, 2012; to the Committee on Veterans' Affairs.

EC–5752. A communication from the Acting Assistant Secretary of Defense (Reserve Affairs), transmitting, pursuant to law, a report relative to a proposed change by the Navy Reserve to the Fiscal Year 2011 National Guard and Reserve Equipment Appropriation (NGREA) procurement; to the Committee on Armed Services.

EC–5753. A communication from the Assistant Secretary of Defense (Legislative Affairs), transmitting legislative proposals and accompanying reports relative to the National Defense Authorization Act for Fiscal Year 2013; to the Committee on Armed Services.

EC–5754. A communication from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Karnal Bunt; Regulated Areas in California'' (Docket No. APHIS–2011–0074) received in the Office of the President of the Senate on April 17, 2012; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5755. A communication from the Congressional Review Coordinator, Animal and Plant Health Inspection Service, Department of Agriculture, transmitting, pursuant to

law, the report of a rule entitled ''Golden Nematode; Removal of Regulated Areas'' (Docket No. APHIS–2011–0036) received in the Office of the President of the Senate on April 17, 2012; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5756. A communication from the Management and Program Analyst, Forest Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''National Forest System Land Management Planning'' (RIN0596–AD02) received in the Office of the President of the Senate on April 17, 2012; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5757. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Quizalofop Ethyl; Pesticide Tolerances'' (FRL No. 9340–5) received in the Office of the President of the Senate on April 18, 2012; to the Committee on Agriculture, Nutrition, and Forestry.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. LIEBERMAN, from the Committee on Homeland Security and Governmental Affairs, with amendments:

S. 743. A bill to amend chapter 23 of title 5, United States Code, to clarify the disclosures of information protected from prohibited personnel practices, require a statement in nondisclosure policies, forms, and agreements that such policies, forms, and agreements conform with certain disclosure protections, provide certain authority for the Special Counsel, and for other purposes (Rept. No. 112–155).

By Mr. INOUYE, from the Committee on Appropriations:

Special Report entitled ''Allocation to Subcommittees of Budget Totals for Fiscal Year 2013.'' (Rept. No. 112–156).

By Mrs. MURRAY, from the Committee on Appropriations, without amendment:

S. 2322. An original bill making appropriations for the Departments of Transportation, and Housing and Urban Development, and related agencies for the fiscal year ending September 30, 2013, and for other purposes (Rept. No. 112–157).

By Ms. MIKULSKI, from the Committee on Appropriations, without amendment:

S. 2323. An original bill making appropriations for Departments of Commerce and Justice, and Science, and Related Agencies for the fiscal year ending September 30, 2013, and for other purposes (Rept. No. 112–158).

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. LEAHY for the Committee on the Judiciary.

William J. Kayatta, Jr., of Maine, to be United States Circuit Judge for the First Circuit.

John Thomas Fowlkes, Jr., of Tennessee, to be United States District Judge for the Western District of Tennessee.

Kevin McNulty, of New Jersey, to be United States District Judge for the District of New Jersey.

Michael A. Shipp, of New Jersey, to be United States District Judge for the District of New Jersey.

Stephanie Marie Rose, of Iowa, to be United States District Judge for the Southern District of Iowa.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. REED (for himself and Mr. ISAKSON):

S. 2301. A bill to help prevent the occurrence of cancer resulting from the use of ultraviolet tanning lamps by providing sufficient information to consumers regarding the health risks associated with the use of such devices; to the Committee on Health, Education, Labor, and Pensions.

By Mr. LEAHY:

S. 2302. A bill to extend the temporary suspension of duty on certain ski boots, cross country ski footwear, and snowboard boots; to the Committee on Finance.

By Mr. DURBIN (for himself and Mr. KIRK):

S. 2303. A bill to require rulemaking by the Administrator of the Federal Emergency Management Agency to address considerations in evaluating the need for public and individual disaster assistance, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. MIKULSKI:

S. 2304. A bill to amend title XVIII of the Social Security Act to allow chiropractors to provide items and services through private contracts under the Medicare program; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2305. A bill to extend the temporary suspension of duty on yarn of carded hair of Kashmir (cashmere) goats, of yarn count less than 19.35 metric, not put up for retail sale; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2306. A bill to extend the temporary suspension of duty on fine animal hair of Kashmir (cashmere) goats, processed beyond the degreased or carbonized condition; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2307. A bill to extend the temporary suspension of duty on yarn of carded cashmere of 19.35 metric yarn count or higher; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2308. A bill to extend the temporary suspension of duty on yarn of combed cashmere or yarn of camel hair; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2309. A bill to extend the temporary suspension of duty on camel hair, carded or combed; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2310. A bill to extend the temporary suspension of duty on woven fabrics containing 85 percent or more by weight of vicuna hair; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2311. A bill to extend the temporary suspension of duty on waste of camel hair; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2312. A bill to extend the temporary suspension of duty on camel hair, not processed in any manner beyond the degreased or carbonized condition; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2313. A bill to extend the temporary suspension of duty on camel hair, processed beyond the degreased or carbonized condition; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2314. A bill to extend the temporary suspension of duty on noils of camel hair; to the Committee on Finance.

By Mr. LIEBERMAN:

S. 2315. A bill to extend the temporary suspension of duty on yarn of carded camel hair; to the Committee on Finance.

By Mr. KERRY (for himself and Mr. BROWN of Massachusetts):

S. 2316. A bill to designate the Salt Pond Visitor Center at the Cape Cod National Seashore as the ''Thomas P. O'Neill, Jr. Salt Pond Visitor Center'', and for other purposes; to the Committee on Energy and Natural Resources.

By Ms. STABENOW (for herself, Mr. PORTMAN, Mr. BROWN of Ohio, Mr. DURBIN, Mr. LEVIN, Mr. CASEY, Mr. SCHUMER, Mrs. GILLIBRAND, Ms. KLOBUCHAR, and Mr. FRANKEN):

S. 2317. A bill to compel the Secretary of the Army to complete the Great Lakes Mississippi River Interbasin Study within 18 months and to focus particular attention on the permanent prevention of the spread of aquatic nuisance species between the Great Lakes and the Mississippi River Basins; to the Committee on Environment and Public Works.

By Mr. KERRY (for himself, Mr. BOOZMAN, Mr. COONS, Mr. ISAKSON, Ms. LANDRIEU, Mr. GRAHAM, and Mr. DURBIN):

S. 2318. A bill to authorize the Secretary of State to pay a reward to combat transnational organized crime and for information concerning foreign nationals wanted by international criminal tribunals, and for other purposes; to the Committee on Foreign Relations.

By Ms. COLLINS (for herself, Mr. LIEBERMAN, Mr. BROWN of Massachusetts, Mr. AKAKA, and Mr. CARPER):

S. 2319. A bill to amend the Homeland Security Act of 2002 to direct the Administrator of the Federal Emergency Management Agency to modernize the integrated public alert and warning system of the United States, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Ms. AYOTTE (for herself and Mr. BEGICH):

S. 2320. A bill to direct the American Battle Monuments Commission to provide for the ongoing maintenance of Clark Veterans Cemetery in the Republic of the Philippines, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. MENENDEZ (for himself and Mr. AKAKA):

S. 2321. A bill to amend the Public Health Service Act to provide for the expansion, intensification, and coordination of the programs and activities of the National Institutes of Health with respect to Tourette syndrome; to the Committee on Health, Education, Labor, and Pensions.

By Mrs. MURRAY:

S. 2322. An original bill making appropriations for the Departments of Transportation, and Housing and Urban Development, and related agencies for the fiscal year ending September 30, 2013, and for other purposes; from the Committee on Appropriations; placed on the calendar.

By Ms. MIKULSKI:

S. 2323. An original bill making appropriations for Departments of Commerce and Justice, and Science, and Related Agencies for the fiscal year ending September 30, 2013, and for other purposes; from the Committee on Appropriations; placed on the calendar.

By Mrs. HUTCHISON:

S. 2324. A bill to amend the Wild and Scenic Rivers Act to designate a segment of the Neches River in the State of Texas for potential addition to the National Wild and Scenic

River System, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. NELSON of Florida (for himself, Mrs. BOXER, and Mr. KIRK):

S. 2325. A bill to authorize further assistance to Israel for the Iron Dome anti-missile defense system; to the Committee on Foreign Relations.

By Mr. SCHUMER (for himself and Mrs. GILLIBRAND):

S. 2326. A bill to designate the new United States courthouse in Buffalo, New York, as the ''Robert H. Jackson United States Courthouse''; to the Committee on Environment and Public Works.

By Mr. PAUL:

S. 2327. A bill to prohibit direct foreign assistance to the Government of Egypt until the President makes certain certifications related to treatment of nongovernmental organization workers, and for other purposes; read the first time.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. COBURN (for himself and Mr. UDALL of Colorado):

S. Res. 427. A resolution to prevent the creation of duplicative and overlapping Federal programs; to the Committee on Rules and Administration.

By Mr. BLUMENTHAL (for himself, Mr. GRAHAM, Ms. KLOBUCHAR, Mr. KIRK, Ms. COLLINS, Mr. COATS, Mr. MCCAIN, and Mr. CARDIN):

S. Res. 428. A resolution condemning the Government of Syria for crimes against humanity, and for other purposes; to the Committee on Foreign Relations.

By Mr. WICKER (for himself, Mr. COONS, Mr. COCHRAN, Mr. CARDIN, Mr. DURBIN, Mr. BOOZMAN, and Mr. BINGAMAN):

S. Res. 429. A resolution supporting the goals and ideals of World Malaria Day; to the Committee on Foreign Relations.

By Mr. WICKER (for himself, Mr. PRYOR, Mr. COCHRAN, Mr. BOOZMAN, Mr. INHOFE, and Mr. TESTER):

S. Res. 430. A resolution recognizing the 75th anniversary of the founding of Ducks Unlimited, Incorporated, the achievements of the organization in habitat conservation, and the support of the organization for the waterfowling heritage of the United States; considered and agreed to.

By Ms. CANTWELL:

S. Res. 431. A resolution celebrating the 50th anniversary of the 1962 Seattle World's Fair; to the Committee on the Judiciary.

ADDITIONAL COSPONSORS

S. 91

At the request of Mr. WICKER, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 91, a bill to implement equal protection under the 14th article of amendment to the Constitution for the right to life of each born and unborn human person.

S. 424

At the request of Mr. SCHUMER, the name of the Senator from Kansas (Mr. MORAN) was added as a cosponsor of S. 424, a bill to amend title XVIII of the Social Security Act to preserve access to ambulance services under the Medicare program.

S. 434

At the request of Ms. MIKULSKI, the name of the Senator from Maryland (Mr. CARDIN) was added as a cosponsor of S. 434, a bill to improve and expand geographic literacy among kindergarten through grade 12 students in the United States by improving professional development programs for kindergarten through grade 12 teachers offered through institutions of higher education.

S. 881

At the request of Ms. LANDRIEU, the names of the Senator from Georgia (Mr. ISAKSON) and the Senator from Texas (Mrs. HUTCHISON) were added as cosponsors of S. 881, a bill to amend the Consumer Credit Protection Act to assure meaningful disclosures of the terms of rental-purchase agreements, including disclosures of all costs to consumers under such agreements, to provide substantive rights to consumers under such agreements, and for other purposes.

S. 891

At the request of Mr. GRASSLEY, the name of the Senator from Iowa (Mr. HARKIN) was added as a cosponsor of S. 891, a bill to amend title XVIII of the Social Security Act to provide for the recognition of attending physician assistants as attending physicians to serve hospice patients.

S. 1244

At the request of Mr. INOUYE, the names of the Senator from Kansas (Mr. ROBERTS) and the Senator from New York (Mr. SCHUMER) were added as cosponsors of S. 1244, a bill to provide for preferential duty treatment to certain apparel articles of the Philippines.

S. 1534

At the request of Mr. NELSON of Florida, the name of the Senator from Ohio (Mr. BROWN) was added as a cosponsor of S. 1534, a bill to prevent identity theft and tax fraud.

S. 1591

At the request of Mrs. GILLIBRAND, the names of the Senator from California (Mrs. BOXER) and the Senator from Louisiana (Ms. LANDRIEU) were added as cosponsors of S. 1591, a bill to award a Congressional Gold Medal to Raoul Wallenberg, in recognition of his achievements and heroic actions during the Holocaust.

S. 1629

At the request of Mrs. GILLIBRAND, the name of the Senator from Iowa (Mr. HARKIN) was added as a cosponsor of S. 1629, a bill to amend title 38, United States Code, to clarify presumptions relating to the exposure of certain veterans who served in the vicinity of the Republic of Vietnam, and for other purposes.

S. 1734

At the request of Mr. BLUMENTHAL, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 1734, a bill to provide incentives for the development of qualified infectious disease products.

S. 1773

At the request of Mr. BROWN of Ohio, the name of the Senator from Massachusetts (Mr. KERRY) was added as a cosponsor of S. 1773, a bill to promote local and regional farm and food systems, and for other purposes.

S. 1850

At the request of Mr. HARKIN, the name of the Senator from Massachusetts (Mr. KERRY) was added as a cosponsor of S. 1850, a bill to expand and improve opportunities for beginning farmers and ranchers, and for other purposes.

S. 1919

At the request of Mr. REID, the name of the Senator from Massachusetts (Mr. KERRY) was added as a cosponsor of S. 1919, a bill to amend title 18, United States Code, to provide penalties for transporting minors in foreign commerce for the purposes of female genital mutilation.

S. 2003

At the request of Mrs. FEINSTEIN, the name of the Senator from New Mexico (Mr. BINGAMAN) was added as a cosponsor of S. 2003, a bill to clarify that an authorization to use military force, a declaration of war, or any similar authority shall not authorize the detention without charge or trial of a citizen or lawful permanent resident of the United States and for other purposes.

S. 2066

At the request of Ms. MURKOWSKI, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 2066, a bill to recognize the heritage of recreational fishing, hunting, and shooting on Federal public land and ensure continued opportunities for those activities.

S. 2112

At the request of Mr. BEGICH, the name of the Senator from Montana (Mr. BAUCUS) was added as a cosponsor of S. 2112, a bill to amend title 10, United States Code, to authorize space-available travel on military aircraft for members of the reserve components, a member or former member of a reserve component who is eligible for retired pay but for age, widows and widowers of retired members, and dependents.

S. 2139

At the request of Mrs. MCCASKILL, the name of the Senator from Vermont (Mr. SANDERS) was added as a cosponsor of S. 2139, a bill to enhance security, increase accountability, and improve the contracting of the Federal Government for overseas contingency operations, and for other purposes.

S. 2146

At the request of Mr. BINGAMAN, the name of the Senator from California (Mrs. FEINSTEIN) was added as a cosponsor of S. 2146, a bill to amend the Public Utility Regulatory Policies Act of 1978 to create a market-oriented standard for clean electric energy generation, and for other purposes.

S. 2160

At the request of Mrs. HUTCHISON, her name was added as a cosponsor of S. 2160, a bill to improve the examination of depository institutions, and for other purposes.

S. 2165

At the request of Mrs. BOXER, the names of the Senator from New Hampshire (Mrs. SHAHEEN) and the Senator from North Carolina (Mr. BURR) were added as cosponsors of S. 2165, a bill to enhance strategic cooperation between the United States and Israel, and for other purposes.

S. 2185

At the request of Mr. GRAHAM, the name of the Senator from Indiana (Mr. COATS) was added as a cosponsor of S. 2185, a bill to authorize the Secretary of Health and Human Services acting through the Administrator of the Health Resources and Services Administration, to award grants on a competitive basis to public and private entities to provide qualified sexual risk avoidance education to youth and their parents.

S. 2255

At the request of Mrs. BOXER, the name of the Senator from Louisiana (Ms. LANDRIEU) was added as a cosponsor of S. 2255, a bill to amend chapter 1 of title 36, United States Code, to add Welcome Home Vietnam Veterans Day as a patriotic and National observance.

S. 2295

At the request of Mr. LEAHY, the name of the Senator from Alaska (Mr. BEGICH) was added as a cosponsor of S. 2295, a bill to permit manufacturers of generic drugs to provide additional warnings with respect to such drugs in the same manner that the Food and Drug Administration allows brand names to do so.

S. 2296

At the request of Mrs. HAGAN, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. 2296, a bill to amend the Higher Education Opportunity Act to restrict institutions of higher education from using revenues derived from Federal educational assistance funds for advertising, marketing, or recruiting purposes.

S. RES. 380

At the request of Mr. GRAHAM, the name of the Senator from Washington (Mrs. MURRAY) was added as a cosponsor of S. Res. 380, a resolution to express the sense of the Senate regarding the importance of preventing the Government of Iran from acquiring nuclear weapons capability.

S. RES. 400

At the request of Ms. STABENOW, the name of the Senator from Hawaii (Mr. AKAKA) was added as a cosponsor of S. Res. 400, a resolution supporting the goals and ideals of Professional Social Work Month and World Social Work Day.

AMENDMENT NO. 1975

At the request of Mr. MERKLEY, the name of the Senator from North Dakota (Mr. CONRAD) was added as a cosponsor of amendment No. 1975 intended to be proposed to S. 1789, a bill to improve, sustain, and transform the United States Postal Service.

AMENDMENT NO. 2031

At the request of Mrs. MCCASKILL, the names of the Senator from Iowa (Mr. HARKIN), the Senator from Vermont (Mr. LEAHY), the Senator from Arkansas (Mr. PRYOR), the Senator from Ohio (Mr. BROWN), the Senator from Minnesota (Mr. FRANKEN), the Senator from West Virginia (Mr. MANCHIN), the Senator from Maryland (Ms. MIKULSKI) and the Senator from New York (Mr. SCHUMER) were added as cosponsors of amendment No. 2031 intended to be proposed to S. 1789, a bill to improve, sustain, and transform the United States Postal Service.

AMENDMENT NO. 2034

At the request of Mr. AKAKA, the names of the Senator from New Jersey (Mr. LAUTENBERG), the Senator from Massachusetts (Mr. KERRY) and the Senator from Ohio (Mr. BROWN) were added as cosponsors of amendment No. 2034 intended to be proposed to S. 1789, a bill to improve, sustain, and transform the United States Postal Service.

AMENDMENT NO. 2036

At the request of Mr. PRYOR, the name of the Senator from Montana (Mr. BAUCUS) was added as a cosponsor of amendment No. 2036 intended to be proposed to S. 1789, a bill to improve, sustain, and transform the United States Postal Service.

AMENDMENT NO. 2041

At the request of Mr. MANCHIN, the name of the Senator from West Virginia (Mr. ROCKEFELLER) was added as a cosponsor of amendment No. 2041 intended to be proposed to S. 1789, a bill to improve, sustain, and transform the United States Postal Service.

AMENDMENT NO. 2042

At the request of Mr. CASEY, the names of the Senator from New Hampshire (Mrs. SHAHEEN) and the Senator from Oregon (Mr. MERKLEY) were added as cosponsors of amendment No. 2042 intended to be proposed to S. 1789, a bill to improve, sustain, and transform the United States Postal Service.

AMENDMENT NO. 2043

At the request of Mr. UDALL of New Mexico, the names of the Senator from Vermont (Mr. LEAHY), the Senator from Michigan (Ms. STABENOW) and the Senator from Massachusetts (Mr. KERRY) were added as cosponsors of amendment No. 2043 intended to be proposed to S. 1789, a bill to improve, sustain, and transform the United States Postal Service.

AMENDMENT NO. 2050

At the request of Mr. SCHUMER, the name of the Senator from Massachusetts (Mr. KERRY) was added as a cosponsor of amendment No. 2050 intended to be proposed to S. 1789, a bill to improve, sustain, and transform the United States Postal Service.

AMENDMENT NO. 2056

At the request of Mr. TESTER, the names of the Senator from Vermont (Mr. SANDERS), the Senator from Oregon (Mr. MERKLEY), the Senator from North Dakota (Mr. CONRAD) and the Senator from Minnesota (Ms. KLOBUCHAR) were added as cosponsors of amendment No. 2056 intended to be proposed to S. 1789, a bill to improve, sustain, and transform the United States Postal Service.

AMENDMENT NO. 2060

At the request of Mr. COBURN, the name of the Senator from Maine (Ms. COLLINS) was added as a cosponsor of amendment No. 2060 intended to be proposed to S. 1789, a bill to improve, sustain, and transform the United States Postal Service.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. REED (for himself and Mr. ISAKSON):

S. 2301. A bill to help prevent the occurrence of cancer resulting from the use of ultraviolet tanning lamps by providing sufficient information to consumers regarding the health risks associated with the use of such devices; to the Committee on Health, Education, Labor, and Pensions.

Mr. REED. Mr. President, today I am pleased to be joined by Senator ISAKSON in introducing the Tanning Transparency and Notification Act, or the TAN Act.

This legislation is a continuation of an initiative that we worked on together five years ago during the Food and Drug Administration Amendments Act, FDAAA, of 2007. That initiative required the Food and Drug Administration, FDA, to issue a report to Congress on whether the labeling requirements for indoor tanning devices provide sufficient information to consumers regarding the risks that the use of such devices pose for the development of irreversible damage to the eyes and skin, including skin cancer.

We called for this report in 2007 because the FDA had not updated its warnings on tanning beds since 1979. The FDA still has not acted and we believe that users of indoor tanning beds deserve to be fully informed. While the American Academy of Dermatology, the FDA, the National Institutes of Health, the Centers for Disease Control and Prevention, and the World Health Organization, WHO, continue to discourage the use of indoor tanning beds, this message and up-to-date information about the risks of indoor tanning are still not being adequately provided to consumers.

Not surprisingly, the FDA found in its report to Congress that updating current labeling requirements for tanning beds would better protect consumers from irreversible skin damage. This is an excerpt from the FDA's own report:

Based on its analysis of the results of the consumer study required by section 230 of FDAAA, FDA has determined that there are warnings that are capable of adequately communicating the risks of indoor tanning,

and that a modified warning statement label may more effectively convey these risks than the current labeling requirements. FDA has also determined that changes to the positioning requirements for the warning statement label may communicate such risks more effectively.

Unfortunately, the FDA has not heeded its own advice. Tanning bed labels remain unchanged and skin cancer rates continue to rise. This year, approximately 131,810 new cases of melanoma will be diagnosed in the United States, and nearly 9,180 people will die from melanoma. Some of these cases result from the use of tanning beds.

Two million Americans, approximately 70 percent of whom are girls and women, visit a tanning salon each day. The WHO reports that the risk of cutaneous melanoma increases by 75 percent when use of tanning devices starts before 30 years of age.

Better informing these individuals about the incidence of melanoma, and increasing transparency and improving notification about the risks of indoor tanning are all ways to reduce skin cancer rates. The Tanning Transparency and Notification Act would require the FDA to carry out the recommendations in its report and update the labeling requirements for tanning beds.

Initiatives like this can make a difference in the health of Americans. Indeed, just last year, the FDA finalized critical regulations—at my and others' urging—that were 30 years in the making regarding sunscreen labeling. Providing consumers with critical information about the risks of indoor and outdoor tanning can help better protect them against skin cancer. I look forward to working with my colleagues on improving the labeling of indoor tanning beds and continuing efforts to combat skin cancer.

By Mr. DURBIN (for himself and Mr. KIRK):

S. 2303. A bill to require rulemaking by the Administrator of the Federal Emergency Management Agency to address considerations in evaluating the need for public and individual disaster assistance, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

Mr. DURBIN. Mr. President, today I am introducing the Fairness in Federal Disaster Declaration Act. I am introducing it on behalf of myself and my colleague, Senator MARK KIRK. What we are trying to achieve is fairness in FEMA's consideration of whether a community will be granted Federal assistance after a disaster. I think this legislation is essential because of what just happened in my State.

From 2007 to 2011, Illinois was denied Federal assistance three times. Texas was denied nine times. The damage was caused by everything from wildfires to tropical storms. California was denied five times during that 5-year period. Florida was denied four times, including for damage from Hurricane Ike. And unfortunately, as I mentioned, in my home State of Illinois, the communities of Harrisburg and Ridgway were denied.

This is the damage I saw when I went down to Harrisburg, IL, after a recent tornado. This was a shopping mall, but it was virtually collapsed by winds of 175 miles-per-hour intensity. That is the second highest intensity of recorded winds in a tornado. This property damage, of course, is just a minor part of what actually happened. The major part was the loss of life. Seven people were killed as a result of the tornado damage.

I grew up in the Midwest. I have seen tornadoes all my life. I lived waiting to hear the air raid sirens and head toward the basement. But I never saw anything quite as devastating as what I saw in Harrisburg. And then when I went over to Ridgway, IL, about 25 miles away, I saw that the local Catholic church, which had been standing for I think a century, collapsed when the winds hit it.

It was clear to me and to the Governor and many others as we toured the site that this was going to be a Federal disaster area.

That 175 mile-an-hour wind literally lifted homes off of their slab foundations and tossed them on top of other homes. In one neighborhood in Harrisburg, I happened to see some people leaving in a truck, and I stopped them and they said that the lady in the front seat actually lived in one of the houses that had been destroyed. She pointed it out to me. She got up early enough so that she heard the air raid siren and had the good sense to hit the floor in the bathroom right before the tornado hit her home. Of course, after it hit, and another home collapsed on top of it, the ceiling of her bathroom collapsed on her, but there was enough room for her to survive. They started hearing shortly thereafter the rescuers coming in. She made it with a few scratches and bruises. Just across the street, in one of the homes that was tossed was a 22-year-old local nurse who died as a result.

There were great efforts by first responders, terrific humanitarian gestures. The local coal miners a few miles away, when they heard about the disaster, in full gear, came out of the coal mines and rushed into Harrisburg to pull people out of their homes after they had collapsed.

We went ahead and made our application for Federal disaster aid in Harrisburg, IL, and we were denied. In the President's home State, we were denied. We thought, something is wrong here. We thought, with all of this damage from a tornado of this intensity, it must be wrong. So Governor Quinn sat down with local and State officials and redrafted our application for Federal assistance. It was sent to Washington, and it was denied a second time. I was stunned by it. I couldn't believe it, after having seen it, that this happened.

We went to FEMA and said, What did we miss here? People died, over 100 homes were destroyed, and it ripped its way through Harrisburg and into Ridgway, IL. What was missing here? Well, they said, we have to do a calculation under the law, and one of the elements in the calculation is the population of your State. Well, this is how it turned out. The damage that happened in southern Illinois, if it had happened across the river in Indiana or in Kentucky or in Missouri, would have been a Federal disaster. But because we have about 12 million people, we weren't declared a Federal disaster. What is the thinking behind that? If you are from a big State, you must have a lot of resources to take care of your own problems. Not so. Unfortunately, the State budget of Illinois is virtually bankrupt.

So we decided it was time to put a bill in that took into consideration a lot of factors and did not allow this disqualification for a large State. The bill Senator MARK KIRK and I are introducing today assigns a value to each of the six factors that are to be considered in a disaster declaration analysis. When it comes to individual assistance, help for people to rebuild their homes and pay for temporary housing, we use the same consistent factors no matter where the disaster strikes. The population of the State is worth 5 percent of the consideration. The consideration of the concentration of damages is worth 20 percent; the amount of trauma to the disaster area, 20 percent; the number of special populations such as the elderly or unemployed, 20 percent of the analysis; the amount of voluntary assistance in the area, 10 percent; and the amount of insurance coverage for the type of damage incurred, 20 percent.

Our bill also adds a seventh consideration to FEMA's metrics: the economics of the area. It turns out that southern Illinois is hard-pressed. There are a lot of unemployed people, a struggling economy. So we take a look at the local tax base, the median income as it compares to that of the State, and the poverty rate in the area that has been hard hit. It is reasonable that FEMA should take into consideration the size of a State; I don't argue with that, but it shouldn't loom large and disqualify situations which clearly deserve to be considered Federal disasters. Assigning values to the factors will ensure that damage to a specific community weighs more than just the State's population.

After the tornadoes hit Harrisburg and Ridgway, the head of the Illinois Emergency Management Agency, Jonathon Monken, worked with locals and people from the FEMA regional office to determine if the State could apply for public assistance—money to help local Mayor Gregg in Harrisburg and others pay for overtime accrued by all the people working around the clock to help the community dig out of the destruction. What Director Monken and others discovered was that it would have been a waste of the State's

time and resources to even consider applying for it. We didn't meet FEMA's threshold.

Currently, FEMA multiplies the number of people in a State by $1.35 to determine the threshold of the amount of damage a State would have to incur to qualify for public assistance. In Illinois, that figure is $17 million. Well, Harrisburg, Ridgway, and the surrounding communities had about $5.5 million in public assistance damage. That is a lot of loss for rural areas and small towns, but not enough to qualify for Federal assistance.

So we put together in this bill a standard for public assistance—money that would go to local units of government. Per capita consideration, 10 percent; localized impact of the disaster, 40 percent; the estimated cost of assistant needed, 10 percent; insurance coverage, 10 percent; the number of recent multiple disasters, 10 percent; and an analysis of other Federal assistance in the area, 10 percent. The bill would also add a seventh consideration just as it did under individual assistance, and that is the economic circumstances of the affected area. I mentioned earlier the elements that were brought into consideration there. I think this is a more honest and realistic approach.

Today, in order to introduce this bill, I am talking about a disaster which visited our State a few weeks ago. Tomorrow it could be the State of one of my colleagues. My colleagues could find out that a devastating natural disaster does not qualify for Federal disaster assistance simply because of the population of their State. I don't think that is a fair metric to use. I think our approach is fairer.

I commend this bill to my colleagues. As I say in closing, over this last few months it was Illinois. Tomorrow, it may be a colleague's State. Please take the time and look at this approach. I think it is fair to taxpayers. It is certainly fair to families across America.

Those of us who have been in the Senate and the Congress for a while have stepped up time and again when our colleagues were affected by a natural disaster. I hope my colleagues will take the time to consider this legislation from Senator KIRK and myself.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD as follows:

There being no objection, the text of the bill was ordered to be printed in the RECORD as follows:

S. 2303

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Fairness in Federal Disaster Declarations Act of 2012''.

SEC. 2. REGULATORY ACTION REQUIRED.

(a) IN GENERAL.—Not later than 120 days after the date of enactment of this Act, the Administrator of the Federal Emergency Management Agency (in this Act referred to as the ''Administrator'' and ''FEMA'', respectively) shall amend the rules of the Administrator under section 206.48 of title 44, Code of Federal Regulations, as in effect on the date of enactment of this Act, in accordance with the provisions of this Act.

(b) NEW CRITERIA REQUIRED.—The amended rules issued under subsection (a) shall provide for the following:

(1) PUBLIC ASSISTANCE PROGRAM.—Such rules shall provide that, with respect to the evaluation of the need for public assistance—

(A) specific weighted valuations shall be assigned to each criterion, as follows—

(i) estimated cost of the assistance, 10 percent;

(ii) localized impacts, 40 percent;

(iii) insurance coverage in force, 10 percent;

(iv) hazard mitigation, 10 percent;

(v) recent multiple disasters, 10 percent;

(vi) programs of other Federal assistance, 10 percent; and

(vii) economic circumstances described in subparagraph (B), 10 percent; and

(B) FEMA shall consider the economic circumstances of—

(i) the local economy of the affected area, including factors such as the local assessable tax base and local sales tax, the median income as it compares to that of the State, and the poverty rate as it compares to that of the State; and

(ii) the economy of the State, including factors such as the unemployment rate of the State, as compared to the national unemployment rate.

(2) INDIVIDUAL ASSISTANCE PROGRAM.—Such rules shall provide that, with respect to the evaluation of the severity, magnitude, and impact of the disaster and the evaluation of the need for assistance to individuals—

(A) specific weighted valuations shall be assigned to each criterion, as follows—

(i) concentration of damages, 20 percent;

(ii) trauma, 20 percent;

(iii) special populations, 20 percent;

(iv) voluntary agency assistance, 10 percent;

(v) insurance, 20 percent;

(vi) average amount of individual assistance by State, 5 percent; and

(vii) economic considerations described in subparagraph (B), 5 percent; and

(B) FEMA shall consider the economic circumstances of the affected area, including factors such as the local assessable tax base and local sales tax, the median income as it compares to that of the State, and the poverty rate as it compares to that of the State.

By Ms. COLLINS (for herself, Mr. LIEBERMAN, Mr. BROWN of Massachusetts, Mr. AKAKA, and Mr. CARPER):

S. 2316. A bill to amend the Homeland Security Act of 2002 to direct the Administrator of the Federal Emergency Management Agency to modernize the integrated public alert and warning system of the United States, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

Ms. COLLINS. Mr. President, today, I rise to introduce the Integrated Public Alert and Warning System, IPAWS, Modernization Act of 2012. I am pleased to be joined by Senators LIEBERMAN, SCOTT BROWN, AKAKA, and CARPER in introducing this bill. It will ensure that more people receive life-saving information in more parts of America, more of the time, through current and future technologies.

Effective communication with the public before, during, and after a disaster is vitally important and can literally mean the difference between life and death. Since the 1950's, the U.S. Government has had a system in place to ensure that citizens can be warned in times of crisis. This system can also be used for local authorities to warn citizens of impending severe weather or other hazards to public safety.

Most people know the Emergency Alert System, EAS, as the crawling text on their television screens, and although this system remains the backbone of our national alerting capability, times have changed, and so must the way we communicate with the public during times of crisis.

This bill will strengthen the IPAWS system and ensure that as many Americans as possible receive these alerts in a timely and useful manner. The bill ensures that the integrated public alert and warning system incorporates multiple communications technologies, including new technologies such as smart phones and social networking sites;

The bill is designed to adapt to and incorporate future technologies;

The bill is designed to provide alerts to the largest portion of the affected population, including remote areas;

The bill promotes local and regional public and private partnerships; and

The bill provides redundant alert mechanisms in order to reach the greatest number of people possible.

The bill also requires the FEMA Administrator to ensure the inclusion of those with disabilities in the alert and warning system; ensure that the system is included in future exercises conducted through DHS's National Exercise Program, including the annual National Level Exercises; and requires FEMA to coordinate with DHS's National Terrorism Advisory System office. The bill provides for periodic nationwide tests of the system, and establishes a training program to instruct federal, state, tribal and local government officials in system use.

The bill also establishes an IPAWS Advisory Committee composed of federal, State and local representatives, as well as members who represent relevant industry groups and a consumer/privacy advocate. The committee would meet at least once a year and issue a yearly report on improvements to IPAWS. The bill also states that the administrator may not transmit a message from the President that does not relate to a natural disaster, act of terrorism, other man-made disaster, or other hazard to public safety.

This bill has been endorsed by the National Emergency Management Association, NEMA, the National Association of Broadcasters, NAB, the National Federation of the Blind, and the Hearing Loss Association of America. Additionally, we have received a letter of support from the CEOs of all 50 State broadcast trade associations.

I look forward to working with all of my colleagues to pass this bill and have it signed into law.

Mr. President, I ask unanimous consent that letters of support be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

NATIONAL ASSOCIATION OF BROADCASTERS,
Washington, DC, April 16, 2012.

Hon. SUSAN COLLINS, Ranking Member,
Committee on Homeland Security and Governmental Affairs, Dirksen Senate Office Building, Washington, DC.

DEAR RANKING MEMBER COLLINS: I write in support of your bill, the Integrated Public Alert and Warning System (IPAWS) Modernization Act of 2012, which will modernize the public alert and warning system of the United States to ensure that the president, under all conditions, can effectively alert and warn citizens during times of disaster. America's broadcasters strongly support this legislation.

Broadcasters serve our local communities during emergencies by providing life-saving information, important news and weather reports. We have proudly worked with local and federal governments for more than six decades, airing alerts issued by the Emergency Alert System (EAS), and continue to do so today. Working hand in hand with law enforcement, broadcasters have helped to successfully recover more than 540 abducted children to date through the use of AMBER Alerts.

The IPAWS Modernization Act of 2012 is an important step towards expanding the nation's public warning system by integrating multiple communications systems and future technologies. This legislation promotes local and regional public and private partnerships and provides redundant alert mechanisms to reach the largest number of people during an emergency.

Additionally, this legislation establishes a training program to instruct federal, state, tribal and local government officials in system use. Broadcasters are very supportive of such a training program and view this as a critical component to successful alerting. Strengthening coordination among the different levels of government, the legislation will set up an IPAWS Modernization Select Advisory Committee composed of federal, state and local representatives as well as members from various industry groups. We look forward to participating in this Advisory Committee and continuing our partnership with the federal government.

Sincerely,

GORDON H. SMITH,
President and CEO.

HEARING LOSS ASSOCIATION OF AMERICA,
Bethesda, MD, April 12, 2012.

Hon. SUSAN COLLINS,
U.S. Senate, Dirksen Senate Office Building, Washington, DC.

DEAR SENATOR COLLINS: The Hearing Loss Association of America is pleased to endorse the Integrated Public Alert and Warning System Modernization Act of 2012. We applaud your efforts to update the integrated public alert and warning system, and are particularly pleased to see that this legislation would require specific steps to ensure individuals with disabilities are not forgotten.

One of the Federal Emergency Management Agency's (FEMA) core responsibilities is to keep Americans informed about threats to public safety, and yet the current public alert and warning system is not always accessible to people with hearing loss. In fact, the November 9, 2011 testing of EAS proved to be problematic: some cable stations did not provide the needed text to properly inform people with hearing loss that it was only a test; some did not provide the needed audible alerts; others did not provide the emergency alert at all.

The Integrated Public Alert and Warning System Modernization Act of 2012 updates the system to incorporate multiple communication technologies and adapt to emerging technology, and it requires the system to reach people with hearing loss and other disabled people. The bill also ensures that organizations representing people with hearing loss will sit on an advisory committee that will make recommendations on modernization of the system, keeping people with hearing loss engaged with Federal agencies during this process.

By requiring the system to incorporate new technologies but still reaching people with hearing loss and other people with disabilities, FEMA will be supporting technology that is accessible to all. The modernization will also ensure that people with hearing loss are provided with the same critical information at the same time as the rest of the country, allowing everyone to make independent, educated decisions during emergencies. On behalf of Americans with hearing loss, we thank you again for taking the initiative in this matter and sponsoring this important legislation.

Sincerely,

BRENDA BATTAT,
Executive Director.

NATIONAL EMERGENCY MANAGEMENT ASSOCIATION,
Washington, DC, March 7, 2012.

Hon. SUSAN COLLINS,
Ranking Member, Homeland Security and Governmental Affairs Committee, U.S. Senate, Washington, DC.

DEAR SENATOR COLLINS: On behalf of the National Emergency Management Association (NEMA) representing the emergency management director of all 50 states, Territories, and the District of Columbia, we are pleased to endorse The Integrated Public Alert and Warning System Modernization Act of 2012.

The Integrated Public Alert and Warning System (IPAWS) was designed to bring together different and emerging communication technologies into a fully coordinated network so comprehensive communication may occur in the event of an emergency or disaster. Created by a 2006 Executive order, IPAWS represents a step forward from outdated systems which relied on radio and television alone to reach the population at-large when there is an incident.

Since the 2006 Executive Order, IPAWS has languished without a true direction, appropriate authorization, or codified organization. Your legislation brings about all these needed aspects to the program that we have supported in recent years. In 2008, NEMA unanimously approved a position paper regarding IPAWS. One aspect of the program in which we felt needed improvement was greater coordination with state and local governments. Since last year, outreach to state officials has certainly improved, but we believe your recommendation of the IPAWS Advisory Committee will help bring about even more coordination with the Federal Emergency Management Agency.

Alert systems represent critical components of local and state emergency operations plans, so it remains essential the IPAWS system is integrated, coordinated, and comprehensive. We must remain careful, however, that these components to not come at the expense of already stressed state budgets.

We greatly appreciate your leadership on this issue and look forward to working together with you, Chairman Lieberman, and the rest of the committee to ensure passage of this bill. Please feel free to utilize our membership as a resource as The Integrated Public Alert and Warning System Modernization Act of 2012 moves through the legislative process. You may also call upon our Director of Government Relations, Matt Cowles any time.

Sincerely,

JIM MULLEN,
NEMA President, Director, Washington Military Department Division of Emergency Management.

NATIONAL FEDERATION OF THE BLIND,
Baltimore, MD, April 18, 2012.

Hon. SUSAN COLLINS,
U.S. Senate, Dirksen Senate Office Building, Washington, DC.

DEAR SENATOR COLLINS: The National Federation of the Blind (NFB), the nation's largest and oldest organization of blind people, endorses the Integrated Public Alert and Warning System Modernization Act of 2012. We thank you for sponsoring a bill that updates the integrated public alert and warning system to require inclusion of individuals with disabilities, and we encourage the U.S. Senate to pass this legislation promptly.

One of the Federal Emergency Management Agency's (FEMA) core responsibilities is to keep Americans informed about threats to public safety, and yet many aspects of the current public alert and warning system are not accessible to blind people. This inaccessibility is perpetuated by misconceptions about blindness and the ever-growing popularity of inaccessible digital technology. As a result, blind people are regularly denied access to critical public information. The Integrated Public Alert and Warning System Modernization Act of 2012 updates the system to incorporate multiple communication technologies and adapt to emerging technology, and it requires the system to reach blind and other disabled people. The bill also ensures that a representative from a blindness advocacy group will sit on an advisory committee that will make recommendations on the modernization, keeping the blind engaged with Federal agencies during this process.

By requiring the system to incorporate new technologies but still reach blind and other disabled people, FEMA will be encouraging manufacturers and carriers to make their communication technologies accessible by nonvisual means. The modernization will also ensure that blind people are provided with the same critical information at the same time as the rest of the country, allowing blind people to make independent, educated decisions during emergencies. On behalf of blind Americans, we thank you again for taking the initiative in this matter and sponsoring this legislation.

Sincerely,

JOHN G. PARÉ, Jr.,
Executive Director for Strategic Initiatives.

NATIONAL ALLIANCE OF STATE BROADCASTERS ASSOCIATIONS,
April 16, 2012.

Hon. SUSAN M. COLLINS,
U.S. Senator,
Washington, DC.

DEAR SENATOR COLLINS: The undersigned, who are the chief executive officers of the named State Broadcasters Associations, are pleased to offer our support and endorsement for your proposed bill authorizing the Integrated Public Alert and Warning System (IPAWS).

If passed, this bill will ensure that more people receive life saving information in more parts of America, more of the time,

through current and future alert and warning technologies, while strengthening broadcasters' role as the backbone of America's public alerting system.

Many of us serve as chairs or members of our respective State Emergency Communications Committees, which are charged with managing the Emergency Alert System (EAS) in our states. We have all worked tirelessly over the years to ensure that a robust, reliable alerting system is available when it is needed.

We have observed over the years that the system needs a higher level of coordination among the various federal, state and local public safety and emergency management agencies as ''message originators,'' on the one hand, and the broadcast, cable and satellite ''message relayers'' on the other hand; and that the absence of any formal, on-going training of state and local public safety and emergency management personnel on the use of EAS has hampered state and local officials' willingness and ability to use it efficiently in times of emergency, thus putting lives and property at risk.

Your bill will address these problems and will make giant strides toward improvement of alert and warning capability in our states and across our nation. We look forward to working with you toward successful passage of this important measure.

Very truly yours,

The Undersigned CEOs of the Fifty State Broadcast Trade Associations.

Alabama Broadcasters Association, Sharon Tinsley; Alaska Broadcasters Association, Darlene Simono; Arizona Broadcasters Association, Art Brooks; Arkansas Broadcasters Association, Doug Krile; California Broadcasters Association, Stan Statham; Colorado Broadcasters Association, Byron Grandy; Connecticut Broadcasters Association, Mike Rice; Florida Association of Broadcasters, Pat Roberts; Georgia Association, of Broadcasters, Jere Pigue; Hawaii Association of Broadcasters, Jamie Hartnett; Idaho State Broadcasters Association, Connie Searles; Illinois Broadcasters Association, Dennis Lyle; Indiana Broadcasters Association, Linda Compton; Iowa Broadcasters Association, Sue Toma; Kansas Association of Broadcasters, Kent Cornish; Kentucky Broadcasters Association, Gary White; Louisiana Association of Broadcasters, Lou Munson; Maine Association of Broadcasters, Suzanne Goucher; Maryland/D.C./Delaware (MDCD) Broadcasters Association, Lisa Reynolds; Massachusetts Broadcasters Association, Jordan Walton; Michigan Association of Broadcasters, Karole L. White; Minnesota Broadcasters Association, Jim du Bois; Mississippi Association of Broadcasters, Jackie Lett; Missouri Broadcasters Association, Donald Hicks; Montana Broadcasters Association, Greg MacDonald; Nebraska Broadcasters Association, Marty Riemenschneider; Nevada Broadcasters Association, Robert Fisher; New Hampshire Association of Broadcasters, Jordan Walton; New Jersey Broadcasters Association, Paul Rotella; New Mexico Broadcasters Association, Paula Maes; New York State Broadcasters Association, David Donovan; North Carolina Association of Broadcasters, Wade Hargrove, Esq.; North Dakota Broadcasters Association, Beth Helfrich; Ohio Association of Broadcasters, Chris Merritt; Oklahoma Association, of Broadcasters, Vance Harrison; Oregon Association of Broadcasters, Bill Johnstone; Pennsylvania Association of Broadcasters, Rich Wyckoff; Radio Broadcasters Association of Puerto Rico, Jose A. Ribas Dominicci; Rhode Island Broadcasters Association, Lori Needham; South Carolina Broadcasters Association, Shani White; South Dakota Broadcasters Association, Steve Willard; Tennessee Association of Broadcasters, Whit Adamson; Texas Association of Broadcasters, Ann Arnold; Utah Broadcasters Association, Dale Zabriskie; Vermont Association of Broadcasters, Jim Condon; Virginia Association of Broadcasters, Doug Easter; Washington State Association of Broadcasters, Mark Allen; West Virginia Broadcasters Association, Michele Crist; Wisconsin Broadcasters Association, Michelle Vetterkind; Wyoming Association of Broadcasters, Laura Grott.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 427—TO PREVENT THE CREATION OF DUPLICATIVE AND OVERLAPPING FEDERAL PROGRAMS

Mr. COBURN (for himself and Mr. UDALL of Colorado) submitted the following resolution; which was referred to the Committee on Rules and Administration:

S. RES. 427

Resolved,

SECTION 1. SHORT TITLE.

This resolution may be cited as the ''Preventing Duplicative and Overlapping Government Programs Resolution''.

SEC. 2. REPORTED LEGISLATION.

Paragraph 11 of rule XXVI of the Standing Rules of the Senate is amended—

(1) in subparagraph (c), by striking ''and (b)'' and inserting ''(b), and (c)'';

(2) by redesignating subparagraph (c) and subparagraph (d); and

(3) by inserting after subparagraph (b) the following:

''(c) The report accompanying each bill or joint resolution of a public character reported by any committee (including the Committee on Appropriations and the Committee on the Budget) shall contain—

''(1) an analysis by the Congressional Research Service to determine if the bill or joint resolution creates any new Federal program, office, or initiative that would duplicate or overlap any existing Federal program, office, or initiative with similar mission, purpose, goals, or activities along with a listing of all of the overlapping or duplicative Federal program or programs, office or offices, or initiative or initiatives; and

''(2) an explanation provided by the committee as to why the creation of each new program, office, or initiative is necessary if a similar program or programs, office or offices, or initiative or initiatives already exist.''.

SEC. 3. CONSIDERATION OF LEGISLATION.

Rule XVII of the Standing Rules of the Senate is amended by inserting at the end thereof the following:

''6. (a) It shall not be in order in the Senate to proceed to any bill or joint resolution unless the committee of jurisdiction has prepared and posted on the committee website an overlapping and duplicative programs analysis and explanation for the bill or joint resolution as described in subparagraph (b) prior to proceeding.

''(b) The analysis and explanation required by this subparagraph shall contain—

''(1) an analysis by the Congressional Research Service to determine if the bill or joint resolution creates any new Federal program, office, or initiative that would duplicate or overlap any existing Federal program, office, or initiative with similar mission, purpose, goals, or activities along with a listing of all of the overlapping or duplicative Federal program or programs, office or offices, or initiative or initiatives; and

''(2) an explanation provided by the committee as to why the creation of each new program, office, or initiative is necessary if a similar program or programs, office or offices, or initiative or initiatives already exist.

''(c) This paragraph may be waived by joint agreement of the Majority Leader and the Minority Leader of the Senate upon their certification that such waiver is necessary as a result of—

''(1) a significant disruption to Senate facilities or to the availability of the Internet; or

''(2) an emergency as determined by the leaders.''.

SENATE RESOLUTION 428—CONDEMNING THE GOVERNMENT OF SYRIA FOR CRIMES AGAINST HUMANITY, AND FOR OTHER PURPOSES

Mr. BLUMENTHAL (for himself, Mr. GRAHAM, Ms. KLOBUCHAR, Mr. KIRK, Ms. COLLINS, Mr. COATS, Mr. MCCAIN, and Mr. CARDIN) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 428

Whereas, on December 22, 2010, the Senate passed S. Con. Res. 71 (111th Congress), a bipartisan resolution recognizing that it is in the national interest of the United States to prevent and mitigate acts of genocide and other mass atrocities against civilians;

Whereas, since the uprisings in Syria began in January 2011, the Government of Syria has manifestly failed in its responsibility to protect its people;

Whereas, on August 4, 2011, President Barack Obama issued Presidential Study Directive/PSD–10, stating, ''Preventing mass atrocities and genocide is a core national security interest and a core moral responsibility of the United States.'';

Whereas, on November 23, 2011, the United Nations-appointed Independent International Commission of Inquiry on the Syrian Arab Republic expressed grave concern that ''crimes against humanity of murder, torture, rape or other forms of sexual violence of comparable gravity, imprisonment or other severe deprivation of liberty, enforced disappearances of persons and other inhumane acts of a similar character have occurred in different locations in Syria since March 2011'' and that ''the Syrian Arab Republic bears responsibility for these crimes and violations'';

Whereas, on February 3, 2012, Syria security forces began using indiscriminate sniper fire and shelling of the densely populated neighborhoods of Homs with heavy weaponry;

Whereas, on February 4, 2012, President Obama stated that President Assad ''has no right to lead Syria and has lost all legitimacy with his people and the international community'';

Whereas, on February 4, 2012, the United States co-sponsored a draft United Nations Security Council resolution condemning ''the continued widespread and gross violations of human rights and fundamental freedoms by the Syrian authorities such as the use of force against civilians, arbitrary executions, killing and persecution of protestors and members of the media, arbitrary detention, enforced disappearances, interference with access to medical treatment, torture, sexual violence, and ill-treatment, including against children'';

Whereas, on February 17, 2012, the Senate passed S. Res. 379 (112th Congress), stating

that the ''gross human rights violations perpetuated by the Government of Syria against the people of Syria represent a grave risk to regional peace and stability'';

Whereas, on February 22, 2012, the Independent International Commission of Inquiry on the Syrian Arab Republic found in a subsequent report that ''[a] reliable body of evidence exists that, consistent with other verified circumstances, provides reasonable grounds to believe that particular individuals, including commanding officers and officials at the highest levels of Government, bear responsibility for crimes against humanity and other gross human rights violations'' and that ''children continue to be arbitrarily arrested and tortured while in detention'';

Whereas, on February 28, 2012, the United Nations Security Council was informed that over 7500 people in Syria have been killed, an estimated 100 more are killed each day in attacks directed against the civilian population, and there are between 100,000 and 200,000 internally displaced persons in Syria;

Whereas, on February 28, 2012, Secretary of State Hillary Clinton testified before the Subcommittee on the Department of State, Foreign Operations, and Related Programs of the Committee on Appropriations of the Senate concerning President Assad, stating that ''based on the definitions of war criminal and crimes against humanity, there would be an argument to be made that he would fit into that category'';

Whereas, on March 1, 2012, Assistant Secretary of State for Near East Affairs Jeffrey Feltman testified before the Committee on Foreign Relations of the Senate that ''large numbers of Syrians are living every day under siege, deprived of basic necessities including food, clean water and medical supplies, and women and children are wounded and dying for lack of treatment'';

Whereas, on March 8, 2012 Ambassador Susan Rice, the United States Permanent Representative to the United Nations, stated that the United States ''remain[s] determined to hasten the day when the brave people of Syria can shake off the yoke of bondage and tyranny'';

Whereas, on March 27, 2012, United States Ambassador to Syria Robert Ford, in testimony before the Tom Lantos Human Rights Commission, cited massive human rights violations that, ''may amount to crimes against humanity''; and

Whereas, with the intent and knowledge of the highest level of the Government of Syria, including commanding officers of the Syria security forces and the President of the Syrian Arab Republic, Bashir Assad, members of the Syria security forces have reportedly committed a widespread and systematic pattern of gross human rights violations, including use of force against civilians, torture, extra judicial killings, arbitrary executions, sexual violence, the execution of defectors, and interference with medical treatment and other humanitarian assistance: Now, therefore, be it

Resolved, That the Senate—

(1) condemns the Government of Syria, Syria security forces, and the President of the Syrian Arab Republic for widespread and systematic attacks against the civilian population of Syria;

(2) commends the President for the vote of the United States at the United Nations Security Council to condemn the continued widespread and gross violations of human rights and fundamental freedoms by the authorities in Syria;

(3) urges the President to use his authority to collect information on incidents in Syria that may constitute crimes against humanity under section 2113 of the ADVANCE Democracy Act of 2007 (title XXI of Public Law 110–53; 22 U.S.C. 8213) and take action to ensure that the Government of Syria, its leaders, and senior officials who are responsible for crimes against humanity are brought to account for such crimes in an appropriately constituted tribunal;

(4) urges the President to formally establish the Atrocities Prevention Board established by Presidential Study Directive–10 in August 2011, and for the Board to provide recommendations to the President concerning the prevention of mass atrocities in Syria;

(5) urges the international community, working with the people of Syria to review legal processes available to hold officials of the Government of Syria, Syria security forces, and the President of the Syrian Arab Republic accountable for crimes against humanity and gross violations of human rights; and

(6) expresses solidarity and support for the people of Syria as they seek to exercise universal rights and pursue peaceful democratic change.

Mr. BLUMENTHAL. Mr. President, I rise to submit a resolution condemning the Government of Syria for crimes against humanity. I am pleased to be joined by Senators GRAHAM, KLOBUCHAR, KIRK, CARDIN, COATS, COLLINS, and MCCAIN in submitting this resolution.

I am very proud we have strong bipartisan support and I thank, in particular, Senator GRAHAM for his leadership, along with Senator MCCAIN, who repeatedly and consistently in this area of human rights and liberties have stood for basic American principles of democracy and freedom. I had the great opportunity to visit a number of the Middle Eastern countries with them, and my strong support for this kind of resolution rises from the first-hand views we were able to have of the results of freedom fighters in Tunisia, Libya and Egypt and the impact on the future of their country and being on the right side of history, as the United States was there. Those people showed their gratitude and welcomed us to their countries.

I am grateful to Senators MCCAIN and GRAHAM for giving me that opportunity, along with Senators SESSIONS and HOEVEN, who accompanied us, for their leadership.

Syrian crimes against humanity include acts such as murder, torture and unlawful punishment and imprisonment when committed as part of a widespread or systematic attack on civilian populations.

Since peaceful protests began last year, the Syrian regime has brutalized and savaged its own people, leaving thousands dead as it commits horrific crimes against humanity, including the abduction and torture of children.

This resolution tells the Syrian people they are not alone, that the American people are with them as they fight for freedom and basic democratic rights; the people of the world are watching.

On November 23, 2011, the U.N.-appointed Independent International Commission of Inquiry on the Syrian Arab Republic expressed grave concern that ''crimes against humanity of murder, torture, rape or other forms of sexual violence . . . imprisonment or other severe deprivation of liberty, enforced disappearances of persons and other inhumane acts . . . have occurred in different locations in Syria since March 2011.''

The Commission also found that ''the Syrian Arab Republic bears responsibility for these crimes and violations.''

Assistant Secretary of State for Near East Affairs Jeffrey Feltman testified before the Committee on Foreign Relations of the Senate that ''large numbers of Syrians are living every day under siege, deprived of basic necessities including food, clean water and medical supplies, and women and children are wounded and dying for lack of treatment.''

General Mattis, commander of the U.S. Central Command, for whom I have the strongest and deepest respect, explained before the Senate Armed Services Committee ''the Syrian military continues to ruthlessly use lethal force with impunity against the Syrian people.''

In this body, we have not remained silent in the face of this humanitarian disaster, approving on February 17, 2012, S. Res. 379, condemning violence by the Government of Syria against the Syrian people. We have also approved S. Res. 391, which I cosponsored, condemning violence by the Government of Syria against journalists and expressing the sense of the Senate on freedom of the press in Syria.

The world should be inspired by the continuing courage and determination of Syrian protesters standing and speaking, despite the Syrian military gunning down and bombing their homes, businesses, and neighborhoods.

I know our Nation is at war and rightly wary of intervention abroad. But military intervention is not our only option, not the only means to summon support or step forward in solidarity with the freedom fighters in Syria, nor is military intervention alone sufficient to call forth the world's conscience. Even without military action, we need not abdicate the democratic rights and principles that underlie and underpin our own Nation's constitutional ethos.

One powerful and profound step this body can take is to bear witness to the atrocities occurring in Syria. More than 9,000 people have died in Syria since these protests began. As Elie Wiesel has said, ''For the dead and the living, we must bear witness.''

The Syrian thugs who detain and torture children must know the United States bears witness to their crimes. We should say to President Assad that the world is watching and witnessing as he uses snipers to target civilians, indiscriminately shelling homes and businesses, and torturing protesters who dare to speak of change.

This resolution calls on President Obama to bear witness by using his existing authority. America can and

must bear witness by taking and preserving evidence of actions and incidents in Syria that constitute crimes against humanity. America must bear witness by asking the President's newly created Atrocities Prevention Board to consider crimes against humanity occurring in Syria.

These atrocities epitomize the crimes this prevention board must address. I commend President Obama and Secretary of State Clinton for their work at the U.N. and with our allies to assist the Syrian people. We should make our own findings about what has occurred in Syria concerning the crimes against humanity. We cannot avoid this obligation simply because the result may present difficult choices.

As Martin Luther King would often remind us, ''The arc of the moral universe is long, but it bends toward justice.''

If we bear witness today, justice will come closer for the Syrian people. President Assad and the Government of Syria, its leaders and senior officials who are responsible for crimes against humanity, will be brought to account and justice for their crimes.

I urge my colleagues to join me in supporting this resolution.

SENATE RESOLUTION 429—SUPPORTING THE GOALS AND IDEALS OF WORLD MALARIA DAY

Mr. WICKER (for himself, Mr. COONS, Mr. COCHRAN, Mr. CARDIN, Mr. DURBIN, Mr. BOOZMAN, and Mr. BINGAMAN) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 429

Whereas April 25th of each year is recognized internationally as World Malaria Day;

Whereas malaria is a leading cause of death and disease in many developing countries, despite being completely preventable and treatable;

Whereas fighting malaria is in the national security interest of the United States Government, as reducing the risk of malaria protects members of the Armed Forces of the United States serving overseas in malaria endemic regions, and reducing malaria deaths helps to promote stability in less developed countries;

Whereas, according to the Centers for Disease Control and Prevention, 35 countries, the majority of which are in sub-Saharan Africa, account for 98 percent of global malaria deaths;

Whereas young children and pregnant women are particularly vulnerable to and disproportionately affected by malaria;

Whereas malaria greatly affects child health, as children under the age of 5 account for an estimated 85 percent of malaria deaths each year;

Whereas malaria poses great risks to maternal health, causing complications during delivery, anemia, and low birth weights, with estimates that malaria infection causes 400,000 cases of severe maternal anemia and between 75,000 and 200,000 infant deaths annually in sub-Saharan Africa;

Whereas heightened national, regional, and international efforts to prevent and treat malaria over recent years have made measurable progress and helped save hundreds of thousands of lives;

Whereas the World Malaria Report 2011 by the World Health Organization states that in 2011, approximately 50 percent of households in sub-Saharan Africa owned at least 1 insecticide-treated mosquito net (referred to in this preamble as an ''ITN''), and household surveys indicated that 96 percent of people with access to an ITN within a household actually used the ITN;

Whereas, in 2010, a total of 185,000,000 people were protected by indoor residual spraying (referred to in this preamble as ''IRS'');

Whereas the World Malaria Report 2011 further states that malaria mortality rates have fallen by more than 25 percent globally, and 33 percent in Africa alone, since 2000;

Whereas the World Malaria Report 2011 further states that out of 99 countries with ongoing malaria transmissions, 43 countries recorded decreases of more than 50 percent in the number of malaria cases between 2000 and 2010, and 8 other countries recorded decreases of more than 25 percent;

Whereas continued national, regional, and international investment in efforts to eliminate malaria, including prevention and treatment efforts and the development of a vaccine to immunize children from the malaria parasite, is critical in order to continue to reduce malaria deaths, prevent backsliding in areas where progress has been made, and equip the United States and the global community with the tools necessary to fight malaria and other global health threats;

Whereas the United States Government has played a leading role in the recent progress made toward reducing the global burden of malaria, particularly through the President's Malaria Initiative (referred to in this preamble as ''PMI'') and the contribution of the United States to the Global Fund to Fight AIDS, Tuberculosis, and Malaria;

Whereas the United States Government is pursuing a comprehensive approach to ending malaria deaths through PMI, the United States Agency for International Development, the National Institutes of Health, the Centers for Disease Control and Prevention, the Department of Defense, and the private sector focused on helping partner countries to achieve major improvements in overall health outcomes through advances in access to, and the quality of, healthcare services in resource-poor settings; and

Whereas PMI, recognizing the burden of malaria on many partner countries, has set a target of reducing the burden of malaria by 50 percent for 450,000,000 people, representing 70 percent of the at-risk population in Africa, by 2015: Now, therefore, be it

Resolved, That the Senate—

(1) supports the goals and ideals of World Malaria Day, including the target of ending malaria deaths by 2015;

(2) recognizes the importance of reducing malaria prevalence and deaths to improve overall child and maternal health, especially in sub-Saharan Africa;

(3) commends the recent progress made toward reducing global malaria deaths and prevalence, particularly through the efforts of the President's Malaria Initiative and the Global Fund to Fight AIDS, Tuberculosis, and Malaria;

(4) strongly supports ongoing public-private partnerships to research and develop more effective and affordable tools for malaria diagnosis, treatment, and vaccination;

(5) recognizes the goals to combat malaria in the Tom Lantos and Henry J. Hyde United States Global Leadership Against HIV/AIDS, Tuberculosis, and Malaria Reauthorization Act of 2008 (Public Law 110–293; 122 Stat. 2918);

(6) supports continued leadership by the United States in bilateral, multilateral, and private sector efforts to combat malaria as a critical part of the President's Global Health Initiative; and

(7) encourages other members of the international community to sustain and scale up their support for and financial contributions to efforts worldwide to combat malaria.

SENATE RESOLUTION 430—RECOGNIZING THE 75TH ANNIVERSARY OF THE FOUNDING OF DUCKS UNLIMITED, INCORPORATED, THE ACHIEVEMENTS OF THE ORGANIZATION IN HABITAT CONSERVATION, AND THE SUPPORT OF THE ORGANIZATION FOR THE WATERFOWLING HERITAGE OF THE UNITED STATES

Mr. WICKER (for himself, Mr. PRYOR, Mr. COCHRAN, Mr. BOOZMAN, Mr. INHOFE, and Mr. TESTER) submitted the following resolution; which was considered and agreed to:

S. RES. 430

Whereas Ducks Unlimited, Incorporated (referred to in this preamble as ''Ducks Unlimited'') was founded in 1937, when the drought-plagued waterfowl populations of North America plunged to unprecedented lows;

Whereas, after decades of commitment to conserving waterfowl habitats, Ducks Unlimited has become the largest private organization for waterfowl and wetlands conservation worldwide and one of the most effective private organizations dedicated to that cause;

Whereas, since the founding of Ducks Unlimited, the organization has conserved and protected more than 4,500,000 acres of waterfowl habitat in the United States and more than 12,600,000 acres of waterfowl habitat in North America;

Whereas Ducks Unlimited has nearly 750,000 members internationally, including 550,000 members in the United States;

Whereas, since the founding of Ducks Unlimited, the organization has raised more than $3,400,000,000 for waterfowl conservation and education, leveraging public support to obtain more than half of its contributions from private sources;

Whereas Ducks Unlimited provides support to local projects that are important to waterfowlers in each State of the United States; and

Whereas Ducks Unlimited maintains the vital mission of conserving, restoring, and managing wetlands and associated habitats for the waterfowl of North America, a mission that also benefits other wildlife and people: Now, therefore, be it

Resolved, That the Senate recognizes the important contributions of Ducks Unlimited, Incorporated and its members across the United States to the conservation of habitats and the preservation of the waterfowl of North America during the past 75 years.

SENATE RESOLUTION 431—CELEBRATING THE 50TH ANNIVERSARY OF THE 1962 SEATTLE WORLD'S FAIR

Ms. CANTWELL submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 431

Whereas, on April 21, 2012, the City of Seattle will celebrate the 50th anniversary of the 1962 Seattle World's Fair (referred to in

this preamble as the ''Seattle World's Fair''), which showcased the optimism, energy, and innovative spirit of Seattle;

Whereas more than 9,000,000 people visited the Seattle World's Fair, a number that represents roughly 3 times the total population of the State of Washington at the time;

Whereas the Seattle World's Fair brought together the most talented architects of the Pacific Northwest to create a civic legacy and the treasured Seattle Center public space, which includes the Space Needle, the Seattle Center Armory, the Pacific Science Center, the Coliseum (now known as ''Key Arena''), Memorial Stadium, the International Fountain, and the Opera House;

Whereas the Seattle World's Fair facilitated the construction of key transportation infrastructure, including the SR 520 floating bridge, the portion of Interstate 5 that traverses downtown Seattle, and the Monorail;

Whereas, to officially open the Seattle World's Fair, President John F. Kennedy used the same historic telegraphic key that had been used to open the Alaska-Yukon-Pacific Exposition in Seattle 53 years earlier;

Whereas the attendance of music icon Elvis Presley in Seattle during the filming of the movie ''It Happened at the World's Fair'' further elevated the City of Seattle as an international city for the arts;

Whereas the theme of the Seattle World's Fair, ''science'', foreshadowed regional innovations in technology and advanced manufacturing that now support world leading companies and tens of thousands of high-paying jobs;

Whereas some of the earliest satellite transmissions of telephone calls and television broadcasts occurred at the Seattle World's Fair, and the Seattle area is now home to global information and communications technology companies; and

Whereas the Seattle World's Fair celebrated aviation and the new Space Age, and the aerospace industry in the Seattle area now employs 82,000 people (including 7,000 engineers), generates a combined annual revenue of $32,000,000,000, and includes a cluster of 650 companies: Now, therefore, be it

Resolved, That the Senate—

(1) celebrates the 50th anniversary of the 1962 Seattle World's Fair;

(2) commends the City of Seattle for its innovation, growth, and entrepreneurial spirit during the past 50 years;

(3) supports the ''Next Fifty'' initiative to develop a blueprint for success in Seattle for the next half-century; and

(4) requests that the Secretary of the Senate transmit an enrolled copy of this resolution to the City of Seattle for appropriate display.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2077. Mr. DURBIN submitted an amendment intended to be proposed to amendment SA 2037 submitted by Mr. DURBIN and intended to be proposed to the bill S. 1789, to improve, sustain, and transform the United States Postal Service; which was ordered to lie on the table.

SA 2078. Mr. ROCKEFELLER (for himself and Mr. CARDIN) submitted an amendment intended to be proposed to amendment SA 2073 submitted by Mr. ROCKEFELLER and intended to be proposed to the bill S. 1789, supra; which was ordered to lie on the table.

SA 2079. Mr. MANCHIN (for himself, Mr. ROCKEFELLER, Mr. MERKLEY, and Ms. MIKULSKI) submitted an amendment intended to be proposed by him to the bill S. 1789, supra; which was ordered to lie on the table.

SA 2080. Ms. SNOWE submitted an amendment intended to be proposed by her to the bill S. 1789, supra; which was ordered to lie on the table.

SA 2081. Mr. CORKER submitted an amendment intended to be proposed by him to the bill S. 1789, supra; which was ordered to lie on the table.

SA 2082. Mr. DURBIN submitted an amendment intended to be proposed by him to the bill S. 1789, supra; which was ordered to lie on the table.

SA 2083. Mr. CORKER submitted an amendment intended to be proposed by him to the bill S. 1789, supra; which was ordered to lie on the table.

SA 2084. Mr. REID (for Mr. COONS) proposed an amendment to the bill H.R. 1021, to prevent the termination of the temporary office of bankruptcy judges in certain judicial districts.

TEXT OF AMENDMENTS

SA 2077. Mr. DURBIN submitted an amendment intended to be proposed to amendment SA 2037 submitted by Mr. Durbin and intended to be proposed to the bill S. 1789, to improve, sustain, and transform the United States Postal Service; which was ordered to lie on the table; as follows:

On page 1, strike line 3 and all that follows through page 2, line 8, and insert the following:

''(10) PROHIBITION ON CLOSING, CONSOLIDATION, AND REDUCTION IN WORKFORCE.—

''(A) IN GENERAL.—During the 3-year period beginning on the date of enactment of the 21st Century Postal Service Act of 2012, if the Postal Service conducted an area mail processing study after June 1, 2001 with respect to a postal facility which was terminated or concluded that no significant cost savings or efficiencies would result from closing, consolidating, or reducing the number of employees of the postal facility, the Postal Service may not—

''(i) close the postal facility;

''(ii) consolidate the postal facility; or

''(iii) involuntarily separate an employee of the postal facility from service, except for removal for cause on charges of misconduct or delinquency.

SA 2078. Mr. ROCKEFELLER (for himself and Mr. CARDIN) submitted an amendment intended to be proposed to amendment SA 2073 submitted by Mr. Rockefeller and intended to be proposed to the bill S. 1789, to improve, sustain, and transform the United States Postal Service; which was ordered to lie on the table; as follows:

On page 1, strike line 8 and insert the following:

to enroll in Medicare.

(g) CLAIMS POOL.—Notwithstanding section 8903c(b)(5)(A) of title 5, United States Code, as added by subsection (a), the Office may not establish a separate claims pool for individuals eligible for coverage under any of the enrollment options under section 8903c(b)(4) of title 5, United States Code, as added by subsection (a).

SA 2079. Mr. MANCHIN (for himself, Mr. ROCKEFELLER, Mr. MERKLEY, and Ms. MIKULSKI) submitted an amendment intended to be proposed by him to the bill S. 1789, to improve, sustain, and transform the United States Postal Service; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. MORATORIUM ON CLOSING AND CONSOLIDATING POSTAL FACILITIES OR POST OFFICES, STATIONS, OR BRANCHES.

(a) DEFINITION.—In this section, the term ''postal facility'' has the same meaning as in section 404(f) of title 39, United States Code, as added by this Act.

(b) MORATORIUM.—Notwithstanding section 404 of title 39, United States Code, as amended by this Act, or any other provision of law, the Postal Service may not close or consolidate a postal facility or post office, station, or branch, except as required for the immediate protection of health and safety, before the later of—

(1) the date on which the Postal Service establishes the retail service standards under section 203 of this Act; and

(2) the date that is 2 years after the date of enactment of this Act.

(c) CONFORMING PROVISION.—Section 205(b) of this Act shall have no force or effect.

SA 2080. Ms. SNOWE submitted an amendment intended to be proposed by her to the bill S. 1789, to improve, sustain, and transform the United States Postal Service; which was ordered to lie on the table; as follows:

On page 28, strike line 13 and all that follows through page 30, line 8, and insert the following:

''(2) AREA MAIL PROCESSING STUDY.—

''(A) NEW AREA MAIL PROCESSING STUDIES.—After the date of enactment of this subsection, before making a determination under subsection (a)(3) as to the necessity for the closing or consolidation of any postal facility, the Postal Service shall—

''(i) conduct an area mail processing study relating to that postal facility that includes a plan to reduce the capacity of the postal facility, but not close the postal facility;

''(ii) publish the study on the Postal Service website; and

''(iii) publish a notice that the study is complete and available to the public, including on the Postal Service website.

''(B) COMPLETED OR ONGOING AREA MAIL PROCESSING STUDIES.—

''(i) IN GENERAL.—In the case of a postal facility described in clause (ii), the Postal Service shall—

''(I) consider a plan to reduce the capacity of the postal facility without closing the postal facility; and

''(II) publish the results of the consideration under subclause (I) with or as an amendment to the area mail processing study relating to the postal facility.

''(ii) POSTAL FACILITIES.—A postal facility described in this clause is a postal facility for which, on or before the date of enactment of this subsection—

''(I) an area mail processing study—

''(aa) that does not include a plan to reduce the capacity of the postal facility without closing the postal facility has been completed; or

''(bb) is in progress; and

''(II) a determination as to the necessity for the closing or consolidation of the postal facility has not been made.

''(C) PRC REVIEW.—

''(i) IN GENERAL.—For each area mail processing study conducted under subparagraph (A) or relating to a postal facility described in subparagraph (B)(ii), the Postal Regulatory Commission shall determine whether—

''(I) the area mail processing study used an appropriate methodology; and

''(II) the cost savings identified in the area mail processing study relating to that postal facility are accurate.

''(ii) REPORT.—The Postal Regulatory Commission shall submit to the Postal Service a report regarding each determination made under clause (i).

''(D) LIMITATION ON CLOSING OR CONSOLIDATION.—

''(i) IN GENERAL.—The Postal Service may not make a determination under subsection (a)(3) to close or consolidate a postal facility if the Postal Regulatory Commission determines under subparagraph (C) that—

''(I) the area mail processing study relating to that postal facility did not use an appropriate methodology; or

''(II) the cost savings identified in the area mail processing study relating to that postal facility are inaccurate.

''(ii) SUBSEQUENT AREA MAIL PROCESSING STUDIES.—If the Postal Regulatory Commission makes a determination described in clause (i) regarding to an area mail processing study relating to a postal facility, the Postal Service may conduct a subsequent area mail processing study relating to that postal facility in accordance with this paragraph.

SA 2081. Mr. CORKER submitted an amendment intended to be proposed by him to the bill S. 1789, to improve, sustain, and transform the United States Postal Service; which was ordered to lie on the table; as follows:

On page 39, strike line 20 and all that follows through page 45, line 17, and insert the following:

SEC. 205. OTHER PROVISIONS.

(a) FREQUENCY OF MAIL DELIVERY.—Section 101 of title 39, United States Code, is amended by adding at the end the following:

''(h) Subject to the requirements of section 3661, nothing in this title or any other provision of law shall be construed to prevent the Postal Service from taking any action necessary to provide for a 5-day-per-week delivery schedule for mail and a commensurate adjustment in the schedule for rural delivery of mail.''.

(b) OVERALL VALUE OF FRINGE BENEFITS.—Section 1005(f) of title 39, United States Code, is amended by striking the last sentence.

(c) MODERN RATE REGULATION.—Section 3622(d) of title 39, United States Code, is repealed.

(d) DELIVERY SERVICE STANDARDS, MAIL PROCESSING, AND COMMUNITY POST OFFICES.—Sections 201 and 202 of this Act, and the amendments made by those sections, shall have no force or effect.

(e) APPLICABILITY OF REDUCTION-IN-FORCE PROCEDURES.—Section 1206 of title 39, United States Code is amended by adding at the end the following:

''(d) Collective-bargaining agreements between the Postal Service and bargaining representatives recognized under section 1203, ratified after the date of enactment of this subsection, shall contain no provision restricting the applicability of reduction-in-force procedures under title 5 with respect to members of the applicable bargaining unit.

''(e)(1) If a collective-bargaining agreement between the Postal Service and bargaining representatives recognized under section 1203, ratified after the date of enactment of this subsection, includes reduction-in-force procedures which can be applied in lieu of reduction-in-force procedures under title 5, the Postal Service may, in its discretion, apply with respect to members of the applicable bargaining unit—

''(A) the alternative procedures (or, if 2 or more are agreed to, 1 of the alternative procedures); or

''(B) the reduction-in-force procedures under title 5.

''(2) In no event may, if procedures for the resolution of a dispute or impasse arising in the negotiation of a collective-bargaining agreement (whether through binding arbitration or otherwise) are invoked under this chapter, the award or other resolution reached under such procedures provide for the elimination of, or the substitution of any alternative procedures in lieu of, reduction-in-force procedures under title 5.''.

(f) HISTORIC POST OFFICES.—Section 404(d) of title 39, United States Code, is amended by adding at the end the following:

''(7)(A) In this paragraph, the term 'historic post office building' means a post office building that is a certified historic structure, as that term is defined in section 47(c)(3) of the Internal Revenue Code of 1986.

SA 2082. Mr. DURBIN submitted an amendment intended to be proposed by him to the bill S. 1789, to improve, sustain, and transform the United States Postal Service; which was ordered to lie on the table; as follows:

On page 35, line 16, strike the quotation marks and the second period and insert the following:

''(10) PROHIBITION ON CLOSING, CONSOLIDATION, AND REDUCTION IN WORKFORCE.—

''(A) IN GENERAL.—During the 3-year period beginning on the date of enactment of the 21st Century Postal Service Act of 2012, if the Postal Service conducted an area mail processing study after June 1, 2001 with respect to a postal facility which was terminated or concluded that no significant cost savings or efficiencies would result from closing, consolidating, or reducing the number of employees of the postal facility, the Postal Service may not—

''(i) close the postal facility;

''(ii) consolidate the postal facility; or

''(iii) involuntarily separate an employee of the postal facility from service, except for removal for cause on charges of misconduct or delinquency.

''(B) APPLICATION.—Subparagraph (A) shall apply with respect to a postal facility that was not closed or consolidated before May 15, 2012, without regard to the conclusions of any area mail processing study conducted with respect to the postal facility after the publication of an area mail processing study described in subparagraph (A).''.

SA 2083. Mr. CORKER submitted an amendment intended to be proposed by him to the bill S. 1789, to improve, sustain, and transform the United States Postal Service; which was ordered to lie on the table; as follows:

On page 39, strike line 20 and all that follows through page 45, line 17, and insert the following:

SEC. 205. OTHER PROVISIONS.

(a) FREQUENCY OF MAIL DELIVERY.—Section 101 of title 39, United States Code, is amended by adding at the end the following:

''(h) Subject to the requirements of section 3661, nothing in this title or any other provision of law shall be construed to prevent the Postal Service from taking any action necessary to provide for a 5-day-per-week delivery schedule for mail and a commensurate adjustment in the schedule for rural delivery of mail.''.

(b) OVERALL VALUE OF FRINGE BENEFITS.—Section 1005(f) of title 39, United States Code, is amended by striking the last sentence.

(c) MODERN RATE REGULATION.—Section 3622(d) of title 39, United States Code, is repealed.

(d) DELIVERY SERVICE STANDARDS, MAIL PROCESSING, AND COMMUNITY POST OFFICES.—Sections 201 and 202 of this Act, and the amendments made by those sections, shall have no force or effect.

(e) APPLICABILITY OF REDUCTION-IN-FORCE PROCEDURES.—Section 1206 of title 39, United States Code is amended by adding at the end the following:

''(d) Collective-bargaining agreements between the Postal Service and bargaining representatives recognized under section 1203, ratified after the date of enactment of this subsection, shall contain no provision restricting the applicability of reduction-in-force procedures under title 5 with respect to members of the applicable bargaining unit.''.

(f) HISTORIC POST OFFICES.—Section 404(d) of title 39, United States Code, is amended by adding at the end the following:

''(7)(A) In this paragraph, the term ''historic post office building'' means a post office building that is a certified historic structure, as that term is defined in section 47(c)(3) of the Internal Revenue Code of 1986.

SA 2084. Mr. REID (for Mr. COONS) proposed an amendment to the bill H.R. 1021, to prevent the termination of the temporary office of bankruptcy judges in certain judicial districts; as follows:

Strike section 3 and insert the following:

SEC. 3. BANKRUPTCY FILING FEE INCREASE.

(a) BANKRUPTCY FILING FEES.—Section 1930(a)(3) of title 28, United States Code, is amended by striking ''$1,000'' and inserting ''$1,167''.

(b) UNITED STATES TRUSTEE SYSTEM FUND.—Section 589a(b)(2) of title 28, United States Code, is amended by striking ''55'' and inserting ''48.89''.

(c) COLLECTION AND DEPOSIT OF MISCELLANEOUS BANKRUPTCY FEES.—Section 406(b) of the Judiciary Appropriations Act, 1990 (28 U.S.C. 1931 note) is amended by striking ''25'' and inserting ''33.33''.

(d) PAYGO OFFSET EXPENDITURE LIMITATION.—$42 of the incremental amounts collected by reason of the enactment of subsection (a) shall be deposited in a special fund in the Treasury to be established after the date of enactment of this Act. Such amounts shall be available for the purposes specified in section 1931(a) of title 28, United States Code, but only to the extent specifically appropriated by an Act of Congress enacted after the date of enactment of this Act.

(e) EFFECTIVE DATE.—This section and the amendments made by this section shall take effect 180 days after the date of enactment of this Act.

SEC. 4. SUBSEQUENT REAUTHORIZATION.

Prior to further reauthorization of any judgeship authorized by this Act, the Committee on the Judiciary of the Senate and House of Representatives shall conduct a review of the bankruptcy judgeships authorized by this Act to determine the need, if any, for continued reauthorization of each judgeship, to evaluate any changes in all bankruptcy case filings and their effect, if any, on filing fee revenue, and to require the Administrative Office of the Courts to submit a report to the Committee on the Judiciary of the Senate and House of Representatives on bankruptcy case workload, bankruptcy judgeship costs, and filing fee revenue.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. MANCHIN. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during

the session of the Senate on April 19, 2012, at 9:30 a.m., in room 366 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. MANCHIN. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on April 19, 2012, at 10 a.m., to hold a hearing entitled, ''Syria: U.S. Policy Options.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON INDIAN AFFAIRS

Mr. MANCHIN. Mr. President, I ask unanimous consent that the Committee on Indian Affairs be authorized to meet during the session of the Senate on April 19, 2012, in room SD–628 of the Dirksen Senate Office Building, at 2:15 p.m., to conduct a hearing entitled ''S. 1684, the Indian Tribal Energy Development and Self-Determination Act Amendments of 2011.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. MANCHIN. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate, to conduct a hearing entitled ''Time Takes Its Toll: Delays in OSHA's Standard-Setting Process and the Impact on Worker Safety'' on April 19, 2012, at 10 a.m., in room 430 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mr. MANCHIN. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate, on April 19, 2012, at 10 a.m., in SD–226 of the Dirksen Senate Office Building, to conduct an executive business meeting.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON SEAPOWER

Mr. MANCHIN. Mr. President, I ask unanimous consent that the Subcommittee on Seapower of the Committee on Armed Services be authorized to meet during the session of the Senate, on April 19, 2012, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT AGREEMENT—EXECUTIVE CALENDAR

Mr. REID. Mr. President, I ask unanimous consent that on Monday, April 23, at 5 p.m. the Senate proceed to executive session to consider Calendar No. 528; that there be 30 minutes of debate equally divided in the usual form; that upon the use or yielding back of that time, the Senate proceed to vote, with no intervening action or debate, on Calendar No. 528; that the motion to reconsider be considered made and laid upon the table, there be no intervening action or debate, and there be no further motions in order; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action; and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

TEMPORARY BANKRUPTCY JUDGESHIPS EXTENSION ACT OF 2011

Mr. REID. I ask unanimous consent that the Judiciary Committee be discharged from further consideration of H.R. 1021.

The PRESIDING OFFICER. Without objection, it is so ordered. The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A bill (H.R. 1021) to prevent the termination of the temporary office of bankruptcy judges in certain judicial districts.

There being no objection, the Senate proceeded to consider the bill.

Mr. LEAHY. Mr. President, I congratulate Senator COONS on the passage of legislation that will reauthorize 30 temporary bankruptcy judgeships in districts around the country. I was pleased to support Senator COONS' very strong and persistent efforts on this important legislation. The Judiciary Committee reported this legislation favorably on December 15, 2011. I am glad to see the Senate finally being allowed to act.

The bill we pass today, when enacted, will reauthorize 30 temporary judgeships in 14 States and Puerto Rico. All of these positions have already expired, and without this legislation, upon retirement or departure of the judges in these positions, they could not be filled again. Needlessly reducing the resources of our bankruptcy courts does nothing but put more pressure on Americans who are already navigating a difficult economic environment. This legislation should help avoid that and provide some small degree of relief to overburdened bankruptcy courts around the country. Quite frankly, I think we should be doing more.

As Chairman of the Judiciary Committee, I will note one concern with the legislation the Senate passes today. In order to secure passage of this legislation, Senator COBURN insisted upon adding a section to the bill that purports to tell future Senate and House Judiciary Committees how to conduct their business. Senator COBURN's amendment would dictate that before any of these 30 judgeships could be reauthorized again, the Senate and House Judiciary Committee's would be required to take certain steps and require a report from the Administrative Office of the United States Courts (AO). As a member of the Judiciary Committee, Senator COBURN knows this is precisely what committees do in the ordinary course of the consideration of legislation, and what was done during the development of this legislation. Senator COONS worked with the AO, which made recommendations, and with bankruptcy judges in a variety of districts to determine where need was greatest. To codify an unenforceable mandate nominally imposed on future Congresses is unnecessary and unwise.

I thank and congratulate Senator COONS for his hard work and attention to this issue. This would not be passing without his diligence, focus, and legislative skill. He has done what has seemed impossible.

Mr. REID. I ask unanimous consent that a Coons amendment, which is at the desk, be agreed to, the bill as amended be read a third time and passed, the motions to reconsider be laid upon the table, with no intervening action or debate, and any statements related to the bill be printed in the RECORD.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 2084) was agreed to, as follows:

AMENDMENT NO. 2084

(Purpose: To address bankruptcy filing fee increases, future reauthorizations, and for other purposes)

Strike section 3 and insert the following:

SEC. 3. BANKRUPTCY FILING FEE INCREASE.

(a) BANKRUPTCY FILING FEES.—Section 1930(a)(3) of title 28, United States Code, is amended by striking ''$1,000'' and inserting ''$1,167''.

(b) UNITED STATES TRUSTEE SYSTEM FUND.—Section 589a(b)(2) of title 28, United States Code, is amended by striking ''55'' and inserting ''48.89''.

(c) COLLECTION AND DEPOSIT OF MISCELLANEOUS BANKRUPTCY FEES.—Section 406(b) of the Judiciary Appropriations Act, 1990 (28 U.S.C. 1931 note) is amended by striking ''25'' and inserting ''33.33''.

(d) PAYGO OFFSET EXPENDITURE LIMITATION.—$42 of the incremental amounts collected by reason of the enactment of subsection (a) shall be deposited in a special fund in the Treasury to be established after the date of enactment of this Act. Such amounts shall be available for the purposes specified in section 1931(a) of title 28, United States Code, but only to the extent specifically appropriated by an Act of Congress enacted after the date of enactment of this Act.

(e) EFFECTIVE DATE.—This section and the amendments made by this section shall take effect 180 days after the date of enactment of this Act.

SEC. 4. SUBSEQUENT REAUTHORIZATION.

Prior to further reauthorization of any judgeship authorized by this Act, the Committee on the Judiciary of the Senate and House of Representatives shall conduct a review of the bankruptcy judgeships authorized by this Act to determine the need, if any, for continued reauthorization of each judgeship, to evaluate any changes in all bankruptcy case filings and their effect, if any, on filing fee revenue, and to require the Administrative Office of the Courts to submit a report to the Committee on the Judiciary of the Senate and House of Representatives on bankruptcy case workload, bankruptcy judgeship costs, and filing fee revenue.

The amendment was ordered to be engrossed and the bill to be read a third time.

The bill (H.R. 1021), as amended, was read the third time and passed, as follows:

H.R. 1021

Resolved, That the bill from the House of Representatives (H.R. 1021) entitled ''An Act to prevent the termination of the temporary office of bankruptcy judges in certain judicial districts.'', do pass with the following amendment:

Strike section 3 and insert the following:

SEC. 3. BANKRUPTCY FILING FEE INCREASE.

(a) BANKRUPTCY FILING FEES.—Section 1930(a)(3) of title 28, United States Code, is amended by striking ''$1,000'' and inserting ''$1,167''.

(b) UNITED STATES TRUSTEE SYSTEM FUND.—Section 589a(b)(2) of title 28, United States Code, is amended by striking ''55'' and inserting ''48.89''.

(c) COLLECTION AND DEPOSIT OF MISCELLANEOUS BANKRUPTCY FEES.—Section 406(b) of the Judiciary Appropriations Act, 1990 (28 U.S.C. 1931 note) is amended by striking ''25'' and inserting ''33.33''.

(d) PAYGO OFFSET EXPENDITURE LIMITATION.—$42 of the incremental amounts collected by reason of the enactment of subsection (a) shall be deposited in a special fund in the Treasury to be established after the date of enactment of this Act. Such amounts shall be available for the purposes specified in section 1931(a) of title 28, United States Code, but only to the extent specifically appropriated by an Act of Congress enacted after the date of enactment of this Act.

(e) EFFECTIVE DATE.—This section and the amendments made by this section shall take effect 180 days after the date of enactment of this Act.

SEC. 4. SUBSEQUENT REAUTHORIZATION.

Prior to further reauthorization of any judgeship authorized by this Act, the Committee on the Judiciary of the Senate and House of Representatives shall conduct a review of the bankruptcy judgeships authorized by this Act to determine the need, if any, for continued reauthorization of each judgeship, to evaluate any changes in all bankruptcy case filings and their effect, if any, on filing fee revenue, and to require the Administrative Office of the Courts to submit a report to the Committee on the Judiciary of the Senate and House of Representatives on bankruptcy case workload, bankruptcy judgeship costs, and filing fee revenue.

RECOGNIZING THE 75TH ANNIVERSARY OF THE FOUNDING OF DUCKS UNLIMITED, INCORPORATED

Mr. REID. I ask unanimous consent that we now proceed to S. Res. 430.

The PRESIDING OFFICER. The clerk will report the bill by title.

The assistant legislative clerk read as follows:

A resolution (S. Res. 430) recognizing the 75th anniversary of the founding of Ducks Unlimited, Incorporated, the achievements of the organization in habitat conservation, and the support of the organization for the waterfowling heritage of the United States.

There being no objection, the Senate proceeded to consider the resolution.

Mr. REID. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 430) was agreed to.

The preamble was agreed to.

The resolution, with its preamble, reads as follows:

S. RES. 430

Whereas Ducks Unlimited, Incorporated (referred to in this preamble as ''Ducks Unlimited'') was founded in 1937, when the drought-plagued waterfowl populations of North America plunged to unprecedented lows;

Whereas, after decades of commitment to conserving waterfowl habitats, Ducks Unlimited has become the largest private organization for waterfowl and wetlands conservation worldwide and one of the most effective private organizations dedicated to that cause;

Whereas, since the founding of Ducks Unlimited, the organization has conserved and protected more than 4,500,000 acres of waterfowl habitat in the United States and more than 12,600,000 acres of waterfowl habitat in North America;

Whereas Ducks Unlimited has nearly 750,000 members internationally, including 550,000 members in the United States;

Whereas, since the founding of Ducks Unlimited, the organization has raised more than $3,400,000,000 for waterfowl conservation and education, leveraging public support to obtain more than half of its contributions from private sources;

Whereas Ducks Unlimited provides support to local projects that are important to waterfowlers in each State of the United States; and

Whereas Ducks Unlimited maintains the vital mission of conserving, restoring, and managing wetlands and associated habitats for the waterfowl of North America, a mission that also benefits other wildlife and people: Now, therefore, be it

Resolved, That the Senate recognizes the important contributions of Ducks Unlimited, Incorporated and its members across the United States to the conservation of habitats and the preservation of the waterfowl of North America during the past 75 years.

ORDERS FOR MONDAY, APRIL 23, 2012

Mr. REID. I ask unanimous consent that when the Senate completes its business today, it stand adjourned until Monday, April 23, at 12 noon; that following the prayer and pledge, the Journal of proceedings be approved to date, the morning hour be deemed expired, and the time for the two leaders be reserved for their use later in the day; that the Senate then resume consideration of the motion to proceed to S. 1925; that at 2 p.m., the Republican leader or his designee be recognized to make a motion to proceed to S.J. Res. 36, which would be under a previous order that has already been entered; further, that at 4 p.m., the Senate resume consideration of the motion to proceed to S. 1925; and, finally, at 5 p.m., the Senate proceed to executive session under the previous order.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. REID. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

THANKING THE PRESIDING OFFICER

Mr. REID. Mr. President, first of all, I say to the Presiding Officer, thank you very much for your patience. We often need patience, so I appreciate yours.

UNANIMOUS CONSENT AGREEMENT—S. 1789

Mr. REID. Mr. President, I ask unanimous consent that in the previous order with respect to S. 1789 and the Akaka amendment No. 2034 the reference to the modification of the Akaka amendment No. 2034 be stricken.

The PRESIDING OFFICER. Without objection, it is so ordered.

MEASURE READ THE FIRST TIME—S. 2327

Mr. REID. Mr. President, there is a bill at the desk due for its first reading.

The PRESIDING OFFICER. The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 2327) to prohibit direct foreign assistance to the Government of Egypt until the President makes certain certifications related to treatment of nongovernmental organization workers, and for other purposes.

Mr. REID. Mr. President, I now ask for a second reading and, in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection is heard.

The bill will be read for the second time on the next legislative day.

PROGRAM

Mr. REID. Mr. President, at 5:30 p.m. on Monday, there will be a rollcall vote on confirmation of the Wimes nomination.

This evening we reached an agreement to complete action on the postal reform bill. On Monday there will be time from 12 p.m. to 2 p.m. and from 4 p.m. to 5 p.m. and following the vote at 5:30 p.m. for Senators to debate their amendments to the bill.

ADJOURNMENT UNTIL MONDAY, APRIL 23, 2012

Mr. REID. Mr. President, I ask unanimous consent that the Senate adjourn under the previous order.

There being no objection, the Senate, at 8:16 p.m., adjourned until Monday, April 23, 2012, at 12 noon.

EXTENSIONS OF REMARKS

A TRIBUTE TO THE FERRIS STATE UNIVERSITY MEN'S ICE HOCKEY TEAM

HON. DAVE CAMP

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. CAMP. Mr. Speaker, I rise today to pay tribute to the Ferris State University Men's Ice Hockey Team upon their runner up finish in the 2012 NCAA Frozen Four Men's Ice Hockey Championship.

This year's Bulldog team made the first showing in school history in an NCAA championship game and won the school's second-ever Central Collegiate Hockey Association regular-season championship as well as a Midwest region crown. Along the way, the Bulldogs saw significant moments of success, including an impressive 15-game unbeaten streak during the regular season. Accomplishments of this magnitude can only be achieved through teamwork and a shared determination amongst players, coaches, and staff.

Several individuals were recognized for their personal achievements throughout the 2011–2012 hockey season. Bulldog's head coach Bob Daniels received the 2012 Spencer Penrose Award as the Division I Men's Ice Hockey National Coach of the Year. Bob's leadership and guidance were crucial in developing skillful and dedicated players that could meet and surpass the season's challenges.

Ferris State's Tommy Hill, the team's senior co-captain, received the NCAA Elite 89 award. This award recognizes athletes that have reached the pinnacle of achievement by competing for a national championship as well as achieving the highest academic standard among peers. Teammates Kyle Bonis and Chad Billins were also recognized and named to the 2012 NCAA Frozen Four All-Tournament Team for their significant efforts during the Frozen Four games.

On behalf of the Fourth District of Michigan, I congratulate the 2011–2012 Ferris State Bulldog's Men's Ice Hockey Team on their monumental and record-setting season.

PIONEER FIRE COMPANY NO. 1

HON. LOU BARLETTA

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. BARLETTA. Mr. Speaker, I rise to honor the Pioneer Fire Company No.1 of Hazleton, Pennsylvania, which will celebrate its 145th anniversary on April 21, 2012.

In 1867, merchants and citizens of Hazleton established the first volunteer fire company to protect the lives and property of their neighbors. Two years later, the borough council elected fifteen members and formally established the Pioneer Fire Company No. 1 of Hazleton. The company responded to their first fire at the Bramer household on July 5, 1869 at 1:45 p.m.

Additionally, the pioneers have always been active within the community. After raising funds, the pioneers bought the first Hazleton community ambulance which began serving the community on July 2, 1952. They are also charter members of the Hazleton Little League and sponsor a team yearly.

Mr. Speaker, for the last 145 years, the Pioneer Fire Company No. 1 has proudly served the citizens of Hazleton, Pennsylvania. Therefore, I commend all those pioneers who have given so unselfishly and to all those who have gone on to their eternal rest.

75TH ANNIVERSARY OF PRINCE WILLIAM FOREST PARK

HON. ROBERT J. WITTMAN

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. WITTMAN. Mr. Speaker, I rise to recognize the 75th Anniversary of Prince William Forest Park. Located in southern Prince William County, Virginia, Prince William Forest Park is a natural oasis just outside Washington D.C.

Established in 1936, Chopawamsic Recreational Demonstration Area (RDA) was constructed as a Great Depression area federal relief program. Recreational Demonstration Areas were built across the country, largely near urban areas to combat unemployment and to provide recreational opportunities for poverty stricken urban poor. Work on the park also provided employment. Depression era job programs, including the Civilian Conservation Corps and Works Progress Administration contributed the labor to build the parks roads, cabins, lakes and other facilities. For decades, Chopawamsic RDA provided outdoor recreational and education opportunities to the urban youth of our nation's capital.

Following the bombing of Pearl Harbor in 1941, and the United States entrance into the war, Chopawamsic RDA served as training grounds for covert operatives of the Office of Strategic Services (OSS). A precursor to today's Central Intelligence Service, OSS was a highly secretive wartime agency that waged covert activates behind enemy lines during World War II. Chopawamsic's forests and cabin infrastructure located in a rural area just an hour from Washington, D.C. provided an ideal location to train spies for the war effort.

After the War, the Park was renamed Prince William Forest Park in 1948. Today, the Park provides miles of hiking and biking trails, camping, picnic spots and many programs for school aged children. Prince William Forest Park is truly one of the special natural resources in the Commonwealth of Virginia.

I encourage my colleagues to join with me in commemorating Prince William Forest Park's 75th Anniversary.

TO COMMEMORATE THE 100TH ANNIVERSARY OF HADASSAH

HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. FITZPATRICK. Mr. Speaker, I rise today to commemorate the 100th Anniversary of Hadassah, the Women's Zionist Organization of America.

Hadassah is a voluntary women's organization whose members dedicate their time to creating a stronger relationship with Israel, while ensuring Jewish continuity in the world. With over 300,000 members in total, they are one of the largest women's volunteer organizations in the world.

Hadassah was founded by Henrietta Szold in 1912, a woman whose life's work was shaped by the ignorance, injustice, and anti-semitism she faced every day. In founding Hadassah, Henrietta gave the Jewish people a means to unify and fight back against these trepidations and hatreds. Ultimately, she played an integral role in unifying Jewish people all over the world, something that was desperately needed in the midst of the Shoah (Holocaust).

From the time of its establishment, Hadassah has managed to accomplish many goals. In 1918, the organization sent medical units across the globe to provide American medical care to people of all races, creeds, and ethnicities. Hadassah was also instrumental in organizing the rescue of thousands of children during Germany's darkest years, bringing them to safety in the land of Palestine. This act, along with many others helped to further the development of the modern state of Israel.

The Hadassah Organization's humanitarian efforts have become a pivotal part of our society and should never be forgotten. I am honored to be speaking on the organization's behalf today, and on behalf of the thousands of people Hadassah managed to help over the last 100 years.

PROVIDING FOR AWARD OF GOLD MEDAL TO JACK NICKLAUS

SPEECH OF

HON. PATRICK J. TIBERI

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Monday, April 16, 2012

Mr. TIBERI. Mr. Speaker, I rise in support of awarding the Congressional Gold Medal to a golf legend, devoted philanthropist, husband, father and grandfather, Jack Nicklaus. Known as ''The Golden Bear,'' Jack Nicklaus has continually set an admirable example of excellence, not only emulated by generations of golf fans, but by those who value sharing their success by giving back to others. As someone who shares the experience of growing up in Central Ohio and attending The Ohio State

University, I can attest to the pride held by both communities.

Dubbed the "Golfer of the Millennium," Jack Nicklaus is world renowned for his winning record of 118 professional golf tournaments and an unsurpassed 18 professional major-championship titles. However, it is his accomplishments off the course that I recognize today. In 2005, Jack Nicklaus and his wife Barbara formed the Nicklaus Children's Health Care Foundation, which provides support for activities that advance and enhance the diagnosis, treatment, and prevention of childhood diseases and disorders. To date, Jack and Barbara have raised over $15 million in support of pediatric health care programs through their foundation. In addition, as a trustee of The First Tee program, Jack provides positive life values and promotes healthy choices through the game of golf to young people who would normally not have access to the game.

I am thankful to have had the opportunity to attend the Legends Luncheon this week, which advances pediatric care through the Nationwide Children's Hospital and the Nicklaus Children's Health Care Foundation alliance. As a fellow Ohio State Buckeye, it is truly my honor to recognize such a great role model, Jack Nicklaus.

IN SPECIAL RECOGNITION OF BRITTNEY WOLFORD ON HER OFFER OF APPOINTMENT TO ATTEND THE UNITED STATES AIR FORCE ACADEMY

HON. ROBERT E. LATTA

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. LATTA. Mr. Speaker, it is my great pleasure to pay special tribute to an outstanding student from Ohio's Fifth Congressional District. I am pleased to announce that Brittney Wolford of Woodville, Ohio has been offered an appointment to the United States Air Force Academy at Colorado Springs, Colorado.

Brittney's offer of appointment poises her to attend the United States Air Force Academy this fall with the incoming cadet Class of 2016. Attending one of our Nation's military academies not only offers the opportunity to serve our country but also guarantees a world-class education, while placing demands on those who undertake one of the most challenging and rewarding experiences of their lives.

Brittney brings an enormous amount of leadership, service, and dedication to the incoming Class of 2016. While attending Woodmore High School in Elmore, Ohio, Brittney was a member of the National Honor Society, Fellowship of Christian Athletes, and Teen Advisory Group. Brittney was also president of Woodmore's chapter of the National Honor Society her senior year.

Throughout high school, Brittney was a member of her school's soccer and basketball teams; earned varsity letters in both sports, as well as being nominated team captain in both sports her junior and senior years. In addition, Brittney volunteered her time to her community and brought pride to her country by singing the national anthem at sporting and local veteran events. I am confident that Brittney will carry the lessons of her student and athletic leadership to the Air Force Academy.

Mr. Speaker, I ask my colleagues to join me in congratulating Brittney Wolford on the offer of her appointment to the United States Air Force Academy. Our service academies offer the finest military training and education available. I am positive that Brittney will excel during her career at the Air Force Academy, and I ask my colleagues to join me in extending their best wishes to her as she begins her service to the Nation.

PROTECTING AMERICAN BABIES FROM THE SCOURGE OF THE REPUBLICAN PLUTOCRACY

HON. SHELIA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. JACKSON LEE of Texas. Mr. Speaker, I rise this evening because this House Majority seeks to play Freddy Krueger with our social safety net, attacking the Supplemental Nutrition Assistance Program, SNAP, or food stamps, and ripping families to shreds, under the guise of budget cutting.

This program is our most important anti-hunger program, with over 46 million Americans in more than 21 million households relying on it to help feed themselves and their families

The Supplemental Nutrition Assistance Program, SNAP is the cornerstone of the Nation's nutrition assistance safety net. SNAP touches the lives of over one in seven Americans. Indeed you could say that SNAP saves lives.

Everyone's life is not as simple as some on the other side would have us believe—every person who is homeless cannot be fixed with magic dust and self-help policy prescriptions. Life is complicated and fraught with danger and uncertainty.

Lucky are many of us who go home to warm shelter, food, and family. There, but for the grace of God go I.

SNAP benefits are available to most people who meet the financial requirements, and the program serves a broad spectrum of low income people. In Fiscal Year 2010, SNAP provided about $5.4 billion dollars in food benefits to a monthly average of over 3.6 million people in Texas.

The program served 55 percent of those eligible for benefits in Texas in 2008. SNAP also has an economic multiplier effect with every $5 in new SNAP benefits generating as much as $9 in total economic activity.

It is a proven fact Mr. Speaker that people who receive SNAP benefits put them to almost immediate use. SNAP beneficiaries are not converting their benefits into convertible bonds or stock options. They spend and help the economy along the way.

The Ryan Republican Budget would force SNAP into an inadequate State-by-State block program. Such a breakdown would make SNAP static and unable to react to a changing economy. This is not an example of a sensible ordering of the fiscal priorities.

When times are tough, SNAP expands to bring assistance where needed. And as the economy improves, SNAP shrinks in size as families are better able to provide for themselves. A static program would not be able to react to such economic changes and Americans would suffer.

The Republican Budget also is asking for SNAP recipients' aid to be 'contingent on work or job training.' SNAP does help many people who are unemployed or underemployed to make ends meet. Let's not make our fiscal and economic policies punitive towards the people who need us most.

But it also helps families with children, the elderly and the disabled. SNAP was created to respond to the economic climate and help the most vulnerable among us, including but not limited to those that have lost their job, avoid hunger.

In my district, the Texas 18th, more than 190,000 people live below the poverty line. Additionally, a study conducted in August 2011 by the Food Research and Action Center ranked the 18th Congressional District as having the 33rd highest rate of food hardship in households with children.

According to the Texas Food Bank Network and Baylor University's Texas Hunger Initiative, 700,000 families in Harris County, Texas struggle to provide enough food for their families.

In 2010, there were 46.2 million Americans living in poverty nationwide. According to the 2010 Federal poverty threshold, determined by the U.S. Census, a family of four is considered impoverished if they are living on less than $22,314 per year.

The Kaiser Family Foundation estimates that there are currently 5.6 million Texans living in poverty, 2.2 million of them children, and that 17.4 percent of households in the State struggle with food insecurity.

I am committed to preserving essential programs aimed at combating poverty, like the Supplemental Nutrition Access Program, SNAP, that fed 3.9 million residents of Texas in April 2011, or the Women, Infants, and Children, WIC, Program that provides nutritious food to more than 990,000 mothers and children in my home State.

SNAP kept more than 5 million people out of poverty in 2010 in addition to helping feed millions more who were already below the poverty line. About three-quarters of the families aided by the program have children. More than a quarter of the families include seniors or people with disabilities.

The Supplemental Nutrition Assistance Program, SNAP, provides benefits to low-income, eligible households on an electronic benefit transfer, EBT, card; benefits can then be exchanged for foods at authorized retailers. SNAP reaches a large share of low-income households. In November 2011, there were 46 million persons in 22 million households benefitting from SNAP.

Federal SNAP law provides two basic pathways for financial eligibility to the program:

(1) meeting federal eligibility requirements, or (2) being automatically or "categorically" eligible for SNAP based on being eligible for or receiving benefits from other specified low-income assistance programs. Categorical eligibility eliminated the requirement that households who already met financial eligibility rules in one specified low-income program go through another financial eligibility determination in SNAP.

In its traditional form, categorical eligibility conveys SNAP eligibility through the receipt of cash assistance from Supplemental Security Income, SSI, the Temporary Assistance for Needy Families, TANF, block grant, or State-run General Assistance, GA, programs.

However, since the 1996 welfare reform law, States have been able to expand categorical eligibility beyond its traditional bounds. That law created TANF to replace the Aid to Families with Dependent Children, AFDC, program, which was a traditional cash assistance program. TANF is a broad-purpose block grant that finances a wide range of social and human services.

TANF gives States flexibility in meeting its goals, resulting in a wide variation of benefits and services offered among the States. SNAP allows States to convey categorical eligibility based on receipt of a TANF ''benefit,'' not just TANF cash welfare. This provides States with the ability to convey categorical eligibility based on a wide range of benefits and services. TANF benefits other than cash assistance typically are available to a broader range of households and at higher levels of income than are TANF cash assistance benefits.

In total, 43 jurisdictions have implemented what the U.S. Department of Agriculture, USDA, has called ''broad-based'' categorical eligibility. These jurisdictions generally make all households with incomes below a State-determined income threshold eligible for SNAP. States do this by providing households with a low-cost TANF-funded benefit or service such as a brochure or referral to an ''800'' number telephone hotline.

There are varying income eligibility thresholds within States that convey ''broad-based'' categorical eligibility, though no State has a gross income limit above 200 percent of the federal poverty guidelines. In all but three of these jurisdictions, there is no asset test required for SNAP eligibility. Categorically eligible families bypass the regular SNAP asset limits.

However, their net incomes (income after deductions for expenses) must still be low enough to qualify for a SNAP benefit. That is, it is possible to be categorically eligible for SNAP but have net income too high to actually receive a benefit. The exception to this is one- or two-person households that would still receive the minimum benefit.

During the decade of the 2000s, there were a number of proposals to restrict categorical eligibility based on receipt of TANF benefits. These proposals would have limited TANF-based categorical assistance to households receiving TANF-funded cash assistance. The proposal was made by the Bush Administration in its farm bill proposals and several budget submissions. It passed the House in a budget reconciliation bill in 2005 but was not part of that year's final reconciliation package, the Deficit Reduction Act of 2005 (P.L. 109–171).

Mr. Speaker, let's not punish those in need any longer! Help the poor—don't show the dark side of America.

RECOGNIZING EQUAL PAY DAY

HON. LAURA RICHARDSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. RICHARDSON. Mr. Speaker, I rise today to celebrate Equal Pay Day and to stress my commitment to closing the wage gap between men and women once and for all. Women are critical to our Nation's economic success and it is essential for us to redouble our efforts to end discriminatory practices in the workplace. Although many positive steps have been taken and much change has been effectuated, there is much more that can be and should be done.

On this day, let us give attention to how the wage gap affects women, families and the economy. Today, more than ever, women are equal, if not primary, income earners in most American families. Yet women in our economy and our work force are still earning just 77 cents on every dollar paid to men. Couple the gender gap with statistics on race and it is even worse. African American women earn a mere 64 cents on the dollar, while Hispanic women receive an appalling 56 cents on the dollar compared to men. In states across the country, women are collectively losing tens of billions of dollars annually—money that could alleviate the financial strain countless families are facing in this tough economy.

We must put an end to discriminatory practices in the workforce once and for all. Expanding economic opportunities for women is critical to building an economy that restores security for middle class families. We must promote such an economy by encouraging the advancement of women in the workforce and by rewarding their efforts equally. We must ensure that when a woman seeks higher employment she is able to attain it without being discriminated against based on her gender and more importantly that she receive equal pay for equal work. We must ensure that equal pay and equal opportunity go hand in hand with hard work in the twenty-first century.

In the 1950's a sole income earner, historically a man, could support an entire family. Those days are long past, not ever to return. We are living in an era where dual incomes are not a luxury, but rather the necessary condition to sustain a middle class status.

I applaud President Obama's commitment to ensuring that women are treated equally in the workforce and paid fairly for their work. From signing the Lilly Ledbetter Fair Pay Act, to creating the National Equal Pay Task Force, President Obama has fought for equality for women in the workforce, and there is no reason why this Congress should not be equally committed to the cause of pay equality for women.

In a time where women's labor force participation has increased dramatically and where families are becoming increasingly reliant on women's incomes due to the rise of living costs, it makes no sense that pay disparities between men and women still persist. Women should not have to face greater risks for income insecurity than men. The reality is that over the course of her lifetime, these pay discrepancies can cost a woman and her family up to hundreds of thousands of dollars in lost wages, reduced pensions, and reduced Social Security benefits. I call this ''gender theft.'' The Republican majority apparently believe this is an acceptable state of affairs.

The statistics are very clear; we cannot have a vibrant society if women are not doing well. The success of American women is critical for the success of American families and the American economy. Consequently, when women face barriers to participation in the workplace and marketplace, it affects all Americans.

Unfortunately, rather than concentrating on eliminating such discrepancies and ensuring equality, the Republican majority has instead been fixated on limiting women's rights and freedoms. This war on women is hurtful and destructive, wastes time, and makes no economic sense. It makes America weaker, not stronger. It certainly does not reflect a kinder and gentler America.

Mr. Speaker, on this day—Equal Pay Day—let us resolve to honor women for the work they do to support and sustain their families. Let us start by paying women equally for the honorable work they do. It is through our hard work to ensure equal treatment of all women in the workforce, marketplace, and society as a whole that we can resoundingly voice our commitment to support American women and families.

SPORTSMEN'S HERITAGE ACT OF 2012

SPEECH OF

HON. DAN BOREN

OF OKLAHOMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 17, 2012

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 4089) to protect and enhance opportunities for recreational hunting, fishing and shooting:

Mr. BOREN. Madam Chair, as a Congressman serving on the House Committee on Natural Resources and the past Co-Chairman of the bipartisan Congressional Sportsmen's Caucus, I support America's sportsmen and the acclaimed activities of hunting and recreational fishing and shooting through the enactment of H.R. 4089.

H.R. 4089 is essential to recognizing the importance of and facilitating the expansion and enhancement of hunting and recreational fishing and shooting. It is a compilation of four different bills (H.R. 2834, H.R. 3440, H.R. 991 and H.R. 1558) that promote and advance these time-honored traditions. The Sportsmen's Heritage Act reaffirms that hunting and recreational fishing and shooting are important activities by providing a sound legislative foundation for the advancement of America's sporting heritage.

Seventy-five years ago, the conservation community, including hunters, anglers, recreational shooters, and related industries, supported the use of funds from an excise tax on firearms and ammunition—along with the dedicated revenue from hunting and fishing licenses—to be used exclusively by state fish and wildlife agencies to professionally manage fish and wildlife populations and provide access for sportsmen and the larger public to enjoy the benefits of this management. This funding mechanism was eventually expanded to include the fishing and boating communities as well as the archery community. Accordingly, these groups produced the American System of Conservation Funding: a unique ''user pays—public benefits'' approach. This user-pays funding strategy has produced numerous public benefits including: abundant fish and wildlife populations, access to public lands and clean waters, improved fish and wildlife habitat, carbon sequestration, wetland protection and associated water filtration and flood retention functions, improved soil and water conservation, shooting ranges and boating access facilities that are available for the

enjoyment of the entirety of the American public—hunters and non-hunters alike. In addition, sportsmen are an economic powerhouse. They directly support jobs, generate billions of dollars in Federal, State and local tax revenues, and invigorate the economies of local communities by spending their money on travel, lodging, food, sporting equipment, and so much more while participating in their sport.

Hunting and recreational fishing and shooting are the beating heart of conservation in the United States. This year marks the 75th Anniversary of the Wildlife and Sport Fish Restoration Program—a program supported and made possible by the dollars of our Nation's sportsmen. Given the current celebration of the success of this program, it seems timely to support our sportsmen by enacting legislation that will provide them with more opportunities to participate in their sport. We as a legislature must come together—overcoming partisanship and working collaboratively with our partners in the Senate—to promote, advance and protect our Nation's sporting heritage. I support our Nation's sportsmen and I urge you to join me in supporting H.R. 4089.

PERSONAL EXPLANATION

HON. STEVE KING

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. KING of Iowa. Mr. Speaker, on rollcall No. 158, I was detained while attempting to reach the House floor to cast my vote. Had I been present, I would have voted "no."

IN HONOR OF THE RECIPIENTS OF THE PHILADELPHIA DIALOGUE FORUM AND PEACE ISLANDS INSTITUTE'S 8TH ANNUAL FRIENDSHIP AWARD

HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. FITZPATRICK. Mr. Speaker, I rise today to honor five awardees who are receiving the Philadelphia Dialogue Forum and Peace Islands Institute's 8th Annual Friendship Award. On behalf of the 8th District of Pennsylvania, I would like to congratulate Kail Ellis, Natosha Warner, Dennis O'Brien, Richard Negrin and Dan Gottlieb. Thank you all very much for your fortitude and perseverance in a mission worth striving to accomplish.

In today's society, it is especially important that we all do our best to work together. I greatly appreciate the efforts of the Philadelphia Dialogue Forum and Peace Islands Institute in working to create links of understanding, acceptance, hope and trust amongst different communities, especially the communities in Bucks County.

My Congressional District is very diverse, but it's the efforts of organizations like these that make our community unite. By bringing people together in conferences, lectures, festivals and community service projects, local residents are given the opportunity to interact with one another and work to promote common values. It is more of these efforts that our country really needs.

I am honored to be speaking on behalf of the Philadelphia Dialogue Forum and Peace Islands Institute today, as well as the five awardees who have dedicated their time to promoting peace and tranquility in our society. I look forward to hearing about what you all have accomplished in the future, and I am grateful to represent you in Congress.

IN SPECIAL RECOGNITION OF MATTHEW SHOWMAN ON HIS OFFER OF APPOINTMENT TO ATTEND THE UNITED STATES MILITARY ACADEMY

HON. ROBERT E. LATTA

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. LATTA. Mr. Speaker, it is my great pleasure to pay special tribute to an outstanding student from Ohio's Fifth Congressional District. I am pleased to announce that Matthew Showman of Willard, Ohio has been offered an appointment to the United States Military Academy in West Point, New York.

Matthew's offer of appointment poises him to attend the United States Military Academy this fall with the incoming cadet Class of 2016. Attending one of our nation's military academies not only offers the opportunity to serve our country but also guarantees a world-class education, while placing demands on those who undertake one of the most challenging and rewarding experiences of their lives.

Matthew brings an enormous amount of leadership, service, and dedication to the incoming Class of 2016. He has served in a leadership capacity as a class officer, student council class representative, and he also tutored elementary students. Matthew volunteered in his community by participating in fundraisers for the Ronald McDonald House and Willard Mercy Hospital. While attending Willard High School in Willard, Ohio, Matthew consistently achieved high honors, with an exceptional grade point average.

Throughout high school, Matthew was a member of the football and wrestling teams and earned varsity letters in each. In addition, Matthew was captain of the wrestling team and was the recipient of the team's Captain Award and Coach's Award. I am confident that Matthew will carry the lessons of his student and athletic leadership to the United States Military Academy.

Mr. Speaker, I ask my colleagues to join me in congratulating Matthew on the acceptance of his appointment to the United States Military Academy at West Point. Our service academies offer the finest military training and education available. I am positive that Matthew will excel during his career at the Military Academy, and I ask my colleagues to join me in extending their best wishes to him as he begins his service to the Nation.

HONORING BRIDGET PHILLIPS

HON. THADDEUS G. McCOTTER

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. MCCOTTER. Mr. Speaker, today I rise to honor the extraordinary life of Bridget Phillips and mourn her upon her passing at the age of 79.

Born on December 19, 1932, Bridget Phillips grew to be a woman loved and revered by all who knew her. Mrs. Phillips was the proud matriarch of a three generation Michigan based business. She was gifted with a gracious, thoughtful and philanthropic spirit, generously dedicated to local organizations, such as St. Mary's Hospital, Madonna University, Angela Hospice and The Fallen and Wounded Soldiers Fund.

Regrettably, on April 17, 2012, Bridget Phillips passed from this earthly world to her eternal reward. She is survived by her beloved husband of 57 years, William and her cherished children Lynn, Donna, Lisa, Terry, Scott, Bob, Amy and Sean. She will be long remembered by her much-loved siblings Bill, Derm, Mary, Fran and Terry. She leaves a precious legacy in her grandchildren Sarah, Erin, Meghan, Ben, Lauren, Max, Caleb, Haley, Laine, Jarred, Molly, Amy, Andy, Matt, Alia, Zane, Jack, Will, Luke and Owen. An amiably benevolent woman, Bridget will be sorely missed.

Mr. Speaker, Bridget Phillips is remembered as a devoted wife, loving mother, adored grandmother, treasured sister, compassionate neighbor, and a valued friend. Bridget was a true lady who deeply treasured her family, friends, community and her country. Today, as we bid Bridget farewell, I ask my colleagues to join me in mourning her passing and honoring her dedicated commitment to her family, our community and country.

DESIGNATING THE SALT POND VISITOR CENTER AT CAPE COD NATIONAL SEASHORE AS THE ''TIP O'NEILL, JR. SALT POND VISITOR CENTER'' STATEMENT OF INTRODUCTION

HON. EDWARD J. MARKEY

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. MARKEY. Mr. Speaker, I rise today to introduce a bill renaming the Salt Pond Visitor Center at Cape Cod National Seashore as the "Thomas P. O'Neill, Jr. Salt Pond Visitor Center." I am proud to be joined by the entire Massachusetts delegation in the House of Representatives, who are original co-sponsors of this legislation, along with Democratic Leader NANCY PELOSI, who has been the greatest Speaker of the House since the legendary Tip O'Neill. Senator JOHN KERRY (D–MA) has introduced companion legislation in the Senate.

This year, on December 9th, Tip would have celebrated his 100th birthday. Tip lived a life dedicated to public service and lifting up the disadvantaged in society, beginning with his election to the Massachusetts House of Representatives in 1936. In 1949, Tip became the first Democratic Speaker in the history of the Massachusetts State Legislature, serving as Speaker until 1952, when he ran successfully for the United States House of Representatives to fill the seat vacated by Senator-elect John F. Kennedy.

Many of us here who served with Tip remember his warmth, his magnetic personality, and his unyielding support for working families and the middle class. When I was elected to

the House, the very first vote I cast was the vote to elect Tip O'Neill Speaker of the House in 1977. I had the honor of serving with Tip for ten years—his entire tenure as Speaker, which was the longest continuous term of any Speaker since the first Congress met in 1789.

Tip served in public life for 50 years, including 34 years as a Member of Congress. As Speaker, Tip worked with both Democrats and Republicans as a champion of working families. He was a master legislator who dedicated his entire life to Massachusetts and our country. Tip found joy in rebuilding communities, restoring neighborhoods, and helping families get back on their feet. He never tired of helping the middle class, helping students with student loans, and protecting the hard-earned benefits of seniors. Tip was an incredibly insightful public servant with a spirit of service who truly enjoyed the work of the American people.

The squawking of politicians in Washington may have been Tip's weekday passion, but the squawking of birds on the Cape is what brought him weekend peace.

The sweeping arm of the Cape reminds me of Tip's outstretched hand, greeting everyone he met.

Tip was a giant of American politics. While he made famous his ''All politics is local'' approach to public service, Tip's influence also was felt on the international level. One of his greatest accomplishments was crafting a peace agreement between rival factions in Northern Ireland. He, along with our late friend Senator Ted Kennedy, worked together to develop the ''St. Patrick's Day declaration'' condemning violence in Northern Ireland.

A public service powerhouse at the state, federal and international level of American politics, Tip embodied the values we strive for as servants of the People's business. As an Irish-Catholic politician from Boston, I am proud of Tip's successful international negotiations that helped to pave the way for peace in Northern Ireland. As an American, I feel privileged to have served with such an historic guardian of America's working families and middle class. And as a citizen of Massachusetts, I am pleased to introduce this bill to forever recognize a great defender of the natural beauty of Cape Cod.

HONORING THE 110TH ANNIVERSARY OF THE UNION GOSPEL MISSION TWIN CITIES

HON. BETTY McCOLLUM

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. MCCOLLUM. Mr. Speaker, today I rise to honor the 110th anniversary of the Union Gospel Mission in the Twin Cities.

The Union Gospel Mission Twin Cities was founded in Saint Paul, Minnesota in 1902. After starting out as a refuge for the homeless and the downtrodden, they now serve as a beacon of hope for not just the homeless, but the jobless, lost, addicted, and battered.

Over the years, the Mission has expanded their operations from a small clinic off Jackson Street, to now include rescue homes for single mothers, opening learning centers, career development centers, child care centers, and medical clinics. As the community evolved, so did the Union Gospel Mission to meet the needs of the community.

During the Second World War, Americans throughout the country were doing their part, and the men and woman at The Union Gospel Mission Twin Cities were no exception. In 1942, the Mission created a day nursery for mothers, not only allowing these women to make sure their children were cared for, but allowing these same women to work in their communities as well.

Today, Union Gospel Twin Cities is helping many Minnesotans by giving them the tools to find jobs, especially to those who have to overcome barriers to do so. One example is the WorkNet Career Development Program in the Twin Cities, which has helped hundreds of Minnesotans by providing access to the training, guidance, and tools needed to find and keep a job in a market where it has been increasingly difficult for many to do so.

The Union Gospel Mission Twin Cities provides direct assistance to those in need, in addition to the many different volunteer opportunities that give people an opportunity to give back to their community.

IN HONOR OF THE 2012 MAKE A DIFFERENCE DAY WINNERS

HON. MICHAEL G. FITZPATRICK

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. FITZPATRICK. Mr. Speaker, today, I would like to acknowledge the great work of the volunteers of Yardley, Pennsylvania, especially the students at Pennsbury High School who have been selected as one of the 2012 Make a Difference Day winners. Make a Difference Day is a celebration of the power of neighbors helping neighbors. Created by USA Weekend, this annual day of service mobilizes more than three million volunteers to create change in their community.

This group of outstanding volunteers from Yardley has made a substantial impact on their community by conducting a book drive and stocking the shelves of the library at the Feltonville Intermediate School. The leader of the project, Neha Gupta, founded Empower Orphans, a non-profit that has used $325,000 in donations and grants to clothe and feed impoverished Indian children, create a sewing center, and set up libraries at four different schools.

But even within a few miles of her home in Bucks County, Neha, now 15, sees children in need. In the months leading up to Make a Difference Day, Neha and a group of volunteers gathered 3,000 titles and bought colorful furnishings for the library. Then, on Make a Difference Day, the team cleaned up the library, decorated it and stocked the shelves. Since October's project, Neha has started an Empower Orphans club at her high school and plans to hold a Make a Difference Day Project every year.

I want to congratulate Neha and the students of Pennsbury High School and thank them for their service and dedication to our community. I am honored to represent you in Congress.

TRIBUTE TO DR. MALCOLM PORTERA, CHANCELLOR OF THE UNIVERSITY OF ALABAMA SYSTEM

HON. JO BONNER

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. BONNER. Mr. Speaker, I rise to pay tribute to Dr. Malcolm ''Mack'' Portera, who recently announced his well-deserved retirement after leading the University of Alabama System for more than a decade. He was the fifth chancellor and the longest serving in the System's history.

In March, Mack Portera officially retired as Chancellor of the University of Alabama System, which includes the school's three campuses in Birmingham, Huntsville and Tuscaloosa.

Dr. Portera has a long and distinguished association with the University of Alabama, also holding the title of Vice President of External Affairs as well as interim president of the Birmingham and Huntsville campuses.

Over the years, Mack Portera's contributions to the University, higher education and business development in Alabama have been considerable. Even before he assumed the top leadership post at the University, Dr. Portera was already involved in top-tier business recruitment efforts in the state of Alabama, including Mercedes Benz.

Under his leadership as Chancellor of the University of Alabama System, total enrollment expanded from 45,000 to 58,000 students. Over the same period, the total budget for the three campuses more than doubled—increasing from $2.1 billion in 2001 to $4.6 billion today.

Prior to becoming Chancellor, Dr. Portera was the 16th president of Mississippi State University, and in 1996, he launched a successful business development and strategic planning company.

In 2003, he was inducted into the Alabama Academy of Honor, a group of 100 living Alabamians elected on the basis of service to the state.

Dr. Portera's impact has been felt both within and beyond the University System. He also serves on the Board of Directors of Alabama Power Company and in leadership roles for the Birmingham Business Alliance, the Riley Foundation, Southern Research Institute, the University of Alabama at Birmingham Health System, the West Alabama Chamber of Commerce, the Bryant-Jordan Scholarship Foundation, Operation New Birmingham, the University of Alabama at Birmingham Research Foundation, and the University of Alabama at Huntsville Foundation. He is the former chair of the Council of Presidents of the Southeastern Universities Research Association and Vice Chair of the Alabama Research Alliance.

Dr. Portera received his undergraduate and master's degrees from Mississippi State University and a Ph.D. in Political Science from the University of Alabama.

Not one to divert from his life-long devotion of giving to the community he loves so much, Dr. Portera plans to remain in Tuscaloosa offering his services as a part-time teacher.

I join the people of Alabama in extending to Dr. Portera our sincere gratitude for his tireless service to the University of Alabama System and to our state. His legacy is a strong

one and there are countless examples of where his service has benefitted the entire state and nation. May Mack and his lovely wife, Olivia, enjoy a happy and rewarding retirement with their children and grandchildren.

IN RECOGNITION OF DIANE LILLY

HON. WILLIAM R. KEATING

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. KEATING. Mr. Speaker, I rise today to recognize a dedicated and courageous citizen from my district in Massachusetts. Diane Lilly, a resident of Duxbury, will be retiring as a Trooper First Class from the Massachusetts State Police after 26 years of exemplary service.

Diane was born on December 13, 1956 in Dorchester, Massachusetts. She graduated from Cardinal Cushing High School in South Boston in 1974 and the University of Massachusetts, Boston, in 1980. Six years later, she graduated from the State Police Academy and began her long career of service to the state. Her work did not slow her passion for education or justice, however, as she graduated from Westfield State College with a Masters in Criminal Justice in 1990.

Diane comes from an extraordinary family of civil servants and community leaders, so it is no wonder she has chosen such an admirable career path. Her father, Leonard, was a Boston Police Officer and retired as Chief Court Officer in Boston Municipal Court. Her sister, Janet, also went to work at that court for many years and her brother, Michael, has been a corrections officer at Suffolk County House of Correction. Two of her other brothers, Lenny and Brian, have both worked as police officers in Massachusetts, while her brother, Kevin, runs the heart and lung machines during open heart surgery at Cape Cod Hospital.

Between 1987 and 2001, Diane worked out of the Norfolk County State Police Office. During this time she was instrumental in the Salvi and Sampson case that put a dangerous and prolific criminal behind bars for more than 30 years. She then began working with the Plymouth County Homicide Unit, where she was able to play an important role in the Matthew Cody cold case and the Magnarelli murder case. Since 2005, she has been a member of the Diversion Investigative Unit working on prescription drug abuse cases.

Bay Staters are safer because Diane—and her colleagues—have had the courage to take on the most dangerous issues facing our community.

As Diane retires after such a commendable life of public service, she will be able to spend some much deserved down time with her three dogs, Dermott, Maggie and Josephine.

Mr. Speaker, I am proud to honor Diane Lilly on this remarkable occasion. I ask that my colleagues join me in wishing her a great retirement and many years of happiness with her family and dogs and thank her for making Massachusetts a safer place.

RECOGNIZING THE 90TH ANNIVERSARY OF TWITCHELL TECHNICAL PRODUCTS

REP. MARTHA ROBY

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mrs. ROBY. Mr. Speaker, I stand today to recognize the 90th anniversary of Twitchell Technical Products—a thriving business in Southeast Alabama.

Mr. E.W. Twitchell founded E.W. Twitchell, Inc. nine decades ago. First established in Unionville, Connecticut, the company later relocated in 1930 to Philadelphia, Pennsylvania. In 1945, the company came home to Dothan, Alabama, where its headquarters remain today. To date, Twitchell provides jobs that support nearly 300 families around Dothan. In our area, this company is a staple in the local economy and a cornerstone of the local community.

Mr. Speaker, without question, the number one issue that affects our nation and my home state of Alabama is the health of our economy and the ability to create new American jobs. I am especially aware of this fact from the many discussions I have had with small business owners and employers throughout the district. I was privileged to recently have such a discussion with representatives from Twitchell last month.

During a time when too many employers have been forced to shrink their workforce or even close their doors, I was encouraged to hear about Twitchell's achievements. Through innovation, Mr. Twitchell achieved success by changing and adapting to the needs of the market. Mr. Speaker, that is what the free market is all about. Free from government interference or unnecessary regulation, private companies adjust to the demands of the market and remain competitive. When that happens, both employees and consumers benefit.

For example, four decades ago the company acquired a local yarn extrusion venture that specialized in PVC coated yarns. The yarn weaves into a fabric used for everyday products, such as window shades, athletic goods, and outdoor furniture. The fabric continues to be Twitchell's best selling product, keeping the company in high-demand as it is one of only two manufacturers of PVC coated yarn and woven products in the U.S.

Here in Congress, we regularly discuss the many barriers that prevent job creation, such as costly federal regulations that stand in the way of private sector growth. My House colleagues and I are passing legislation to repeal these burdensome federal rules. We want to encourage small business owners who work hard to invest in their employees and their products, not discourage them. The House has passed nearly 30 pro-growth jobs-bills to reduce the mountain of federal regulations that limit an employer's ability to create jobs. We should never forget: government does not create jobs; the private sector creates jobs.

An economy built to succeed is an economy that is built on a foundation of small business entrepreneurship. Operating on the principles of persistence, innovations, and hard work, Twitchell is a model of American enterprise. It is a privilege for me to stand here today to honor the legacy of Twitchell and to recognize the many dedicated employees who have made the company a success through the years. I congratulate Mr. Twitchell and his family for reaching this milestone, and look forward to the centennial celebration.

Mr. Speaker, please join me in congratulating Twitchell on its 90th anniversary and in wishing the company many more decades of success.

A TRIBUTE TO DOCTOR JOHN BYRD

HON. TOM LATHAM

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. LATHAM. Mr. Speaker, I rise today to recognize the retirement of Dr. John Byrd as the President of Simpson College in Indianola, Iowa.

This month, President Byrd announced that he will be retiring at the conclusion of the upcoming 2012–2013 academic year as Simpson's 22nd president. Dr. Byrd has been involved with higher education in numerous ways for more than 30 years and has been Simpson's president since 2005. Over his long career, Dr. Byrd has acquired valuable experience in academic services, planning and strategic services, institutional research, student affairs, financial aid and enrollment management. Dr. Byrd originally received his bachelors and masters degrees from the University of Missouri-Columbia, before earning is Ph.D. in health education from Southern Illinois University.

It goes without saying that President Byrd will certainly be missed on the Simpson campus. It was through Dr. Byrd's leadership that Simpson initiated a new strategic planning process to accompany new faculty initiatives. President Byrd's legacy will be felt for years to come through his work to increase diversity on campus as well as overseeing the college's plans for building renovation and construction. Dr. Byrd will leave Simpson next year with a completed Kent Campus Center, expanded Blank Performing Arts Center, updated Pfeiffer Dining Hall, as well as a new activities quad well under way.

Outside of Simpson, Dr. Byrd is known for his extensive involvement in the community, most notably the Indianola Rotary Club. Dr. Byrd also serves his community in his capacity as a member of the Village Advisory Council, Greater Des Moines Committee, as Secretary of the Board for the Iowa College Foundation Board of Governors, and as Chair of the Executive Committee for Iowa Campus Compact.

I want to thank President Byrd for his many years of service to the students and employees of Simpson College. It is an honor to represent all the great people of Indianola in the United States Congress, and I know that my colleagues in the House will join me in wishing Dr. Byrd, and his wife Nancy, happiness and good health as they enter this new chapter of their lives together.

IN RECOGNITION OF KELLY KOLANDER

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. GARAMENDI. Mr. Speaker, I rise today in honor of Kelly Kolander, who has served Northern Calif. through the O.C. Jones & Sons, Inc. TLC for Kids Sports Program. As his colleagues, friends and family gather together to celebrate these accomplishments, we ask all of our colleagues to join us in saluting this outstanding and giving Company and this businessman.

Kelly Kolander's journey began soon after graduating from The California State University in Fresno where he earned a BS in Heavy Civil Construction. It was there that he began his career in Heavy Construction, working part time and summers for a local firm while going to school. Upon graduation, he continued his career for a few short years in the Central Valley before coming to O.C. Jones as an Estimator in 1987. In O.C. Jones, he found a firm with an outstanding reputation with tremendous experience and top quality people. Today he sits as the President and CEO of O.C. Jones & Sons Inc where he's served since 2006.

While heading O.C. Jones in 2009 the Company searched for a way that they could further their community outreach and support during the difficult recession. The Company's background in Heavy Civil Construction as well as Stadiums and Sports Facilities led Kolander to create the TLC for Kids Sports Program. The TLC for Kids Sports Program allows youth sports leagues to compete for renovations on their subpar facilities that would otherwise go to ruin. It is designed to improve the Community and Youth Sports . . . One field at a Time.

TLC for Kids Sports' Contributions to the community prove to be a great asset in Northern California in the fight to keep sports programs alive and well. Mr. Kolander's work is pivotal in the fight against childhood obesity and diabetes. The newly renovated little fields they have refurbished thus far will surely motivate and keep children interested in America's great pastime.

Kelly Kolander and the TLC for Kids Sports Program have already renovated three baseball and softball facilities in Northern California since 2009. The Tahoe Tallac, Eastridge and Antioch Little Leagues have all benefited from the efforts and charity of the TLC for Kids Program. The Eastridge Little League now has a girls division thanks to the new fields and can now proudly say young boys and girls are part of their organization. Most recently the program renovated the fields for the Antioch Little League in my own 10th district in California. Additionally, TLC for Kids Sports is continuing its efforts in the Community by constructing an Outdoor Classroom Memorial at Las Lomas High School in Walnut Creek to commemorate students Matt Miller and Gavin Powell, who died in February 2011 in a rafting accident. There are also plans to renovate another series of fields and playground area in West Sacramento. Mr. Kolander's contribution to my district is greatly appreciated and does not go without recognition. O.C. Jones and its 'TLC for Kids Sports program' work in the 10th District and throughout the Bay Area can only help create a better tomorrow through a more healthy and motivated youth.

The long lasting benefits of Kelly Kolander's TLC for Kids Sports Program not only benefit children now but will create healthy and more motivated adults in the future; they stand as a testament to what diligent work and true commitment to community can produce.

Mr. Speaker, We are truly honored to pay tribute to our friend and dedicated program founder and president Kelly Kolander. We ask our colleagues to join with us in thanking Mr. Kolander and O.C. Jones and Sons, Inc., for their dedicated service to the citizens of Northern California and wishing continued success in all his future endeavors.

CONGRATULATING THE 1,000TH GRADUATION CEREMONY OF THE U.S. BORDER PATROL ACADEMY

HON. HENRY CUELLAR

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. CUELLAR. Mr. Speaker, I rise today to congratulate and recognize the 1,000th graduation ceremony of the U.S. Border Patrol Academy in Artesia, New Mexico, where members of this graduating class will be assigned to one of three Border Patrol sectors: Tucson, Arizona, Del Rio or in my Congressional district in Laredo, Texas.

As an active member of the Committee on Homeland Security in the U.S. House of Representatives, I understand the vital role that Border Patrol plays in securing our country, while facilitating trade and travel responsibilities and enforcing drug laws to protect our nation. Border patrol is a critical component for my Congressional district that sits along the nation's southwest border, as well. Their national presence along the border is necessary to ensure Americans' safety, protect our homeland and serve our nation and is greatly appreciated. The men and women of the Border Patrol make up the largest law enforcement organization; therefore this 1,000th graduating class is a milestone for the agency and enables the organization to foster increased security, trade and travel at the border.

Every day, the Border Patrol processes over 932,000 passengers and pedestrians and over 64,000 truck, rail and sea containers, based on fiscal year 2011 data. Nearly 14,000 pounds of drugs are seized on a typical day showing the product of their vigilance to law enforcement and protection. The intricate composition of the organization includes a range of professionals such as, trade specialists, intelligence analysts, agricultural scientists and more to run an efficient system. With 21,063 CBP officers, 21,137 border patrol agents and 1,220 air and marine agents, their service is unified to their sole mission—"securing America's borders while facilitating legitimate travel and trade" as their slogan states.

The graduation ceremony was held on April 12th and included the Secretary of Homeland Security, Janet Napolitano, Acting Commissioner of Customs and Border Protection, David V. Aguilar, and Chief of the United States Border Patrol, Michael J. Fisher.

I look forward to members of this graduating class being assigned to the three sectors, including Laredo, Texas in my Congressional district. Congratulations and thank you for your vital work to secure the homeland.

SPORTSMEN'S HERITAGE ACT OF 2012

SPEECH OF

HON. BETTY McCOLLUM

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, April 17, 2012

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 4089) to protect and enhance opportunities for recreational hunting, fishing and shooting:

Ms. McCOLLUM. Madam Chair, I rise in opposition to H.R. 4089, the Sportsmen's Heritage Act. This bill is the latest attempt by House Republicans to use America's natural treasures for the benefit of a handful of private corporations who are eager to mine, drill and log.

Protecting and increasing hunters' access to public lands has been a bipartisan issue for decades, and is something I support. As a result, America's hunters have incredible access to our Federal lands. Today, 75 percent of all Federal lands are open to hunting and fishing. This includes approximately 67 percent of National Wildlife Refuge land and 70 percent of all the land managed by the National Park Service. The Bureau of Land Management allows hunting on 95 percent of the acres it manages. In Minnesota, we are fortunate to have large areas of public land open to hunting, including the Superior National Forest.

In the United States, hunting access on public lands is not a crisis requiring legislation; it is a success story that deserves to be celebrated. H.R. 4089 abandons and reverses this legacy. This bill changes Federal laws to prioritize development over conservation and put corporate interests ahead of hunters.

H.R. 4089 reduces the decision-making power of Park Rangers and other local land managers by centralizing authority in Washington, thousands of miles away. These highly trained professionals must be allowed to do their jobs, keeping land open to the public while protecting areas from disasters such as forest fires.

H.R. 4089 would encourage the destruction of millions of acres of wildlife habitat. Every hunter knows that less habitat leads to less wildlife, which means less hunting. It is obvious that the beneficiaries of H.R. 4089 would not be America's sportsmen and women but instead, the owners of large oil, gas and mining corporations.

This legislation repeals important provisions in the Wilderness Act that would open millions of acres of public land to development. H.R. 4089 allows the construction of new permanent road networks and authorizes permits for logging, mining and drilling in designated Wilderness areas.

As a strong supporter of conservation on America's public lands and our country's proud hunting heritage, I urge my colleagues to stand up for hunters and oppose H.R. 4089.

TRIBUTE TO RAY AND JUDY OBER

HON. KEN CALVERT

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. CALVERT. Mr. Speaker, I rise today to honor and pay tribute to two good friends of mine, Ray and Judy Ober. Ray and Judy passed away just 21 days apart from each other, a testament to their love for one another. Ray and Judy were a pillar of the community in Riverside, California and they will be deeply missed.

Judy was born in New York, and grew up in the San Fernando Valley, while Ray was born in Hollywood and raised in Van Nuys, California. They lived a blessed life in Riverside for 53 years and raised all four of their children there. Ray and Judy owned Ober Graphics, Inc. for many years, where Ray was the ''premier graphic artist of Riverside,'' while Judy went back to school and eventually earned her bachelor's degree from Cal Poly Pomona at the age of 49. After graduating, she passed the Certified Public Accountant (CPA) exam and went to work at Macher and Clark, where she worked for over 20 years. Their chosen careers, Ray a talented artist and Judy a CPA, may have appeared to be in stark contrast, but were the perfect recipe for a loving, lasting marriage.

Ray and Judy were long time members of Canyon Crest Country Club during the 1970s and 1980s where they played tennis and socialized with many great friends. Ray and Judy enjoyed spending time at their beach house in Newport and trips to Las Vegas. They took their children on many family vacations, celebrating their love of life. Judy held officer positions in various clubs including treasurer of the Riverside County Republican Party and president of the Riverside Soroptomists. Ray's passions were genealogy and ''playing the ponies.'' In their more recent years Judy enjoyed playing golf with her golf girlfriends, going on vacations with her high school girlfriends, spending time with her sisters and friends and playing games with her grandchildren. Ray more recently enjoyed photography, visits from his family and friends and trips to Pechanga. Judy and Ray were both amazing, multi-faceted, rare human beings who will be incredibly missed by all who knew them.

I am particularly thankful for the friendship I shared with both Ray and Judy. They were great supporters and, most importantly, dear friends. I will miss their generous spirit, kind nature and enduring friendship.

On April 15, 2012, there was a combined service celebrating the lives of Ray and Judy. They will always be remembered for their generosity, contributions to the community and love of family. Their dedication to their family and community are a testament to lives lived well and a legacy that will continue. I extend my condolences to Ray and Judy's family and friends; although they may be gone, the light and goodness they brought to the world remain and will never be forgotten.

A TRIBUTE TO KATIE STRICKLAND

HON. TOM LATHAM

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. LATHAM. Mr. Speaker, I rise today to recognize and congratulate Katie Strickland of Ames for being awarded the Girl Scout Gold Award.

The Gold Award is the highest award that a high school-aged Girl Scout can earn. This is an extremely prestigious honor as less than six percent of all Girl Scouts will attain the Gold Award's rigorous requirements.

To earn a Gold Award, a Girl Scout must complete a minimum of 80 hours towards a community project that is both memorable and lasting. For her project, Katie worked with children in her community to teach them the value of donating their time and the positive effects that selfless volunteering has on others. The work ethic Katie has shown to earn her Gold Award speaks volumes of her commitment to serving a cause greater than herself and assisting her community.

Mr. Speaker, the example set by this young woman and her supportive family demonstrates the rewards of hard work, dedication and perseverance. I am honored to represent Katie and her family in the United States Congress. I know that all of my colleagues in the House will join me in congratulating her in obtaining the Gold Award, and will wish her continued success in her future education and career.

CONGRATULATING RICK AND KELA ELLIS OF RHINELANDER, WISCONSIN, ON BEING NAMED A 2012 NATIONAL ''MAKE A DIFFERENCE DAY'' AWARD RECIPIENT

HON. SEAN P. DUFFY

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. DUFFY. Mr. Speaker, today, I would like to acknowledge the great work of the volunteers of Rhinelander, Wisconsin, especially those who worked to benefit the Ronald McDonald House of Marshfield, Wisconsin. They have been selected as a one of the 2012 ''Make A Difference Day'' winners and I could not be more proud.

Make a Difference Day celebrates the power of neighbors helping neighbors. Created by USA Weekend, this annual day of service mobilizes more than three million volunteers to create change in their community.

This group of outstanding volunteers from Rhinelander has made a substantial impact on their community by collecting aluminum cans for the local Ronald McDonald House. Rick and Kela Ellis were heartbroken when they lost their 2-year-old daughter, Ashley, to brain cancer in 1989. But within a year they had found a way to honor her memory—by recycling aluminum cans to benefit the Ronald McDonald House of Marshfield, Wisconsin, their ''home'' while Ashley was hospitalized. Since giving their ''Cans for Cancer'' collection a huge boost by tying it to Make A Difference Day in 1998, the Ellises have recycled 6,000 pounds of aluminum, raising more than $2,500.

Rick and Kela will be honored at the Make A Difference Day event presented by Points of Light here in Washington, DC, on April 19, 2012. I congratulate them for this great service in the midst of such loss.

IN RECOGNITION OF VINCENT STURTEVANT

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. SPEIER. Mr. Speaker, I rise to honor Officer Vincent Sturtevant for his 30 years of service at the Daly City Police Department.

Mr. Sturtevant was appointed a police officer in 1981 and graduated from San Jose Criminal Justice Training Center Academy the following year.

Officer Sturtevant started his career as a patrol officer serving as a field training officer. In 1994, he was assigned as a detective. He has also served many times as an acting patrol sergeant.

Officer Sturtevant's enthusiasm and commitment to his job are exemplary and didn't go unnoticed by his fellow officers who voted him most valuable police officer for his shift in 1990 and 1992. He also received numerous letters of appreciation from citizens and departmental commendations. In 1993, he received a commendation for his assistance in apprehending a barricaded suspect who had fired a shotgun. In 1994, he was commended for his participation in the capture of three armed robbery suspects.

Vincent is a Daly City boy through and through, having graduated from Westmoor High School and earned his Bachelor degree in history from San Francisco State University.

He lives in Daly City with his wife of 20 years, Marianne.

Mr. Speaker, I ask this body to rise with me to honor the heroic service of Officer Vincent Sturtevant to the residents of Daly City. For over three decades, he has made our community a safer and better place.

IN SPECIAL RECOGNITION OF CALEB LIPSCOMB ON HIS OFFER OF APPOINTMENT TO ATTEND THE UNITED STATES NAVAL ACADEMY

HON. ROBERT E. LATTA

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. LATTA. Mr. Speaker, it is my great pleasure to pay special tribute to an outstanding student from Ohio's Fifth Congressional District. I am pleased to announce that Caleb Lipscomb of Perrysburg, Ohio has been offered an appointment to the United States Naval Academy at Annapolis, Maryland.

Caleb's offer of appointment poises him to attend the United States Naval Academy this fall with the incoming midshipmen Class of 2016. Attending one of our nation's military academies not only offers the opportunity to serve our country but also guarantees a world-

class education, while placing demands on those who undertake one of the most challenging and rewarding experiences of their lives.

Caleb brings an enormous amount of leadership, service, and dedication to the incoming Class of 2016. While attending Perrysburg High School in Perrysburg, Ohio, Caleb was on the High Honor Roll and was a member of the National Honor Society.

Throughout high school, Caleb was a member of his school's wrestling and football teams and earned varsity letters in both sports. In addition, Caleb participated in several mission trips in Ohio and West Virginia and served as Master Counselor for Demolay International. I am confident that Caleb will carry the lessons of his student and athletic leadership to the Naval Academy.

Mr. Speaker, I ask my colleagues to join me in congratulating Caleb Lipscomb on the offer of his appointment to the United States Naval Academy. Our service academies offer the finest military training and education available. I am positive that Caleb will excel during his career at the Naval Academy, and I ask my colleagues to join me in extending their best wishes to him as he begins his service to the Nation.

CONGRATULATING GIRL SCOUTS TROOP 333

HON. ED WHITFIELD

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. WHITFIELD. Mr. Speaker, today I rise to congratulate Girl Scouts Troop 333 from Madisonville, Kentucky on their selection as one of the 2012 Make A Difference Day honorees.

Make A Difference Day is a celebration of the power of neighbors helping neighbors. Created by USA Weekend, this annual day of service mobilizes more than three million volunteers to create change in their community.

Nine Junior and Cadet Girl Scouts of Madisonville Housing Authority Troop 333 dedicated a second Make A Difference Day to seniors. In 2010 the troop did chores for their older neighbors in public housing. This time around, they decided to bring cheer to nursing home residents.

The girls decorated 450 greeting cards and wrote special messages for the seniors. They distributed the cards to residents in three assisted living homes and spent time visiting with each resident who received a card.

I am pleased that Troop 333 will be honored for their efforts tonight during the Points of Light 2012 Make A Difference Day Awards Luncheon at the Ronald Reagan Building and International Trade Center here in Washington. Please join with me in celebrating their outstanding service.

HONORING JOURNEYMEN LINEMEN

HON. PHIL GINGREY

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. GINGREY of Georgia. Mr. Speaker, I rise to recognize this day, April 18, as a day of honor for Journeymen Linemen.

Accordingly, I have introduced H. Res. 561 to recognize April 18, 2012, as National Journeymen Linemen Day in order to honor these brave men and women for their contributions to protect public safety.

Journeymen Linemen are often the first responders during a storm or other catastrophic event, which means these brave men and women are often required to make the scene safe for other public safety heroes. Linemen work with thousands of volts of electricity high atop power lines every day of the year in order to protect the nation from dangerous electrical currents.

The profession of Journeymen Linemen is steeped in tradition and family, both professionally and personally. Generations ago, Linemen climbed poles using hooks and blocks, but as technology has grown through the years, innovative Linemen have pioneered advancements with innovative materials, altering the direction of line work for the future.

Mr. Speaker, I ask my colleagues to join me today in honoring the extraordinary commitment and courage demonstrated everyday by the nation's Journeymen Linemen.

CONGRATULATING THE SHAW UNIVERSITY WOMEN'S BASKETBALL TEAM ON THEIR NCAA DIVISION II CHAMPIONSHIP

HON. DAVID E. PRICE

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. PRICE of North Carolina. Mr. Speaker, I rise today to congratulate this year's NCAA Division II Women's Basketball Champions, the Lady Bears of Shaw University!

As fans of the game know all too well, North Carolina schools have a tradition of excellence in collegiate basketball. That success became even more legendary in 2012. We have a new champion in our midst, the Lady Bears.

In some ways it's no surprise that the Lady Bears won the 2012 national title. They made the Final Four in 2011 and began the year in the top ten. But every season is different, and nothing in life or basketball is certain. I don't know what Coach Curtis did, but the season didn't finish as it begun. After compiling a 4–5 record in the first 9 games, the Lady Bears found their groove. From that point on, the team went 25–1 and closed the season on a 15-game winning streak. The Lady Bears went 15–1 in CIAA conference play, were undefeated on their home court, and won the conference tournament.

Then came the quest for the national championship. The Lady Bears beat West Virginia Wesleyan 92–78, Gannon University 64–59, Edinboro University 70–53, Pittsburg State 61–58 and Rollins College 87–71. The final game was as exciting and hard fought as they come. Shaw battled back from a 43–32 halftime deficit to force overtime. When the buzzer sounded, the Lady Bears had won 88–82 over Ashland University. Guards Sequoyah Griffin and Brittney Spencer led the team in scoring with 24 and 16 points, respectively. Center Aslea Williams scored 14 points and pulled down 11 rebounds, and Forward Kyria Buford scored 10 points and grabbed 8 rebounds. Reserve Guard Brittany Ransom also scored 14, providing the team with a valuable lift. The Lady Bears ended the season number one in the polls and with a National Championship in hand!

Coach Curtis deserves special mention for leading this team to victory. He was named the Division II Bulletin National Coach of the Year and the Minority Division II Coach of the Year. But he's done much more than coach. Every single player who has completed four years of eligibility under Coach Curtis has graduated. True collegiate champions pair winning on the court with strong character and academic dedication, and that's exactly what Shaw has done. As an educator, I admire the academic focus that Coach Curtis has made an integral part of the Lady Bears basketball culture.

Mr. Speaker, it was a tremendous season for the Lady Bears of Shaw. On behalf of my colleagues in this body, I congratulate this team for their perseverance, their will to win, and their success in becoming the 2012 champions.

No. 20 Shemieka Brown PG Sr. 5–8 Salisbury, NC; No. 21 Kyria Buford F Sr. 6–1 Charlotte, NC; No. 2 Isayra Diaz G Jr. 5–6 New York, NY; No. 10 Sequoyah Griffin G Jr. 5–9 Columbus, GA No. 30 Crystal Harris C So. 6–1 Jersey City, NJ; No. 32 Ariel Hatcher G Sr. 5–10 Detroit, MI; No. 15 Allyssa Lane PG Sr. 4–11 Winter Park, FL; No. 22 Jashaye Magnum C Fr. 6–1 Miami, FL; No. 33 Brittany Ransom G Sr. 5–10 Columbus, OH; No. 11 Brittney Spencer G Sr. 5–7 Norfolk, VA; No. 3 Enonge Stovall F Jr. 5–11 Philadelphia, PA; No. 41 Victoria Tanner F Sr. 5–10 Raleigh, NC; No. 5 Aslea Williams C Jr. 6–1 Akron, OH; Head Coach: Jacques Curtis; Associate Head Coach: Carl Hatchell; Assistant Coach: Ashante Timoll; Assistant Coach: Jonas Richard; and Athletic Trainer: Sean Burton.

IN RECOGNITION OF CAROL SLOANE

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. SPEIER. Mr. Speaker, I rise to honor Lieutenant Carol Sloane for her 21 years of service at the Daly City Police Department.

Ms. Sloane was appointed police officer in 1990 and graduated from the Basic Academy at Butte Community College in Oroville, California. As a patrol officer, she trained new recruits as field training officers and was well respected by her fellow officers. She served as acting patrol sergeant on several occasions.

In 1994, Officer Sloan was awarded a departmental commendation for the arrest of three graffiti suspects. Four years later she received the same recognition for apprehending a homicide suspect. Immediately after a stabbing incident, Officer Sloan identified a suspicious person and through her investigation determined that the person was indeed the homicide suspect.

In February of 2003, Ms. Sloan was promoted to the rank of police sergeant. She graduated from the Sherman Block Supervisory Leadership Institute and was then assigned to the Management Control and Audit Unit where she conducted internal affairs investigations, departmental audits and served as the public information officer. Sergeant

Sloane was the face of the Daly City Police Department on many local television news stories.

Carol Sloane broke the gender barrier by becoming the first woman to be promoted to police lieutenant at the Daly City Police Department in 2006. She earned the respect and admiration of her department by dedicating much time, attention and mentorship to new and young officers.

Carol Sloane graduated from Terra Nova High School in 1975. She attended City College of San Francisco and the College of San Mateo. In 1999 she completed her degree in management at St. Mary's College.

Lieutenant Sloan lives in Pacifica with her husband of 14 years, Daly City Firefighter Doug Blanckensee, and their seven-year-old son Bryce.

Mr. Speaker, I ask this body to rise with me to honor the outstanding service of Lieutenant Carol Sloan to the residents of Daly City. She will be remembered for her dedication, her leadership and for making our community a safer and better place.

TRIBUTE TO OPERATION UNITE FOR THE INAUGURAL NATIONAL RX DRUG ABUSE SUMMIT

HON. HAROLD ROGERS

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. ROGERS of Kentucky. Mr. Speaker, I rise today to pay tribute to Operation UNITE, the non-profit anti-drug organization in southern and eastern Kentucky for organizing the inaugural National Rx Drug Abuse Summit in Orlando, FL April 10–12, 2012.

This small grassroots organization took on the enormous task of uniting federal, state and local officials on a national stage to discuss obstacles and solutions for the prescription drug epidemic plaguing our country. In its first year, the Summit garnered an outstanding audience of 750 attendees, along with national headliners including: the Director of the Office of National Drug Control Policy, Gil Kerlikowske; U.S. Surgeon General, Dr. Regina Benjamin; the Principal Deputy Director of the Centers for Disease Control and Prevention, CDC, Dr. Ileana Arias; Deputy Assistant Administrator of the Office of Diversion Control with the U.S. Drug Enforcement Administration, DEA, Joseph Rannazzisi; the Director of the National Institute on Drug Abuse, NIDA, Dr. Nora Volkow; the Appalachian Regional Commission, ARC; and four members of the Congressional Caucus on Prescription Drug Abuse, including myself, U.S. Rep. Mary Bono-Mack of California, U.S. Rep. Jack Kingston of Georgia, and U.S. Rep. Nick Rahall of West Virginia.

As a nation, we can no longer afford to sit quietly on the sidelines. The epidemic now claims more lives every year through drug overdoses than any other accidental death, according to the CDC. During the Summit, Director Kerlikowske called it a public health crisis, noting prescription drug abuse is the fastest growing drug problem in the country. In Kentucky, we are losing 82 people a month to drug abuse—more than car crashes. This Summit brought forth the realization that unsecure medicine cabinets are more dangerous than our cars.

President & CEO, Karen Kelly, highlighted the multi-pronged approach of the UNITE organization on the national stage as a model for the rest of the country. The Summit featured sessions on healthcare, advocacy and prevention, human resources, treatment and law enforcement. Together, leaders from each field shared resources and information at the Summit, crossing industry lines and state boundaries, for the first time in some areas.

Mr. Speaker, I ask my colleagues to join me in congratulating Operation UNITE on a successful inaugural National Rx Drug Abuse Summit. They tossed a pebble into a big pond and I believe the ripple effect will be tremendous in the years to come.

HONORING GLENDON ENGERT

HON. JEFF DENHAM

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. DENHAM. Mr. Speaker, I rise today to honor Glendon Engert, who was slain together with Deputy Bob Paris on April 12th in Modesto, California while serving an eviction notice. My thoughts go especially to his wife of 11 years, Irina. No words can lessen the grief that is felt by those close to him; but I hope they know that we share, in what measure we can, their sorrow.

Mr. Engert was a man who did not discourage easily. Like so many in the Valley, he lost his employment when the recession took hold. He didn't give up, though, and secured a new job as a locksmith—a job that gave him the ability to support his family and maintain an active role in his church and community.

It is a tragedy that his initiative, his strong work ethic, unwittingly placed him in harm's way on April 12. We are thankful for the life of Glendon Engert and if this act, this statement, seems small before the moment, be assured of the sincerity of our sympathy and the depth of our emotion. May God bless the family and friends of Mr. Engert and welcome him to his everlasting reward.

CONGRATULATING BRENDA V. TRIPLETT

HON. DANNY K. DAVIS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. DAVIS of Illinois. Mr Speaker, I rise today to congratulate Ms. Brenda V. Triplett on her retirement from the Social Security Administration after thirty-four years of service to our government. As a member of the Federal Workforce Subcommittee in the House, we have had the honor of hosting many fellows from SSA that have advised us on the many complex issues of the agency.

Brenda has worked at various SSA offices in Illinois and Indiana. Her first position for SSA was at the Harvey, IL field office as a clerk and also as a clerk in the Markham, IL field office. Brenda's next position with SSA was at the Agency's Chicago Regional Office as a personnel staffing assistant in addition to the Gary, IN field office where she worked as an administrative aide; and later promoted to the service representative position there. Brenda was then promoted again to the Title 16 claims representative position located at the Back of the Yards field office in Chicago, IL. Finally, in August 2008, she was promoted to the Chicago Teleservice Center, Chicago, IL as a supervisor where she remained until present.

During Brenda's retirement, she anticipates joining a bowling league. As an avid skater, there will be more opportunities for her to roller skate. In addition, she plans to act as primary caregiver for her parents and attend Bible study on regular basis.

I congratulate Brenda on all of her achievements and wish all best in her future endeavors. In the words of an old Irish saying, "May the sun always shine on your windowpane, May a rainbow be certain to follow each rain, May the hand of a friend always be near you, May God fill your heart with gladness to cheer you!"

SURFACE TRANSPORTATION EXTENSION ACT OF 2012, PART II

SPEECH OF

HON. GENE GREEN

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Wednesday, April 18, 2012

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 4348) to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund pending enactment of a multiyear law reauthorizing such programs, and for other purposes:

Mr. GENE GREEN of Texas. Mr. Chair, I support the Boustany amendment. I have been a long-time supporter of the RAMP Act. I represent the Port of Houston. We pay into the harbor maintenance trust fund, but we get far less out than we pay in. In fact, we get far less out than we need. We are facing a dredging crisis in upcoming years if we cannot get more harbor maintenance funding.

I am proud to represent the Port of Houston. The work that happens here and the commerce that is moved through here support the economy of the entire region. The Port is the largest foreign tonnage port and the largest petrochemical port in the country. In fact, it moves the second largest amount of cargo in the country. 8.5% of our nation's cargo moves through the Port of Houston. The commerce that occurs at our port is critical to our nation's energy and chemical sectors and to our country's ability to trade and move goods.

In 1998, the Federal Government invested $700 million in deepening and widening the Houston Ship Channel. An investment we have benefitted from tremendously. However, as the years have passed silt has settled and reduced the draft in the channel significantly. Today, only .4% of the channel is dredged to its proper depth across the entire width of the channel. That is astounding. Our nation's investment is rapidly deteriorating. It is time that our government renews its commitment to maintaining the Port.

This is as important as ever as we face new business opportunities that are created by the expansion of the Panama Canal.

The Texas Transportation Institute performed a study and determined that a direct

economic impact of the loss of 1 foot of draft is $373 million. The majority of this impact is lost business opportunities due to light loading of non-containerized vessels. If the dredging crisis at the port continues to worsen, this cost will quickly accelerate.

This amendment will help alleviate the crisis. The Port of Houston will get more desperately needed dredging funding. I strongly support this amendment and urge my colleagues to do the same.

IN SPECIAL RECOGNITION OF MARSHALL KOBYLSKI ON HIS OFFER OF APPOINTMENT TO ATTEND THE UNITED STATES MILITARY ACADEMY

HON. ROBERT E. LATTA

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. LATTA. Mr. Speaker, it is my great pleasure to pay special tribute to an outstanding student from Ohio's Fifth Congressional District. I am pleased to announce that Marshall Kobylski of Bowling Green, Ohio has been offered an appointment to the United States Military Academy at West Point, New York.

Marshall's offer of appointment poises him to attend the United States Military Academy this fall with the incoming cadet Class of 2016. Attending one of our Nation's military academies not only offers the opportunity to serve our country but also guarantees a world-class education, while placing demands on those who undertake one of the most challenging and rewarding experiences of their lives.

Marshall brings an enormous amount of leadership, service, and dedication to the incoming Class of 2016. While attending Bowling Green Senior High School in Bowling Green, Ohio, Marshall was a member of the National Honor Society, participant in the Ohio Energy Project, President of the Chess Club, and a Buckeye Boys State delegate.

Throughout high school, Marshall was a member of his school's cross country and track teams and earned varsity letters in both sports. In addition, Marshall participated in various church based organizations, including the youth group. I am confident that Marshall will carry the lessons of his student and athletic leadership to the Military Academy.

Mr. Speaker, I ask my colleagues to join me in congratulating Marshall Kobylski on the offer of his appointment to the United States Military Academy. Our service academies offer the finest military training and education available. I am positive that Marshall will excel during his career at the Military Academy, and I ask my colleagues to join me in extending their best wishes to him as he begins his service to the Nation.

IN RECOGNITION OF ALLEN M. PROWS

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. SPEIER. Mr. Speaker, I rise to honor Officer Allen Prows for his 31 years of service at the Daly City Police Department.

Mr. Prows was appointed police officer in 1980 and graduated from the Northern California Criminal Justice Training Center Academy at College of the Redwoods in Eureka, California.

Upon completion of the field training program, Officer Prows began his extensive career as a patrol officer. Working all shifts, he rose quickly from rookie to seasoned veteran in the patrol division where he spent his entire career. He is highly respected by his fellow officers and citizens alike and has received numerous letters of appreciation from residents and recognition for good team work with unit commanders from the department.

Officer Prows was awarded several departmental commendations, including one in 1986 for his part in the capture of two suspects who had vandalized Jefferson High School with graffiti and broken windows. He received another one in 1991 for being part of a team that apprehended a bank robbery suspect.

Allen Prows graduated from Newark High School in 1975. He earned an Associate of Arts degree from Ohlone Community College.

He lives in South San Francisco and is the proud father of two sons, Kevin and Mathew.

Mr. Speaker, I ask this body to rise with me to honor the service of Officer Allen Prows to the residents of Daly City. For over three decades, he has been dedicated to our community and made it a safer and better place.

H.R. 4335, THE POSTAL SERVICE ACCOUNTABILITY ACT

HON. NICK J. RAHALL II

OF WEST VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. RAHALL. Mr. Speaker, on March 29, I introduced H.R. 4335, the Postal Service Accountability Act.

My bill would empower the independent postal regulator, the Postal Regulatory Commission, PRC, to block postal closures where the Postal Service, USPS, does not give sufficient attention to the undue burden a closure would have on a community.

Under current law, when the Postal Service is considering closing a post office, the affected public must be notified. The Postal Service opens a 60–day comment period, which includes a public meeting to allow local citizens a chance to voice their concerns. Once the public comment period closes, should the Postal Service decide to close a post office, the public has 30 days to appeal the decision to the Postal Regulatory Commission.

According to the Congressional Research Service, the PRC may fault the USPS' decision to close a post office only if the PRC finds the decision to be arbitrary, capricious, an abuse of discretion, or otherwise not in accordance with the law; without observance of procedure required by law; or unsupported by substantial evidence on the record. The PRC may require the USPS to reconsider its decision, but the ultimate authority to close a post office rests with the USPS.

My bill would give the PRC a binding authority to block a post office closure. It would require the Postal Service to consider the economic impact of a closure on a community, and empower the PRC to set aside a determination that is unsupported by substantial evidence regarding projected savings, mail delivery services, and community and worker impact. In addition, the Postal Service would be required to perform an after-the-fact review one year after a closure and make public its findings to ensure mail delivery services have been maintained.

My bill also would apply the revised appeals process to postal sorting facilities. Currently, there is no appeals process for mail processing facilities.

As well, my measure would prevent the Postal Service from proceeding with a closure without the written concurrence of three commissioners, halting the dubious practice of affirming closures by tie votes.

These are modest and practical changes designed to ensure that the Postal Service approaches these closures with an open mind and listens respectfully and attentively to community opinion. At issue is the basic right of citizens of a community to be heard. It will help to guard against the bureaucratic mentality, which too often takes root in executive agencies, that agency officials know best. We must ensure that the Postal Service's actions are grounded in the best interests of the people it was created to serve.

In July 2011, when the Postal Service announced its Retail Access Optimization Initiative and its intention to study nearly 3,700 post offices nationwide for closure, including 85 in southern West Virginia, the Postal Service was already pursuing a host of closure studies for separate post offices, as well as the consolidation of postal sorting facilities, including eighteen post offices and three processing facilities in southern West Virginia.

Under the law, the Postal Service is required to consider the impact of a post office closure on a community, on the affected postal workers, and on mail delivery services. Federal law requires the USPS to ''provide a maximum degree of effective and regular postal services to rural areas, communities, and small towns where post offices are not self-sustaining.''

And, yet, there have been serious doubts raised about the Postal Service's adherence to these requirements. In its advisory opinion on the Postal Service's RA0I proposal, the PRC found that the Postal Service was unable to provide the data necessary to confirm its cost savings projections associated with the post offices proposed for closure. The Commission also expressed concerns about ensuring that alternatives are available to meet the needs of affected communities prior to a postal facility closure decision.

In a concurring opinion, the PRC chairman strongly rebuked the Postal Service's closure process, noting: ''The Commission has recently heard appeals on more than 60 individual post office closings. The records in these cases reveal a pattern of inaccurate and overly optimistic economic savings calculations and of careless disregard of community concerns. While the facts of those cases were not considered by the Commission in its Advisory Opinion, they nevertheless demonstrate an ongoing institutional bias within the Postal Service that presumes closing small post offices automatically provides cost savings and network efficiencies.''

The PRC's findings echo what I am hearing anecdotally from my constituents—that the public comment process is a perfunctory exercise—just for show—as the Postal Service

bulldozes ahead closing valued postal facilities for very little, if any, economic savings. This sentiment has become so frequent that it prompted me to contact the Postmaster General last October to question whether the public comment process is truly accomplishing its purpose, which is to give the public an opportunity to convey its views to the Postal Service and to give the Postal Service the opportunity to adjust its actions accordingly.

Within a two-month period last fall, the USPS Appalachian District scheduled more than 40 public meetings in southern West Virginia, raising doubts that the Postal Service can appropriately manage the public feedback received from each meeting and prepare for continued mail delivery should a closure occur.

In one case, residents said that their post office was closed before rural delivery was fully established. In other instances, public meetings have been scheduled at inconvenient times, like Halloween night, limiting public participation.

In 2009, as part of a separate closure process, the Postal Service issued an emergency suspension of the Hacker Valley Post Office in Webster County, West Virginia. I said at the time that the action was unwarranted and I was later validated in my concerns by the Postal Regulatory Commission. In response, the Postal Service offered to solicit for a Contract Postal Unit, CPU, in Hacker Valley, which would be operated by a supplier under contract with the Postal Service to provide retail postal services. After soliciting bids in March 2011, postal officials abruptly ended the process, requiring me to contact the Postal Service to remedy the matter, which it did.

What happened in Hacker Valley underscores the need to keep a close eye on the Postal Service's proposed closures. I am convinced that legitimate safety and convenience concerns of residents and businesses are not being sufficiently addressed—that many post offices' fates are predetermined and that the public comment process, in too many instances, has become a perfunctory step in the closure process, instead of being used to truly assess legitimate safety and convenience issues, and to take steps to minimize the adverse impact on the community.

I also question the criteria used to select post offices for a closure study, noting the conflict with the Postal Service's statutory charter that requires the Postal Service to provide "a maximum degree of effective and regular postal services" to rural communities where post offices are not self-sustaining, explicitly prohibiting small post offices from being closed solely for operating at a deficit.

Despite this requirement, the Postal Service has utilized computer-driven criteria in identifying retail facilities for closure. Three of the four criteria are financially based and clearly target small facilities that are not heavy revenue producers. As such, it is not surprising that there is a concentration of closings in rural areas, where computer-driven criteria cannot fully reflect the importance of a post office.

Clearly, the Postal Service has a responsibility to ensure its long-term fiscal solvency, but that must not happen at the expense of its public service obligations in ensuring universal mail services.

The Postal Service is not FedEx or UPS, which can pick and choose between profitable and unprofitable markets. Nowhere does the law waive the Postal Service's public service obligations if deficits run high. The Postal Service needs to look at other ways to become more profitable and competitive by improving and modernizing its services rather than cutting off rural customers.

Rural customers, more so than their urban counterparts, rely on the Postal Service for basic mail necessities—for sending bills and receiving checks, newspaper deliveries, and small businesses reaching customers—especially in areas where internet access is limited.

These closures will disrupt local economies and the lives of residents and businesses—from seniors who depend on the delivery of life-sustaining mail-order drugs, to the communities where the post office is the heart of the neighborhood—and there needs to be a better mechanism in place to ensure not only that public concerns are being addressed, but also that the public feels as though it is being heard. Some may want to view the Postal Service solely as a business, but it is still a public institution and it must remain responsive and accountable to the people.

The Congress must take action to reinforce the point, empowering an independent regulator to watch over the Postal Service to guard against overly optimistic savings projections and insufficient attention to community needs in the closure process.

I previously urged the Postmaster General to place a moratorium on postal closures until a practical and realistic plan for managing and responding to public concerns is provided to the American public. Subsequently, the Postal Service announced that it would delay any closings or consolidations until May 15, 2012. I recently wrote to the Postmaster General to ask that he extend the May 15 moratorium until the Congress has completed action on postal reform legislation.

In the coming weeks, the House is expected to consider such legislation. While I am opposed to the Committee reported bill in its current form, especially with regard to its eliminating six-day delivery and potentially expediting the closure process, I am hopeful that the House will consider and pass legislation that will help ensure that our small, rural postal facilities are not made to bear the brunt of the Postal Service's nationwide budgetary challenges. I urge the House leadership to act expeditiously.

SERGEI MAGNITSKY RULE OF LAW ACCOUNTABILITY ACT OF 2012

HON. JAMES P. McGOVERN

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. MCGOVERN. Mr. Speaker, I first learned of the case of Sergei Magnitsky two years ago at a hearing of the Tom Lantos Human Rights Commission. At that hearing, a witness described the brutal torture and vicious mistreatment by Russian authorities of Mr. Magnitsky, a courageous man of integrity who paid the ultimate price for speaking out publicly about massive corruption in Russia. Today, the Russian government has still held no one accountable for this outrageous crime.

The facts of the Magnitsky case are simply shocking. Mr. Magnitsky, a bright young tax lawyer, uncovered evidence of a criminal conspiracy involving public officials who stole $230 million from the Russian treasury. In August 2008, Mr. Magnitsky testified about this tax fraud scheme before Russian authorities and implicated high-level officials in the conspiracy.

This honesty and courage led Mr. Magnitsky to be arrested and, perversely, charged with the crimes he had helped to expose. He was kept in pretrial detention in inhuman conditions for almost a year, and was tortured by officials who pressured him to retract his damning testimony. He refused to do so, but his health badly broke down as a result of his abuse. As he developed serious medical problems, including pancreatitis and gallstones, Russian authorities refused to provide him with medical care. Eventually, he fell into critical condition, and when that happened, rather than treating him, prison guards chained him to a bed and beat him for one hour and eighteen minutes, resulting in his death.

The response of Russian authorities to these crimes has been as outrageous as the crimes themselves. After Mr. Magnitsky died, the Russian government said he had never complained about his health in prison, even though he had made more than 20 official requests for medical attention. Russian authorities have still not held anyone accountable for his arrest, abuse, and death. As if to spit on his grave, they even absurdly opened a new, groundless criminal case against him this year, marking the first posthumous prosecution in Russian history.

Since Russian authorities have not provided justice to Mr. Magnitsky and his family, the United States should do what it can to hold individuals accountable for these heinous crimes. The bill I am introducing today, the Sergei Magnitsky Rule of Law Accountability Act of 2012, would provide a measure of justice for this courageous man by imposing a visa ban and asset freeze on the people who participated in or covered up his detention, abuse, and death, as well as on those individuals who benefited financially from his mistreatment or participated in the criminal conspiracy that he uncovered.

Mr. Speaker, this legislation is about much more than the Magnitsky case. In recognition of the many other severe human rights abuses that take place each year, the bill also imposes a visa ban and asset freeze on other individuals who have committed internationally recognized gross violations of human rights against people seeking to expose illegal activity by Russian officials or to exercise fundamental rights and freedoms.

In this way, the bill would hold accountable those individuals who have perpetrated grave abuses against other whistleblowers or government critics, such as Anna Politkovskaya, Natalia Estemirova, and others whose names are less well-known in the United States.

I am deeply grateful to the bipartisan group of members of Congress that supports this legislation and has helped to shape it. These members include Representatives FRANK WOLF, SANDER LEVIN, ILEANA ROS-LEHTINEN, ALCEE HASTINGS, ED ROYCE, JIM MCDERMOTT, DAN BURTON, GERRY CONNOLLY, CHRIS SMITH, EDOLPHUS TOWNS, PETER ROSKAM, MICHAEL MICHAUD, JOSEPH PITTS and CHARLES RANGEL.

I am also deeply grateful to my colleagues in the Senate for their leadership on this issue. Senator BEN CARDIN has introduced similar

legislation that has attracted over 30 bipartisan cosponsors, and he has spoken out eloquently about the legislation's vital importance.

I would also like to underscore that this effort is far from just a U.S. initiative. Similar legislation is being considered in nearly a dozen other legislatures around the world. My hope is that the United States Congress will be the first, but not the last, legislature to enact a Magnitsky human rights law.

Importantly, these legislative efforts have strong support from the Russian human rights community, including opposition leaders such as Garry Kasparov, Boris Nemtsov, and Alexei Navalny. As Mr. Navalny commented recently, ''Such legislation is not anti-Russian. In fact I believe it is pro-Russian. It helps defend us from the criminals who kill our citizens, steal our money, and hide it abroad.''

Enactment of the Sergei Magnitsky Rule of Law Accountability Act will provide the Administration with the tools it needs to hold accountable human rights violators and provide an important boost to human rights activists and defenders. It will also demonstrate that the protection of human rights is a cornerstone of U.S. foreign policy. Our country has always been at its best when we stood firmly on the side of people seeking to exercise fundamental rights and against the actions of governments seeking to repress basic freedoms. This legislation is in keeping with that great tradition.

FACT SHEET ON SERGEI MAGNITSKY RULE OF LAW ACCOUNTABILITY ACT OF 2012

THE STORY OF SERGEI MAGNITSKY

After exposing the largest tax fraud in Russian history, tax lawyer Sergei Magnitsky was wrongly arrested and tortured in a Russian prison. Six months later he became seriously ill and was denied medical attention despite 20 formal requests. On the night of November 16, 2009, he went into critical condition, but instead of being treated in a hospital he was put in an isolation cell, chained to a bed, and beaten by eight prison guards for one hour and eighteen minutes, resulting in his death. Sergei Magnitsky was 37 years old and left behind a wife and two children. Those responsible for this crime have yet to be punished, and the Magnitsky story is emblematic of corruption, human rights abuses, and impunity in Russia.

THE MAGNITSKY BILL

The Sergei Magnitsky Rule of Law Accountability Act of 2012 would hold accountable Magnitsky's killers and other human rights violators by placing targeted sanctions on them. In particular, the draft bill imposes a visa ban and asset freeze on: 1) individuals responsible for participating in or covering up Magnitsky's detention, abuse, and death, and 2) individuals responsible for other gross violations of human rights against people seeking to expose illegal activity by Russian officials or to exercise fundamental rights and freedoms.

The bill requires the Secretary of State, in consultation with the Secretary of the Treasury, to publish a list of the people who should be subject to sanctions under its provisions, and requires the Secretary of State to respond within 120 days to requests from the chairperson and ranking member of key congressional committees to add an individual to that list. The bill provides the executive branch with the authority to waive the sanctions on national security grounds, and requires the executive to submit an annual report to Congress on actions taken to implement it.

The bill includes findings on the mistreatment of Magnitsky and other individuals, and on the extent of corruption and impunity in Russia.

The bill updates H.R. 1575, a bipartisan bill introduced by Rep. MCGOVERN in 2011. The new bill improves on H.R. 1575 by placing sanctions on a broader range of human rights violators (rather than only on people involved in Magnitsky-related abuses), by requiring the executive to publish the list of sanctioned individuals, and by giving key members of Congress the ability to request that people be added to the list. A similar bill, introduced as S. 1039 by Sen. CARDIN, has attracted over 30 bipartisan cosponsors in the Senate.

PROJECT READY STEM ACT

HON. MARCIA L. FUDGE

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. FUDGE. Mr Speaker, I rise today to address the need to increase the number of minorities in Science, Technology, Engineering, and Math, or STEM-related fields. Throughout the nation, employment in professional scientific and technical services is projected to grow by 29% by 2020. Currently, African-Americans and Hispanics occupy only 6% of the STEM workforce.

This week, I introduced the Project Ready STEM Act of 2012. This legislation addresses critical disparities in student achievement in math and science at the middle and high school levels.

Without the opportunity to develop skills necessary to compete for STEM-related jobs, many students of color may be confined to a lifetime of lower wages. I urge my colleagues to support the Project Ready STEM Act.

IN CELEBRATION OF THE 100TH BIRTHDAY OF MR. PRINCE T. JONES

HON. SANFORD D. BISHOP, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. BISHOP of Georgia. Mr. Speaker, it is my honor to extend my personal congratulations and Happy Birthday wishes to Mr. Prince T. Jones, a beloved citizen of Albany, Georgia, who turned 100 years of age on Sunday, April 15, 2012. On Saturday, April 14, 2012 he was honored by his family and friends at a celebration at Morning Side Assisted Living Facility in Albany, Georgia in recognition of his 100th birthday.

Prince T. Jones, the youngest of six children, was born on April 15, 1912, to Daniel Jones and Julia Fields Jones. He grew up in the tiny town of Barboursville, Virginia and attended public school in Orange County, Virginia.

Following his academic training in the Orange County public school system, Mr. Jones embarked on a tenured and successful career as a farmer and later as a butler. He worked for several years at the prestigious Farmington Country Club in Charlottesville, Virginia. At the conclusion of his stint at the Farmington Country Club, he went on to work at Winholm Farms for 25 years before he retired in 1981.

Always pressing towards the mark for the prize of the high calling of God in Christ Jesus, in order to better improve the craft of Christian discipleship, he served for many years as a Sunday School Teacher; Chairman of the Trustee and Deacon Board; and Treasurer for the Ministers and Deacons Union at Blue Run Baptist Church in Somerset, Virginia. It is worth noting that Mr. Jones was a member of Blue Run Baptist Church for 88 years.

In 1933, he married the ''woman of his dreams'' Gertrude Mary Jones. They remained married for 66 years and they would go on to have three beautiful and loving children. Mr. Jones has achieved numerous successes in his life, but none of this would have been possible without the love and support of his late wife and his children's devoted mother. Together their legacy set sterling examples of family and parenting for their sons, Dr. T. Marshall Jones and the late Arthur Lee Jones; daughter Gladys Jones Saddler; their nine grandchildren; their nine great-grandchildren; and their great-great-grandson.

George Washington Carver once said, ''How far you go in life depends on your being tender with the young, compassionate with the aged, sympathetic with the striving and tolerant of the weak and strong because someday in your life you will have been all of these.'' Mr. Jones has advanced so far in life because he never forgot these lessons and always kept God first.

The race of life isn't given to the swift or to the strong, but to those who endure until the end. Mr. Jones has run the race of life with grace and dignity and God has blessed him over his lifetime.

Mr. Speaker, I ask my colleagues to join me today in paying tribute to Mr. Prince T. Jones. On a personal note, I would like to not only congratulate Mr. Jones on becoming a distinguished centenarian but also express my profound admiration for his outstanding Christian stewardship and dedication to his church and family.

Truly to God be the glory!

IN RECOGNITION OF NATALIE BERG

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. SPEIER. Mr. Speaker, I rise to honor Dr. Natalie Berg who today is receiving the 2011 Silver Spur Award from San Francisco Planning and Urban Research (SPUR). This award recognizes a lifetime of civic achievement of a San Franciscan.

Dr. Berg has had parallel careers in higher education and land use issues. She is a member of the Board of Trustees at City College of San Francisco and she is the President of NKB Strategies, a consulting company specializing in strategies for land use.

For twelve years, she was Senior Vice President of Forest City Development where she was responsible for obtaining the entitlements for the Westfield San Francisco Centre and now continues to be a consultant there. She also served as the president of the Yerba

Buena Alliance, the vice president of the Market Street Association and numerous community and neighborhood groups.

Dr. Berg has served City College for over 30 years as a professor, dean and an elected member of the Board of Trustees. In 1997, 2001 and 2006 she was President of the board.

She started in 1967 as an instructor in English, ESL, History and Civics. In 1976 she became administrative assistant to the President of the Community College Division. The following year she was appointed administrative assistant to the Vice Chancellor of Personnel. In 1980, she was named Coordinator of Personnel Relations and in 1984 became Director of Employee Relations.

Dr. Berg was originally elected to the San Francisco Community College District Board of Trustees in 1996 and re-elected every four years since then. She chairs the board's Community Relations Committee and is a member of the Policy Implementation Committee. Before her service on the board, Dr. Berg was the Dean of the John Adams Campus and the School of Health and Physical Education.

It is evident from Dr. Berg's career and service that she loves San Francisco and is committed to the highest quality of public policy and urban planning. Her outstanding leadership has earned her the title of one of ''The Most 100 influential Women in the San Francisco Bay Area'' from The San Francisco Business Times four times. The same paper chose her to be on the ''Forever Honor Roll'' of the most influential women in the Bay Area.

Dr. Berg received her Ed.D. in Community College Administration/Curriculum from Nova University in Fort Lauderdale in Florida, her MA in Educational Administration/College Finance from San Francisco State University and her BA in Economics from UC Berkeley.

She lives in San Francisco with her husband Peter Finnegan. They have three children, eleven grandchildren and six great-grandchildren.

Mr. Speaker, I ask this body to rise with me to acknowledge the many contributions of Natalie Berg, a great community leader and my friend.

SURFACE TRANSPORTATION EXTENSION ACT OF 2012, PART II

SPEECH OF

HON. MAZIE K. HIRONO

OF HAWAII

IN THE HOUSE OF REPRESENTATIVES

Wednesday, April 18, 2012

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 4348) to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund pending enactment of a multiyear law reauthorizing such programs, and for other purposes:

Ms. HIRONO. Mr. Chair, I rise today to express my opposition to the bill passed by this chamber last night, H.R. 4348, the Surface Transportation Extension Act of 2012, Part II.

Each day that Congress fails to act on a long-term reauthorization of our nation's surface transportation programs is another day that our roads and bridges deteriorate. It's another day that our states and counties will be unable to plan and budget for projects to improve our communities and facilitate commerce. And it's another day that workers in the hard hit construction industry will have to wait for a chance to get back on the job.

It would have been a tremendous victory for the American people if the House had come together as the Senate did last month. They passed a two year transportation bill on a strong, bipartisan vote of 74–22. It isn't a perfect bill, but it is a step forward for strengthening our economy and getting people back to work.

However, the Majority in the House has blocked every attempt to have a clean, up or down vote on the Senate's bipartisan bill. Instead, they have chosen to pursue controversial, ideologically driven proposals. In fact, the bill this chamber passed yesterday has already drawn a veto threat from the White House for its inclusion of provisions to unnecessarily expedite the Keystone pipeline project. It would also undermine environmental protection procedures that allow our constituents the opportunity to weigh in on projects that impact their communities and quality of life.

These are not small policy changes. The Keystone XL pipeline is a huge project that could have significant consequences for years to come. It deserves rigorous and objective analysis to determine whether it is in fact in the best interest of our nation's future to approve and construct such a project.

Changing our environmental protection procedures for infrastructure projects requires the same sort of thoughtful debate and careful analysis. Infrastructure projects are long-term—they fundamentally change communities. We need to make sure that the impacts of these projects, and the views of local residents and businesses, are taken into account before taxpayer funds are committed.

I do support the provisions of H.R. 4348 that will allow for full utilization of funds in the Harbor Maintenance Trust Fund and provide for additional resources to continue restoring the Gulf Coast. I believe that these are important issues for the House and Senate to consider during their Conference.

However, I am still disappointed that the House has failed to come together on legislation that has historically been truly bipartisan. I hope that Conferees will get to work expeditiously and come up with a product that can receive bipartisan support in both the Senate and the House.

We owe it to our states, communities, and the families that depend on paychecks in the construction industry to move this forward quickly.

IN SPECIAL RECOGNITION OF JOSEPH CURTIS ON HIS OFFER OF APPOINTMENT TO ATTEND THE UNITED STATES NAVAL ACADEMY

HON. ROBERT E. LATTA

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. LATTA. Mr. Speaker, it is my great pleasure to pay special tribute to an outstanding student from Ohio's Fifth Congressional District. I am pleased to announce that Joseph Curtis of New London, Ohio has been offered an appointment to the United States Naval Academy at Annapolis, Maryland.

Joseph's offer of appointment poises him to attend the United States Naval Academy this fall with the incoming midshipmen Class of 2016. Attending one of our Nation's military academies not only offers the opportunity to serve our country but also guarantees a world-class education, while placing demands on those who undertake one of the most challenging and rewarding experiences of their lives.

Joseph brings an enormous amount of leadership, service, and dedication to the incoming Class of 2016. While attending New London High School in New London, Ohio, Joseph was a member of the National Honor Society, Model United Nations, Academic Challenge, and a Buckeye Boys State delegate.

Throughout high school, Joseph was a member of his school's cross country and track teams and earned varsity letters in both sports. In addition, Joseph participated in various fundraisers for community-based organizations, including the Salvation Army and Red Cross. I am confident that Joseph will carry the lessons of his student and athletic leadership to the Naval Academy.

Mr. Speaker, I ask my colleagues to join me in congratulating Joseph Curtis on the acceptance of his appointment to the United States Naval Academy. Our service academies offer the finest military training and education available. I am positive that Joseph will excel during his career at the Naval Academy, and I ask my colleagues to join me in extending their best wishes to him as he begins his service to the Nation.

CONGRATULATING ALICE EASON BALLANCE ON THE OCCASION OF APRIL 20TH BEING DECLARED AS ''ALICE EASON BALLANCE DAY'' IN BERTIE COUNTY, NORTH CAROLINA

HON. G. K. BUTTERFIELD

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. BUTTERFIELD. Mr. Speaker, I rise today to acknowledge a constituent and friend, Mrs. Alice Eason Ballance, who has been the epitome of service to her community. For more than fifty years, Mrs. Ballance has advocated for better educational opportunities, voting rights, and racial equality for African American citizens. On April 20, 2012, the Bertie County, North Carolina Board of Commissioners will officially declare that day ''Alice Eason Ballance Day'' for the County. I can think of no finer individual to bestow such an honor than this great American.

Mrs. Ballance was born Alice Eason on July 8, 1919 in the small community of Cedar Landing in Bertie County, North Carolina. She was the youngest of three children following behind brother Willie and sister Mary, reared by parents George and Cynthia Eason. She grew up on a small farm where she learned very early the value and necessity of hard work; a trait she would go on to instill in everyone with whom she worked over the years.

After graduating from Bertie County's W.S. Etheridge High School, Ms. Alice married

Frank Winston Ballance, Sr. on August 14, 1938 and began to grow a family. Mr. and Mrs. Ballance reared five children: Frankie, George, Frank, Jr., James, and Vashti. She also pursued her passion of seeking to bring reforms to the system of public education that was clearly discriminating against African American children. She felt that it was unconscionable that African American children were required to attend inferior schools. She believed it was immoral and illegal that African American children were forced to walk to school while their white counterparts enjoyed bus transportation. And she found it unacceptable that the African American schools received their books, instructional materials, and other supplies as ''hand-me-downs'' from the white schools when they were no longer useful.

As former President of the local branch of the NAACP for nearly two decades, Mrs. Ballance used the political process to make the changes she sought. Over the better part of the 20th century, Mrs. Ballance registered thousands of voters across North Carolina and informed them on the importance of voting. Her efforts impacted local, state, and federal elections in North Carolina and she became a well-known political force throughout the State.

Mrs. Ballance's passion has always been ensuring that children—particularly those without privilege—are well cared for and receive a quality education. To that end, Mrs. Ballance in 1980 opened the non-profit Kiddie World Child Care Center, Inc. in Windsor, North Carolina. For more than 32 years, Mrs. Ballance has served as the Chief Executive Officer—a position this vibrant 93 year old still holds today. She tirelessly manages a staff of 20 that serve up to 50 children each day. She is extremely proud that Kiddie World has graduated more than 3,000 students since it opened more than three decades ago.

Mrs. Ballance is a deeply religious individual. She is a long standing member of Cedar Landing Missionary Baptist Church in Windsor, North Carolina. Over the years, she has held nearly every official Church position including Sunday School Teacher and Chair of the church's Kitchen Committee. The Church recently recognized Mrs. Ballance's dedication and longtime service to the Church and its members by honoring her with the title ''Mother of the Church.''

Mr. Speaker, Alice Eason Ballance has dedicated her life in service to friends, family, and all of humanity. I commend and congratulate Alice Eason Ballance on the great honor of having April 20th from this year forward known as ''Alice Eason Ballance Day'' in Bertie County, North Carolina.

IN RECOGNITION OF THE PENINSULA HILLS WOMENS' CLUB

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. SPEIER. Mr. Speaker, I rise to honor the Peninsula Hills Women's Club of Redwood City, California on the occasion of its 50th anniversary. Over the past 50 years the members of this group have touched the lives of people in their community, across the country and throughout the world.

In 1960, thirteen women founded the club in order to donate time and money to a variety of causes locally and worldwide. Today, the club has 36 members who continue that mission.

This Thanksgiving will be the 28th year that the members will serve dinner for lonely seniors. For 15 years, the club has provided fruit and cookies twice a month to low-income AIDS patients. For 13 years, children at migrant camps in Mexico have received hats, blankets, school supplies, sports equipment and toys. Club members sew post-op pillows for breast cancer patients, turtle pillows for seriously ill children, knit baby caps for African children and wool caps for our soldiers. They throw one birthday party a year for a low-income senior over 80 years of age. The club adopts a class and gives books to the students twice a year—on Dr. Seuss' Birthday and Christmas. It donates money to Pennies for Pines, a reforestation program, and to the Heifer Project which gives livestock to communities in developing countries in an effort to end hunger and poverty.

The Peninsula Hills Womens' Club has held numerous fundraisers for Haiti Relief, Shelter Network and the Redwood City Educational Foundation. At one of the most memorable fundraisers for the Police Youth Athletic League, sheriffs and police officers played baseball against each other—with a twist: all players were on donkeys!

As is obvious from this long and diverse list of activities, the women of the Peninsula Hills Women's Club are extraordinarily dedicated, passionate and creative. The club may be small, but it is mighty. It is currently under the leadership of its fourth president, Judy Yoakum; however, her three predecessors, Veva Wheaton, Judy Imperiale and Kit Fragulia, continue to serve on the state board.

Mr. Speaker, it is right to honor the Peninsula Hills Womens' Club on this day, October 20, 2011, for 50 years of outstanding community service and to wish the members the best for the next 50 years.

HONORING THE ARMY NATIONAL GUARD AND AIR NATIONAL GUARD OF THE STATE OF OKLAHOMA

HON. JOHN SULLIVAN

OF OKLAHOMA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. SULLIVAN. Mr. Speaker, I rise to state for the record my gratitude to the members of the Army National Guard and Air National Guard of the State of Oklahoma and their families for their service and sacrifice on behalf of the United States since their deployment to Operation Enduring Freedom in July 2011.

The Army National Guard and Air National Guard of the State of Oklahoma are composed of several units, including the 45th Infantry Brigade Combat Team. The 45th Infantry Brigade Combat Team is made up of six subordinate Battalions. Additionally, the 146th Air Support Operations Squadron (ASOS), and Oklahoma Air National Guard unit were attached to the 45th IBCT for combat operations.

In July of 2011, the 45th Infantry Brigade Combat Team mobilized for Operation Enduring Freedom to conduct full spectrum operations. Since July 2011, the 45th Infantry Brigade Combat Team deployed more than 3,000 soldiers to provide command and control and conduct security force and detainee operations and to provide training to Afghan Security Forces, representing the largest single deployment for the Oklahoma Army National Guard since the Korean War.

When the 45th Infantry Brigade Combat Team moved into theater, 1,200 soldiers from the 1–160th Field Artillery Battalion and the 1–180th Cavalry Squadron were detached from the 45th Infantry Brigade Combat Team and redirected to Kuwait.

Upon arrival in Regional Command-East, the 45th Infantry Brigade Combat Team, as Task Force Thunderbird, assumed responsibility for Panjshir and Laghman Provinces as well as the three western districts of Nuristan Province; Mandol, Do Ab and Nurguram. The combined operations area in Afghanistan consisted of over 10,000 square kilometers and an estimated population well over 600,000.

Through the exceptional performance of the 45th Infantry Brigade Combat Team as Task Force Thunderbird, the Provinces where the 45th were operating are better prepared to run their government independently of Coalition Forces.

Sadly, these successes did not come without a price, as 14 soldiers from Task Force Thunderbird made the ultimate sacrifice, and many soldiers were wounded, to ensure the freedom and security of the United States and Afghan people.

I wish to publicly recognize the citizen-soldiers and airmen of the Oklahoma National Guard as invaluable to the national security of the United States, vital to defending against threats both foreign and domestic, and I welcome these brave men and women home to a grateful nation.

IN RECOGNITION OF CAPTAIN KYLEANE HUNTER

HON. DUNCAN HUNTER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. HUNTER. Mr. Speaker, today, I want to recognize and pay tribute to Captain Kyleane Hunter, of the United States Marine Corps. I, and many other Members of this chamber, have had the great pleasure of working with Captain Hunter over the past year that she has served as part of Headquarters U.S. Marine Corps Office of Legislative Affairs Liaison Office in the House of Representatives. She will soon be leaving the liaison office and looking toward new challenges ahead.

Captain Hunter diligently and professionally represented the Marine Corps on all matters in the House of Representatives from September 2009 to April 2012. Throughout this period, Captain Hunter advised and assisted in the execution of many of the Marine Corps' most difficult and challenging legislative initiatives and distinguished herself as a leader and standard bearer of Marine Corps values and skills. Through her direct and skillful interaction with numerous Members of Congress, she ensured that Marine Corps' concepts, programs, and requirements were widely understood; ensuring the greatest possible support

to the Marine Corps. Her initiative, leadership, and tireless efforts as a USMC Military Fellow and as the Operations Officer of the House Liaison Office have had a direct and lasting impact on improving the war fighting capabilities and the quality of life for Marines throughout the Marine Corps.

Throughout her time, Captain Hunter personally supervised and responded to hundreds of inquiries, many of which gained national level attention. Through her exceptional interpersonal skills and broad knowledge in a wide range of military affairs, she assisted the Director, Marine Corps Liaison Office, in gaining the Members' support and trust in critical issues. This served to provide the Marine Corps latitude and time to reach appropriate solutions in each case. Captain Hunter directly contributed to the Marine Corps' high degree of success in these matters that may not have been otherwise achieved.

Captain Hunter successfully planned, coordinated, and escorted an extensive number of international and domestic trips for high-level Congressional and Staff Delegations. These delegations often included senior leadership Representatives, such as the Chairman or Ranking Member of the major Defense Committees. These delegations visited heads of state, military commands, and deployed U.S. military personnel worldwide. Her attention to detail and anticipation of requirements allowed the Representatives and staff personnel to focus on fact-finding and learning new information to guide critical decisions to support the people of the United States. These trips led to an understanding of the successes and challenges facing our Marines that could only be gleaned from first-hand observation and face-to-face interaction.

Captain Hunter also assisted in the planning, coordination, and execution of countless events, receptions, and meetings on Capitol Hill. These events included New Member Orientation for the Freshman Congressional Class of the 112th Congress on Capitol Hill and in Williamsburg, Virginia; The House of Representative Marine Corps Birthday Cake Cutting Ceremonies, Multiple House Armed Services and House Democracy Partnership events, Promotion Ceremonies, Awards Ceremonies, and tours of the Capitol. She also scheduled and supported a great many office calls for the leadership of the Marine Corps to include Commandants of the Marine Corps, Assistant Commandants of the Marine Corps, and numerous other General Officers conducting business on Capitol Hill.

Through her exceptional personal efforts, Captain Hunter has contributed immeasurably to the Marine Corps' professional reputation throughout Capitol Hill. The rapport she developed with Members of the House of Representatives and the Professional Staff Members has in large part helped to ensure the strength and vitality of the Navy/Marine Corps team for years to come. Her exceptional performance as a USMC Congressional Fellow and Operations Officer of the House Liaison Office has made a lasting impact on the readiness and welfare of the Marine Corps, and as such, I thank her for her steadfast dedication to the Marines and our country.

From one Marine to another, I can unequivocally state that Captain Hunter is a testament to the Marine Corps' commitment to excellence. On behalf of my colleagues; we thank Captain Hunter and wish her the very best of luck in future endeavors.

URGING THE FORMER YUGOSLAV REPUBLIC OF MACEDONIA (FYROM) TO WORK WITHIN THE FRAMEWORK OF THE UNITED NATIONS PROCESS WITH GREECE TO ACHIEVE LONGSTANDING UNITED STATES AND UNITED NATIONS POLICY GOALS OF RESOLVING THE NAME DISPUTE

HON. CAROLYN B. MALONEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mrs. MALONEY. Mr. Speaker, today I am reintroducing legislation urging the Former Yugoslav Republic of Macedonia (FYROM) to work within the framework of the United Nations process with Greece to achieve longstanding United States and United Nations policy goals of resolving the name dispute and encourages the United States to work with its NATO allies to uphold previous NATO Summits decisions, with regard to the enlargement issue.

Negotiations are ongoing between Greece and the FYROM to resolve the name dispute. Historical and archaeological evidence shows that the ancient Macedonians were Greek. Macedonia is a Greek name that has designated the northern area of Greece for 2,500 years. In 1944, the name of the Skopje region was changed to Macedonia as part of Tito's imperialist campaign to gain control of the Greek province of Macedonia.

NATO's Heads of State and Government unanimously agreed in Bucharest (April 3, 2008) that ". . . within the framework of the UN, many actors have worked hard to resolve the name issue, but the Alliance has noted with regret that these talks have not produced a successful outcome. Therefore we agreed that an invitation to the former Yugoslav Republic of Macedonia will be extended as soon as a mutually acceptable solution to the name issue has been reached. We encourage the negotiations to be resumed without delay and expect them to be concluded as soon as possible"—an agreement for which the heads of State and Government participating in the NATO Summit meetings in Strasbourg/Kehl (April 4, 2009), as well as in Lisbon (November 20, 2010) reiterated their support.

This resolution urges the FYROM to work within the framework of the United Nations process with Greece to achieve longstanding United States and United Nations policy goals of resolving the name dispute and encourages the United States to work with its NATO allies to uphold previous NATO Summits decisions, with regard to the enlargement issue and extend an invitation to the former Yugoslav Republic of Macedonia as soon as a mutually acceptable solution to the name issue has been reached.

IN RECOGNITION OF PATRICIA SIEGEL

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. SPEIER. Mr. Speaker, I rise to honor Patricia Siegel, who has dedicated her life and career to making child care accessible and affordable for all families. I have known Patty for over 25 years and have witnessed her passion and determination to have child care recognized as a vital component of community life. Patty was a ferocious advocate for children in the California Legislature. She was unstoppable and never hesitated to shame people into doing the right thing.

Drawing on her experience as a mother, teacher and parent-organizer, Patty began developing and delivering child care services 40 years ago. She organized the Yellow Garage Playgroup for families in the Inner Sunset District in San Francisco. In 1972, she founded Childcare Switchboard to help families elsewhere in the city find such services. Four years later she was instrumental in initiating and implementing alternative child care solutions through the passage of AB 3059 which provided funding for the Child Care Resource & Referral Programs and Alternative Payment Programs in all California counties.

In 1980, Patty was the Founding Director and Executive Director of the California Child Care Resource & Referral Network, which has grown into the most established system of child care resource and referral services in the country.

As the Executive Director of the California Child Care Resource & Referral Network, Patty shaped state and federal policy for children and families. Her work included the Child Care Initiative Project, a statewide public-private partnership to expand the supply of licensed quality child care by recruiting and training new family child care providers, with special emphasis on infants and toddlers and Spanish speaking communities. She also inspired and guided the development of Parent Voices, a grassroots parent-led effort to engage and empower parents to actively and successfully participate in the policy process.

Patty also played an essential role in the creation and implementation of TrustLine, California's registry of license-exempt caregivers.

Beyond her role at the Network, Patty served on the Governor's Advisory Committee on Child Care Development, was one of the original state commissioners for the California Children and Families First Commission (First 5), and represented California in the Children's Defense Fund state child care advocates network. She is the state advocate and liaison for the National Women's Law Center and volunteers her time and expertise with the National Association for the Education of Young Children.

Patty was born in Oakland and received her B.A. in French and English from the University of California, Davis.

In 1965 she married her husband Sanford "Sandy" Siegel. They have three children, Toby, Tara and Kelsey, and three grandchildren, Declan, Caio and Oona.

In her well deserved retirement, I am certain that Patty will enjoy spending more time with her family, gardening, traveling, cooking, hiking, reading, dancing and being in the outdoors.

Mr. Speaker, I ask this body to rise with me to recognize my friend Patricia Siegel for her lasting contributions to families in California and the country and for always putting her community before herself.

HONORING LARRY GODWIN, A FRIEND, COMMUNITY LEADER AND TRUE PATRIOT

HON. JOHN L. MICA

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. MICA. Mr. Speaker, I rise today to pay tribute to Larry Godwin, a wonderful friend of nearly four decades.

Larry lost his most recent battle with cancer on Thursday, April 12, 2012. With his passing, his family lost someone they loved, our community lost a leader and our country lost a true patriot.

It was my good fortune to have met Larry when we were active in the Winter Park Jaycees and in other community activities nearly 40 years ago. When you met Larry Godwin, you knew you were talking to someone with purpose, determination and principle. Successful in real estate, he also made his mark in politics and never paused in his commitment to good government. As a successful entrepreneur, he was part of that special formula that allowed Larry and our nation to be successful and great.

During one of his early visits to Washington for cancer treatment, I still remember his determination to fight on and survive that most dreaded and cruel disease. I will remember his faith, his love of family and that impish grin that, if you knew Larry, was never to be forgotten. So today, along with, I know, dozens of former Winter Park Jaycee buddies, we all salute and say a fond farewell to a special friend.

Mr. Speaker, today, April 19, 2012, in honor of Larry Godwin's memory, service to our nation and final services, I have asked the Architect of the Capitol to fly an American Flag over the U.S. Capitol Building.

Finally, to his family and especially his son Robbie, I extend my very deepest sympathy. I ask my colleagues to join me in recognizing the life and memory of Larry Godwin.

HONORING THE ELLIS FAMILY

HON. REID J. RIBBLE

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. RIBBLE. Mr. Speaker, I rise today to acknowledge the great work of the Ellis family of Rhinelander, Wisconsin, who worked to benefit the Ronald McDonald House of Marshfield, Wisconsin and are the 2012 Make a Difference Day winners. Make a Difference Day is a celebration of the power of neighbors helping neighbors. Created by USA Weekend, this annual day of service mobilizes more than three million volunteers to create change in their community.

The Ellis family has made a substantial impact on their community by collecting aluminum cans for the local Ronald McDonald House. Rick and Kela Ellis were heartbroken when they lost 2-year-old daughter Ashley to brain cancer in 1989. But within a year they'd found a way to honor her memory: by recycling aluminum cans to benefit the Ronald McDonald House of Marshfield, Wisconsin, their "home" while Ashley was hospitalized. Since giving their Cans for Cancer collection a "huge boost" by tying it to Make A Difference Day in 1998, the Ellises have recycled 6,000 pounds of aluminum, raising more than $2,500.

I want to congratulate the Ellis family for this honor and thank them for their service to our community.

SURFACE TRANSPORTATION EXTENSION ACT OF 2012, PART II

SPEECH OF

HON. MARCY KAPTUR

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Wednesday, April 18, 2012

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 4348) to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund pending enactment of a multiyear law reauthorizing such programs, and for other purposes:

Ms. KAPTUR. Mr. Chair, our Nation's ports are critical drivers for local economies and I am disturbed by the chronic underfunding of maintenance activities to allow for their maximum efficiency. The Harbor Maintenance Trust Fund was set up to address this growing concern and I continue to support the full expenditure of those funds for this purpose.

In my part of the country, thousand foot Lakers carry the iron ore, limestone, coal, and sand that support the manufacturing industries, which employ thousands of hard working Americans. Without efficient, reliable shipping through ports like Toledo, Cleveland, Sandusky, and Lorain, those plants could not afford to do business in the United States.

These ships are also carrying millions of tons of grain and other food commodities that make dinner affordable for our working families, and they are helping American farmers reach other countries, helping to balance our trade deficit. Thriving ports make this all possible.

And shipping itself directly supports nearly 50,000 jobs in the Great Lakes region alone. Nationally, that number is much higher.

Unfortunately, American shipping is at risk. Huge backlogs in dredging maintenance are causing ships to operate at reduced capacity or overlook some ports where navigation has become impossible.

Insufficient maintenance is undermining our national competitiveness. While the Harbor Maintenance Trust Fund collects critical revenue to keep our ports and waterways open, only half those funds are currently spent. Those critical dollars should be fully expended for their intended purpose, keeping our ports open for business.

I am a cosponsor of the RAMP Act and rise in support of the Boustany Amendment. I hope to continue working with Representative BOUSTANY and other colleagues as we move towards a final bill to ensure that this critical issue of Harbor Maintenance is included.

RECOGNIZING THE ANNUAL INTERNATIONAL MEMORIAL SERVICE AT FORT CHAMBLY

HON. WILLIAM L. OWENS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. OWENS. Mr. Speaker, I rise today to recognize the annual International Memorial Service at Fort Chambly.

This memorial serves as a tribute to our fallen heroes who fought bravely during the American Revolutionary War, particularly those who weathered disease and below freezing temperatures to fight off the British on the U.S. and Canadian border.

The annual memorial service honors the courageous efforts these individuals demonstrated in their struggle for America's independence. Their service inspired generations of Americans to sacrifice for their country, in order to preserve and protect many of the liberties we enjoy today.

With gratitude, we acknowledge the legacies of our fallen heroes with great reverence and appreciation. I commend the Saranac Chapter of the Daughters of the American Revolution, along with various associated organizations and dignitaries for keeping the valiant struggle of these individuals in the memories of community members.

IN RECOGNITION OF PETER DOUGLAS

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. SPEIER. Mr. Speaker, I rise to honor Peter Douglas on the occasion of his retirement on October 31, 2011 as Executive Director of the California Coastal Commission for 26 years.

Mr. Douglas' great legacy is the lack of something—the lack of development on the spectacular 1,100 miles of California coastline. For over four decades he has worked to guarantee public access to the coast and to keep coastal bluffs pristine.

Mr. Douglas is the third executive director, appointed in 1985 after having served as the Coastal Commission's Chief Deputy Director for seven years. Before joining the commission, he worked as a legislative aide to Assemblyman Alan Sieroty of Beverly Hills. In that capacity he co-authored Proposition 20 in 1972 which created the Coastal Commission. He went to work for the Assembly Natural Resource Committee and the Select Committee on Coastal Protection where he co-drafted the California Coastal Act which was made permanent by the legislature in 1976. The law gives priority to public recreation over private development and gives the commission authority to enforce the law. Mr. Douglas deserves credit for turning a start-up panel into one of the country's most powerful land-use authorities.

Thanks to his work, millions of Californians and visitors are able to enjoy one of the most beautiful coastlines in the world. Had it not been for Mr. Douglas, Hearst Ranch would be a golf resort, Monterey Bay would be lined by

condominiums and San Onofre State Park would be a paved toll road.

Mr. Douglas is one of the fiercest defenders of open space and he is not afraid to speak truth to power. For example, this year some landowners wanted to build ''environmentally friendly'' mansions along a bluff overlooking Malibu. Speculation persisted that the commission would approve the project until Peter Douglas stated he had ''never seen a project as environmentally devastating as this.'' The commission voted against it.

Mr. Douglas took on the Jonathan Club and the Olympic Club, private men's clubs in Santa Monica and San Francisco respectively. He urged the commission to vote against their expansion arguing that it would be a travesty if a state agency gave it's good housekeeping seal to a club on public land that discriminates against Jews, African Americans, Latinos, Asians and women. He ignored the advice of the Attorney General's office, the case went all the way to the Supreme Court and the commission won. Mr. Douglas succeeded in righting a grievous constitutional wrong with the Coastal Act.

In 1987 he refused an order by Governor Deukmejian to close the commission offices in Santa Barbara and Santa Cruz. He argued the commission could not implement the Coastal Act without offices in those critical areas. The commission backed him on the basis that the Governor did not have authority over and independent commission and the offices remained open.

His upbringing gave him the tools and mindset to deal with adversity and conflict. Peter Douglas was born into a Jewish family in Berlin in 1942. They immigrated to the United States from Mexico in the early '50s. He received both his undergraduate and graduate degrees from UCLA.

Among a long list of additional professional accomplishments, Mr. Douglas is one of the original members of the NOAA Science Advisory Board, was appointed by President Clinton of the U.S. Panel on Ocean Exploration, and is a Member of the National Academy of Sciences.

As Mr. Douglas is handing over his Coastal Commission responsibilities to Senior Deputy Director Charles Lester, he is looking forward to spending more time with his family and friends, especially his grandchildren, on his beloved coast. To quote him, ''If we want it to be there for our children, we have to keep fighting to protect it. In that way, the coast is never saved, it's always being saved.''

Mr. Speaker, I ask this body to rise with me to honor the life's work of Peter Douglas who has preserved the natural beauty of the California coast and my belief that an individual can change the world.

RECOGNIZING THE 75TH ANNIVERSARY OF THE EXCHANGE CLUB OF FOND DU LAC, WISCONSIN

HON. THOMAS E. PETRI

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. PETRI. Mr. Speaker, I am pleased to congratulate and recognize the Exchange Club of Fond du Lac, Wisconsin, as it celebrates 75 years of serving the Fond du Lac community. Established in 1937 by some of the city's most prominent leaders, the Exchange Club was viewed by its founding members as a chance to develop an entirely new type of service organization in the area, with an emphasis on helping those less fortunate while working to make life better for all area citizens.

It is a commitment Fond du Lac Exchangites have been fulfilling for 75 years. In the process, they have made innumerable contributions to the quality of life in the Fond du Lac area.

For 75 years, members of the Fond du Lac organization have met to exchange ideas about how to better serve the community while working to advance the National Exchange Club goals of benefiting and developing youth, promoting crime prevention, recognizing military and public safety service providers, fostering Americanism and preventing child abuse.

In its early years, the Exchange Club of Fond du Lac underwrote Christmas parties for the community's underprivileged children and held programs to recognize the area's high school sports teams. In the late 1940s, the Exchange Club was instrumental in convincing city officials that an underutilized city-owned building designated as a community center could be converted to a gathering place for area youth, something many felt the city badly needed. Thus, the Hamilton Community Building near downtown Fond du Lac was extensively remodeled in 1947 and used for decades as the Fond du Lac Youth Center.

In 1957, the club achieved one of its proudest moments by raising the funds needed to purchase a cutting-edge piece of medical equipment, called a Flame Photometer, for Fond du Lac's St. Agnes Hospital. At the time, only two other, much larger, medical facilities in Wisconsin had this particular life-saving equipment.

Another signature Exchange Club accomplishment was the furnishing of grounds supervision, maintenance and support for many years for Camp Tiwaushara, a large Girl Scout Camp located in Redgranite, Wisconsin, and operated by the former Wau-Bun Girl Scout Council. Members of the club went to Redgranite annually to clear brush and prepare the grounds for the camping season and to build structures needed for the camp.

More recently, Exchangites in Fond du Lac have been active in running a petting zoo for the community at Fond du Lac's Lakeside Park, distributing flags to children during the annual Fond du Lac Memorial Day Parade, and erecting numerous Exchange Club Freedom Shrines, permanently mounted reproductions of the most important documents in American history. Also in recent years, club members have purchased a walk-in cooler for a local food pantry and have funded numerous public safety initiatives, as well as supporting countless other local causes and nonprofit organizations in the Fond du Lac area.

I am proud to join with the Fond du Lac community in recognizing the invaluable contributions and outstanding service of the Exchange Club of Fond du Lac, and in congratulating the club on its 75th anniversary. In addition, I extend my best wishes to all club members for continued success in the future.

IN HONOR OF NURSES FOR NEWBORNS

HON. RUSS CARNAHAN

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. CARNAHAN. Mr. Speaker, I rise today to recognize the Nurses For Newborns Organization, as they celebrate their 20th anniversary.

Since 1992, Nurses For Newborns has served our most vulnerable citizens-newborn babies. As a nurse home visiting agency, volunteers help provide a safety net for families most at risk to help prevent infant mortality, child abuse, and neglect through home based programs that provide education, healthcare, and positive parenting skills. Services also include programs for teen moms and moms that are mentally and physically challenged, as well as referrals to medical, social or government services.

Nurses visiting new mothers for whom poverty is the primary risk factor provide maternal depression, risk for domestic violence and child abuse and neglect screenings in the home. ''Medically fragile'' babies—those born prematurely, diagnosed with Down Syndrome or other genetic disorders, or who have been exposed to drugs or alcohol are afforded extra special care by volunteer nurses.

Moms with intellectual or physical disabilities who need assistance with routine tasks like formula preparation and feeding; administration of medications or managing appointment schedules will receive support from Nurses For Newborns with more frequent home visits.

Our citizens have rallied around this worthy organization. Churches, school groups, and businesses, and community members routinely donate clothes, toys, diapers, blankets, car seats, baby beds, and formula to the Nurses For Newborns organization, for families in need.

Evidence based outcomes of the hard work of Nurses For Newborns staff and volunteers are impressive. Ninety-nine percent of babies whose parents are enrolled in the program do not suffer from abuse or neglect; 89 percent are current with immunization schedule; 99 percent have established a medical home for their babies, and 99 percent are not unnecessarily hospitalized.

I thank Chief Executive Officer Melinda Ohlemiller, her staff, and all of the volunteers who have made Nurses For Newborns the effective and vitally important organization that it is today. Because of their compassion and hard work, all St. Louis area babies can have the best possible start and the brightest possible future.

HONORING H. MICHAEL WEITZMAN

HON. JANICE HAHN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. HAHN. Mr. Speaker. I rise today to honor the memory of H. Michael Weitzman, who passed away on April 16, 2012 and whose absence is felt deeply in his community and in the hearts of all who knew him.

Born August 19, 1929, H. Michael Weitzman was an alumni of Case Western University

and the Ohio State University's School of Optometry. He served his country as a line officer in the Navy and continued to work as an optometrist until just over a year before his death.

Dr. Weitzman was an immensely caring person with a poignant and selfless dedication to serving his fellow man. A deeply spiritual person, he lived out the Jewish ethic of loving-kindness until his dying day. As an established Optometrist in the San Pedro community, Dr. Weitzman was known for his attention to his patients, often seeing people at no charge.

Not only was Michael Weitzman generous in his own practice, his philanthropy extended to several charities and non-profits including the Lions Club Vision Programs, fINdings Art Center, and the California Vision Foundation which provides free eye care for the needy.

I extend my deepest condolences to his wife, his two sons, Gregg and Dan, his daughter, Dr. Debra Gierut, and his seven grandchildren. Though Dr. Weitzman is no longer with us, his legacy lives on in the lives of the loved ones he has left behind and in the community he served tirelessly throughout his life.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. COFFMAN of Colorado. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $15,661,574,232,598.82. We've added $5,034,697,183,685.74 to our debt in just over 3 years. This is debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

RECOGNIZING THE SERVICE OF GRETCHEN VANNATTER

HON. DAN BURTON

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. BURTON of Indiana. Mr. Speaker, I am honored today to rise and pay tribute to Gretchen VanNatter, a dedicated civil servant, a loving mother and truly great Hoosier. Gretchen is being honored this week for her 37 years of public service with the Social Security Administration. Gretchen is a second generation Social Security Administration employee, as her mother is a retired Claims Representative for the Administration. Gretchen began her career with the Social Security Administration in 1975 as an Administrative Aide to the District Manager. From there she worked her way up the Social Security Administration's ladder, attaining positions as Claims Representative, Management Support Specialist, Operations Supervisor and finally in her current position as District Manager of the Marion, Indiana office. Gretchen has been a tireless supporter and ambassador of the Social Security Administration, and has been a valuable resource not only to countless numbers of Hoosiers throughout the Marion area, but as a resource to members of my staff in Marion as well. Throughout her career Gretchen has delivered countless speeches to local organizations, attended fairs to educate the community on administration services, and has worked tirelessly with senior citizens' organizations to ensure that they are properly receiving their Social Security benefits.

The pride in public service Gretchen has exhibited during her career is only eclipsed by her dedication to her family. Gretchen is a loving and devoted wife to her husband Bob VanNatter. The VanNatters are proud parents of 3, along with 3 wonderful grandchildren.

It is my distinct honor to congratulate Gretchen VanNatter for her dedicated public service to the Social Security Administration. She will always have a special place in the hearts of all those who have had the opportunity to work with her over the years, and especially the countless lives she has touched through her unwavering commitment to the Social Security Administration and the citizens of the great state of Indiana.

Congratulations Gretchen!

IN RECOGNITION OF RANDY ROYCE

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. SPEIER. Mr. Speaker, I rise to honor Randy Royce, a member of the San Carlos City Council for four years and a resident of this wonderful community for over 30 years. Randy has served San Carlos with distinction both on the council and before becoming a member.

When people think of Randy they think of community and even global service. As a member of the Sister Cities Association, Randy has strengthened the ties between San Carlos and its sister cities around the world. In 2007, Randy travelled to Pass Christian Mississippi, a town adopted by San Carlos after the 2005 devastation of Hurricane Katrina. Both through his on-site effort to reconstruct that city and through his encouragement of donations to the community, Randy helped to raise structures and the spirits of his fellow Americans.

In his earliest years in San Carlos, Randy could be found coaching soccer, and urging the development of the hearts, bodies and minds of the youth of San Carlos. As a man of many talents, he has also boosted the love of local history by serving as a volunteer with the San Carlos History Museum, and he volunteered for many years to organize the Summer Concert Series in Burton Park. On behalf of the less fortunate within our Peninsula Community, Randy has served on the Board of Directors of the Housing Endowment and Regional Trust (HEART). He served on the San Carlos Arts and Culture Commission, the city's Economic Development Advisory Committee, the Planning Commission and the Residential Design Review Committee. He has also served as Mayor of San Carlos.

Of course, if you really want to see Randy hustle for two days non-stop, you can spot him helping from dawn until dusk during the annual Hometown Days celebration, a charming small-town event that celebrates family, community and country. In short, Mr. Speaker, from his own backyard in San Carlos to places around the globe, Randy has extended his heart and his talents in service to the health, safety and welfare of tens of thousands of human beings.

It should therefore not be surprising that Randy has also helped to build our local community college district's curriculum and programs as a member of the Cañada College Presidential Advisory Committee. His service in senior management positions at Hewlett Packard, Agilent and three Silicon Valley start-ups demonstrated to him that talented employees are first molded through education, then invited to be further educated in the enterprises of our nation. Our community was fortunate to have his insights available to its students.

Through his own education in finance, and his life's experiences, Randy was able to offer steady counsel to his colleagues on the City Council of San Carlos. He was often a voice of reason amidst a passionate outcry, a role that is difficult for any public servant, but an essential role within any democracy.

Of course, no public servant is capable of such great accomplishments without the support of family members. Randy has been supported at all times by his talented wife, Yvette, and his two sons Roger and Todd.

Mr. Speaker, I ask this body to rise with me to honor Randy Royce for a life and career dedicated to public service on the occasion of his retirement on December 12, 2011. Randy Royce is an American who thinks reflexively about the well-being of us all. As a result, his contributions to San Carlos and to our nation over these many decades are legion, and will surely last for generations yet to come.

IN RECOGNITION OF THE MONMOUTH UNIVERSITY MARJORIE K. UNTERBERG SCHOOL OF NURSING & HEALTH STUDIES 30TH ANNIVERSARY

HON. FRANK PALLONE, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. PALLONE. Mr. Speaker, I rise today to celebrate Monmouth University's Marjorie K. Unterberg School of Nursing & Health Studies' 30th Anniversary. The School of Nursing continues to provide its students, from the Baccalaureate through the Doctoral level, with an exceptional education. Throughout its tenure, the School of Nursing has demonstrated tremendous growth and is worthy of this body's recognition.

Monmouth University's Department of Nursing and Health Studies began in April 1981 with the expansion of the Upper-Division of the Bachelor of Science Nursing program by Dr. Marilyn Lauria. The inaugural class began with 72 students. The successes of this program lead to the launch of the Masters of Science in Nursing program. The curriculum met the demands for students seeking advanced degrees in specializations including Adult Nurse and Family Nurse Practitioners, Adult Psychiatric & Mental Health Advanced Practice Nursing, Nursing Administration, Nursing Education as well as School Nursing and Forensic Nursing. In 1998, Monmouth

University and the Department of Nursing and Health Studies were proud to recognize its first class of graduates from the Masters of Science in Nursing. Later that year, the Department of Nursing and Health Studies was renamed the Marjorie K. Unterberg School of Nursing and Health Studies. Marjorie K. Unterberg was a long-time advocate for the field of nursing and was active in the nursing scholarship program at the University. She also served as former President of the School of Nursing and Vice President of the Board of Governors at Monmouth Medical Center, where she established the Center for Nursing Excellence.

The Marjorie K. Unterberg School of Nursing proudly received its accreditation by the New Jersey State Board of Nursing and the Commission of College Nursing Education in February 2000 and in the Spring of 2000, respectively. Monmouth University is the first institution in New Jersey to offer the forensic nursing concentration. The success of the Nursing school lead to the expansion of various programs, including the addition of the forensic nursing at the Masters level and the health studies major for students pursuing their Bachelors degree. Most recently, the University was proud to announce the addition of their Doctor of Nursing Practice and began holding classes for matriculating students in June 2011. Today, over 600 students are enrolled in various nursing and health studies programs at the Marjorie K. Unterberg School of Nursing and Health Studies. They also proudly boasts over 900 alumni.

Mr. Speaker, once again, please join me in recognizing Monmouth University's Marjorie K. Unterberg School of Nursing & Health Studies for their thirty years of service. Their continued efforts to provide a well-rounded education remain a valued and important entity to the students and the Monmouth University community.

SURFACE TRANSPORTATION EXTENSION ACT OF 2012, PART II

SPEECH OF

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Wednesday, April 18, 2012

The House in Committee of the Whole House on the state of the Union had under consideration the bill (H.R. 4348) to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund pending enactment of a multiyear law reauthorizing such programs, and for other purposes:

Mr. KUCINICH. Mr. Chair, the transportation infrastructure needs of our nation are urgent and unprecedentedly large. Addressing those needs must be at the center of our economic recovery. This transportation bill does not address those needs. Instead, it forces approval of the Keystone XL Pipeline, which will undermine the recovery by driving up gas prices across the U.S., with the largest increases in Midwestern states like Ohio.

This is not just my conclusion. That is what TransCanada, the company that wants to build the Keystone XL Pipeline, told the Canadian government in its permit application. Canadian oil companies will be able to use the Keystone XL pipeline to increase America's fuel bill by up to 4 billion dollars per year, by reducing the supply of Canadian crude to Midwest refineries and by re-routing that crude around its current delivery point in Cushing, Oklahoma and on to Gulf Coast refineries.

Through manipulation of U.S. oil markets, the Keystone XL Pipeline will increase U.S. gas prices by 10 to 20 cents per gallon across the U.S., according to energy economist Philip Verleger. The greatest price increase will occur in 15 Midwest states (Illinois, Indiana, Iowa, Kansas, Kentucky, Michigan, Minnesota, Missouri, Nebraska, North Dakota, Ohio, Oklahoma, South Dakota, Tennessee, and Wisconsin). Adding insult to financial injury, oil from the pipeline will be sold overseas instead of being used to reduce our dependence on foreign oil.

The bill's $4 billion gift to the oil industry, which already gets tens of billions of dollars every year in subsidies, comes only one day after the President announced efforts to try to rein in gas prices and the excesses of the oil industry.

We should be considering either an unencumbered motion to go to conference or the Senate's transportation package, which passed with an overwhelmingly bipartisan vote of 74–22.

HONORING ROBERT LANTHORN

HON. STEVE STIVERS

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. STIVERS. Mr. Speaker, I rise today to honor the public service career of Robert Lanthorn. Robert is a teacher of American History, American Government, Economics, and Advanced Placement United States Government and Politics. Robert has served as an educator at Hamilton Township High School for the past five years.

Robert is being honored as The Educator of the Year by Kids Voting USA. The Educator of the Year award is a national award presented to a teacher who motivates their students to be civically active both through teaching and example.

Robert has used innovative teaching methods and gained the trust of his students keeping them engaged and interested in learning. His outstanding teaching methods have earned him many awards throughout his teaching career. Robert has been named Kids Voting Educator of the Month, Ohio Lottery's Teacher of the Month, and Ohio's Outstanding Teacher of American History by Ohio State Society Daughters of the American Revolution.

Robert's desire to motivate his students to not only learn but also engage in civics has had a positive effect on his students and the community alike. His students have participated in the political process and an amazing 83 percent of students participated in Hamilton Township High School's mock election.

Robert has inspired many students to become involved in their community and instilled life lessons of civic responsibility. I thank Robert for all that he has done to serve our community and educate our youth and congratulate him on being named Educator of the Year.

HONORING JEWELL FRANCES WELLS GOLDEN ON HER 100TH BIRTHDAY

HON. JEFF MILLER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. MILLER of Florida. Mr. Speaker, it is my great honor and pleasure to wish a very happy birthday to Mrs. Jewell Frances Wells Golden of Bagdad, Florida on the occasion of her 100th Birthday and to congratulate her on her many achievements. Mrs. Golden reached the century mark, an incredible milestone, on April 16 of this year.

Jewell Golden is no stranger to the Northwest Florida community. Alongside her husband, the late Albert Golden, they shared many successes and business ventures, which have made a lasting impact along the Gulf Coast. One factor that always remained constant was their love for each other, their family, and their strong faith in God. In fact, in 1977, Mr. and Mrs. Golden helped establish the Church of the Living God, now known as Heritage Chapel.

Mrs. Golden is beloved and cherished by all—her family, including her three children, eleven grandchildren, twenty great-grandchildren, and a grateful community. Her greatest joys, which she shares in her autobiography, are spending time with her family and ''making memories.'' Those who have the pleasure of knowing Mrs. Golden have been blessed by her charisma and presence. Her life serves as an inspiration to many and demonstrates that hard work and strong morals will lead to much success and happiness.

My wife Vicki joins me in wishing Mrs. Jewell Frances Wells Golden a joyous birthday. May God continue to bless her, her family and friends with wonderful memories for many years to come.

IN RECOGNITION OF RICK LAUBSCHER

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. SPEIER. Mr. Speaker, I rise to honor Rick Laubscher who today is receiving the 2011 Silver Spur Award from San Francisco Planning and Urban Research (SPUR). This award recognizes a lifetime of civic achievement of a San Franciscan.

Cable cars and streetcars are quintessential symbols of San Francisco. If you have ridden in one of the historic cars of the famous F-Market & Wharves streetcar lines on Market Street and The Embarcadero, you owe a big thanks to Rick Laubscher, President of Market Street Railway, a volunteer, non-profit organization founded in 1976 by three transit preservationists who wanted to save a vintage Municipal Railway trolley bus that was about to be scrapped.

Today Market Street Railway has 1,200 members from San Francisco, the Bay Area, and throughout the world. The organization has helped Muni acquire 20 historic transit vehicles, including streetcars, cable cars, trolley coaches, and motor coaches and the volunteers have actively restored fifteen of them.

Mr. Laubscher's passion for historic treasures and his advocacy have transformed the city's public transportation system.

Mr. Laubscher's roots run deep in San Francisco. His family has lived here for four generations. Mr. Laubscher fell in love with streetcars as a little boy when they were not historic. He was washing dishes and helping his father in the delicatessen on Market Street that his grandfather had opened. He calls Market Street a true urban main street.

When the streetcars were planned to be dismantled in the early 80's, he set out on a quest to preserve them. He was not the first to think of the idea, but he was the first to do it; he put history to work and preserved our urban fabric, as he likes to say. Today thousands of people each day ride the historic cars.

Mr. Laubscher also served as founding board chair of The City Club of San Francisco, a landmark of world renowned art and architecture and a promoter of active engagement and influence in civic, social and business areas. He also served on SPUR's board and transportation committee. He is currently a board member of the San Francisco Chamber of Commerce.

Accompanying his love of San Francisco and history, Mr. Laubscher has a passion for communication. He runs Messagesmith, a strategic communications consulting company specializing in such areas as environmental sustainability and corporate social responsibility.

Mr. Laubscher holds an M.S. from the Columbia University Graduate School of Journalism and worked as a radio and television news reporter for many years.

He lives in Woodside with his wife of sixteen years, Nicole. They are the proud parents of three daughters. Mr. Speaker, I ask this body to rise with me to acknowledge the outstanding achievements and lasting contributions of Rick Laubscher to San Francisco and the rest of the world.

IN HONOR AND RECOGNITION OF RABBI ALAN B. LETTOFSKY

HON. DENNIS J. KUCINICH

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. KUCINICH. Mr. Speaker, I rise to recognize and honor Rabbi Alan B. Lettofsky who is retiring from Beth Israel—The West Temple in Cleveland in Ohio's 10th Congressional District.

Affiliated with Judaism's Reform Movement, Beth Israel serves the Jewish Community of Cleveland's west side and western suburbs and is the only synagogue geographically located in the City of Cleveland. Beth Israel's roots go back to 1910 when the West Side Jewish Center was founded on Cleveland's Near West Side. It merged with Beth Israel in 1957 to form Beth Israel—The West Temple.

Born and bred in Cleveland, Alan Lettofsky was educated at Brandeis University, the Hebrew University in Jerusalem, the Jewish Theological Seminary of America, and Yale University. He serves Beth Israel—The West Temple as their part-time rabbi while also teaching Modern Hebrew and Jewish History at Kent State University. He was Associate Professor at the Siegal College of Judaic Studies and at Case Western Reserve University for several years. He has taught in the Religion Department at John Carroll University.

Rabbi Lettofsky started his career as Visiting Professor at the Seminario Rabinico Latinoamericano in Buenos Aires, Argentina, and then taught for three years in the Department of Religious Studies at the University of Virginia. Throughout most of his professional career, Rabbi Lettofsky worked for Hillel, the Jewish campus ministry—for ten years as the director of Hillel at the University of Wisconsin-Madison and for 13 years as the Regional Director of Hillel in Northeastern Ohio. Dedicated to egalitarianism and self-empowerment in Jewish communal prayer and fellowship, Rabbi Lettofsky co-founded and actively participated in the Library Minyan which met in the library of Congregation Beth Am in Cleveland Heights in the 1980s and 90s.

In recent years, Rabbi Lettofsky has been a member of a small committee of the Rabbinical Assembly that is preparing a new High Holy Day prayerbook for Judaism's Conservative Movement. In the early 1990s, Rabbi Lettofsky was one of 12 rabbis who served on the Commission on Human Sexuality of the Rabbinical Assembly. That Commission issued a Rabbinic Letter on Intimate Relations, entitled ''This Is My Beloved, This Is My Friend.''

I was pleased to know Rabbi Lettofsky in 2000 when other civic leaders and I worked to stop the shutdown of several hospitals in the greater Cleveland area. Rabbi Lettofsky spoke out with religious leaders of a wide diversity of faiths to stress the spiritual importance of healing the sick and making health care available to all. Rabbi Lettofsky continues to serve as part-time chaplain at Hillcrest Hospital in Mayfield Heights on behalf of the Jewish Federation of Cleveland.

Mr. Speaker and colleagues, I am pleased to honor Rabbi Lettofsky and thank him for his many years of dedication and service to the community. I wish him, his wife of more than 40 years, Jean Loeb Lettofsky, and their three children and five grandchildren, many happy and healthy years to enjoy his retirement and for continued service to the people.

A TRIBUTE TO THE LIFE OF PETER M. DOUGLAS

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. THOMPSON of California. Mr. Speaker, I rise today with my colleagues, Representatives BACA, BERMAN, CAPPS, CHU, COSTA, S. DAVIS, ESHOO, FARR, FILNER, GARAMENDI, HAHN, HONDA, LEE, LOFGREN, MATSUI, MCNERNEY, MILLER, NAPOLITANO, PELOSI, RICHARDSON, ROYBAL-ALLARD, LORETTA SANCHEZ, SCHIFF, SPEIER, STARK, WATERS, WAXMAN, and WOOLSEY to pay tribute to the life of Peter M. Douglas, who recently passed away at the age of 69. Peter was best known as the longtime director of the California Coastal Commission, serving more than 25 years to protect the incredible California coastline. Peter's devotion to the conservation of this finite and precious resource will benefit generations to come.

Peter was born in Berlin, Germany on Aug. 22, 1942. His family's home was destroyed by Allied bombers in 1944. He immigrated by sea to the United States in 1950, and it was on this trip that he began a lifelong love of the ocean. Peter grew up in Southern California, and in 1965 earned a bachelor's degree in psychology, and later a law degree from the University of California at Los Angeles.

Peter worked for former Democratic Assemblyman Alan Sieroty from Los Angeles, and he was tasked with writing coastal protection legislation. In response to oil spills and heavy coastal development, the public passed Proposition 20 in 1972, which formed the California Coastal Commission. Peter also helped craft the bipartisan Coastal Act in 1976, and the next year joined the commission as deputy director. In 1985, Peter was appointed executive director and served in that role until his recent death.

Peter was instrumental in blocking offshore oil drilling and leasing, preventing unchecked development along California's 1,100-mile coast line, and ensuring public access to beaches. His efforts were often controversial, and members of both parties at times tried to remove him from his post. However, he never swayed from his commitment and passion to protect California coasts.

There is no doubt that California's incredible coastline bears Peter's mark. His influence on coastal issues has been profound, and has set standards for how such a valuable resource can be both used and protected.

Mr. Speaker, we ask our colleagues to join us in paying tribute to the life of Peter M. Douglas, a steadfast protector of the California coast and a true environmental steward.

HONORING RAFAEL CHRISTOPHER TURNER FOR MORE THAN 10 YEARS OF PUBLIC SERVICE

HON. DALE E. KILDEE

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. KILDEE. Mr. Speaker, I ask the House of Representatives to join me in honoring my Deputy District Director, Rafael Christopher Turner, for his 10 years of exemplary and dedicated service on behalf of my constituents in Michigan. Rafael is leaving this month to continue working on behalf of Michigan residents for U.S. Senator CARL LEVIN and it is fitting that we celebrate and recognize his continued service to the public.

I had the opportunity to recruit Rafael for an internship in my Washington, DC office in February 2002 and was immediately impressed with his commitment to public service and extraordinary talent and skills. I have known Rafael's family for years and Rafael was continuing their legacy of making a difference in people's lives as a public servant, community leader and a trusted and valued advisor to me and many others, especially our youth.

After accepting a full-time position as a legislative assistant in May 2002, Rafael worked on vitally important and complex public policy issues, applying his knowledge and dedication to a wide range of legislation important to my constituents. Rafael was eager to return to his hometown of Flint to make a difference in his community and in September 2005 he joined

my District Office staff where he rose to become Deputy District Director. Rafael has used his vast experience and extraordinary skills to help make the federal government work for the people in my congressional district. Whether the issue is veterans' benefits, Social Security, education, consumer protection, health care or myriad other federal concerns and responsibilities, Rafael has devoted himself to promoting, protecting and defending human dignity.

Rafael also serves his community on the Mott Community College Board of Trustees, as an executive board member of the Flint Branch of the NAACP and he was awarded the Distinguished Emerging Alumni honor at the University of Michigan-Flint where he earned a Masters of Public Administration. He was also selected to participate in the prestigious Rotary International Group Study Exchange Program and traveled to Brazil to advance the Rotary's mission.

Mr. Speaker please join me in honoring Rafael Christopher Turner, a dear friend and accomplished public servant as he moves on to continue making a difference in people's lives.

PERSONAL EXPLANATION

HON. STEPHEN LEE FINCHER

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. FINCHER. Mr. Speaker, I rise today to discuss how I would have voted on the amendments and final passage of H.R. 4089, the Sportsmen's Heritage Act of 2012.

If I had I been here to vote I would have voted in the following way:

Holt (NJ): I would have voted ''no.''

Grijalva (AZ): I would have voted ''no.''

Peters (MI): I would have voted ''no.''

Heinrich (NM): I would have voted ''no.''

Foxx (NC): I would have voted ''yes.''

Democrat Motion to Recommit: I would have voted ''no.''

Final Passage: I would have voted ''yes.''

As an avid hunter, a lifetime member of the National Rifle Association, and a member of the Congressional Sportsman's caucus I understand the value of sportsmen's rights and cherish the opportunity to pass on my love for hunting to my children.

PERSONAL EXPLANATION

HON. STEVE COHEN

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. COHEN. Mr. Speaker, I was detained from voting on Monday, April 16, 2012 and the afternoon of Tuesday, April 17, 2012. If present, I would have voted ''yea'' on the following rollcall votes: rollcall Nos. 152, 153, and 157.

If present, I would have voted ''nay'' on the following rollcall votes: rollcall Nos. 154, 155, and 156.

HONORING THE 40TH ANNIVERSARY OF THE STUDENT ASSOCIATION VOLUNTEER AMBULANCE CORPS (SAVAC) OF OSWEGO

HON. WILLIAM L. OWENS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. OWENS. Mr. Speaker, I rise today to honor the 40th anniversary of the Student Association Volunteer Ambulance Corps, SAVAC, of Oswego. The SAVAC is the first fully student funded, staffed, trained, and operated volunteer ambulance corps on a college campus in the nation, according to the American College Health Association.

Originally founded in 1971 by a small group of SUNY Oswego undergraduate students, the program had humble beginnings, initially receiving $8500 in funding from the SUNY Oswego Student Association, which continues to fund the program today.

Today, the SAVAC is now the primary Emergency Medical Services, EMS, provider for SUNY Oswego. Additionally, the SAVAC is certified in Basic Life Support by the New York State Department of Health, providing mutual aid support to the Oswego City Fire Department and the Oswego Town Volunteer Fire Department.

The SAVAC has become a gateway to the EMS world, sending many of its members on to professional positions within Emergency Medical Services and Fire Departments across New York State and the country. I applaud the commendable and valuable work of the SAVAC and honor their rich history of community service.

EQUAL PAY DAY

HON. CAROLYN B. MALONEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mrs. MALONEY. Mr. Speaker, held every April, Equal Pay Day signifies the point in the year that a woman must work to earn what a man made in the previous year. Only in April will a woman finally earn what a man has made.

In my own state of New York, women make 83 cents for every dollar earned by their male counterparts. According to a report by the National Partnership for Women & Families, full-time working women in New York lose approximately $24,257,741,976 each year due to the wage gap. The national average is even worse: on average, women in the United States earn 77 cents for every dollar earned by male coworkers.

Though the Equal Pay Act was signed into law in 1963, when women earned 59 cents for every dollar earned by men, it is nearly 50 years later and women STILL aren't being paid equally.

The work women do matters—women make up nearly half of the labor force and mothers are the primary earners or co-earners in two-thirds of all families. Equal pay isn't merely a women's issue—when women don't earn fair pay, the families that rely on their wages struggle. Families increasingly rely on women's wages to make ends meet. In typical married households, women's incomes accounted for 36 percent of total family income in 2008, up from 29 percent in 1983.

This Equal Pay Day, I recognize the many achievements and contributions of women across the country to our economy and pledge to work towards economic equality for women, to a time when women can finally receive the wages they have worked for and rightfully earned.

HONORING DEPUTY ROBERT PARIS

HON. JEFF DENHAM

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. DENHAM. Mr. Speaker, I rise today to honor the service and memory of Deputy Robert Paris, who was slain in the line of duty this past week in Modesto. Deputy Paris is the third sworn officer to be killed while serving with the Stanislaus County Sheriff's Department, and on behalf of the community and this Congress, I want to offer condolences to his family, friends and colleagues.

Deputy Paris has a long career of service, first being certified as a Mobile Intensive Care Paramedic in 1980. In 1993, he graduated from the Ray Simon Regional Criminal Justice Training Center, and three years later started his 16-year career with the Stanislaus County Sheriff's Office. There, he served in many capacities before volunteering for the dangerous but necessary work of the civil division. In all assignments, Deputy Paris earned the confidence of his superiors and the respect of his fellow officers. His end of watch came on April 12, 2012, while serving an eviction notice, accompanied by local locksmith Glendon Engert.

Deputy Paris is survived by his parents, Robert Sr. and Jane, sister Krista, brother Eric, and two adult children, a son and daughter.

May the example of Deputy Paris renew in each of us the determination to live by the watchwords of honor and duty, values he defended at the price of his life. It is also my fervent prayer that those close to Robert Paris receive the only solace afforded in the face of such tragedy, the certain knowledge that whatever honors we express here, they pale before the peace awaiting him and all who lay down their life for others.

IN RECOGNITION OF VERA PETERSON

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. SPEIER. Mr. Speaker, I rise to honor Records Clerk II Vera Peterson for her 23 years of service at the Daly City Police Department.

Ms. Peterson served as assistant trainee for the department from 1980–1981. She started her career in the records division in 1988. She excelled in all categories handled by that division: transcription, subpoenas, citations and impounds, classification, and restraining orders. Her extensive experience and wealth of

knowledge put her in the perfect position to train new employees of the records division.

Ms. Peterson's meticulous attention to detail and hard work have earned her the respect and admiration of her co-workers. Her passion for baking also made her a very popular member of the department; she frequently shared broccoli quiche and cupcakes with her colleagues.

Vera Peterson graduated from Woodrow Wilson High School in San Francisco and received her Associate Degree in criminology from City College of San Francisco.

She and her husband of 28 years, John, live in Montara. They have one daughter, Tiffany.

Mr. Speaker, I ask this body to rise with me to honor the devoted service of Vera Peterson to the residents of Daly City. Her high standards and exemplary commitment to the community will be a difficult act to follow for any future records clerk.

TRIBUTE TO MARIESSA FLYNN

HON. HAROLD ROGERS

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. ROGERS of Kentucky. Mr. Speaker, I rise to pay tribute to a dedicated employee of the House of Representatives, Mrs. Mariessa Flynn, upon her retirement from my Somerset district office following three decades of service.

"Resa" has been my right hand on many issues impacting constituents of Kentucky's Fifth Congressional District over the last 30 years. However, she found the greatest joy in serving thousands of veterans of our U.S. Armed Forces, assisting them with everything from financial struggles to replacing lost war medals. Countless veterans visit my Somerset District Office each year, because they know they have a friend in Resa Flynn, who will go to every length to help them in their time of need. Resa's loyalty, passion and persistence will be missed as she enters retirement.

Outside my Congressional office, Resa has served as a long-time leader for the Pulaski County Republican Party and the Pulaski County Lincoln Club. She has always led with a strong voice, stout convictions, and has been a tireless advocate for many worthy community projects across the region.

Resa is also a talented crafter and uses her spare time to crochet the most beautiful afghans for families and friends in the Somerset area. She is also a loving wife, mother and grandmother.

Mr. Speaker, I rise today to pay tribute to a dedicated employee of the U.S. House of Representatives, Mrs. Mariessa Flynn, upon her retirement from my Somerset district office following three decades of service.

Please join me in congratulating Mrs. Resa Flynn on her retirement, as we also commend her for 30 years of service to the people of southern and eastern Kentucky.

MARQUIS ALEXANDER, FUTURE COMMANDER OF TEXAS A&M UNIVERSITY'S CORPS OF CADETS

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. JACKSON LEE of Texas. Mr. Speaker, I rise today to acknowledge a milestone reached by Marquis Alexander. He is the first African American to become commander of Texas A&M's Corps of Cadets. Currently Marquis is a Corporal in the U.S. Marine Reserves and a rising senior majoring in International Studies.

HISTORY OF AFRICAN-AMERICANS AT TAMU

The history of African-Americans at Texas A&M University dates back to the founding of the institution. African-Americans in the Texas Legislature advocated for and supported the passage of the Morrill Land-Grant Act in 1866, which established the A&M College of Texas between 1876 and 1963. African-Americans worked at A&M as laborers, maids, custodians and various other support staff; however they were prohibited from attending as students and faculty.

The history of African-Americans at A&M has been shaped by decades of racial segregation, quiet desegregation, and attempts to redress historical wrongs. It has been filled with lifelong struggles and determination to fulfill a dream which was accomplished when A&M opened the doors in 1963 to African Americans. The past 37 years have been a continuing struggle by African-Americans and A&M to ensure that the dream is kept alive.

The first African-Americans joined the corps in 1964. The first female cadets came a decade later. In A&M's centennial year, Fred McClure won election as body president, making him the first to be equal to that of Corps Commander and Aggie Yell Leader.

CIVIL RIGHTS

Civil rights is a subject that cannot be ignored or taken lightly, even in this day of progressive movement toward tolerance. We must not lose sight of the continued need for civil rights. We must not relax our initiatives which build greater racial, ethnic, and religious tolerance. While I believe that there is still work to be done on the issue of civil rights and hurdles to overcome, we cannot ignore the progress that has been made as the result of decades of hard work, diligence, the sweat and tears of many of our country's civil rights trailblazers. This is evidenced by an increase in the numbers of minorities attaining leadership positions in the private and public sectors for example: Ken Chenault, an African American who currently serves as the CEO of American Express; Ursula Burns, who became the first African American woman to serve as Chairman and CEO of Xerox a Fortune 500 Company; and Antonio Perez, the first Latino American to serve as CEO of Eastman Kodak Corporation to name a few.

BACKGROUND ON MARQUIS ALEXANDER

He is the oldest of 10 children and the first in his family to go to college. He is said to be an admirable and mature young man. Mr. Alexander is currently a Corporal in the Marine reserves. He has become the first person with military experience to head the Corps. Texas A&M University has the proud distinction of having the most graduates to enlist in our nation's armed forces when compared to other nonmilitary academies.

Marquis Alexander grew up in my home city of Houston! And our city is proud of his achievements. Marquis has always wanted to attend Texas A&M. He was so "gung-ho" military that he participated in Texas A&M's Junior Cadet Accessions Program while still in high school. A week after enlisting in the Marine Corps, he received his letter of acceptance to Texas A&M University.

Yet, true to his word and commitment, Alexander attended boot camp at the Marine Corps Recruit Depot in San Diego and spent a year and a half on active duty. He subsequently reverted from active duty status and is serving the remainder of his enlistment commitment in the Marine Corps Reserves. He reapplied for admission to Texas A&M in 2009 and was promptly accepted.

He was selected following a rigorous review process in which a host of cadets are considered when leadership selections are made each year. Soon he will assume duties as cadet colonel of the corps, the 2,100 member organization's top leadership position, also known as corps commander, and one of the three top positions on campus, along with that of student body President and Yell Leader.

Mr. Speaker, I commend Mr. Alexander for aiming high and continuing to strive above and beyond his primary goals of joining the military. He is a mentor and guiding light to those who know him. I congratulate Mr. Marquis Alexander on his achievement.

IN RECOGNITION OF NATIONAL GOLF DAY

HON. LAURA RICHARDSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Ms. RICHARDSON. Mr. Speaker, I rise today to recognize April 18 as National Golf Day. This is a day where the leaders of the golf industry are able to meet with members of Congress and discuss the continued growth and importance of the sport.

Of course golf is not just a sport. The golf industry generates over $76 billion annually in economic activity, and sustains over 2 million jobs. The golf industry has a direct and substantial impact on the economy, jobs and tax revenues in communities across this country. Through this growth, golf is no longer the exclusive sport of the privileged, the wealthy, and the upper class. The industry has become more democratized, and people of all ethnicities and socioeconomic backgrounds are able to participate.

I applaud the golf industry for its commitment to environmental sustainability. As technology advances, golf course architects and landscape engineers are able to design and maintain courses that are economically viable and environmentally friendly. For example, technological advances have made it possible to employ more efficient irrigation techniques using recycled water.

In my home state of California there are over 900 golf courses, generating an average annual revenue of $15.1 billion. California's gorgeous courses are huge tourist magnets and provide 160,000 jobs for Californians. I

am also proud that my state of California is home to some of the most storied golf courses in the nation, including the legendary Pebble Beach and Torrey Pines.

Mr. Speaker, as an avid golfer myself, each year I look forward to participating in the Annual Mervyn L. Jones and Stephanie Tubbs Jones Memorial Golf & Tennis Classic. This worthy event raises funds to provide young people an opportunity to further their education and reach their potential. Golf has the ability to bring people together to support such a cause.

Mr. Speaker, I ask my colleagues to join me in recognizing National Golf Day and commending an industry that brings so much joy and pleasure to millions of Americans and contributes greatly to this nation's economy.

RECOGNIZING THE MISSISSIPPI POULTRY ASSOCIATION IN OBSERVANCE OF THEIR 75TH ANNIVERSARY

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to recognize the Mississippi Poultry Association as they celebrate their 75th Anniversary. Poultry is Mississippi's largest agricultural commodity. To date, the poultry industry has more than a $6 billion impact on the state's economy. With 20 processing facilities and approximately 2,000 growers, the Mississippi poultry industry employs roughly, 56,000 people both directly and indirectly.

The Mississippi Poultry Association was formed in 1937 as the Mississippi Poultry Improvement Association to help battle poultry diseases and promote the development of the industry in the State of Mississippi. The Mississippi's poultry industry is comprised of growers, feed mills, hatcheries, processing plants, laboratories, and company headquarters.

Mississippi ranks fifth in the nation in poultry production. Mississippi companies process about 757 million birds per year, 250 times the human population of the state, and 400 million table eggs per year. The industry has grown from a few family-owned feed and seed stores who sold chickens and farmers who raised chickens, mostly into an integrated global industry with about 12 percent of broiler production exported around the globe.

Mississippi poultry companies support their communities. The Mississippi Poultry Association helped initiate the Emerging Crops Loan program passed by the legislature that has made it easier for many more farmers to enter the poultry industry and has worked closely with institutions of higher learning and government agencies such as Mississippi State University, the Mississippi Department of Agriculture and Commerce, the Board of Animal Health and the U.S. Department of Agriculture.

Mr. Speaker, Mississippi poultry companies donate thousands of pounds of their products annually to fight hunger and to aid and develop their communities. I ask that you and our colleagues join me in recognizing the Mississippi Poultry Association in observance of their 75th Anniversary.

HONORING UNIVERSITY OF HOUSTON ON BECOMING AN HISPANIC-SERVING INSTITUTION

HON. GENE GREEN

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. GENE GREEN of Texas. Mr. Speaker, today I rise to honor the University of Houston for being designated an Hispanic-Serving Institution by the U.S. Department of Education Office of Postsecondary Education. The University is now one of only three Tier One public research universities in the nation with this designation and the only institution in Texas.

UH has received the Tier One research university distinction from the Carnegie Foundation; making it one of only three Carnegie-designated Tier One public research universities in Texas.

Designation as an Hispanic-Serving Institution requires enrollment of full-time undergraduates at a university to be at least 25-percent Hispanic. The designation will allow UH to compete for grants that support or expand educational opportunities of Hispanic students.

UH is known as a 1st generation school, for many of the students are the first in their families to attend college. Undergraduates may choose from 120 majors and minors. The University also offers 139 master's degrees, 54 doctoral, and 3 professional degree programs. Many of the academic programs rank among the nation's best.

As the second most ethnically diverse major research university in the US, students come from more than 137 nations and from across the nation. UH consistently ranks among the top colleges and universities in the nation for conferring bachelor degrees and doctorates to Hispanic students, further affirming UH's-commitment to prepare students for competition in the global marketplace.

As a proud Alumnus of UH, I salute the successes of the past and present administration, faculty, staff, and students of the University of Houston for all of their hard work and dedication to education.

IN SPECIAL RECOGNITION OF ANDREW MILLER ON HIS OFFER OF APPOINTMENT TO ATTEND THE UNITED STATES MILITARY ACADEMY

HON. ROBERT E. LATTA

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, April 19, 2012

Mr. LATTA. Mr. Speaker, it is my great pleasure to pay special tribute to an outstanding student from Ohio's Fifth Congressional District. I am pleased to announce that Andrew Miller of Perrysburg, Ohio has been offered an appointment to the United States Military Academy at West Point, New York.

Andrew's offer of appointment poises him to attend the United States Military Academy this fall with the incoming cadet Class of 2016. Attending one of our nation's military academies not only offers the opportunity to serve our country but also guarantees a world-class education, while placing demands on those who undertake one of the most challenging and rewarding experiences of their lives.

Andrew brings an enormous amount of leadership, service, and dedication to the incoming Class of 2016. While attending St. John's Jesuit High School in Toledo, Ohio, Joseph was a SJJ School Ambassador, an Eagle Scout, a member of Gliding Stars, and of the SJJ chapter of Model United Nations. His senior year, Andrew was vice president of SJJ chapter of Model United Nations.

Throughout high school, Andrew was a member of his school's wrestling and lacrosse teams, earning varsity letters in both. His excellence in wrestling was noted by being awarded Rookie of the Year in 2011 and being named captain of his team his senior year. In addition, Andrew continues to practice his faith through Christian service opportunities at school as well as volunteering at his church as an altar server. I am confident that Andrew will carry the lessons of his student and athletic leadership to the Military Academy.

Mr. Speaker, I ask my colleagues to join me in congratulating Andrew Miller on the acceptance of his appointment to the United States Military Academy. Our service academies offer the finest military training and education available. I am positive that Andrew will excel during his career at the Military Academy, and I ask my colleagues to join me in extending their best wishes to him as he begins his service to the Nation.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S2519–S2557

Measures Introduced: Twenty-seven bills and five resolutions were introduced, as follows: S. 2301–2327, and S. Res. 427–431. **Pages S2545–46**

Measures Reported:

Special Report entitled ''Allocation to Subcommittees of Budget Totals for Fiscal Year 2013.''. (S. Rept. No. 112–156)

S. 743, to amend chapter 23 of title 5, United States Code, to clarify the disclosures of information protected from prohibited personnel practices, require a statement in nondisclosure policies, forms, and agreements that such policies, forms, and agreements conform with certain disclosure protections, provide certain authority for the Special Counsel, with amendments. (S. Rept. No. 112–155)

S. 2322, making appropriations for the Departments of Transportation, and Housing and Urban Development, and related agencies for the fiscal year ending September 30, 2013. (S. Rept. No. 112–157)

S. 2323, making appropriations for Departments of Commerce and Justice, and Science, and Related Agencies for the fiscal year ending September 30, 2013. (S. Rept. No. 112–158) **Page S2545**

Measures Passed:

Temporary Bankruptcy Judgeships Extension Act: Committee on the Judiciary was discharged from further consideration of H.R. 1021, to prevent the termination of the temporary office of bankruptcy judges in certain judicial districts, and the bill was then passed, after agreeing to the following amendment proposed thereto: **Pages S2556–57**

Reid (for Coons) Amendment No. 2084, to address bankruptcy filing fee increases, future reauthorizations. **Pages S2556–57**

75th Anniversary of the Founding of Ducks Unlimited: Senate agreed to S. Res. 430, recognizing the 75th anniversary of the founding of Ducks Unlimited, Incorporated, the achievements of the organization in habitat conservation, and the support of the organization for the waterfowling heritage of the United States. **Page S2557**

Measures Considered:

Violence Against Women Reauthorization Act—Agreement: Senate continued consideration of the motion to proceed to consideration of S. 1925, to reauthorize the Violence Against Women Act of 1994. **Pages S2519–38**

A unanimous-consent agreement was reached providing that Senate resume consideration of the motion to proceed to consideration of the bill at approximately 12 p.m., on Monday, April 23, 2012; provided further, that following the Republican Leader, or his designee, being recognized to make a motion to proceed to consideration of S.J. Res. 36, Senate continue consideration of the motion to proceed to consideration of S. 1925, at 4 p.m. **Page S2557**

21st Century Postal Service Act—Agreement: A unanimous-consent-time agreement was reached providing that the cloture motions with respect to Reid (for Lieberman) Modified Amendment No. 2000 to S. 1789, to improve, sustain, and transform the United States Postal Service, and to S. 1789, be withdrawn; the motion to recommit be withdrawn; that the pending amendments Reid Amendment No. 2013 (to Amendment No. 2000, and Reid Amendment No. 2015 (to the language proposed to be stricken (by Amendment No. 2000)), be withdrawn and that the following amendments be the only amendments in order to S. 1789 or Reid (for Lieberman) Modified Amendment No. 2000: McCain Amendment No. 2001; Tester Amendment No. 2056; Coburn Amendment No. 2060; McCain Amendment No. 2033, Wyden-Feinstein Amendment No. 2020; Coburn Amendment No. 2058; McCaskill-Merkley Amendment No. 2031; Coburn Amendment No. 2061; Snowe Amendment No. 2080; Udall (NM) Amendment No. 2043; Durbin Amendment No. 2082; Akaka Amendment No. 2034; Bennet-Blunt Amendment No. 2047; Corker Amendment No. 2083; Mikulski Amendment No. 2003; Akaka Amendment No. 2049; Paul Amendment No. 2025; Manchin Amendment No. 2079; Paul Amendment No. 2026; Bingaman Amendment No. 2076; Paul Amendment No. 2027; Cardin Amendment No. 2040; Paul Amendment No. 2028;

Carper Amendment No. 2065; Paul Amendment No. 2029; Carper Amendment No. 2066; Paul Amendment No. 2039; Casey Amendment No. 2042; Paul Amendment No. 2038; Landrieu Amendment No. 2072; DeMint Amendment No. 2046; McCaskill Amendment No. 2030; Coburn Amendment No. 2059; Pryor Amendment No. 2036; Rockefeller Amendment No. 2073; Rockefeller Amendment No. 2074; Schumer Amendment No. 2050; Tester Amendment No. 2032; and Warner Modified Amendment No. 2071; that on Tuesday, April 24, 2012, at a time to be determined by the Majority Leader, after consultation with the Republican Leader, Senate vote on or in relation to the amendments in the order listed; that there be two minutes equally divided in the usual form prior to each vote; that all after the first vote be 10 minute votes; that the amendments be subject to a 60 affirmative vote threshold; that there be no other amendments in order to the bill, the substitute amendment, as modified, or the amendments listed; and there be no points of order or motions in order to any of these amendments, the substitute amendment, or the bill, other than budget points of order and the applicable motions to waive; and that upon disposition of the amendments, the substitute amendment, as modified and amended, if amended, be agreed to; provided further, the bill, as amended, then be read a third time and Senate vote on passage of the bill, as amended; and that the vote on passage of the bill be subject to a 60 affirmative vote threshold. **Pages S2538, S2557**

National Labor Relations Board—Agreement: A unanimous-consent-time agreement was reached providing that at 2 p.m., on Monday, April 23, 2012, the Republican Leader, or his designee, be recognized to move to proceed to the consideration of S.J. Res. 36, providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the National Labor Relations Board relating to representation election procedures; that there be up to four hours of debate on the motion to proceed, with the time equally divided and controlled between the two Leaders, or their designees; that the first two hours of debate, equally divided, occur from 2 p.m. to 4 p.m., on Monday, April 23, 2012, and the final two hours of debate, equally divided, occur from 10:30 a.m. to 12:30 p.m., on Tuesday, April 24, 2012; that at 2:15 p.m. on Tuesday, April 24, 2012, Senate vote on the adoption of the motion to proceed; that if the motion is successful, then the time for debate with respect to the joint resolution be equally divided between the two Leaders, or their designees; that upon the use or yielding back of time, the joint resolution be read a third time and Senate vote on passage of the joint resolution; and all other provisions of the statute governing consideration of the joint resolution remain in effect. **Pages S2538–39**

Message from the President: Senate received the following message from the President of the United States:

Transmitting, pursuant to law, the 2012 National Drug Control Strategy; which was referred to the Committee on the Judiciary. (PM–46) **Pages S2543–44**

Wimes Nomination—Agreement: A unanimous-consent-time agreement was reached providing that at 5 p.m., on Monday, April 23, 2012, Senate begin consideration of the nomination of Brian C. Wimes, of Missouri, to be United States District Judge for the Eastern and Western Districts of Missouri; that there be 30 minutes for debate equally divided in the usual form; that upon the use or yielding back of time, Senate vote, without intervening action or debate, on confirmation of the nomination; and that no further motions be in order. **Page S2557**

Messages from the House: **Page S2544**

Measures Referred: **Page S2544**

Measures Read the First Time: **Pages S2544, S2557**

Executive Communications: **Pages S2544–45**

Executive Reports of Committees: **Page S2545**

Additional Cosponsors: **Pages S2546–47**

Statements on Introduced Bills/Resolutions: **Pages S2547–54**

Additional Statements: **Pages S2542–43**

Amendments Submitted: **Pages S2554–55**

Authorities for Committees to Meet: **Pages S2555–56**

Adjournment: Senate convened at 9:30 a.m. and adjourned at 8:16 p.m., until 12 p.m. on Monday, April 23, 2012. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S2557.)

Committee Meetings

(Committees not listed did not meet)

BUSINESS MEETING

Committee on Appropriations: Committee ordered favorably reported the following business items:

An original bill (S. 2323) making appropriations for the Departments of Commerce, Justice, Science and Related Agencies for the fiscal year ending September 30, 2013;

An original bill (S. 2322) making appropriations for the Departments of Transportation, Housing, and

Urban Development and Related Agencies for the fiscal year ending September 30, 2013; and

The fiscal year 2013 302(b) Allocations.

APPROPRIATIONS: FOOD AND DRUG ADMINISTRATION

Committee on Appropriations: Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies concluded a hearing to examine proposed budget estimates for fiscal year 2013 for the Food and Drug Administration, after receiving testimony from Margaret A. Hamburg, Commissioner of Food and Drugs, Food and Drug Administration, Department of Health and Human Services.

DEFENSE AUTHORIZATION REQUEST AND FUTURE YEARS DEFENSE PROGRAM

Committee on Armed Services: Subcommittee on SeaPower concluded a hearing to examine Navy shipbuilding programs in review of the Defense Authorization request for fiscal year 2013 and the Future Years Defense Program, after receiving testimony from Sean J. Stackley, Assistant Secretary of the Navy for Research, Development and Acquisition, Vice Admiral Kevin M. McCoy, USN, Commander, Naval Sea Systems Command, Vice Admiral John T. Blake, USN, Deputy Chief of Naval Operations, Integration of Capabilities and Resources (N8), Vice Admiral William R. Burke, USN, Deputy Chief of Naval Operations, Warfare Systems (N9), Lieutenant General Richard P. Mills, USMC, Deputy Commandant for Combat Development and Integration, Commanding General, Marine Corps Combat Development Command, all of the Department of Defense.

SEA LEVEL RISE IMPACTS

Committee on Energy and Natural Resources: Committee concluded a hearing to examine the impacts of sea level rise on domestic energy and water infrastructure, after receiving testimony from Waleed Abdalati, Chief Scientist, National Aeronautics and Space Administration; Benjamin H. Strauss, Climate Central, Princeton, New Jersey; Anthony C. Janetos, Pacific Northwest National Laboratory Joint Global Change Research Institute, College Park, Maryland; Leonard Berry, Florida Atlantic University Florida Center for Environmental Studies, Jupiter; and Adam Freed, New York City Mayor's Office of Long-Term Planning and Sustainability, New York, New York.

SYRIA

Committee on Foreign Relations: Committee concluded a hearing to examine Syria, focusing on United States policy options, after receiving testimony from Tamara Cofman Wittes, Brookings Institution Saban Center for Middle East Policy, Murhaf Jouejati, National Defense University NESA Center for Strategic Studies, and Jon B. Alterman, Center for Strategic and International Studies, all of Washington, DC.

OSHA STANDARD–SETTING PROCESS DELAYS

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine delays in OSHA's standard-setting process and the impact on worker safety, after receiving testimony from Revae Moran, Director, Education, Workforce, and Income Security, Government Accountability Office; Tom Ward, International Union of Bricklayers and Allied Craftworkers, Woodhaven, Michigan; Michael Silverstein, University of Washington School of Public Health and Community Medicine, Seattle; and Randy S. Rabinowitz, OMB Watch, and David G. Sarvadi, Keller and Heckman LLP, on behalf of the U.S. Chamber of Commerce, both of Washington, DC.

INDIAN TRIBAL ENERGY DEVELOPMENT AND SELF–DETERMINATION ACT AMENDMENTS

Committee on Indian Affairs: Committee concluded a hearing to examine S. 1684, to amend the Indian Tribal Energy Development and Self-Determination Act of 2005, after receiving testimony from James M. Olguin, Southern Ute Indian Tribal Council, Ignacio, Colorado; Tex G. Hall, Mandan, Hidatsa and Arikara Nation of the Fort Berthold Reservation, New Town, North Dakota; Michael Finley, Confederated Tribes of the Colville Reservation, Nespelem, Washington; Irene C. Cuch, Ute Indian Tribe of the Uintah and Ouray Reservation, Fort Duchesne, Utah; and Wilson Groen, Navajo Nation Oil and Gas Company, Window Rock, Arizona.

BUSINESS MEETING

Committee on the Judiciary: Committee ordered favorably reported the nominations of William J. Kayatta, Jr., of Maine, to be United States Circuit Judge for the First Circuit, John Thomas Fowlkes, Jr., to be United States District Judge for the Western District of Tennessee, Kevin McNulty, and Michael A. Shipp, both to be a United States District Judge for the District of New Jersey, and Stephanie Marie Rose, to be United States District Judge for the Southern District of Iowa.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 71 public bills, H.R. 4400–4470; and 8 resolutions, H. Con. Res. 117; and H. Res. 623–629 were introduced. **Pages H2029–31**

Additional Cosponsors: **Pages H2033–34**

Reports Filed: Reports were filed today as follows:

H.R. 1335, to revise the boundaries of the Gettysburg National Military Park to include the Gettysburg Train Station, and for other purposes, with an amendment (H. Rept. 112–449);

H.R. 2240, to authorize the exchange of land or interest in land between Lowell National Historical Park and the city of Lowell in the Commonwealth of Massachusetts, and for other purposes, with an amendment (H. Rept. 112–450);

H.R. 2362, to facilitate economic development by Indian tribes and encourage investment by Turkish enterprises (H. Rept. 112–451); and

H.R. 3452, to provide for the sale of approximately 30 acres of Federal land in Uinta-Wasatch-Cache National Forest in Salt Lake County, Utah, to permit the establishment of a minimally invasive transportation alternative for skiers, called ''SkiLink'', to connect two ski resorts in the Wasatch Mountains, and for other purposes, with an amendment (H. Rept. 112–452). **Page H2029**

Speaker: Read a letter from the Speaker wherein he appointed Representative Miller (MI) to act as Speaker pro tempore for today. **Page H1979**

Chaplain: The prayer was offered by the guest chaplain, Reverend Gerald Baker, St. Ann Catholic Church, Morganfield, Kentucky. **Page H1979**

Journal: The House agreed to the Speaker's approval of the Journal by a yea-and-nay vote of 290 yeas to 118 nays with 3 answering ''present'', Roll No. 174. **Pages H1979, H1989–90**

Small Business Tax Cut Act: The House passed H.R. 9, to amend the Internal Revenue Code of 1986 to provide a deduction for domestic business income of qualified small businesses, by a yea-and-nay vote of 235 yeas to 173 nays with 1 answering ''present'', Roll No. 177. **Pages H1981–89, H1990–S2010**

Rejected the Deutch motion to recommit the bill to the Committee on Ways and Means with instructions to report the same back to the House forthwith with amendments, by a recorded vote of 179 ayes to 229 noes, Roll No. 176. **Pages H2008–10**

Pursuant to the rule, the amendment in the nature of a substitute recommended by the Committee on Ways and Means now printed in the bill shall be considered as adopted. **Pages H1981, H1990**

Rejected:

Levin amendment in the nature of a substitute (printed in H. Rept. 112–447) that replaces the deduction in the underlying bill with a deduction for small businesses for the amounts they spend on capital investments in 2012 (by a yea-and-nay vote of 175 yeas to 236 nays, Roll No. 175). **Pages H2003–08**

H. Res. 620, the rule providing for consideration of the bill, was agreed to by a recorded vote of 234 ayes to 178 noes, Roll No. 173, after the previous question was ordered by a yea-and-nay vote of 234 yeas to 179 nays, Roll No. 172. **Pages H1981–89**

Agreed to the Sessions amendment to the rule by voice vote. **Page H1981**

Presidential Message: Read a message from the President wherein he transmitted the 2012 National Drug Control Strategy—referred to the Committees on Armed Services, Education and the Workforce, Energy and Commerce, Financial Services, Foreign Affairs, Homeland Security, the Judiciary, Natural Resources, Oversight and Government Reform, Transportation and Infrastructure, Veterans' Affairs, and Ways and Means and ordered to be printed (H. Doc. 112–98). **Pages H2027–28**

Quorum Calls—Votes: Four yea-and-nay votes and two recorded votes developed during the proceedings of today and appear on pages H1988, H1989, H1989–90, H2007–08, H2009–10, H2010. There were no quorum calls.

Adjournment: The House met at 9 a.m. and adjourned at 4:57 p.m.

Committee Meetings

MISCELLANEOUS MEASURE

Committee on Appropriations: Subcommittee on Commerce, Justice, Science, and Related Agencies held a markup of Appropriations Bill FY 2013. The bill was forwarded without amendment.

SECURITY SITUATION IN THE SYRIAN ARAB REPUBLIC

Committee on Armed Services: Full Committee held a hearing on Recent Developments in the Middle East: The Security Situation in the Syrian Arab Republic. Testimony was heard from Leon E. Panetta, Secretary of Defense; and General Martin Dempsey, USA, Chairman, Joint Chiefs of Staff.

LEGISLATIVE MEASURE

Committee on Energy and Commerce: Subcommittee on Environment and the Economy held a hearing on H.R. 4345, the ''Domestic Fuels Protection Act of 2012''. Testimony was heard from public witnesses.

CAN AMERICAN MANUFACTURING THRIVE AGAIN?

Committee on Energy and Commerce: Subcommittee on Commerce, Manufacturing, and Trade held a hearing entitled ''Where the Jobs Are: Can American Manufacturing Thrive Again?''. Testimony was heard from John Bryson, Secretary, Department of Commerce; and public witnesses.

OFFICE OF FINANCIAL RESEARCH

Committee on Financial Services: Subcommittee on Oversight and Investigations held a hearing entitled ''Budget Hearing—the Office of Financial Research''. Testimony was heard from Michelle Shannon, Chief Operating Officer, Office of Financial Research, Department of the Treasury.

DHS AND DOE NATIONAL LABS: FINDING EFFICIENCIES AND OPTIMIZING OUTPUTS IN HOMELAND SECURITY RESEARCH AND DEVELOPMENT

Committee on Homeland Security: Subcommittee on Cybersecurity, Infrastructure Protection, and Security Technologies held a hearing entitled ''The DHS and DOE National Labs: Finding Efficiencies and Optimizing Outputs in Homeland Security Research and Development''. Testimony was heard from Daniel M. Gerstein, Deputy Under Secretary for Science and Technology, Department of Homeland Security; Huban Gowadia, Deputy Director, Domestic Nuclear Detection Office, Department of Homeland Security; Daniel Morgan, Specialist in Science and Technology Policy Resources, Sciences and Industry Division, Congressional Research Service; Jill Hruby, Vice President, International, Homeland and Nuclear Security, Sandia National Laboratories; and Michael Robert Carter, Senior Scientist, National Ignition Facility and Photon Science Directorate, Lawrence Livermore National Laboratory.

PROSECUTION OF FORMER SENATOR TED STEVENS

Committee on the Judiciary: Subcommittee on Crime, Terrorism, and Homeland Security held a hearing entitled ''The Prosecution of Former Senator Ted Stevens''. Testimony was heard from public witnesses.

LEGISLATIVE MEASURE

Committee on Natural Resources: Subcommittee on Fisheries, Wildlife, Oceans and Insular Affairs held a hearing on H.R. 4043, the ''Military Readiness and Southern Sea Otter Conservation Act''. Testimony was heard from Donald Schregardus, Deputy Assistant Secretary of the Navy; Alexandra Pitts, Deputy Regional Director, Pacific Southwest Region, Fish and Wildlife Service; and public witnesses.

HYDRAULIC FRACTURING IMPACT ON INDIAN TRIBAL ENERGY DEVELOPMENT

Subcommittee on Indian and Alaska Native Affairs held a hearing entitled ''Bureau of Land Management's Hydraulic Fracturing Rule's Impact on Indian Tribal Energy Development''. Testimony was heard from Tim Spisak, Deputy Assistant Director Minerals and Realty Management, Bureau of Land Management; and public witnesses.

INTERNAL REVENUE SERVICE: CLOSING THE TAX GAP AND PREVENTING IDENTITY THEFT

Committee on Oversight and Government Reform: Subcommittee on Government Organization, Efficiency and Financial Management held a hearing entitled ''Problems at the Internal Revenue Service: Closing the Tax Gap and Preventing Identity Theft''. Testimony was heard from Steven Miller, Deputy Commissioner of Service and Enforcement, Internal Revenue Service; Nina Olson, National Taxpayer Advocate, Internal Revenue Service; J. Russell George, Inspector General, Treasury Inspector General for Tax Administration; and James White, Director, Strategic Issues, Government Accountability Office.

IMPACT OF TAX POLICIES ON THE COMMERCIAL APPLICATION OF RENEWABLE ENERGY AND TECHNOLOGY

Committee on Science, Space, and Technology: Subcommittee on Investigations and Oversight; and Subcommittee on Energy and Environment held a joint hearing entitled ''Impact of Tax Policies on the Commercial Application of Renewable Energy and Technology''. Testimony was heard from Molly F. Sherlock, Specialist in Public Finance, Congressional Research Service; John Parcell, Acting Deputy Tax Legislative Counsel, Department of the Treasury; Michael Pacheco, Vice President, Deployment and Market Transformation, National Renewable Energy Laboratory; and public witnesses.

EQUITY FINANCE: CATALYST FOR SMALL BUSINESS GROWTH

Committee on Small Business: Subcommittee on Economic Growth, Tax and Capital Access held a hearing entitled ''Equity Finance: Catalyst for Small Business Growth''. Testimony was heard from public witnesses.

USE OF TECHNOLOGY TO BETTER TARGET BENEFITS AND ELIMINATE WASTE, FRAUD, AND ABUSE

Committee on Ways and Means: Subcommittee on Human Resources held a hearing entitled ''Use of Technology to Better Target Benefits and Eliminate Waste, Fraud, and Abuse''. Testimony was heard from Donna Roy, Executive Director, National Information Exchange Model (NIEM), Department of Homeland Security; George Sheldon, Acting Assistant Secretary, Administration for Children and Families, Department of Health and Human Services; Robert Doar, Commissioner, Human Resources Administration; and public witnesses.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR FRIDAY, APRIL 20, 2012

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

No hearings are scheduled.

Next Meeting of the SENATE

12 p.m., Monday, April 23

Senate Chamber

Program for Monday: Senate will resume consideration of the motion to proceed to consideration of S. 1925, Violence Against Women Reauthorization Act. At 2 p.m., the Republican Leader, or his designee, will be recognized to move to proceed to consideration of S.J. Res. 36, National Labor Relations Board, with two hours of debate. Following which, Senate will continue consideration of the motion to proceed to consideration of S. 1925, Violence Against Women Reauthorization Act. At approximately 5 p.m., Senate will begin consideration of the nomination of Brian C. Wimes, of Missouri, to be United States District Judge for the Eastern and Western Districts of Missouri, with a vote on confirmation of the nomination at approximately 5:30 p.m.

Next Meeting of the HOUSE OF REPRESENTATIVES

11 a.m., Monday, April 23

House Chamber

Program for Monday: The House will meet in pro forma session at 11 a.m.

Extensions of Remarks, as inserted in this issue

HOUSE

Barletta, Lou, Pa., E583
Bishop, Sanford D., Jr., Ga., E595
Bonner, Jo, Ala., E587
Boren, Dan, Okla., E585
Burton, Dan, Ind., E601
Butterfield, G.K., N.C., E596
Calvert, Ken, Calif., E590
Camp, Dave, Mich., E583
Carnahan, Russ, Mo., E600
Coffman, Mike, Colo., E601
Cohen, Steve, Tenn., E604
Cuellar, Henry, Tex., E589
Davis, Danny K., Ill., E592
Denham, Jeff, Calif., E592, E604
Duffy, Sean P., Wisc., E590
Fincher, Stephen Lee, Tenn., E604
Fitzpatrick, Michael G., Pa., E583, E586, E587
Fudge, Marcia L., Ohio, E595
Garamendi, John, Calif., E589
Gingrey, Phil, Ga., E591
Green, Gene, Tex., E592, E606
Hahn, Janice, Calif., E600
Hirono, Mazie K., Hawaii, E596
Hunter, Duncan, Calif., E597
Jackson Lee, Sheila, Tex., E584, E605
Kaptur, Marcy, Ohio, E599
Keating, William R., Mass., E588
Kildee, Dale E., Mich., E603
King, Steve, Iowa, E586
Kucinich, Dennis J., Ohio, E602, E603
Latham, Tom, Iowa, E588, E590
Latta, Robert E., Ohio, E584, E586, E590, E593, E596, E606
McCollum, Betty, Minn., E587, E589
McCotter, Thaddeus G., Mich., E586
McGovern, James P., Mass., E594
Maloney, Carolyn B., N.Y., E598, E604
Markey, Edward J., Mass., E586
Mica, John L., Fla., E599
Miller, Jeff, Fla., E602
Owens, William L., N.Y., E599, E604
Pallone, Frank, Jr., N.J., E601
Petri, Thomas E., Wisc., E600
Price, David E., N.C., E591
Rahall, Nick J., II, W.Va., E593
Ribble, Reid J., Wisc., E599
Richardson, Laura, Calif., E585, E605
Roby, Martha, Ala., E588
Rogers, Harold, Ky., E592, E605
Speier, Jackie, Calif., E590, E591, E593, E595, E597, E598, E599, E601, E602, E604
Stivers, Steve, Ohio, E602
Sullivan, John, Okla., E597
Thompson, Bennie G., Miss., E606
Thompson, Mike, Calif., E603
Tiberi, Patrick J., Ohio, E583
Whitfield, Ed, Ky., E591
Wittman, Robert J., Va., E583

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